United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, MAY 12, 2015 *No. 72*

House of Representatives

The House met at noon and was called to order by the Speaker pro tempore (Mr. WOMACK).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
May 12, 2015.

I hereby appoint the Honorable STEVE WOMACK to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 6, 2015, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 1:50 p.m.

GROWING U.S. NATIONAL DEBT

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. JONES) for 5 minutes.

Mr. JONES. Mr. Speaker, last week, while we were in recess, I traveled through my district and had the opportunity to appear on local television and to speak at civic clubs. Every time I mentioned that we have an $18 trillion debt, eastern North Carolinians were astounded and could not believe it.

To put the debt into perspective, on January 20, 2009, the total Federal debt stood at $10.6 trillion. As of last Friday, May 8, 2015, it has risen to $18—an increase of $7.5 trillion. Our debt now stands at over $200,000 for every full-time private sector worker. I agree with my constituents that it is time Congress stopped passing legislation that is not paid for.

Republicans have control of both Chambers of Congress now because voters want us to cut the debt and deficit and stop passing legislation that is not paid for.

In an April article for Forbes Magazine, Stan Collender wrote:

> If you haven't noticed that Congress is about to increase the Federal deficit substantially, you haven't been watching carefully . . . or at all. Virtually every policy change that has already or soon will be considered seriously in the House and Senate will make the deficit higher rather than lower.

He further writes:

> Based on what Congress is now considering, the deficit could be $100 billion or more next year than it otherwise would be if you just put Washington on autopilot; that is, if you made no changes to existing tax and spending policies. That would be an almost 21 percent increase.

It is obvious that our current fiscal policies are unsustainable.

Mr. Speaker, I have been speaking for months and even years about the waste of money in Afghanistan. It is sad to me that we have been pouring money down a rat hole known as Afghanistan.

We have spent over $685 billion in Afghanistan in the last 14 years, and President Obama just entered into a bilateral security agreement with Afghanistan late last year that ties us—our Nation—to a failed policy for another 9 years.

What have we gained there, with over 2,000 American troops killed, over 20,000 wounded, and billions of dollars spent? My answer to my own question is: nothing. Absolutely nothing.

A couple of weeks ago, I visited Walter Reed Army Medical Center to meet some of our veterans who had been wounded and are trying to heal. Some have wounds that will never truly heal.

Congress owes it to them—and all of our men and women who serve—and the American taxpayer to have a serious debate about our future in Afghanistan. I think it is high time to leave Afghanistan. Nine more years is absolutely fruitless.

Mr. Speaker, out of fairness to American taxpayers and future generations, we can no longer delay the need to pay down our debt and work toward sound economic policies. And out of fairness to our veterans and the men and women who serve in the military, we need to have a serious debate about spending more money and time in Afghanistan, when it has been proven and is well known by historians to be the graveyard of empires. Is it worth it, Mr. Speaker? I think not.

May God continue to bless our men and women in uniform and may God continue to bless America.

TRADE PROMOTION AUTHORITY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. DEFAZIO) for 5 minutes.

Mr. DEFAZIO. Mr. Speaker, as I rise on the floor of the House, the Senate is about to begin debate on trade promotion authority, which is Congress ceding all authority to the President to negotiate agreements secretly, bring them before these bodies, and to say take it or leave it, an ''up-or-down'' vote, no amendments—ceding our constitutional authority. I hope the Senate turns him down.

Now, the President went to Oregon last week, to Nike, who originated the idea of chasing cheap labor around the world and outsourcing U.S. production. He gave a speech. I wasn't invited. That was fine with me. He went there to make fun of people like me who have fought these trade agreements for more than 20 years and have been more

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right than wrong about the impacts of these trade agreements.

He talked about labor, saying: Don't worry. This is going to put enforceable labor provisions on Vietnam, where you can't have a union, where you have child labor, prison labor, and you get paid 60 cents an hour. He says: We are going to fix all that.

Well, I have read that chapter. I can't talk about it. It is classified. But I can say this. It will be as effective in dealing with the abuses—and, Brunei is even worse than Vietnam—in Brunei or Vietnam, in terms of their labor and working conditions, as the recent U.S. Colombia Free Trade Agreement. Guess what? In Colombia, they still kill people who try and form unions, and we have no recourse against them. So it is not going to fix that problem.

He says: Well, I was in law school when NAFTA passed, and these people are just living in the past. Well, unfortunately, you are bringing the past to the future.

This agreement has been vetted by 500 corporations in real time. They can put it on a big screen in their boardroom, bring in all their lawyers and staff, and say: Let's change these words. Let's make it look like the labor stuff is enforceable, but then we put this here, and it isn't.

I can read it, too. I can go to the basement of this building and I can read it in secret, and I can't talk about it.

So this is an agreement that is for labor, for the environment, for consumers, when it is being written in corporate boardrooms and then submitted to the Special Trade Representative who then puts that text into a special agreement we can't see? No, the President is very, very wrong about that.

He says we are wrong because we are making things up about undermining regulation, food safety, worker safety, and even financial regulations. Well, we are not. This has something called investor-state dispute resolution, which means anyone can challenge any U.S. law. Any foreign corporation, Japanese corporation, or Bruneian corporation can challenge a U.S. law in a secret tribunal staffed by lawyers who have no conflict of interest, no legal body underlying their decisions, and who one day represents corporations and the next day sit as judges.

And he is right, they can't make us repeal our laws. He is absolutely right. But they can make us pay to keep them. We had to pay hundreds of millions of dollars to Brazil to keep subsidizing cotton in this country.

Now, I wasn't into subsidizing the cotton, but it really irks me that we were subsidizing it here, and because of the power of the farm lobby, we paid Brazil hundreds of millions of dollars to keep that subsidy.

The Japanese were killing dolphins to catch tuna, and we passed a law to just label dolphin-safe tuna so consumers could decide, too. We had a big campaign with friendly dolphins.

The Mexicans won in the same process. They won a judgment against the United States of America—that it was an unfair trade barrier—and we had to pay the Mexicans to not fish for dolphins. And then they appealed yet to another place and actually made us eliminate dolphin-safe altogether.

Yes, it can undermine our labor laws, it can undermine our environmental laws, and it can undermine our consumer protection laws when they are challenged by a foreign corporation. So the President is yet wrong again. We are not making stuff up.

Currency manipulation, the Japanese wall—every U.S. auto manufacturer knows about this. They manipulate currency. Therefore, their vehicles are $8,000 cheaper than they would be if their currency was fairly traded—$8,000—and we are going to compete on a level playing field?

This agreement gives them full access, with no tariffs, to our pickup truck market, which means the end of pickup truck manufacturing in America. The iconic Fords and Chevys, forget about it. They are gone with an $8,000 advance.

We couldn't put currency manipulation into this and say that is not fair, because the Japanese didn't want it. But they are giving us a big concession. They are going to buy some American rice. Well, isn't that great? We are trading tens of thousands of auto jobs for a few jobs working in the rice fields in California. And that will only last until the Japanese challenge the rice farmers. Because they get subsidized Federal water, they will ultimately be barred from the Japanese market because they will lose in a secret tribunal under this ISDS provision.

Finally, I have just got to wonder what the President is talking about when he says we are speculating and it is made up.

Oh, Mexican trucks. I predicted when we had the agreement with Mexico that they would force us to let Mexican trucks drive freely in America. Guess what? We lost that, and they put tariffs on our goods because they couldn't drive their trucks all around our country.

There is great precedence here. He hasn't fixed a darned thing. He probably hasn't even read the agreement.

WOMEN'S HEALTH WEEK AND NATIONAL NURSES WEEK

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Illinois (Ms. SCHAKOWSKY) for 5 minutes.

Ms. SCHAKOWSKY. Mr. Speaker, I rise today to recognize Women's Health Week and National Nurses Week.

Yes, this week is Women's Health Week—a time to raise awareness about manageable steps women can take to improve their health.

Currently, one in five women is in fair or poor health, and almost 40 percent report struggling with mental health issues. Women are less likely than men to be employed full time, meaning they are less likely to be eligible for employer-based health benefits.

Difficulty finding and maintaining employer-based coverage is especially pronounced for older women, who are more likely to develop conditions like breast cancer. But thanks to ObamaCare, women's health took a monumental step forward.

Before ObamaCare, insurance companies could discriminate against women, denying coverage to women—of course, to all people—due to preexisting conditions, such as cancer and even previous pregnancies. Today, being a woman or becoming pregnant is no longer a preexisting condition.

The National Women's Law Center estimates that insurers' practice of gender rating cost women about a billion dollars a year before ObamaCare. ObamaCare ends gender rating. It requires health plans to cover women's preventive services, like contraceptive care and OB/GYN visits, without cost sharing.

Accessible contraceptive coverage is particularly important. Prior to ObamaCare, more than half of all women between the ages of 18 and 34 struggled to afford it.

In addition, every health insurance plan is now required to offer maternity care. Prior to the passage of ObamaCare, the National Women's Law Center found that only 12 percent of private plans included maternity services.

And even without those major improvements, health care accessibility remains a challenge. Almost one out of three women reports not visiting a doctor due to the cost.

Women are still less likely to be insured than men. And even when they have insurance, women face increasingly high deductibles, copayments, and other cost sharing requirements, forcing major sacrifices just in order to make ends meet.

A recent study found that over 40 percent of women have unmet medical needs due to the cost of medical care. This problem is particularly acute in States that have not expanded Medicaid. Currently, 3 million uninsured women live in States that have not expanded Medicaid coverage.

So we have come so far in increasing access to affordable and adequate health care for women, but we still have a long way to go.

This week is also National Nurses Week, and I can't pass up the chance to recognize the important contributions that nurses make—improving women's and men's health care every day. After all, we might not have ObamaCare if it weren't for the support and advocacy for nurses all across the country.

This year's National Nurses Week 2015 theme is: ''Ethical Practice. Quality Care.'' It recognizes the importance of ethics in nursing and acknowledges

the strong commitment, compassion, and care nurses display in the practice of their profession.

Registered Nurses, or RNs, are the largest segment of the health care workforce, with 3.1 million RNs, and that number is growing. RNs meet Americans' health care needs on every level. They provide preventive care, such as screenings and immunizations; they diagnose, treat, and help to manage chronic illnesses; and they help patients make critical health decisions every day. But most importantly, nurses take the time to care for each patient during a difficult time in their or their family's lives.

□ 1215

We have plenty of evidence that hiring more nurses leads directly to improved quality care and patient outcomes.

We have seen study after study showing this connection, including a recent analysis showing that one out of every four unanticipated events that leads to death or injury are related to nurse understaffing; yet we continue to see nurses understaffed at medical facilities.

Nurses around the country have identified understaffing as the single most important barrier they face in providing quality care to their patients. It is also a barrier to quality improvement and efforts to reduce preventable readmissions.

I have introduced legislation called the Safe Nurse Staffing for Patient Safety and Quality Care Act, which would help solve this serious problem by establishing a Federal minimum standard in all hospitals for direct care registered nurse to patient staffing ratios.

This problem is not confined to hospitals. Nursing homes are currently required to only have a direct care nurse on staff 8 hours a day. This simply makes no sense. Patients are in these facilities 24 hours a day and need access to round-the-clock nursing care. That is why I have introduced the Put a Registered Nurse in the Nursing Home Act.

We should be thanking nurses, who are considered the most ethical of our healthcare system, and I applaud them.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until 2 p.m. today.

Accordingly (at 12 o'clock and 16 minutes p.m.), the House stood in recess.

□ 1400

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. WALKER) at 2 p.m.

PRAYER

Reverend Andrew Walton, Capitol Hill Presbyterian Church, Washington, D.C., offered the following prayer:

As the gavel sounds and a new day of business begins, we pause to acknowledge the eternal, creative, redemptive spirit of life that unites all people, transcending political persuasion, personal bias, or cultural creed.

We come seeking the wisdom of the ages that points us away from easy choices of rigid certitude that divide and separate but, rather, guides us toward challenging compromises of flexible possibility that connect and unite.

May we seek a common good where all people know freedom, equality, justice, and mercy; a common good grounded in compassion, gratitude, and generosity. May we remember we are one human family in which the pain of one is the pain of all and the joy of one is the joy of all.

May we find this common good in the conversations, deliberations, and achievements of this day and in the countless opportunities that come our way each and every day.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Michigan (Mr. KILDEE) come forward and lead the House in the Pledge of Allegiance.

Mr. KILDEE led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

EASTERN EUROPE PROMOTES PEACE THROUGH STRENGTH

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, last week, I was grateful to participate in a congressional delegation with congressional colleagues MADELEINE BORDALLO and REID RIBBLE, coordinated ably by Army Majors Bobby Cox and Jimmy Crook, to visit dynamic Eastern European allies.

In the Czech Republic, it was heartwarming to see the affection for America at Pilsen upon the 70th anniversary of their liberation by the U.S. Army.

M.K. Air Base in Romania is a symbol of growing Romanian-U.S. defense cooperation. The heroic and courageous leaders at Kiev, Ukraine, were unified in facing Putin's aggression where 7,000 civilians have been killed.

Georgia's proven partnership with NATO is confirmed with extraordinary service by their military for freedom and democracy. The Novo Selo training base in Bulgaria is world class, with young Bulgarians and Americans working side by side to promote peace through strength.

In each country, we were welcomed by dedicated U.S. Ambassadors, with talented Embassy personnel, promoting warm relationships with the new emerging democracies for the mutual benefit of all citizens.

In conclusion, God bless our troops, and the President by his actions should never forget September the 11th in the global war on terror.

LET'S PASS THE HIGHWAY AND TRANSIT TRUST FUND BILL

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, once again, House Republican leadership's culture of governing crisis to crisis is endangering hundreds of thousands of American jobs and thousands of critical construction projects across the country.

There are only 7 legislative days left until the highway and transit trust fund expires on May 31, but there is no plan yet to act. According to the American Association of State Highway and Transportation Officials, 660,000 good-paying construction jobs are hanging in the balance; 6,000 critical construction projects across the country are also being threatened.

For too long, we have been stuck in these short-term patches that fail to meet the challenges of our Nation's crumbling roads and bridges as other nations, our competitors, advance their infrastructure and pass us by leaps and bounds.

We have got to get to work to fixing America's crumbling roads and bridges. It is the job of the Congress to do this. We need to do our job.

We continue to wait, as Democrats, for a plan that we can work together on to rebuild our crumbling infrastructure. It is up to the Republican leadership to act, and I am calling upon them to do just that.

NATIONAL POLICE WEEK

(Mr. EMMER of Minnesota asked and was given permission to address the House for 1 minute.)

Mr. EMMER of Minnesota. Mr. Speaker, I rise today in honor of National Police Week, when we remember the sacrifice of our Nation's law enforcement officers killed in the line of duty.

This year's commemoration falls during a time of heightened tension between our officers and the civilians they have sworn to protect, and it serves as a solemn reminder to all of us the importance of communication, duty, and mutual respect.

Today and every day, we honor the lives of our fallen, including Officer Tommy Decker, of Cold Spring, Minnesota, who was killed in the line of duty in 2012 while doing a welfare check.

May they have eternal rest; may their legacy of service to their communities live on, and may those they left behind find comfort and peace.

Blessed are the peacemakers.

THE BAD HABIT OF PATCH FUNDING

(Ms. NORTON asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. NORTON. Mr. Speaker, we are getting a bad habit of patch funding in 6-month increments what traditionally has been a 6-year surface transportation bill. Virtually no major projects are underway in the Nation as a result. Six-month patch funding has produced patch roadwork.

Worse, road and bridge funding, in turn, is delaying billions of dollars in development that can't get started without new roads.

The Washington Post showcased our example featuring overhaul of Union Station, which cannot proceed without a new bridge.

Transportation funding delay is stopping a lot more than transportation infrastructure. Our districts need long-term reauthorization.

COMMUNICATION FROM VETERANS ADVOCATE OF THE OFFICE OF THE 18TH CONGRESSIONAL DISTRICT OF ILLINOIS

The SPEAKER pro tempore laid before the House the following communication from the Veterans Advocate of the Office of the 18th Congressional District of Illinois:

CONGRESS OF THE UNITED STATES,
Washington, DC, May 1, 2015.

Hon. JOHN A. BOEHNER,
Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: This is to notify you formally pursuant to rule VIII of the Rules of the House of Representatives that I have been served with a grand jury subpoena for testimony issued by the United States District Court for the Central District of Illinois.

I have determined that compliance with the subpoena is consistent with the privileges and rights of the House.

Sincerely,

MICHAEL GILMORE,
Veterans Advocate (IL–18).

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, May 12, 2015.

Hon. JOHN A. BOEHNER,
The Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on May 12, 2015 at 9:38 a.m.:

That the Senate passed without amendment H.R. 651.

That the Senate passed S. 179.

That the Senate passed S. 136.

That the Senate passed S. 994.

That the Senate agreed to S. Con. Res. 16.

Appointments:

Board of Directors of Office of Compliance.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

MELANOMA AND SKIN CANCER DETECTION AND PREVENTION MONTH

(Mr. BILIRAKIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BILIRAKIS. Mr. Speaker, May is Melanoma and Skin Cancer Detection and Prevention Month.

One person dies of melanoma every hour. There will be over 73,000 new cases of invasive melanoma in the United States this year. Early detection is crucial to prevention.

I would like to highlight a very brave constituent of mine, McKenna Fitzpatrick. She is in the fourth grade at Seven Oaks Elementary School and bravely faced skin cancer.

Despite being so young, she detected her skin cancer early, had a biopsy, dealt with her diagnosis, and overcame the challenges. McKenna's experience is a testament to the virtue of early detection.

Take care of yourself when you are outside or any other time you may be exposed to UV light. This is extremely important for residents of Florida and people across the Nation. This summer, enjoy the beach safely and responsibly.

CLIMATE CHANGE IS HAPPENING

(Mr. LOWENTHAL asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LOWENTHAL. Mr. Speaker, a new global record was set last week, but this is not a good record. The atmospheric concentration of carbon dioxide surpassed 400 parts per million for an entire month. This is the first time we have reached these levels in over 800,000 years. This is a serious and a potent reminder that we have not yet acted on climate change.

The last time CO_2 concentrations were this high, the world was a hotter place. There were forests in the Arctic, and sea levels were meters higher than they are today.

Our planet is telling us that climate change is happening. We owe it to our constituents to put aside partisan differences and to begin to work on solutions to this global problem.

HONORING THE LIFE OF CHIEF FLOYD SIMPSON

(Mr. FARENTHOLD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. FARENTHOLD. Mr. Speaker, I am here today to honor a friend who recently died in a motorcycle accident. On May 3, in my hometown of Corpus Christi, our police chief, Floyd Simpson, died.

Originally from Chicago, Chief Simpson felt drawn to Texas. As a 25-year veteran of the Dallas Police Department before moving to Corpus Christi, Chief Simpson established a reputation as a ''legend in the department,'' and according to his peers, he was an outstanding ''human being, husband, and father.''

He was a great communicator, regularly appearing on the radio and at community events throughout the Coastal Bend. In his interview for the job of chief of police, Corpus Christi City Manager Ron Olson asked him to describe his values. Chief Simpson replied that faith comes first, family second, and everything else comes after that.

In the wake of Chief Simpson's passing, State and local officials are coming together to make State Highway 361 safer. Even in death, he will continue to help keep others safe.

My heart and prayers go out to Tanya, Chief Simpson's wife of 27 years, and his children.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until approximately 4 p.m. today.

Accordingly (at 2 o'clock and 13 minutes p.m.), the House stood in recess.

□ 1601

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. YOUNG of Iowa) at 4 o'clock and 1 minute p.m.

REPORT ON H.R. 2250, LEGISLATIVE BRANCH APPROPRIATIONS ACT, 2016

Mr. GRAVES of Georgia, from the Committee on Appropriations, submitted a privileged report (Rept. No. 114–110) on the bill (H.R. 2250) making appropriations for the Legislative Branch for the fiscal year ending September 30, 2016, and for other purposes, which was referred to the Union Calendar and ordered to be printed.

The SPEAKER pro tempore. Pursuant to clause 1, rule XXI, all points of order are reserved on the bill.

REGULATORY INTEGRITY PROTECTION ACT OF 2015

GENERAL LEAVE

Mr. SHUSTER. Mr. Speaker, I ask unanimous consent that Members may have 5 legislative days to revise and extend their remarks and include extraneous material on H.R. 1732.

The SPEAKER pro tempore (Mr. RODNEY DAVIS of Illinois). Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 231 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 1732.

The Chair appoints the gentleman from Iowa (Mr. YOUNG) to preside over the Committee of the Whole.

□ 1602

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 1732) to preserve existing rights and responsibilities with respect to waters of the United States, and for other purposes, with Mr. YOUNG of Iowa in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

The gentleman from Pennsylvania (Mr. SHUSTER) and the gentleman from Oregon (Mr. DEFAZIO) each will control 30 minutes.

The Chair recognizes the gentleman from Pennsylvania.

Mr. SHUSTER. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I rise today in strong support of H.R. 1732, the Regulatory Integrity Protection Act.

The Federal-State partnership Congress created under the Clean Water Act has led to significantly improved water quality over the past four decades. This is because Congress recognized that States should have the primary responsibility of regulating waters within their own boundaries and that not all waters need to be subjected to Federal jurisdiction. These limits on Federal power have also been reaffirmed by the Supreme Court not once, but twice.

However, last year, the EPA and the Corps of Engineers proposed a new rule that discards these limits. This purposefully vague rule will only increase confusion, increase uncertainty, increase lawsuits, and open up just about any water or wet area to Federal regulation.

Don't just take my word for it. At least 32 States, including Pennsylvania, are objecting to the rule as proposed. More than 1 million comments have been filed on this proposed rule, with approximately 70 percent of the substantive comments asking for the rule to be withdrawn or significantly modified.

Mr. Chair, 370 individual counties and the National Association of Counties oppose the rule. The National League of Cities, the U.S. Conference of Mayors, and the National Association of Towns and Townships all oppose this rule.

The majority of the regulated community opposes the rule, including the American Farm Bureau, the National Association of Home Builders, the Associated General Contractors of America, the U.S. Chamber of Commerce, the National Association of Manufacturers, the Edison Electric Institute, the National Mining Association, and the American Road and Transportation Builders Association.

This list of those opposed to this rule goes on and on and on. Not only do all these groups oppose the rule, but they all support H.R. 1732, the Regulatory Integrity Protection Act.

I will insert the list of supporters in the CONGRESSIONAL RECORD at this time.

LETTERS OF SUPPORT FOR H.R. 1732

AgriMark, American Farm Bureau Federation, American Public Works Association, American Road and Transportation Builders Association, Associated Builders and Contractors, Associated General Contractors of America, Association of American Railroads, Family Farm Alliance, International Council of Shopping Centers.

National Alliance of Forest Owners, National Association of Counties, National Association of Homebuilders, National Association of Realtors, National Association of Regional Councils, National Association of Wheat Growers, National League of Cities, National Multifamily Housing Council, National Water Resources Association.

Northeast Dairy Farmers Cooperatives, Oregon Dairy Farmers Association, Portland Cement Association, Select Milk Producers Inc, Small Business and Entrepreneurship Council, The American Sugarbeet Growers Association, The United States Conference of Mayors, Virginia Poultry Federation, Waters Advocacy Coalition.

National Association of Manufacturers.

LIST OF SUPPORTERS FOR H.R. 1732

Agricultural Retailers Association, American Exploration & Mining Association, American Farm Bureau Federation, American Forest & Paper Association, American Gas Association, American Iron and Steel Institute, American Petroleum Institute, American Public Power Association, American Road & Transportation Builders Association, American Society of Golf Course Architects.

Associated Builders and Contractors, The Associated General Contractors of America, Association of American Railroads, Association of Oil Pipe Lines, Club Managers Association of America, Corn Refiners Association, CropLife America, Edison Electric Institute, Federal Forest Resources Coalition, The Fertilizer Institute.

Florida Sugar Cane League, Foundation for Environmental and Economic Progress (FEEP), Golf Course Builders Association of America, Golf Course Superintendents Association of America, The Independent Petroleum Association of America (IPAA), Industrial Minerals Association—North America, International Council of Shopping Centers (ICSC), International Liquid Terminals Association (ILTA), Interstate Natural Gas Association of America (INGAA), Irrigation Association.

Leading Builders of America, NAIOP, the Commercial Real Estate Development Association, National Association of Home Builders, National Association Association of Manufacturers, National Association of REALTORS®, National Association of State Department of Agriculture, National Cattlemen's Beef Association, National Club Association, National Corn Growers Association, National Cotton.

National Cotton Council, National Council of Farmer Cooperatives, National Golf Course Owners Association of America, National Industrial Sand Association, National Mining Association, National Multifamily Housing Council, National Oilseed Processors Association, National Pork Producers Council (NPPC), National Rural Electric Cooperative Association, National Stone, Sand and Gravel Association (NSSGA).

Portland Cement Association, Public Lands, Responsible Industry for a Sound Environment (RISE), Southeastern Lumber Manufacturers Association Southern Crop Production Association, Sports Turf Managers Association, Texas Wildlife Association, Treated Wood Council, United Egg Producers, U.S. Chamber of Commerce.

Mr. SHUSTER. I next want to read a quote from a constituent of mine, Marty Yahner, a farmer from Cambria County, Pennsylvania.

''This illegal power grab clearly goes far beyond the power granted to the EPA by Congress through the Clean Water Act. Farmers, like me, are very concerned about the proposal giving unprecedented power to government agencies over how farmers can use their land. I'm also worried that the proposed rules will adversely impact the next generation being able to farm.''

That is not a Member of Congress. That is not a government official. That is a real-life farmer, and he has real concerns.

This rule will have serious economic consequences not just for our farmers, but for many others. This rule will threaten jobs and result in costly litigation. It will restrict the rights of landowners and the rights of States and local governments to carry out their economic development plans.

H.R. 1732, the Regulatory Integrity Protection Act, requires the agencies to withdraw the flawed rule, consult with States and local governments and other stakeholders, and then use that input to develop and repropose a new rule that works.

This bill gives the agencies, their State partners, and stakeholders another chance to work together and develop a rule that does what was intended, provide clarity. This is a chance to find the thoughtful, balanced regulatory approach that is necessary.

We all want to protect our waters. With this bill, we have a chance to do that by restoring integrity to the rulemaking process and restore common sense.

With this bill, we have a chance to tell the administration, the EPA, and the Corps to do it right this time.

I urge all Members to support H.R. 1732, and I reserve the balance of my time.

Mr. DEFAZIO. Mr. Chairman, I yield myself such time as I may consume.

I rise in opposition to this bill, H.R. 1732, very aptly name the RIP Act, rest

in peace—oh, no, the Regulatory Integrity Protection Act. It will rest in peace. It would be inevitably vetoed if the Senate chose to take it up, which I don't believe they will.

We are being asked to vote on things here that no one has seen or read, and that is why we are here today.

Now, the President wants us to vote on trade policy for the United States of America. I have read parts of it. Many Members haven't read any of it, but nobody—probably very few have read all of it. The public hasn't seen any of it.

Here we are again today. We are being asked to vote on killing something that nobody has read. No one in this Chamber knows what is in this rule.

Now, I would not rise to support the rule as initially proposed. It was garbled, poorly presented, and I believe there were many problems that it would have created, and that was especially distressing because it was a rule that was trying to fix something done in the Bush era. We are still dealing with the Bush era.

Because of a 4–1–4 Supreme Court decision, with two different tests for jurisdictional waters and total confusion, the Bush administration decided to write a rule to interpret the Clean Water Act.

When it was unveiled, it was opposed by all the groups that are supporting this bill today. They said: This is ridiculous. It is confusing. It just leaves way too much to interpretation. It can be applied in different ways in different parts of the country. There is no certainty here. It is a mess. Get rid of it.

Well, that didn't happen, and the Obama administration, in response to the requests of all those groups, said: Okay. We will take a cut at it.

Now, as I say, the first version was not very well done, and it raised more questions than it answered, but we now have at least some idea of some of the things this bill is going to do.

It is not going to regulate your birdbaths and ditches and all these other things that are out there on the Internet. In fact, it may solve real problems. We don't know that, but we are going to repeal it before it happens.

Now, here is a problem. This farmer in the South was made to go through the environmental review process and get a permit; yet farming and agricultural practices are supposed to be exempt.

I showed this to the Republicans who were using this in a joint hearing with the Senate. I asked the EPA Administrator and secretary of the Corps: Would this land, knowing it is agricultural land, be jurisdictional—they can't tell us what is in their rule—under your rule?

They said: No, that land would be exempt.

This person who had to go through a lengthy permitting process because of the confusion of the Bush guidance would not, under the proposed rule, have to go through any of that and could just go on farming.

Thank you very much.

Now, we are going to prevent him or her from getting that relief. Now, that is just one of the aspects of this rule that we know a little bit about—or at least we know the Administrator's interpretation of that part of the rule, that it would fix a problem for farmers.

I would suggest that there is a better way to proceed in the House, which would be let them publish the rule. If it solves a bunch of problems, great. If it solves a bunch of problems but still needs some tweaks, great. Let's intervene. Let's give them direction.

If it is something that you and everybody else feels we just can't live with, that it is poorly done—instead of this confusing process we are going through here, which I am about to explain contradicts legislation just passed 2 weeks ago—we can do this: I have already had it drafted for you. You don't need to take the time. It is less than a page. It is called a joint congressional resolution of disapproval.

Any major rule—this is a major rule—Congress has the right, under legislation that is 20 years old now, to reject it within 60 days. If the rule is not well written, once we see it and read it, you could reject it. What is the rush to repeal it before we have read it and we know what is in it?

Well, there is a lot of political stuff going on around here. I would say it is just politics playing to the crowd and the fears of people who haven't seen it or read it yet either, but they are worried about what it might be.

Well, it doesn't go into effect immediately, I will say to them. If it is bad, you can ask the same people that introduced this resolution, pass it forthwith, send it to the Senate, pass it forthwith, and that is the end of it, and we would start over.

Now, there is one other confusing aspect here, and that is that, just 2 weeks ago, the House voted on this language, which says that the bill before us purports to start the process over again, the fourth attempt at writing the rule with a whole lot more public hearings and everything, despite everything that has gone on to this point in time.

Two weeks ago, an amendment to the Energy and Water appropriations said there can be no new rule development, so that is already in the bill. Unless that were taken out of the bill, what we are doing here today can't happen.

You can't develop a new rule when it is precluded in the appropriations process, as passed by many of the people who are going to vote for this today. You have sort of contradicted yourself a little bit.

It makes it a little problematic. Do a new rule, but you can't do a new rule, so forget about it. What does that mean? We are stuck with the Bush guidance, which everybody hates and doesn't work and subjects farmers to unnecessary permitting processes.

I don't call that exactly progress or acting in the best interest of the American people and agriculture and a whole host of other people who might be impacted. I would just suggest that we forgo this little political demonstration today, just wait patiently for another 2 weeks when the trolls at OMB finally release the rule.

It has been down there for months. We need to reform OMB, and I hope some on the other side of the aisle would like to help me there. We need a more transparent rulemaking process in this country.

We should not rush ahead and not allow a rule to be published that might help people; and, if it doesn't help people, then you can kill it.

I reserve the balance of my time.

Mr. SHUSTER. Mr. Chairman, it is now my honor to yield 1 minute to the gentleman from Texas (Mr. CONAWAY), the chairman of the Agriculture Committee.

Mr. CONAWAY. Mr. Chairman, I appreciate Chairman SHUSTER's leadership on this issue. It is important that we go ahead and kill this proposed rule now because it will go final coming out of OMB, and that is a wreck.

I rise today in support of H.R. 1732, the Regulatory Integrity Protection Act of 2015. I cannot stress enough the importance of this legislation to stop the Obama administration's Waters of the U.S. proposed rule and its damaging impacts on our country.

This rule, in its current form, is a massive overreach of EPA's authority and will impact nearly every farmer and rancher in America. It gives the EPA the ability to regulate essentially any body of water they want, including farm ponds and even ditches that are dry for most of the year.

□ 1615

Bottom line: under the EPA's proposed rule, nearly every body of water in the United States can be controlled by Federal regulators.

Mr. Chairman, I strongly support this legislation that forces the EPA and the Corps to stop moving forward with the proposed Waters of the U.S. rule and do as they should have done from the beginning—working with States and local stakeholders to develop a new and proper set of recommendations.

I urge support for H.R. 1732. It is imperative that the administration listen to rural America.

Mr. DEFAZIO. Mr. Chairman, as I said earlier, that gentleman hasn't read the rule, I haven't read the rule, and I don't know how one can assert very specifically what it might or might not do if you haven't read it when we have heard there have been major changes.

Mr. Chairman, I yield 3 minutes to the gentlewoman from California (Mrs. NAPOLITANO), the ranking member of the subcommittee of jurisdiction.

Mrs. NAPOLITANO. Mr. Chairman, I thank Ranking Member DEFAZIO for the opportunity to rise in strong opposition to H.R. 1732, the Regulatory Integrity Protection Act, for several reasons. First, frankly speaking, I oppose

the bill because it simply does not work. Just before the recess, the House passed the Energy and Water Appropriations, as was pointed out by Mr. DEFAZIO, that included a rider which I opposed that would prohibit the Army Corps of Engineers from using any appropriated funds to develop or implement a change to the current rules that define the scope of Clean Water Act protections. Yet that is what the sponsors of H.R. 1732 say this bill is meant to do.

The sponsors of this bill claim that it will not kill the ongoing rulemaking but only tells the Corps and EPA to do the rulemaking over again. Yet just 2 weeks ago, as was pointed out, the House voted to prevent the agency from taking any action to change the current rules. So which is it? Does the majority want the agencies to do the rulemaking over? Or do they want to kill any effort to change the current process that has been uniformly criticized by farmers, developers, other industries, and environmental organizations as unworkable, arbitrary, and costly?

Secondly, I am opposed to H.R. 1732 because it is yet another attempt to delay needed clarification to the scope of the Clean Water Act. Remember, the executive branch has been trying to clarify the scope of the Clean Water Act since January 2003. Now that is what, 15 years ago, roughly, since the Bush administration released their Advance Notice of Proposed Rulemaking for public comment. Since that time there have been six—again six—attempts by the executive branch to release their interpretation of the Waters of the United States.

We have waited 12 years for clarity. For 12 long years, Mr. Chairman, our Nation's streams and rivers have been vulnerable to pollution and degradation. For 12 years our government has spent millions of dollars working on bringing clarity to the decisions made by the Supreme Court. Delaying this further would cost our American taxpayers—all of us—many more millions of dollars and a lot of wasted time.

Intervening now and forcing the administration to start over again, particularly when we are on the cusp of clarity, is reckless. For example, stopping the administration's rulemaking to clarify the Clean Water Act could further impact the already dire circumstances Western States are facing with prolonged drought.

Mr. Chairman, 99.2 percent of my State in California drink water from public drinking water systems that rely on intermittent, ephemeral, and headwater streams. These streams are drying up in the West. And, to add insult to injury, our actions today would force the administration to withdraw a rule that protects those streams that provide drinking water for 117 million Americans.

The Acting CHAIR (Mr. EMMER of Minnesota). The time of the gentlewoman has expired.

Mr. DEFAZIO. Mr. Chairman, I yield the gentlewoman an additional 1 minute.

Mrs. NAPOLITANO. I thank the gentleman.

Mr. Chairman, this legislation puts the legislative agenda of a well-heeled few ahead of the Nation's—our taxpayers'—drinking water. It aims to protect the rights of speculators and developers over the need to conserve and reuse every precious drop of water that falls in our State. The bill potentially creates new opportunities for individuals to overturn decades of Western water law for their own personal benefit.

Mr. Chairman, many of us have had many concerns with the proposed rule—the original one. But I appreciate that the administration has addressed those concerns and most of the concerns of the States and the stakeholders. The administration has pledged to work with stakeholders on implementation of the rule once it is final, which should happen in the next few months.

So, today, we will hear many platitudes that this bill is not about killing the rule but about simply asking for public comment. Yet such statements ignore the fact that the House just passed a rider, as was pointed out, in the Energy and Water bill to block the bill from taking effect and blocking any change to the existing rulemaking or guidance.

So, Mr. Chairman, today's rhetoric that this is simply an attempt to gather more public comment is simply that—just words. I urge my colleagues to vote against H.R. 1732.

Mr. SHUSTER. Mr. Chairman, I yield 5 minutes to the gentleman from Ohio (Mr. GIBBS), the chairman of the Water Resources and Environment Subcommittee, a gentleman who has put lots and lots of work into this issue over the past several months.

Mr. GIBBS. Mr. Chairman, I rise in strong support today for H.R. 1732, the Regulatory Integrity Protection Act of 2015.

One of the reasons that we are doing this bill today is to provide clarity and certainty for the regulated community. Following the SWANCC and Rapanos Supreme Court decisions, determining the appropriate scope of jurisdiction under the Clean Water Act has been confusing and unclear. Both the regulated community and the Supreme Court have called for a rulemaking that will provide such clarity.

Last April, the EPA and Army Corps of Engineers published a rule in the Federal Register that, according to the agencies, would clarify the scope of Federal jurisdiction under the Clean Water Act. But in reality, this rule goes far beyond merely clarifying the scope of Federal jurisdiction under Clean Water Act programs. It amounts to a vast expansion of Federal jurisdiction.

To the agencies, clarity is simple: everything is in. This is a clear expansion of the EPA's jurisdiction under the Clean Water Act and flies in the face of two Supreme Court decisions, both of which told the agencies there are limits to Federal jurisdiction.

The proposed rule misconstrues and manipulates the legal standards announced in the SWANCC and Rapanos Supreme Court cases, effectively turning those cases that place limits on Federal Clean Water Act jurisdiction into a justification for the agencies to expand their assertion of Federal authority over all waters and wet areas nationally.

The agencies had an opportunity to develop clear and reasonable bright-line rules on which is jurisdictional versus not, but they instead chose to write many of the provisions in the proposed rule vaguely, in order to give Federal regulators substantial discretion to claim Federal jurisdiction over most any water or wet area whenever they want. This is dangerous because this vagueness will leave the regulated community without any clarity and certainty as to their regulatory status and will leave them exposed to citizen lawsuits. In addition, since many of these jurisdictional decisions will be made on a case-by-case basis, this will give the Federal regulators free rein to find jurisdiction.

This rule, in essence, will establish a presumption that all waters are jurisdictional and will shift to property owners and others in the regulated community the burden of proving otherwise. This rule will set a very high bar for the regulated community to overcome.

Mr. Chairman, the administration even explicitly acknowledges in its recently issued Statement of Administration Policy for H.R. 1732 that it does not want the bill to constrain the agencies' regulatory discretion.

The Clean Water Act was originally intended as a cooperative partnership between States and the Federal Government, with States responsible for the elimination, prevention, and oversight of water pollution. This successful partnership has provided monumental improvements in water quality throughout the Nation since its 1972 enactment because not all waters need to be subject to Federal jurisdiction. However, this rule will undermine Federal-State partnership and erode State authority by granting sweeping new Federal jurisdiction to waters never intended for regulation under the Clean Water Act.

In promoting this rule, Mr. Chairman, the agencies are asserting that massive amounts of wetlands and stream miles are not being protected by the States and that this rule is needed to protect them. Yet the agencies continue to claim that no new waters will be covered by the rulemaking, which raises the question of how can the rule protect those supposedly unprotected waters without vastly expanding Federal jurisdiction over them? The agencies are talking

out of both sides of their mouths. In reality, however, States care about and are protective of their waters, and wetlands and stream miles are not being left unprotected.

Mr. Chairman, in addition to proposing a rule that has sweeping ramifications for the country, the agencies played fast and loose with the regulatory process. The sequence and timing of the actions the agencies have taken to develop this rule undermine the credibility of the rule and the process to develop it.

Among other things, State and local governments and the regulated community all have repeatedly expressed concern that the agencies have cut them out of the process and have failed to consult with them, first during the development of the agencies' jurisdiction guidance, and now, in the development of the rule.

Mr. Chairman, if the agencies had taken the time to consult with the State and local governments and actually listen up front to the issues that our counties, cities, and townships are facing, we might not have had a proposed rule which, the agencies have admitted to Congress in multiple hearings, creates confusion and uncertainty.

If the agencies had followed the proper regulatory process, we wouldn't have a proposed rule that cuts corners on the economic analysis, used incomplete data, and only looked at economic impacts of the rule on one of the many regulatory programs under the Clean Water Act. If the agencies had done things right the first time, the Transportation and Infrastructure Committee wouldn't have had to respond to the more than 30 States and almost 400 counties who have requested the EPA withdraw or significantly revise the proposed Waters of the United States rule. If the agencies had done things right, substantive comments filed on the rule wouldn't have been nearly 70 percent opposed to the rule.

The Acting CHAIR. The time of the gentleman has expired.

Mr. SHUSTER. Mr. Chairman, I yield the gentleman an additional 30 seconds.

Mr. GIBBS. But the agencies didn't do things right.

Mr. Chairman, H.R. 1732, the Regulatory Integrity Protection Act, gives the agencies, their State and local government partners, and other stakeholders another chance to work together to develop a rule that does what was intended—to provide clarity.

This bill requires the agencies to withdraw the proposed rule and enter into a transparent and cooperative process with States, local governments, and other stakeholders to write a new rule. This is what EPA should have done in the first place.

The Acting CHAIR. The time of the gentleman has again expired.

Mr. SHUSTER. Mr. Chairman, I yield the gentleman an additional 1 minute.

Mr. GIBBS. The Regulatory Integrity Protection Act will ensure that the agencies cannot re-propose the same broken rule they released a year ago but does give the agencies an opportunity to get it right.

Mr. Chairman, I know my colleagues across the aisle all believe the agencies have heard the confusion and are committed to changing the rule to respond to the stakeholders' complaints. Unfortunately, the agencies have not provided Members of Congress or stakeholders with any real assurance that that will happen. All they tell us is to trust them.

In fact, at our joint hearing with the Senate earlier this year, when I asked Administrator McCarthy about whether the public would have a chance to review all of the changes they promised to make before the rule goes final, she said they weren't changing the rule enough to need to put it out for public comment again.

In our committee, Mr. Chairman, we have repeatedly heard from our friends on the other side of the aisle that we need to wait until the rule is finalized before taking action. If the agencies have not made the changes that they promised, or if the changes they have made do not work, we have congressional authority to disapprove of the rule.

While I appreciate my colleagues' interest in using the Congressional Review Act, waiting until the rule is finalized doesn't give us or the agencies a real chance to fix the problems that will be created.

The Acting CHAIR. The time of the gentleman has again expired.

Mr. SHUSTER. Mr. Chairman, I yield the gentleman an additional 30 seconds.

Mr. GIBBS. Not only would the President have to sign any disapproval resolution we pass, but there are legal scholars who believe if the Congressional Review Act did pass, the agencies would be barred from ever going back and doing another rulemaking, which would leave us in the position of being stuck in the same regulatory uncertainty we are in today. I don't think I want this or any of my colleagues on the other side of the aisle want this.

As I said in the beginning, the reason we are voting on the Regulatory Integrity Protection Act today is to get a rule that provides real clarity, that works for the States, that works for local governments, and that protects our waters.

Nearly $220 billion in annual economic investment is tied to section 404 permits. Even more economic investment is tied to other Clean Water Act programs. I urge support for this bill.

The Acting CHAIR. The time of the gentleman has again expired.

Mr. DEFAZIO. I yield myself such time as I may consume.

First, again, Mr. Chairman, I would remind the gentleman on the other side that we are not voting on the proposed rule. We are voting on a revised rule, and no Member of Congress nor any member of the potentially regulated community nor any member of any environmental group has seen or has knowledge of that rule.

The gentleman reports that this simply tells them to go back again because they didn't do enough. They had 700 days of public comments, and they accepted 1,429 public comments that went into this.

I would also remind the gentleman that I don't know how he voted on the amendment, but on the Republican Energy and Water bill 2 weeks ago, we precluded developing any new rule, none, zero. So kill the one we haven't seen, and you are stuck with the Bush guidance which everybody agrees is a disaster.

Mr. Chairman, I yield 2 minutes to the gentleman from New York (Mr. NADLER), a member of the committee.

□ 1630

Mr. NADLER. Mr. Chairman, I thank the gentleman for yielding.

Mr. Chairman, I rise in opposition to H.R. 1732. This bill would halt efforts to clarify the scope of the Clean Water Act, a clarification necessary to protect the environment, to protect wetlands, and to protect drinking water for a third of the population.

For over a decade, there has been great uncertainty about the jurisdiction of the Clean Water Act, particularly as it applies to wetlands and streams, as a result of Supreme Court decisions in 2001 and 2006, and of guidance documents issued under the Bush administration.

In an effort to provide regulatory clarity—a goal universally shared by State and local governments, industry, agriculture, and environmental organizations—the EPA and the Army Corps of Engineers have conducted a formal rulemaking process.

The resulting clean water rule was proposed over a year ago and represents the culmination of years of study, independent scientific review, and unprecedented public comment and outreach. Just as the rule is at OMB and before it has even been published so people could read it, this bill guts all that work and requires EPA and the Corps, essentially, to start over.

The bill has no justifiable purpose. It kills the new rule before anyone has even had a chance to read it. It requires the agencies to conduct what appears to be two additional public comment periods, bringing the total up to six public comment periods in the last decade.

It requires the agencies to consult with stakeholders again, even though the rule was developed after 400 meetings with stakeholders, with comments filed by over 800,000 members of the public.

My Republican colleagues are always complaining about regulatory uncertainty, the resulting increased costs on businesses, bureaucratic delay, and waste of taxpayer dollars; yet this bill is unnecessary, repetitive, and serves no legitimate purpose other than to delay.

The harm it will cause is extensive. There is perhaps no greater responsibility than to protect the Nation's water supply. This bill would leave our environmental resources unprotected and the drinking water for 117 million Americans at risk. The rule is up in the air, unread, unseen, undecided, and unknown.

I urge my colleagues to vote ''no.''

Mr. SHUSTER. Mr. Chairman, I yield myself such time as I may consume.

My colleagues on the other side of the aisle, all of a sudden, want to see this rule; but, when we passed the ObamaCare bill, nobody seemed to care about what it said in it. Again, this is new for me from my colleagues from the other side.

I think one thing is for certain. When you have so many people, so many States—the State of New York, I believe, is one that asked for significant revision—the counties, all these stakeholders crying out to have this rule significantly changed or do away with it is important to the American people.

This bill does exactly what the gentleman said. It delays this rule from going into place because it is a bad rule and will cause great economic harm to this country.

I yield 1 minute to the gentleman from Illinois (Mr. RODNEY DAVIS).

Mr. RODNEY DAVIS of Illinois. Mr. Chairman, I thank Chairman SHUSTER and Chairman GIBBS for your leadership on this important issue. I am an original cosponsor of this very important bill.

Everyone in this Chamber, Mr. Chairman, supports clean water. That is why I was such a strong advocate for the EPA to designate a portion of the Mahomet Aquifer in central Illinois as a sole source of drinking water, which was finalized just this past year.

This proposed rule on the Waters of the U.S., this attempt by the EPA to expand its authority under the Clean Water Act to lands that are traditionally dry is an overreach and must be reined in.

I am increasingly concerned of the trust gap between the EPA and the agricultural community. Earlier this year, EPA Administrator McCarthy apologized to ag producers for not bringing them to the table when the Agency put out its interpretive rule on conservation practices, which the EPA and the Corps of Engineers ultimately withdrew.

Unfortunately, this is just more evidence of the haste with which the proposed rule was developed, without appropriately seeking and implementing all necessary stakeholder input.

H.R. 1732 would require both the EPA and the Corps to withdraw the proposed rule, go back to the drawing board, and write a new rule with all stakeholders together. Frankly, this is what they should have done in the first place.

Mr. DEFAZIO. Mr. Chairman, I yield myself such time as I may consume.

First, I would correct the Record—and far be it for me to correct the chairman—but, actually, the attorney general of New York, on behalf of the State of New York, as one of our witnesses, testified in favor of going forward with the rule, so there were others who objected.

Mr. SHUSTER. Will the gentleman yield?

Mr. DEFAZIO. I yield to the gentleman from Pennsylvania.

Mr. SHUSTER. The implementing agencies with their comments rejected the rule from New York. It sounds like New York is confused.

Mr. DEFAZIO. New York may be confused, and everybody is confused because they have not seen what it is that they are objecting to and would, again, suggest that the best course of action would be to actually see it.

The gentleman from Ohio brought up something very weird, saying that, somehow, if we used a simple resolution of disapproval, they couldn't write a new rule.

He is confusing it with the bill you passed last year, which said that the rule is rejected and you can't use anything you use to write that rule to write a new rule. A number of us raised questions about that at the time. You did pass that last year. That is probably what he is thinking of.

This is a simple resolution of disapproval. It would not have any impact on future actions of the Agency.

I yield 5 minutes to the gentlewoman from Maryland (Ms. EDWARDS).

Ms. EDWARDS. Mr. Chairman, I thank my colleague for yielding.

I think the American public, Mr. Chairman, must be quite confused. This rulemaking that we are talking about is actually about clean water; it is about a rulemaking process that hasn't been completed yet, and it is about a rule that we haven't seen, so it seems sort of odd that we are standing here commenting on it.

I just want to remind the other side that, thanks to the Clean Water Act, billions of pounds of pollution have been kept out of our rivers, and the number of waters that now meet clean water goals nationwide has actually doubled with direct benefits for drinking water, public health, recreation, and wildlife.

This is especially true from my home State of Maryland that is within the six-State Chesapeake Bay Watershed and several of its tributaries, including the Anacostia, the Patuxent, Potomac, and Severn Rivers that flow through the Fourth Congressional District.

The Chesapeake Bay Watershed is fed by 110,000 miles of creeks, rivers, and streams; and 70 percent of Marylanders get our drinking water from sources that rely on headwater or seasonal streams. Nationwide, 117 million people, or over a third of the total population, get our water from these waters.

However, due to the two Supreme Court decisions that have been referenced, there is, in fact, widespread confusion as to what falls under the protection of the Clean Water Act. That is precisely why this administration is working to finalize their joint proposed rule clarifying the limits of Federal jurisdiction under the act.

In fact, on April 6, the Army Corps of Engineers and the Environmental Protection Agency submitted a revised clean water protection rule to the Office of Management and Budget for final review. From my understanding, the final rule may be published in the Federal Register later this spring. I share the view that we want OMB to just get on with it.

Mr. Chairman, the chairman has complained about the confusion in the litigation. That is precisely why we need to get through a final rulemaking, which has been years in the making. If the gentleman seeks clarity, let the administration just finish its job.

That is what the Supreme Court instructed the Federal Government to do 14 years ago with the 2001 SWANCC decision and, subsequently, the 2006 Rapanos case.

Along with those Supreme Court decisions, the Bush administration, as has been said, followed the exact same process in issuing two guidance documents in 2003 and 2008. In fact, they remain in force today.

It is, in fact, these two Bush-era guidance documents that have compounded the confusion, uncertainty, and increased compliance costs faced by our constituents—opponents and proponents alike—who all just say they want clarity.

You don't actually have to take my word for it. In fact, let me quote from the comments made by the American Farm Bureau Federation, something I don't do quite often:

> With no clear regulatory definitions to guide their determinations, what has emerged is a hodgepodge of ad hoc and inconsistent jurisdictional theories.

Those are the words of the American Farm Bureau Federation.

We all agree that it is confusing. Let the Obama administration finish what the Bush administration started and failed to do, and that is publish a rule that finalizes the rule that gives stakeholders the clarity they have been seeking for 14 years.

Quite oddly, H.R. 1732 would actually halt the current rulemaking and require the agencies to withdraw the proposed rule and restart the rulemaking process. This is after 1 million public comments, a 208-day comment period, and over 400 public meetings.

In appearances before the Senate, House, and joint committees, high-ranking Agency officials have testified that the revised rule will address many of the concerns expressed during the public comment period. They have also stated that the revised rule will provide greater clarity to the current permitting process, reduce regulatory cost, and ensure more exacting protections over U.S. waters.

The bill that we are talking about would actually force the agencies to

meet with the same stakeholders again and talk about the same issues again that they have already discussed several times over the last 14 years since the first Supreme Court decision—what a colossal waste of time and taxpayer money. Actually, the other side should be ashamed if they put a cost to restarting the procedure.

In fact, the rulemaking has been more than a decade, as we have described, in development. We need to let the administration get on with its work. As others have pointed out, just 2 weeks ago, the House passed—and I opposed it; many of our colleagues opposed it—the Energy and Water Appropriations bill

It contained a policy rider that explicitly prohibits the Corps from spending any money to develop the same new clean water rule that this bill wants us to restart. Let me repeat that. The House has already passed a provision that states the Corps can use no money not just this fiscal year, but in future fiscal years, going forward in perpetuity.

Republicans try to make it sound as if all they want is for the EPA and the Corps to develop new rules right away, but it is really clear that what they want to do is stop these agencies from doing their jobs at all—no new rules and no clean water, what a shame.

Mr. SHUSTER. Mr. Chairman, I yield myself such time as I may consume.

I have great regard for the gentlewoman from Maryland. I know that the Chesapeake Bay is incredibly important to not only Maryland, but the United States. The watershed I live in, much of it drains into the Susquehanna that flows into the Chesapeake, so we are very concerned in Pennsylvania about wanting to have clean water.

We also want to have an agriculture community prospering in Pennsylvania. They spent millions of dollars to try to clean it up.

Again, this notion that we haven't seen the rule is not that clear because we have. It is not clear to what the Democrats are saying. What we are saying is we have seen a proposed rule. We have seen a proposed rule.

Because they are not going to make substantial changes to the proposed rule, that means, if they were making substantial changes, they would have to come back and reopen this up and have a significant comment period, but they are not doing that.

Basically, the proposed rule is going to be very similar to the final rule. That is what scares the heck out of people—the farmers, builders, people across this country, landowners. This bill does force the EPA and the Corps to go back in and talk to the stakeholders because of the million comments. Seventy percent were ignored. They said revise or significantly change this. They ignored 70 percent of those million comments.

I am encouraging all Members to support this.

I yield 1 minute to the gentleman from Louisiana (Mr. GRAVES), a leader on this issue.

Mr. GRAVES of Louisiana. Mr. Chairman, I support wetlands, and I support clean water. I spent much of my career actually working to restore coastal wetlands in Louisiana.

The irony here is that the agencies that are proposing this rule are actually the same agencies that right now are the largest cause of wetlands loss in the United States on the way they manage the Mississippi River system. The hypocrisy here is absolutely unbelievable.

This proposed rule goes outside the bounds of the law, the law which states ''navigable waters.'' Read this definition. It clearly goes beyond the scope of the parameters of the law. It goes outside the scope of jurisprudence.

Taking a pass right now would be a dereliction of duty. An ounce of prevention is worth a pound of cure. We know what this rule is. We have had the EPA; we have had the Corps of Engineers before our committee, and it is crystal clear the direction this is going in.

Even the sister agency of the EPA and the Corps of Engineers, the Small Business Administration, has indicated that the cost estimate complying with this regulation goes well beyond the higher cost than that done by the EPA and the Corps of Engineers.

The Acting CHAIR. The time of the gentleman has expired.

Mr. SHUSTER. I yield an additional 30 seconds to the gentleman.

Mr. GRAVES of Louisiana. The home State I represent, Louisiana, the watershed goes from the State of Montana to New York and comes all the way down. You can take this proposed definition, and you can basically apply it to 90 percent of the lands in south Louisiana.

This bill simply requires consultation with stakeholders, consultation with the property owners. This is a tax. This is a taking of private property. Mr. Chairman, I want to state: This is private property; this is people's homes; it is people's farms; it is people's small businesses, and it is impeding their ability to achieve the American Dream.

Mr. Chairman, I urge support of this bill.

Mrs. NAPOLITANO. Mr. Chairman, I reserve the balance of my time.

Mr. SHUSTER. Mr. Chairman, I yield 1 minute to the gentleman from North Carolina (Mr. ROUZER).

□ 1645

Mr. ROUZER. Mr. Chairman, the EPA has, once again, lost all common sense as it has decided unilaterally to redefine Waters of the U.S.

Under its proposed rule change, Waters of the U.S. would now be defined to include smaller bodies of water and even some dry land. This new definition would extend the EPA's regulatory reach to seemingly any body of water, including that water puddled in your ditch after a rainstorm. You heard me right.

Let me put it another way for an even better understanding. This rule is so broad that it could very well require you to get permission from a Federal bureaucrat before acting on your property. Small-business owners, farmers, Realtors, and homebuilders all agree that this bill is bad for business in southeastern North Carolina.

For those reasons, I am a cosponsor of this bill, the Regulatory Integrity Protection Act, which requires the EPA to scrap its current proposal and start anew by engaging stakeholders who are actually affected by this rule.

Mr. Chairman, common sense has had its share of setbacks in this country. Let's not let this rule be another one. I encourage my colleagues to vote for this bill, and I thank the chairman for his fine leadership.

Mrs. NAPOLITANO. Mr. Chairman, I reserve the balance of my time.

Mr. SHUSTER. Mr. Chairman, it is now my pleasure to yield 1 minute to the gentleman from California (Mr. MCCARTHY), the distinguished majority leader.

Mr. MCCARTHY. I thank the gentleman for yielding, and I thank the chairman for his work on this issue.

Mr. Chairman, there is a simple truth that exists at all times and in every place: the bigger the government, the smaller the citizen. That is especially true when it comes to regulations. When the bureaucracy makes more rules, those rules limit the freedom and opportunities of real people—people who are just trying to work hard, make a living, and support themselves and their families.

Frankly, the EPA has crossed the line with this proposed water rule. It has crossed the line constitutionally, and it has crossed a line by hurting people and threatening their livelihoods and private property.

Let me tell you a story about a place back in my district called Sandy Creek. It is named Sandy Creek for a reason; it has been dry for over 30 years. With the drought in California, there is no time soon that water is coming.

Now, long before this proposed rule that would expand the EPA's power even more, the EPA tried to regulate Sandy Creek. That would have added more costs to the people who owned the land. It would have meant more paperwork, Federal permits, compliance, and Federal regulators snooping around.

It took me years to finally get the EPA to stop. Do you know how I got them to stop? I had to have an individual come to Taft, California, get in my car, drive out, and walk in Sandy Creek, throughout the sand, before he believed there was no water to regulate.

Mr. Chairman, can you imagine what the EPA would try and do if they even had more authority to regulate things outside their jurisdiction?

These are the actions of an administration that is unaccountable and that

doesn't care about the freedom and prosperity of its citizens. This is an administration that cares more about regulation than reform, that cares more about power than it does about people.

The House is going to pass a bill to stop this rule, this abuse of power. We are going to stop this regulation for all of the hard-working Americans who are tired of this Agency's power grabs just for the sake of power.

We are going to try to do it for all who wish they could have control over their own lives. The EPA doesn't need any more power, Mr. Chairman, the people do.

Mrs. NAPOLITANO. Mr. Chairman, I reserve the balance of my time.

Mr. SHUSTER. Mr. Chairman, I yield 90 seconds to the gentleman from Iowa (Mr. YOUNG).

Mr. YOUNG of Iowa. I thank the chairman for his leadership on this issue.

Mr. Chairman, I rise today to speak in favor of H.R. 1732, the Regulatory Integrity Protection Act of 2015.

We hear that this is all about clean water. This is about clean water, and we all want clean water. It is an issue that should not be demagogued in this debate. We all want clean water. We have kids, and we have mothers and fathers and grandparents.

This is about a process. It is about a process that needs to be transparent, and it is about where stakeholders are at the table. Who are these stakeholders? They are Americans. They are our farmers, our ranchers, the folks who put food on our tables; they are developers and construction workers who build our homes.

This has amazing implications if we don't get this rule right, Mr. Chairman. Can you imagine the EPA's requiring farmers to have to get a permit to tile during a season? Can you imagine how long that could take? Your season could be too late to plant. What would that do to land value? to commodity prices?

We have to get this right. I rise in support of this bill as it is a commonsense, smart bill. We can do it together. We can get it right. The American people must be heard.

Mrs. NAPOLITANO. Mr. Chairman, how much time do I have remaining?

The Acting CHAIR. The gentlewoman from California has 10½ minutes remaining.

Mrs. NAPOLITANO. Mr. Chairman, I reserve the balance of my time.

Mr. SHUSTER. Mr. Chairman, I yield 1 minute to the gentleman from Georgia (Mr. ALLEN).

Mr. ALLEN. I thank the chairman for his leadership on this issue as it is so important to our farmers and businesses in Georgia.

Mr. Chairman, I rise today to address the gross regulatory overreach of the Environmental Protection Agency and the Army Corps of Engineers regarding the proposed Waters of the United States rule.

Under the rule's proposed changes to the Clean Water Act, the Federal Government would have the power to regulate virtually any place water flows in the United States. This is not about clean water.

This includes things like creeks, streams, and groundwater but also manmade waterways like a fish pond, irrigation pipes, and dry ditching to harvest timber. If not stopped, this overreach will have damaging consequences for economic growth and jobs.

In Georgia's 12th District, many farmers and businesses are concerned about their ability to comply with these Federal mandates while maintaining their livelihoods. The Waters of the United States rule will grant the Federal Government power to dictate land use decisions, as well as farming practices, making it even more difficult to maintain a competitive and profitable farm or business.

I am proud to cosponsor H.R. 1732, and I urge my colleagues to support this important legislation.

Mrs. NAPOLITANO. Mr. Chairman, I reserve the balance of my time.

Mr. SHUSTER. Mr. Chairman, may I inquire as to how much time I have remaining?

The CHAIR. The gentleman from Pennsylvania has 9 minutes remaining.

Mr. SHUSTER. Mr. Chairman, I yield 1 minute to the gentlewoman from California (Mrs. MIMI WALTERS).

Mrs. MIMI WALTERS of California. Mr. Chairman, there is something terribly wrong when the Federal Government is attempting to regulate our Nation's puddles, streams, and ditches.

The proposed rule that the Obama administration issued last year would, unfortunately, give the EPA the power to do just that. This rule would redefine the Waters of the United States under the Clean Water Act and significantly increase the Federal Government's jurisdiction over waters never intended for regulation.

The blatant power grab and regulatory overreach would not only dismantle a longstanding partnership between the States and the Federal Government, but it would also threaten American jobs, increase the costs of doing business, and heighten the likelihood of costly lawsuits.

The Regulatory Integrity Protection Act, of which I am proud to be an original cosponsor, would require the Obama administration to withdraw its proposed rule and replace it with one that considers stakeholders' input and maintains the State-Federal partnership to regulate our waters. I urge my colleagues to support this vital bill.

Mrs. NAPOLITANO. Mr. Chairman, I yield myself such time as I may consume.

You have heard a lot about the EPA, that it is a bad agency doing bad things; but, if it weren't for the EPA, many of our communities would be facing undrinkable water because of the pollution that is left behind, without any followup.

We discussed this during the committee, and one of the issues that was brought out was that some of the EPA's regional offices were being a little heavyhanded. I suggested they may be able to take it up with the administrators, themselves, to figure out how we could really bring that to the forefront. Mr. Chairman, I would like to start off with a few facts, and we have covered them already.

There are broad environmental and conservation organizations that also oppose the bill. For the RECORD, I will submit 59 of them that are in opposition.

COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE H.R. 1732, REGULATORY INTEGRITY PROTECTION ACT OF 2015 OUTSIDE GROUP LETTERS OF OPPOSITION MAY 12, 2015

Alliance for the Great Lakes, American Rivers, American Whitewater, Arkansas Wildlife Federation, Audubon Naturalist Society, California River Watch, Citizens Campaign for the Environment, Clean Oceans Competition, Clean Water Action, Coalition to Protect Blacksburg Waterways, Earthjustice, Earthworks, Eastern PA Coalition for Abandoned Mine Reclamation, Endangered Habitats League, Environment America, Environmental Law and Policy Center, Environmental Working Group, Freshwater Future, Friends of Accotink Creek, Friends of Dyke Marsh.

Friends of the Nanticoke River, Friends of the Weskeag, Galveston Bay Foundation, Great Lakes Environmental Law Center, Gulf Restoration Network, Izaak Walton League of America, Jesus People Against Pollution, Lake Erie Region Conservancy, League of Conservation Voters, Little Falls Watershed Alliance, Loudoun Wildlife Conservancy, Maryland Conservation Council, Midshore Riverkeeper Conservancy, Milwaukee Riverkeeper, Minnesota Center for Environmental Advocacy, Montgomery Countryside Alliance, Natural Resources Defense Council, National Audubon Society, National Wildlife Federation, Nature Abounds.

Neighbors of the Northwest Branch, Anacostia River, Ocean River Institute, Ohio Environmental Council, Ohio Wetlands Association, People to Save the Sheyenne, Piedmont Environmental Council, Potomac Riverkeeper Network, Protecting Our Waters, River Network, Sierra Club, Southern Environmental Law Center, St. Mary's River Watershed Association, Surfrider Foundation, Tip of the Mitt Watershed Council, Trout Unlimited, Virginia Conservation Network, WasteWater Education, Waterkeepers Chesapeake, West Virginia Highlands Conservancy.

Mrs. NAPOLITANO. The Army Corps of Engineers—the Corps—and the EPA have testified that their revised clean water protection rule will provide more certainty and clarity to the current clean water permitting process, that it will reduce regulatory confusion and costs, and that it will protect our Nation's waters, our economy, and our American way of life, as was stressed in the committee hearing which we all attended. I believe that it is something that they were very sure they wanted to do.

Fact: on April 6, 2015, the Corps and the EPA submitted this revised clean water protection rule to OMB for final review, bringing it closer to publication later this spring, but my Republican colleagues are attempting to stop

the rulemaking without even seeing the final product. As Mr. MCCARTHY just said, we are going to stop this regulation.

Fact: H.R. 1732 would halt the near final rulemaking needed to clarify Clean Water Act protection for countless streams and wetlands, many of which serve as primary sources of drinking water for one in three Americans. If you want to put it in millions, it would be 117 million people.

Fact: rather than allow the Agency to provide additional regulatory certainty and clarity, it would leave in place 2003 and 2008 Bush guidance documents, which have been uniformly criticized by industry as confusing, costly, and frustrating that provide little environmental benefit.

Fact: it is simply a bureaucratic redo, forcing the agencies to repeat steps in what has been a nearly decadelong rulemaking process of unprecedented public outreach, for no other reason than to prevent this administration from finalizing clean water protection rulemaking.

The last fact: if it is released, it fails to protect our water resources and our economy, and Congress simply has multiple avenues with which to address those concerns.

Mr. Chairman, I submit for the RECORD the facts and the myths. I have five of them.

The proposed rulemaking, the Federal Clean Water Act authority over ditches—it reduces Federal authority over ditches by specifically excluding ditches, including roadside ditches that are constructed in dry lands, et cetera, and it goes on.

Myth number two, it is not based on sound science. Fact, in 2015, the Office of R&D—Research and Development—released its ''Connectivity of Streams and Wetlands to Downstream Waters'' report of more than 1,200 existing peer-reviewed publications which support this.

Myth number four, a power grab by the EPA to exert greater Federal authority—fact, it preserves existing statutory and regulatory exemptions for common farming, ranching, and forestry practices, and it goes on.

Myth number five, the EPA did not adequately consult with States and did not take local concerns into consideration. Fact, again, there were 900,000 public comments, and 19,000 provided substantive comments, and they reached out to other States.

MARCH 19, 2015.

MYTHS VS. FACTS: EPA AND CORPS' CLEAN WATER RULE MYTH # 1—EXPANDED REGULATION OF DITCHES

DEAR COLLEAGUE: Last April, the Environmental Protection Agency (EPA) and the U.S. Army Corps of Engineers (Corps) proposed a Clean Water rule to clarify the jurisdictional scope of the Clean Water Act. This proposal was intended to simplify and improve the process for determining what waters (and wetlands) are, and are not, protected by the Act, consistent with the decisions of the U.S. Supreme Court.

Since that time, a number of questions or misconceptions about this proposal have been raised. This is the first in a series of Dear Colleagues to address these questions or misconceptions.

MYTH #1

The proposed rule expands Federal Clean Water Act authority over ditches.

FACT

The proposed rule reduces federal authority over ditches by specifically excluding ditches (including roadside ditches) that are constructed in dry lands and either (1) contain water less than year-round, or (2) do not flow into another waterbody subject to the Act.

The proposed rule retains existing authority over certain ditches that once were, and continue to function as, natural streams.

Recently, the agencies testified that they are reviewing over one million public comments submitted on the proposed rule and will make revisions to further clarify the regulation (including its application to ditches) in order to make it more effective in implementing the Clean Water Act, consistent with the science and the law.

If you have any questions or would like to learn more about the proposal, please see (http://democrats.transportation.house.gov/legislation/waters-united-states) or call the Subcommittee on Water Resources and Environment.

PETER A. DEFAZIO, M.C.,
Ranking Member, Committee on Transportation and Infrastructure.
GRACE F. NAPOLITANO, M.C.,
Ranking Member, Subcommittee on Water Resources and Environment.

MARCH 19, 2015.

MYTHS VS. FACTS: EPA AND CORPS' CLEAN WATER RULE MYTH # 2—THE PROPOSED RULE IS NOT BASED ON THE SCIENCE

DEAR COLLEAGUE: Last April, the Environmental Protection Agency (EPA) and the U.S. Army Corps of Engineers (Corps) proposed a Clean Water rule to clarify the jurisdictional scope of the Clean Water Act. This proposal was intended to simplify and improve the process for determining what waters (and wetlands) are, and are not, protected by the Act, consistent with the decisions of the U.S. Supreme Court. Yet, critics of this proposed rule have questioned the science behind the proposal.

MYTH #2

The proposed rule is not based on sound science.

FACTS

In January 2015, EPA's Office of Research and Development released its ''Connectivity of Streams and Wetlands to Downstream Waters'' report—a review and synthesis of more than 1,200 existing peer-reviewed publications from the scientific literature.

This Connectivity report noted that ''the scientific literature unequivocally demonstrates that streams, individually or cumulatively, exert a strong influence on the integrity of downstream waters. All tributary streams, including perennial, intermittent, and ephemeral streams, are physically, chemically, and biologically connected to downstream rivers via channels and associated alluvial deposits where water and other materials are concentrated, mixed, transformed, and transported.''

The Connectivity report also noted that ''the incremental effects of individual streams and wetlands are cumulative across entire watersheds and therefore must be evaluated in context with other streams and wetlands.''

In October 2014, EPA's Science Advisory Board completed its own scientific review of the Connectivity report, and concluded that the report is ''a thorough and technically accurate review of the literature on the connectivity of streams and wetlands to downstream waters'' and found that the scientific literature provides enough information to support a more definitive statement on the degree of connection between certain, geographically-isolated waters and downstream waters.

If you have any questions or would like to learn more about the proposal, please see (http://democrats.transportation.house.gov/legislation/waters-united-states) or call the Subcommittee on Water Resources and Environment.

EDDIE BERNICE JOHNSON, M.C.,
Ranking Member, Committee on Science, Space, and Technology.

MARCH 24, 2015

MYTHS VS. FACTS: EPA AND CORPS' CLEAN WATER RULE MYTH # 4—EPA IS SEIZING GREATER POWER OVER AGRICULTURE

DEAR COLLEAGUE: Last April, the Environmental Protection Agency (EPA) and the U.S. Army Corps of Engineers (Corps) proposed a Clean Water rule to clarify the jurisdictional scope of the Clean Water Act. This proposal was intended to simplify and improve the process for determining what waters (and wetlands) are, and are not, protected by the Act, consistent with two decisions of the U.S. Supreme Court. Since that time, a number of questions or misconceptions about this proposal have been raised.

MYTH #4

The proposed rule is a ''power grab'' by the EPA to exert greater Federal authority over farming, ranching, and forestry operations.

FACTS

The proposed rule provides greater certainty to farmers, ranchers, and forestry operations and would preserve existing statutory and regulatory exemptions for common farming, ranching, and forestry practices, including exemptions for prior converted cropland, irrigation return flows, and normal farming, ranching, and silvicultural activities.

The proposed rule would not affect an existing Clean Water Act exemption for the construction and maintenance of farm or stock ponds constructed on dry lands, and would, for the first time, specifically exclude artificial stock watering and irrigation ponds constructed on dry lands from Clean Water Act jurisdiction.

The proposed rule does not just respect the current exemptions for ditches but it would expand the definition of ditches to make the exemption clearer.

No Clean Water Act permit is required today for the application of pesticides or fertilizer to dry land, and this will not change under the proposed rule.

Puddles on crop fields are not subject to the Clean Water Act today, and this will not change under the proposed rule.

In short, if you can plow, plant, or harvest today without a Clean Water permit, you will not need a permit for these activities under the proposed rule.

If you have any questions or would like to learn more about the proposal, please see http://democrats.transportation.house.gov/legislation/waters-united-states or call the Subcommittee on Water Resources and Environment.

Sincerely,

DONNA F. EDWARDS,
Member of Congress.

April 13, 2015

MYTHS VS. FACTS: EPA AND CORPS CLEAN WATER RULE MYTH # 5—EPA AND THE CORPS DID NOT CONSULT THE STATES

DEAR COLLEAGUE: Last April, the Environmental Protection Agency (EPA) and the U.S. Army Corps of Engineers (Corps) proposed a Clean Water rule to clarify the jurisdictional scope of the Clean Water Act. This proposal was intended to simplify and improve the process for determining what waters (and wetlands) are, and are not, protected by the Act, consistent with the decisions of the U.S. Supreme Court. However, questions and misconceptions about this proposal continue to be raised.

MYTH #5

During the rulemaking process, EPA and the Corps did not adequately consult with states and did not take local concerns into consideration when developing this rule.

FACTS

EPA consulted with various stakeholders, particularly with those from the agricultural community, and received over 900,000 public comments. Of these, approximately 19,000 provided substantive comments on the proposed rule.

In total, EPA held over 400 meetings throughout the country on the proposed rulemaking, and the agencies extended the public comment period twice for a total of 207 days, to listen to concerns and draft a better, clearer rule.

EPA developed a special process for engaging the states during the public comment period, engaging with Environmental Council of the States, the Association of Clean Water Administrators, and the Association of State Wetland Managers.

At a March 22, 2015, hearing before the Subcommittee on Water Resources and Environment, the EPA's Deputy Assistant Administrator for the Office of Water characterized EPA's outreach efforts as ''unprecedented.''

Further, when describing EPA's meetings with state representatives, the Deputy Assistant Administrator stated, ''At the last meeting, which was scheduled for two hours, it was a little over an hour, and that meeting ended because, quite frankly, the states (ran) out of things they wanted to talk about.''

Since 2003, the agencies have received an estimated 1,429,000 total public comments during six separate rulemakings, lasting a total 700 days, or approximately 2 years.

''Quite candidly, I will tell you that there is not a lot of new in the way of issues that are being raised. Many of the issues that are being raised are the same ones that have been raised for several years.''—Quote from Ken Kopocis, EPA Deputy Assistant Administrator for the Office of Water (3/18/15 Hearing of the Water Resources and Environment Subcommittee)

If you have any questions or would like to learn more about the rule, please see (http://democrats.transportation.house.gov/legislation/waters-united-states) or call the Subcommittee on Water Resources and Environment.

Sincerely,

ELEANOR HOLMES NORTON,
Member of Congress.

Mrs. NAPOLITANO. Also, for the RECORD, I submit the Statement of Administration Policy from the Office of the President, which states at the end: ''If the President were presented with H.R. 1732, his senior advisors would recommend that he veto the bill.''

EXECUTIVE OFFICE OF THE PRESIDENT, OFFICE OF MANAGEMENT AND BUDGET,
Washington, DC, April 29, 2015.

STATEMENT OF ADMINISTRATION POLICY

H.R. 1732—REGULATORY INTEGRITY PROTECTION ACT

The Administration strongly opposes H.R. 1732. If the President were presented with H.R. 1732, his senior advisers would recommend that he veto the bill, which would require the Environmental Protection Agency (EPA) and the Department of the Army (Army) to withdraw and re-propose specified draft regulations needed to clarify the jurisdictional boundaries of the Clean Water Act (CWA). The agencies' rulemaking, grounded in science, is essential to ensure clean water for future generations, and is responsive to calls for rulemaking from Congress, industry, and community stakeholders as well as decisions of the U.S. Supreme Court. The proposed rule has been through an extensive public engagement process.

Clean water is vital for the success of the Nation's businesses, agriculture, energy development, and the health of our communities. More than one in three Americans get their drinking water from rivers, lakes, and reservoirs that are at risk of pollution from upstream sources. The protection of wetlands is vital for hunting and fishing. When Congress passed the CWA in 1972, to restore the Nation's waters, it recognized that to have healthy communities downstream, we need to protect the smaller streams and wetlands upstream.

Clarifying the scope of the CWA helps to protect clean water, safeguard public health, and strengthen the economy. Supreme Court decisions in 2001 and 2006 focused on specific jurisdictional determinations and rejected the analytical approach that the Army Corps of Engineers was using for those determinations, but did not invalidate the underlying regulation. This has created ongoing questions and uncertainty about how the regulation is applied consistent with the Court's decisions. The proposed rule would address this uncertainty.

If enacted, H.R. 1732 would derail current efforts to clarify the scope of the CWA, hamstring future regulatory efforts, and deny businesses and communities the regulatory certainty needed to invest in projects that rely on clean water. H.R. 1732 also would delay by a number of years any action to clarify the scope of the CWA, because it would: (1) require the agencies to re-propose a rule that has already gone through an extensive public comment process; and (2) create a burdensome advisory process that would complicate the agencies' rulemaking and potentially constrain their discretion. The agencies have already conducted an extensive and lengthy outreach to a broad range of stakeholders who will continue to be engaged in the current process. Duplicative outreach and consultation would impose unnecessary burdens and excessive costs on all parties.

The final rule should be allowed to proceed. EPA and Army have sought the views of and listened carefully to the public throughout the extensive public engagement process for this rule. It would be imprudent to dismiss the years of work that have already occurred and no value would be added. The agencies need to be able to finish their work.

In the end, H.R. 1732, like its predecessors, would sow more confusion and invite more conflict at a time when our communities and businesses need clarity and certainty around clean water regulation. Simply put, this bill is not an act of good government; rather, it would hinder the ongoing rulemaking process and the agencies' ability to respond to the public as well as two Supreme Court rulings.

Mrs. NAPOLITANO. There you are, Mr. Chairman.

We still oppose H.R. 1732, but I would really like to ensure that we continue to work with the EPA to get in place something that is really going to help America's farmers and industry.

I yield back the balance of my time.

Mr. SHUSTER. Mr. Chairman, I yield myself the balance of my time.

Forty years ago, the Clean Water Act established a partnership between States and the Federal Government to regulate waters. The limits on Federal power under this partnership have also been reaffirmed by the Supreme Court not once, but twice, and I might add that my colleagues, when they were the majority party, tried twice to do what this rule is going to do, but they couldn't get it out of committee because there was not the support for it.

I am not sure what has changed except for the fact that Republicans are in the majority, but there is still a lot of opposition out there to it.

The administration's proposed rule abandons a successful partnership in favor of a vast expansion of the Federal Government's authority to regulate. This proposed rule was developed without consulting States and local governments or regulated communities, and it will have dire economic consequences.

In fact, as the gentlewoman mentioned, there have been 20,000 substantive comments on this, and 70 percent of them have opposed this rule.

As I made the point earlier, the proposed rule is out there. If they were going to change it, they would have to go back and reopen the comment period, but they are not changing it significantly.

□ 1700

The proposed rule will be very, very similar to what the final rule is. That is why we need to stop it. Two-thirds of the States object to this law rule, two-thirds of the States object to it. Local governments, farmers, builders, job creators, and stakeholders object to this rule. As mentioned, of those 20,000 substantial comments, 70 percent of them rejected this rulemaking. The Regulatory Integrity Protection Act rejects this flawed rule and flawed process that created it.

This bipartisan bill restores the integrity of the rulemaking process and the Federal and State partnership. The agencies simply need to go back and do it right. We cannot protect our waters and provide more regulatory clarity without sacrificing common sense and balance. Mr. Chairman, I encourage all Members to support this bill.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, the proposed Waters of the U.S. rule is critically flawed and needs to be rewritten. After following the rulemaking process very closely, I have no confidence that that the current rule will give any

clarity for those who will be greatly impacted by this proposed rule. If anything, Mr. Speaker, the only clarity I can find in the proposed rule is that we will see an increase in the number of permits that the Corps of Engineers and EPA will need to issue for landowners to develop their land, and any litigation that may result.

The proposed rule would automatically regulate all tributaries that connect to a downstream water body and all streams and wetlands in floodplains or riparian areas of regulated water bodies unless they are deemed not navigable by the EPA or Army Corps. To me, that sounds like a dream for lawyers and a nightmare for everyone else. We must curb regulatory overreach and protect our economy as well as the rights of landowners.

During the public comment period, more than a million comments were submitted. Earlier this year during an Energy and Water Appropriations hearing the Corps informed us that 58 percent of the comments were in opposition to the rule, then later that month at an Interior Appropriations hearing the EPA informed us that 87% of the comments supported the rule. If the two agencies responsible for developing and implementing the rule cannot even agree on the number of comments submitted supporting the rule, how can they be trusted to implement the rule?

In the FY15 Omnibus we included Congressional direction to the EPA and the Army Corps to withdraw the flawed 'Interpretive Rule' that EPA had issued in conjunction with the proposed Waters of the US rule and the Administration withdrew the 'Interpretive Rule'. It's now time that we enact Congressional direction to withdraw the entire Waters of the US rule as proposed, and start fresh following the comment period.

Therefore, Mr. Chair I support this bill and I encourage all my fellow members to vote for it.

Mr. BLUM. Mr. Chair, I rise today on behalf of Iowans in my district to support H.R. 1732, the Regulatory Integrity Protection Act of 2015, to prohibit the implementation of the rule concerning ''Waters of the United States (WOTUS)'' by the Environmental Protection Agency (EPA) and the U.S. Army Corps of Engineers (USACE).

The rule permitting the expansion of WOTUS grants EPA and U.S. Army Corps of Engineers jurisdiction over traditionally state regulated water under the auspices of the Clean Water Act. This includes water previously unregulated by the federal government, such as dry ditches and intrastate rivers.

These regulations simply defy common sense. Every constituent in my district desires clean water, but the EPA and USACE are transferring authority from state and local officials, who know the needs of stakeholders, to Washington bureaucrats.

In response, I am proud to join the 69 other Members as a cosponsor of this bipartisan bill along with the hundreds of organized stakeholders nationwide, along with thousands of individual farmers, raising serious concerns or issued public statements in opposition to adoption of these proposals. These regulations unnecessarily burden farmers and small business owners and prevent job creation, wage increases, and economic growth. I cannot permit such proposals to go unchallenged.

I thank so many of my colleagues for standing with me in this effort and rest assured, I will continue to fight against government overreach on behalf of Iowa's hard working farming families.

The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

In lieu of the amendment in the nature of a substitute recommended by the Committee on Transportation and Infrastructure printed in the bill, it shall be in order to consider as an original bill for the purpose of amendment under the 5-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee print 114–13 modified by the amendment printed in part A of House Report 114–98. That amendment in the nature of a substitute shall be considered as read.

The text of the amendment in the nature of a substitute is as follows:

H.R. 1732

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Regulatory Integrity Protection Act of 2015''.

SEC. 2. WITHDRAWAL OF EXISTING PROPOSED RULE.

Not later than 30 days after the date of enactment of this Act, the Secretary of the Army and the Administrator of the Environmental Protection Agency shall withdraw the proposed rule described in the notice of proposed rule published in the Federal Register entitled ''Definition of 'Waters of the United States' Under the Clean Water Act'' (79 Fed. Reg. 22188 (April 21, 2014)) and any final rule based on such proposed rule (including RIN 2040–AF30).

SEC. 3. DEVELOPMENT OF NEW PROPOSED RULE.

(a) IN GENERAL.—The Secretary of the Army and the Administrator of the Environmental Protection Agency shall develop a new proposed rule to define the term ''waters of the United States'' as used in the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.).

(b) DEVELOPMENT OF NEW PROPOSED RULE.—In developing the new proposed rule under subsection (a), the Secretary and the Administrator shall—

(1) take into consideration the public comments received on—

(A) the proposed rule referred to in section 2;

(B) the accompanying economic analysis of the proposed rule entitled ''Economic Analysis of Proposed Revised Definition of Waters of the United States'' (dated March 2014); and

(C) the report entitled ''Connectivity of Streams & Wetlands to Downstream Waters: A Review & Synthesis of Scientific Evidence'' (EPA/600/R–14/475F; dated January 2015);

(2) jointly consult with and solicit advice and recommendations from representative State and local officials, stakeholders, and other interested parties on how to define the term ''waters of the United States'' as used in the Federal Water Pollution Control Act; and

(3) prepare a regulatory proposal that will, consistent with applicable rulings of the United States Supreme Court, specifically identify those waters covered under, and those waters not covered under, the Federal Water Pollution Control Act—

(A) taking into consideration—

(i) the public comments referred to in paragraph (1); and

(ii) the advice and recommendations made by the State and local officials, stakeholders, and other interested parties consulted under this section; and

(B) incorporating the areas and issues where consensus was reached with the parties.

(c) FEDERALISM CONSULTATION REQUIREMENTS.—As part of consulting with and soliciting advice and recommendations from State and local officials under subsection (b), the Secretary and the Administrator shall—

(1) seek to reach consensus with the State and local officials on how to define the term ''waters of the United States'' as used in the Federal Water Pollution Control Act;

(2) provide the State and local officials with notice and an opportunity to participate in the consultation process under subsection (b);

(3) consult with State and local officials that represent a broad cross-section of regional, economic, policy, and geographic perspectives in the United States;

(4) emphasize the importance of collaboration with and among the State and local officials;

(5) allow for meaningful and timely input by the State and local officials;

(6) recognize, preserve, and protect the primary rights and responsibilities of the States to protect water quality under the Federal Water Pollution Control Act, and to plan and control the development and use of land and water resources in the States;

(7) protect the authorities of State and local governments and rights of private property owners over natural and manmade water features, including the continued recognition of Federal deference to State primacy in the development of water law, the governance of water rights, and the establishment of the legal system by which States mediate disputes over water use;

(8) incorporate the advice and recommendations of the State and local officials regarding matters involving differences in State and local geography, hydrology, climate, legal frameworks, economies, priorities, and needs; and

(9) ensure transparency in the consultation process, including promptly making accessible to the public all communications, records, and other documents of all meetings that are part of the consultation process.

(d) STAKEHOLDER CONSULTATION REQUIREMENTS.—As part of consulting with and soliciting recommendations from stakeholders and other interested parties under subsection (b), the Secretary and the Administrator shall—

(1) identify representatives of public and private stakeholders and other interested parties, including small entities (as defined in section 601 of title 5, United States Code), representing a broad cross-section of regional, economic, and geographic perspectives in the United States, which could potentially be affected, directly or indirectly, by the new proposed rule under subsection (a), for the purpose of obtaining advice and recommendations from those representatives about the potential adverse impacts of the new proposed rule and means for reducing such impacts in the new proposed rule; and

(2) ensure transparency in the consultation process, including promptly making accessible to the public all communications, records, and other documents of all meetings that are part of the consultation process.

(e) TIMING OF FEDERALISM AND STAKEHOLDER CONSULTATION.—Not later than 3 months after the date of enactment of this Act, the Secretary and the Administrator shall initiate consultations with State and local officials, stakeholders, and other interested parties under subsection (b).

(f) REPORT.—The Secretary and the Administrator shall prepare a report that—

(1) identifies and responds to each of the public comments filed on—

(A) the proposed rule referred to in section 2;

(B) the accompanying economic analysis of the proposed rule entitled ''Economic Analysis of Proposed Revised Definition of Waters of the United States'' (dated March 2014); and

(C) the report entitled ''Connectivity of Streams & Wetlands to Downstream Waters: A Review & Synthesis of Scientific Evidence'' (EPA/600/R–14/475F; dated January 2015);

(2) provides a detailed explanation of how the new proposed rule under subsection (a) addresses the public comments referred to in paragraph (1);

(3) describes in detail—

(A) the advice and recommendations obtained from the State and local officials consulted under this section;

(B) the areas and issues where consensus was reached with the State and local officials consulted under this section;

(C) the areas and issues of continuing disagreement that resulted in the failure to reach consensus; and

(D) the reasons for the continuing disagreements;

(4) provides a detailed explanation of how the new proposed rule addresses the advice and recommendations provided by the State and local officials consulted under this section, including the areas and issues where consensus was reached with the State and local officials;

(5) describes in detail—

(A) the advice and recommendations obtained from the stakeholders and other interested parties, including small entities, consulted under this section about the potential adverse impacts of the new proposed rule and means for reducing such impacts in the new proposed rule; and

(B) how the new proposed rule addresses such advice and recommendations;

(6) provides a detailed explanation of how the new proposed rule—

(A) recognizes, preserves, and protects the primary rights and responsibilities of the States to protect water quality and to plan and control the development and use of land and water resources in the States; and

(B) is consistent with the applicable rulings of the United States Supreme Court regarding the scope of waters to be covered under the Federal Water Pollution Control Act; and

(7) provides comprehensive regulatory and economic impact analyses, utilizing the latest data and other information, on how definitional changes in the new proposed rule will impact, directly or indirectly—

(A) each program under the Federal Water Pollution Control Act for Federal, State, and local government agencies; and

(B) public and private stakeholders and other interested parties, including small entities, regulated under each such program.

(g) PUBLICATION.—

(1) FEDERAL REGISTER NOTICE.—Not later than 3 months after the completion of consultations with and solicitation of recommendations from State and local officials, stakeholders, and other interested parties under subsection (b), the Secretary and the Administrator shall publish for comment in the Federal Register—

(A) the new proposed rule under subsection (a);

(B) a description of the areas and issues where consensus was reached with the State and local officials consulted under this section; and

(C) the report described in subsection (f).

(2) DURATION OF REVIEW.—The Secretary and the Administrator shall provide not fewer than 180 days for the public to review and comment on—

(A) the new proposed rule under subsection (a);

(B) the accompanying economic analysis for the new proposed rule; and

(C) the report described in subsection (f).

(h) PROCEDURAL REQUIREMENTS.—Subchapter II of chapter 5, and chapter 7, of title 5, United States Code (commonly known as the ''Administrative Procedure Act'') shall apply to the development and review of the new proposed rule under subsection (a).

(i) STATE AND LOCAL OFFICIALS DEFINED.—In this section, the term ''State and local officials'' means elected or professional State and local government officials or their representative regional or national organizations.

SEC. 4. NO ADDITIONAL AUTHORIZATION OF APPROPRIATIONS.

No additional funds are authorized to be appropriated to carry out this Act, and this Act shall be carried out using amounts otherwise available for such purpose.

The CHAIR. No amendment to the amendment in the nature of a substitute shall be in order except those printed in part B of House Report 114–98. Each such amendment may be offered only in the order printed in the report by a Member designated in the report, shall be considered read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MS. EDWARDS

The CHAIR. It is now in order to consider amendment No. 1 printed in part B of House Report 114–98.

Ms. EDWARDS. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike sections 2 and 3 and insert the following:

SEC. 2. LIMITATION.

The Secretary of the Army and the Administrator of the Environmental Protection Agency are prohibited from implementing any final rule that is based on the proposed rule described in the notice of proposed rule published in the Federal Register entitled ''Definition of 'Waters of the United States' Under the Clean Water Act'' (79 Fed. Reg. 22188 (April 21, 2014)) if such final rule—

(1) expands the scope of the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.) beyond those waterbodies covered prior to the decisions of the United States Supreme Court in Solid Waste Agency of Northern Cook County v. United States Army Corps of Engineers, 531 U.S. 159 (2001), and Rapanos v. United States, 547 U.S. 715 (2006);

(2) is inconsistent with the judicial opinions of Justice Scalia or Justice Kennedy in Rapanos v. United States;

(3) authorizes Federal Water Pollution Control Act jurisdiction over a waterbody based solely on the presence of migratory birds on such waterbody;

(4) increases the regulation of ditches, including roadside ditches, when compared to existing Federal Water Pollution Control Act regulations or guidance;

(5) increases the scope of the Federal Water Pollution Control Act with respect to municipal separate sanitary sewer systems, water supply canals, or other water delivery systems;

(6) eliminates historical statutory or regulatory exemptions for agriculture, silviculture, or ranching;

(7) increases the scope of the Federal Water Pollution Control Act with respect to groundwater or water reuse or recycling projects;

(8) requires Federal Water Pollution Control Act regulation of erosional features;

(9) requires Federal Water Pollution Control Act permits for land-use activities;

(10) requires Federal Water Pollution Control Act regulation of artificial farm and stock ponds, puddles, water on driveways, birdbaths, or playgrounds;

(11) is inconsistent with the latest peer-reviewed scientific studies;

(12) was promulgated without consulting with State and local governmental entities; or

(13) was promulgated without public notice or comment.

The CHAIR. Pursuant to House Resolution 231, the gentlewoman from Maryland (Ms. EDWARDS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Maryland.

Ms. EDWARDS. Mr. Chairman, despite nearly universal calls for increased clarity and certainty from certain stakeholders, my colleagues have made it a priority to halt the current clean water rulemaking and to force agencies to go back to the drawing board and start the process all over again, before the public will ever even see the final product.

After over a year of public outreach on a scale unprecedented in the history of the Clean Water Act, as well as countless congressional hearings, the agencies have submitted a revised clean water protection rule to the Office of Management and Budget for final interagency review, which is the last step before the revised final rule would be released to the general public later this spring.

This, in fact, is the basis of my amendment. You see, Mr. Chairman, to be fair, several of my constituents have expressed similar concerns with the substance of the proposed rule. In fact, Maryland farmers have visited with me on more than one occasion, and I have heard those concerns, and that is why I have pressed the agency witnesses who appeared before our subcommittees on several critical areas.

Indeed, in testimony to the Committee on Transportation and Infrastructure, the heads of both the Army Corps of Engineers and the Environmental Protection Agency have identified several specific areas where the proposed rulemaking may have lacked specificity and where the agencies have committed to clarifying changes in the final rule to address these areas.

For example, the American Farm Bureau and Maryland farmers expressed concern about the distinction between ephemeral—that is rain-dependent—streams, which are currently subject to the Clean Water Act, and erosional features, which are not. EPA has testified that the agencies expect the final rule to clarify the distinction between ephemeral streams and erosional features to ensure that the final rule does not inadvertently bring erosional features under the scope of the act.

Numerous groups, including the National Association of Counties, have expressed concern about the impact of the proposed rule on ''ditches.'' In response, the agencies testified that the proposed rule not only codified the current exemption for ditches but also ''expanded the definition of ditches that would be exempt under the clean water rule to make it clearer, [including] ditches that basically drain dry along public lands and highways.'' Further, the agencies committed to provide greater certainty in the final rule

on what ditches are and are not protected by the act.

Other groups questioned whether the proposed clean water rule would capture municipal separate sanitary storm water sewer systems, that is, MS4s, or water reuse and recycling projects. The EPA Administrator testified before our committee that ''EPA has not intended to capture features . . . that have already been captured in . . . MS4 permits, [and it] is our intent to continue to encourage and respect those decisions and to encourage water reuse and recycling, which very much is consistent with the Clean Water Act and our overall intent.''

Further, the Administrator testified that the EPA would make it very clear that these exclusions are articulated in the final rule, ''so that people will see in writing what they have been asking us about.''

So my amendment simply addresses these concerns and claims. It says that if any of these claims prove to be true, then the Secretary and the Administrator are prohibited from issuing any final rule that would bring about these occurrences. Instead of using a legislative scalpel, my Republican colleagues have decided to use a meat cleaver. In my amendment, I have tried to address these concerns, and I have heard from my constituents and interested parties.

Under the amendment, the administration cannot expand the scope beyond those water bodies covered prior to the decisions of the U.S. Supreme Court in the two cases that have been mentioned before, and it cannot be inconsistent with either Justice Scalia's or Justice Kennedy's judicial opinions in Rapanos.

In addition to that, they can't increase the regulation of ditches, they can't eliminate any historical statutory or regulatory exemptions for agriculture, which do not exist under the 2003 and 2008 documents. There are questions about ditches under the 2003 and 2008 guidance, but they are interpreted differently in different parts of the country.

As a fallback and an assurance to the regulated committee, I urge my colleagues to support my amendment so that clear legislative restrictions on the final rulemaking addressing the range of concerns that have been expressed by stakeholders are included. It will ensure that the rule does not go further than the Supreme Court decision and does not exceed historical scope, while reaffirming longstanding and existing exclusions.

Both agencies have made it crystal clear in their testimony before our committee and other committees of the House and the Senate earlier this year in a joint hearing with the Senate that many of these concerns were unfounded or would be addressed in the final rule, and so what the amendment I am offering would do, it would be a backstop in the unlikely event that anyone would think differently about regulating streams, ditches, and farmland.

I would ask for support of my amendment under the rule.

I yield back the balance of my time.

Mr. GIBBS. I rise in opposition to the amendment.

The CHAIR. The gentleman from Ohio is recognized for 5 minutes.

Mr. GIBBS. Mr. Chairman, I must strongly oppose the gentlewoman's amendment because it seeks to gut this legislation. This amendment is misleading. It would allow the EPA to move forward and finalize its flawed rule expansion under Federal jurisdiction of the Clean Water Act regardless of the consequences. If the EPA determines entirely of its own discretion that the rule was consistent with the Supreme Court decisions and other factors listed in the amendment, the rule would be finalized.

This amendment gives the EPA the authority to nullify the Supreme Court decisions which reined in the EPA's expansive claims to Federal jurisdiction under the Clean Water Act and legally reinterpreted those decisions to be as broad and expansive as it would like.

The EPA has already stated that it believes its proposed rule is consistent with the Supreme Court decisions and with other factors listed in this amendment. Therefore, the effect of this amendment is to allow the EPA to finalize its flawed rule that many believe is not consistent with the Supreme Court decisions and the other listed factors.

This amendment will put the EPA solely in charge of America's waters and would undermine the Federal-State partnership that H.R. 1732 seeks to preserve. It would allow the EPA to finalize and implement its flawed rule without consultation with the States.

There has been a lot of debate and discussion today, and I want to just kind of address some of that because it goes to this amendment too, once they gut the bill. There was a lot of talk about the amendment that was included in the Energy and Water Appropriations bill. That was really a backstop to stop them from moving forward on the current proposed rule, and they cannot repropose the same rule, but if this bill is passed into law, they could move forward and do what H.R. 1732 directs them to do.

Administrator McCarthy said they don't need to put anything out because there are no new changes, or major changes; that is why they don't need to put out a supplemental to the proposed rule. That is the problem. That is why we have this bill here today, and that is why I am against the gentlewoman's amendment, because they are not being open or transparent about what changes they made.

I have a letter from the Executive Office of the President, Office of Management and Budget, talking about the administration policy in regard to H.R. 1732, and it talks about that they believe that this bill, passed into law, would constrain the Agency's discretion. That is the problem. We can't have a bunch of bureaucrats running around the country and deciding what are going to be waters of the United States and what are not going to be waters of the United States. We have to be clear about that and give clarity. All that H.R. 1732 says is for the EPA and the Corps to go back to the States and stakeholders and work out a rule to satisfy the Supreme Court decisions and that brings clarity and certainty and allows for economic expansion and protects waters at the same time, but if you open it up to having bureaucrats——

Ms. EDWARDS. Will the gentleman yield?

Mr. GIBBS. I yield to the gentlewoman from Maryland.

Ms. EDWARDS. Do you have a cost estimate of what it would cost to go back to the stakeholders for what you have described?

Mr. GIBBS. Mr. Chairman, I reclaim my time.

I know that the CBO put out $5 million or something like that. The problem we have here is that if this proposed rule goes forward, it costs at least $200-some billion to the economy. What this rule does, if it goes forward, under the Clean Water Act, it just makes it where farmers, landowners, homeowners would have to go through the Clean Water Act permit policy, permit provisions. All it does is create more red tape and bureaucracy and cost, and doesn't do anything to protect the water quality.

It is very important to remember that, I believe, if this rule goes forward as proposed, we could actually go backward in water quality because at some point when you layer on costs and red tape to farmers and businesses out there, they are going to throw their hands up in the air, and they are not going to do it, so it is going to stifle economic activity. It will possibly make us go backwards in water quality because if we don't have a growing economy, we don't have the resources to do the environmental stuff we want to do.

So it is very important that we kill this amendment that the gentlewoman offers because it guts the bill and support H.R. 1732 going forward. All it does is say to the EPA: Go back and work with the States, and don't propose the same rule you put out there that you won't tell us what your changes are, but go back and work with the States, do it in an open, transparent, and accountable process, and we can do something that protects water quality and the environment in this country and move this country forward.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentlewoman from Maryland (Ms. EDWARDS).

The question was taken; and the Chair announced that the ayes appeared to have it.

Ms. EDWARDS. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the

amendment offered by the gentlewoman from Maryland will be postponed.

AMENDMENT NO. 2 OFFERED BY MR. KILDEE

The CHAIR. It is now in order to consider amendment No. 2 printed in part B of House Report 114–98.

Mr. KILDEE. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill, add the following:

SEC. 4. EFFECT ON STATE PERMIT PROGRAMS.

(a) IN GENERAL.—If the Administrator of the Environmental Protection Agency, based on the proposed rule developed under section 3, issues a final rule to define the term ''waters of the United States'' as used in the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.), the Administrator shall—

(1) not later than 90 days after the date of issuance of the final rule, review each permit program being administered by a State under section 402, 404, or 405 of that Act (33 U.S.C. 1342, 1344, or 1345) to determine whether the permit program complies with the terms of the final rule; and

(2) not later than 10 days after the date of completion of the review, notify the State of—

(A) the Administrator's determination under paragraph (1); and

(B) in any case in which the Administrator determines that a permit program does not comply with the final rule, the actions required to bring the permit program into compliance.

(b) COMPLIANCE PERIOD.—During the 2-year period beginning on the date on which the Administrator provides notice to a State under subsection (a)(2), the Administrator may not withdraw approval of a State permit program referred to in subsection (a)(1) on the basis that the permit program does not comply with the terms of a final rule described in subsection (a).

(c) LIMITATION ON STATUTORY CONSTRUCTION.—Nothing in this section may be construed to limit or otherwise affect the authority of the Administrator under the Federal Water Pollution Control Act or any other provision of law—

(1) to withdraw approval of a State permit program referred to in subsection (a)(1), except as specifically prohibited by subsection (b); or

(2) to disapprove a proposed permit under a State permit program referred to in subsection (a).

The CHAIR. Pursuant to House Resolution 231, the gentleman from Michigan (Mr. KILDEE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Michigan.

Mr. KILDEE. Mr. Chair, as allowed under the Clean Water Act, Michigan, my home State, and many other States have successfully attained permitting responsibility for pollutant discharges into their waters through their State environmental departments, as we do in Michigan. These programs have been long a very successful Federal-State partnership, allowing States, who know their lands and waters better than anyone, to be able to keep local control of their permitting program to ensure protection of their waters in compliance with Federal law in their States. The scope and structure of these programs, of course, are determined by the definition of waters of the U.S.

So when the EPA comes out with a new definition of waters of the U.S., every State's program would go under review to ensure that it is compliant with that new definition. Though Michigan has had its authority to operate its own permitting program from the 1970s, its program has been under review by the EPA for several years. So, in response to the EPA's review of Michigan's program, Michigan passed a bipartisan law in 2013 to improve its State-run program to align with Federal law.

□ 1715

Maintaining these current State permitting programs—it is interesting—is supported in my State and other places both by environmental and agricultural interests, something that we don't often see. So it is really important to maintain these successful programs.

Interestingly enough, since the enactment of its 2013 law, Michigan has not lost any of our precious wetlands.

What my amendment would do is ensure that States that do this will be able to continue to control their State permitting program so that the people who know the States and its waters best can comply with their unique application of the law. Particularly in places like Michigan where we have the Great Lakes, that is important.

So here is what my amendment would do:

First, once a rule under this bill would be finalized, the EPA would have 90 days to determine if a State's program is still compliant under the new rule.

Second, the EPA would have a further 10 days to notify a State in writing if its permitting programs are compliant under that new rule.

And finally, if a State is not compliant, the EPA must allow States 2 years to comply with the new rule before they federalize a State's permitting program.

When a new rule for definition of waters of the U.S. comes out, it will automatically place every State's permitting program under review, running the risk of ending these successful partnerships. I believe, and I think others agree, we have to maintain the flexibility so that States can comply with the new rule before the EPA would remove a State's program.

Depending on the State, of course, statutory changes might be required. So we believe that 2 years would be a sufficient period of time for States like Michigan to work through the legislative process. It took Michigan over a year in 2013 to come to a conclusion of that reform.

In practice, to be fair, the EPA has granted broad discretion when reviewing a State's programs. What this amendment would do is simply codify into law that process so that States have the ability to come into compliance and maintain this important partnership. It is really important to the underlying purpose of the act.

With that, Mr. Chairman, I reserve the balance of my time.

Mr. GIBBS. Mr. Chairman, I claim the time in opposition to the amendment, though I am not opposed.

The CHAIR. Without objection, the gentleman from Ohio is recognized for 5 minutes.

There was no objection.

Mr. GIBBS. Mr. Chairman, I want to thank my colleague from Michigan for offering this thoughtful amendment. We are prepared to support this amendment since we believe it helps protect a State's role in administering the Clean Water Act, especially those States with delegated authorities under sections 402 and 404 of the act. We also believe this amendment strengthens H.R. 1732 and enhances the role of States in carrying out the Clean Water Act. I encourage Members to support the Kildee amendment.

I would also ask the sponsor of this amendment if he would support this underlying bill with the amendment included. The reason I argue he should is because, under the current rule, without the underlying bill being passed, States would have to change the processes under the 402 and 404 permitting, and they currently would have no grace period. With this amendment in the underlying bill and passage of the underlying bill, that would solve that problem. And so his amendment strengthens the bill, but also gives the States the flexibility that he is asking for. I would ask that the sponsor of the amendment support the underlying bill.

I yield back the balance of my time.

Mr. KILDEE. Mr. Chairman, I appreciate the gentleman's comments and his support. I do think it is important that whenever we can agree, we do express that agreement. I think this amendment is a good example.

I know we all support the underlying purpose of the act. This particular amendment would ensure that, when there is a rule, States that do operate under delegated authority would be able to continue to protect the waters of the U.S. and the waters within their own States with the best knowledge on the ground. It has been a good experience in the State of Michigan. I think it is good for other States as well. I think that this amendment would help to ensure that.

Mr. Chairman, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Michigan (Mr. KILDEE).

The amendment was agreed to.

Mr. GIBBS. Mr. Chairman, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. DUNCAN of Tennessee) having assumed the

chair, Mr. YOUNG of Iowa, Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 1732) to preserve existing rights and responsibilities with respect to waters of the United States, and for other purposes, had come to no resolution thereon.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

RAFAEL RAMOS AND WENJIAN LIU NATIONAL BLUE ALERT ACT OF 2015

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 665) to encourage, enhance, and integrate Blue Alert plans throughout the United States in order to disseminate information when a law enforcement officer is seriously injured or killed in the line of duty, is missing in connection with the officer's official duties, or an imminent and credible threat that an individual intends to cause the serious injury or death of a law enforcement officer is received, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 665

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Rafael Ramos and Wenjian Liu National Blue Alert Act of 2015''.

SEC. 2. DEFINITIONS.

In this Act:

(1) COORDINATOR.—The term ''Coordinator'' means the Blue Alert Coordinator of the Department of Justice designated under section 4(a).

(2) BLUE ALERT.—The term ''Blue Alert'' means information sent through the network relating to—

(A) the serious injury or death of a law enforcement officer in the line of duty;

(B) an officer who is missing in connection with the officer's official duties; or

(C) an imminent and credible threat that an individual intends to cause the serious injury or death of a law enforcement officer.

(3) BLUE ALERT PLAN.—The term ''Blue Alert plan'' means the plan of a State, unit of local government, or Federal agency participating in the network for the dissemination of information received as a Blue Alert.

(4) LAW ENFORCEMENT OFFICER.—The term ''law enforcement officer'' shall have the same meaning as in section 1204 of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796b).

(5) NETWORK.—The term ''network'' means the Blue Alert communications network established by the Attorney General under section 3.

(6) STATE.—The term ''State'' means each of the 50 States, the District of Columbia, Puerto Rico, the United States Virgin Islands, Guam, American Samoa, and the Commonwealth of the Northern Mariana Islands.

SEC. 3. BLUE ALERT COMMUNICATIONS NETWORK.

The Attorney General shall establish a national Blue Alert communications network within the Department of Justice to issue Blue Alerts through the initiation, facilitation, and promotion of Blue Alert plans, in coordination with States, units of local government, law enforcement agencies, and other appropriate entities.

SEC. 4. BLUE ALERT COORDINATOR; GUIDELINES.

(a) COORDINATION WITHIN DEPARTMENT OF JUSTICE.—The Attorney General shall assign an existing officer of the Department of Justice to act as the national coordinator of the Blue Alert communications network.

(b) DUTIES OF THE COORDINATOR.—The Coordinator shall—

(1) provide assistance to States and units of local government that are using Blue Alert plans;

(2) establish voluntary guidelines for States and units of local government to use in developing Blue Alert plans that will promote compatible and integrated Blue Alert plans throughout the United States, including—

(A) a list of the resources necessary to establish a Blue Alert plan;

(B) criteria for evaluating whether a situation warrants issuing a Blue Alert;

(C) guidelines to protect the privacy, dignity, independence, and autonomy of any law enforcement officer who may be the subject of a Blue Alert and the family of the law enforcement officer;

(D) guidelines that a Blue Alert should only be issued with respect to a law enforcement officer if—

(i) the law enforcement agency involved—

(I) confirms—

(aa) the death or serious injury of the law enforcement officer; or

(bb) the attack on the law enforcement officer and that there is an indication of the death or serious injury of the officer; or

(II) concludes that the law enforcement officer is missing in connection with the officer's official duties;

(ii) there is an indication of serious injury to or death of the law enforcement officer;

(iii) the suspect involved has not been apprehended; and

(iv) there is sufficient descriptive information of the suspect involved and any relevant vehicle and tag numbers;

(E) guidelines that a Blue Alert should only be issued with respect to a threat to cause death or serious injury to a law enforcement officer if—

(i) a law enforcement agency involved confirms that the threat is imminent and credible;

(ii) at the time of receipt of the threat, the suspect is wanted by a law enforcement agency;

(iii) the suspect involved has not been apprehended; and

(iv) there is sufficient descriptive information of the suspect involved and any relevant vehicle and tag numbers;

(F) guidelines—

(i) that information should be provided to the National Crime Information Center database operated by the Federal Bureau of Investigation under section 534 of title 28, United States Code, and any relevant crime information repository of the State involved, relating to—

(I) a law enforcement officer who is seriously injured or killed in the line of duty; or

(II) an imminent and credible threat to cause the serious injury or death of a law enforcement officer;

(ii) that a Blue Alert should, to the maximum extent practicable (as determined by the Coordinator in consultation with law enforcement agencies of States and units of local governments), be limited to the geographic areas most likely to facilitate the apprehension of the suspect involved or which the suspect could reasonably reach, which should not be limited to State lines;

(iii) for law enforcement agencies of States or units of local government to develop plans to communicate information to neighboring States to provide for seamless communication of a Blue Alert; and

(iv) providing that a Blue Alert should be suspended when the suspect involved is apprehended or when the law enforcement agency involved determines that the Blue Alert is no longer effective; and

(G) guidelines for—

(i) the issuance of Blue Alerts through the network; and

(ii) the extent of the dissemination of alerts issued through the network;

(3) develop protocols for efforts to apprehend suspects that address activities during the period beginning at the time of the initial notification of a law enforcement agency that a suspect has not been apprehended and ending at the time of apprehension of a suspect or when the law enforcement agency involved determines that the Blue Alert is no longer effective, including protocols regulating—

(A) the use of public safety communications;

(B) command center operations; and

(C) incident review, evaluation, debriefing, and public information procedures;

(4) work with States to ensure appropriate regional coordination of various elements of the network;

(5) establish an advisory group to assist States, units of local government, law enforcement agencies, and other entities involved in the network with initiating, facilitating, and promoting Blue Alert plans, which shall include—

(A) to the maximum extent practicable, representation from the various geographic regions of the United States; and

(B) members who are—

(i) representatives of a law enforcement organization representing rank-and-file officers;

(ii) representatives of other law enforcement agencies and public safety communications;

(iii) broadcasters, first responders, dispatchers, and radio station personnel; and

(iv) representatives of any other individuals or organizations that the Coordinator determines are necessary to the success of the network;

(6) act as the nationwide point of contact for—

(A) the development of the network; and

(B) regional coordination of Blue Alerts through the network; and

(7) determine—

(A) what procedures and practices are in use for notifying law enforcement and the public when—

(i) a law enforcement officer is killed or seriously injured in the line of duty;

(ii) a law enforcement officer is missing in connection with the officer's official duties; and

(iii) an imminent and credible threat to kill or seriously injure a law enforcement officer is received; and

(B) which of the procedures and practices are effective and that do not require the expenditure of additional resources to implement.

(c) LIMITATIONS.—

(1) VOLUNTARY PARTICIPATION.—The guidelines established under subsection (b)(2), protocols developed under subsection (b)(3), and other programs established under subsection (b), shall not be mandatory.

(2) DISSEMINATION OF INFORMATION.—The guidelines established under subsection (b)(2) shall, to the maximum extent practicable (as determined by the Coordinator in consultation with law enforcement agencies of States and units of local government), provide that appropriate information relating to a Blue Alert is disseminated to the appropriate officials of law enforcement agencies, public health agencies, and other agencies.

(3) PRIVACY AND CIVIL LIBERTIES PROTECTIONS.—The guidelines established under subsection (b) shall—

(A) provide mechanisms that ensure that Blue Alerts comply with all applicable Federal, State, and local privacy laws and regulations; and

(B) include standards that specifically provide for the protection of the civil liberties, including the privacy, of law enforcement officers who are seriously injured or killed in the line of duty, is missing in connection with the officer's official duties, or who are threatened with death or serious injury, and the families of the officers.

(d) COOPERATION WITH OTHER AGENCIES.—The Coordinator shall cooperate with the Secretary of Homeland Security, the Secretary of Transportation, the Chairman of the Federal Communications Commission, and appropriate offices of the Department of Justice in carrying out activities under this Act.

(e) RESTRICTIONS ON COORDINATOR.—The Coordinator may not—

(1) perform any official travel for the sole purpose of carrying out the duties of the Coordinator;

(2) lobby any officer of a State regarding the funding or implementation of a Blue Alert plan; or

(3) host a conference focused solely on the Blue Alert program that requires the expenditure of Federal funds.

(f) REPORTS.—Not later than 1 year after the date of enactment of this Act, and annually thereafter, the Coordinator shall submit to Congress a report on the activities of the Coordinator and the effectiveness and status of the Blue Alert plans that are in effect or being developed.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentlewoman from Texas (Ms. JACKSON LEE) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous materials on S. 665, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

This week in Washington, D.C., we are celebrating National Police Week. This annual tradition, which draws tens of thousands of law enforcement officers from around the country, is a time to celebrate the critical role that police play in maintaining a free and safe society. It is also a time to mourn our Nation's fallen heroes.

Last year, 127 men and women gave their lives while protecting Americans' public safety, including three officers in my home State of Virginia. The average age of these fallen officers is just 40 years old, which is too young to be taken from their loved ones.

The Blue Alert system, which is currently in place in 20 States, is a cooperative effort among local, State, and Federal authorities, law enforcement agencies, and the general public.

S. 665, the Rafael Ramos and Wenjian Liu National Blue Alert Act of 2015, seeks to expand on these existing programs by encouraging an enhanced nationwide system for the distribution of time-sensitive information to help identify and locate a violent suspect when a law enforcement officer is injured or killed in the line of duty or when there is an imminent and credible threat against an officer.

Similar to the AMBER Alerts for missing children and Silver Alerts for missing seniors, Blue Alerts broadcast information about suspects, including a description of an offender who is still at large and, if available, a description of the offender's vehicle and license plate information. Like AMBER Alerts, Blue Alerts are intended to hinder the offender's ability to escape and will facilitate their capture.

S. 665 directs the Justice Department to designate an existing employee as the Blue Alert national coordinator, who will establish voluntary guidelines for the program and encourage those States that have not already done so to develop Blue Alert plans.

The House has passed similar versions of this legislation in the past two Congresses, but those bills were not taken up by the Senate.

The version of the Blue Alert bill that we consider today is different for two important reasons:

First, unlike the Blue Alert bills from prior Congresses that passed this body only to wither away in the Senate, S. 665 will be sent directly to the President's desk for signature following House passage. I urge him to sign this legislation without delay.

Second, S. 665 is named after New York City Police Officers Rafael Ramos and Wenjian Liu, who, in December 2014, were murdered in cold blood by a malevolent killer who traveled from Baltimore to Brooklyn with the stated intention of shooting police officers.

Officer Ramos left behind a wife and 13-year-old son. Officer Liu left behind his wife of just 2 months. This bill, a tribute to their service and sacrifice, will hopefully spare other families from the pain of losing a loved one.

I thank Senator CARDIN, Mr. REICHERT of Washington, and the many bipartisan cosponsors of both the House and Senate bills for their work on this important legislation. I also thank the many outside law enforcement organizations that have tirelessly promoted the Blue Alert program over the past several years.

This bill reaffirms Congress' commitment to ensure the safety of the men and women in our Nation's law enforcement communities and the citizens they serve and protect every day.

I urge my colleagues to support this bipartisan legislation, and I reserve the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I yield myself such time as I may consume.

Let me thank Chairman GOODLATTE and Ranking Member CONYERS of the Judiciary Committee for this timely presentation and the offering of this legislation on the floor this week, which is a time to commemorate and mourn and to uphold the Nation's law enforcement. It is a very important statement that we make today on the floor of the House.

As a senior member of the House Judiciary Committee, a ranking member of the Subcommittee on Crime, Terrorism, Homeland Security, and Investigations, and yes, as a Member of Congress from Houston, which has one of the Nation's most effective police departments, and as a cosponsor of the House companion measure, I rise in strong support of S. 665, the Rafael Ramos and Wenjian Liu National Blue Alert Act of 2015.

I, too, thank Senator CARDIN, Congressman REICHERT, and my colleague and friend, Congressman PASCRELL. I am also a cosponsor. I thank them for their particular leadership on this bill.

Every day, more than 900,000 officers protect and serve the people of the United States. On average, one law enforcement officer is killed in the line of duty every 58 hours. Each year, there is an average of 58,930 assaults on our law enforcement officers, resulting in 15,404 injuries.

Just yesterday, in Hattiesburg, Mississippi, the community held a memorial for two dedicated public servants fatally shot during a traffic stop on Saturday night.

Married and the father of two, Benjamin Deen, a 34-year-old canine officer, was recognized in 2012 as the Hattiesburg Officer of the Year. Liquori Tate, just 25 years old, fulfilled a childhood dream when he graduated from the police academy and joined the police force less than 1 year ago. Many of us heard the sympathetic and emotional outpouring by his family of his love of being a law enforcement officer.

For the community of Hattiesburg, the senseless deaths of on-duty officers are the first in three decades. Hattiesburg is not alone, however, in these tragic developments. Law enforcement fatalities in the U.S. rose 24 percent in 2014, reversing 2 years of significant decline.

The number of law enforcement officers killed in the line of duty rose from 102 in 2013 to 126 in 2014. Statistics released yesterday by the FBI show that

51 law enforcement officers were feloniously killed in the line of duty in 2014. This is an increase of almost 89 percent when compared to the 27 killed in 2013. Of those 51 felonious deaths, offenders used firearms in 46 of them.

Just 1 day before this tragedy in Mississippi, Officer Brian Moore was laid to rest thousands of miles away in Long Island, New York. After 6 p.m. on a Saturday, Moore and his partner came upon the gunman. After identifying himself as a police officer and asking the gunman about the object in his waistband, the gunman fatally shot Moore in the face.

Moore was 20 years old when he joined the New York Police Department. After over 5 years of service, he earned two Meritorious Police Duty medals and two Excellent Police Duty medals. He died several days after he was shot.

□ 1730

The killing of Officer Moore in New York City comes on the heels of the December killings of New York Police Department Officers Rafael Ramos and Wenjian Liu, for whom this legislation before us memorializes. These officers were killed on a Saturday afternoon while sitting in their parked patrol car by a man who shared his intent to kill police officers on social media.

This man traveled from Maryland to New York to execute his plan; and, unfortunately, at the same time Maryland authorities were warning the NYPD of this threat, Officers Ramos and Liu were being assassinated.

Benjamin Deen, Liquori Tate, Brian Moore, Rafael Ramos, and Wenjian Liu and other fallen heroes join the more than 20,000 U.S. law enforcement officers who have made the ultimate sacrifice since the first known line-of-duty death in 1791, nearly 1,700 of whom hail from my home State of Texas and 121 from the Houston Police Department.

The brave men and women who risk their lives to keep the peace and keep us safe are too often taken by the violence they are working to prevent. When a law enforcement officer is seriously injured or killed, rapid dissemination of information about the suspected criminal is critical to ensuring justice for that officer and keeping the public safe.

Here lies the opportunity for this important legislation. The Blue Alert System is modeled after the AMBER Alert and the Silver Alert. Currently, 22 States, including my home State of Texas, have local Blue Alert programs in operation.

The gist of this legislation is to provide for the coordination and the provisions for other States to participate and to help other States participate in a Blue Alert plan. This Blue Alert plan, I hope, will save lives or will, in essence, save and protect law enforcement officers or bring their perpetrator, tragically, of their death, to justice.

This is an important statement this week as we mourn those who have fallen in the service of their country as law enforcement officers. This is an important action, if you will, to tell the families of these officers that we care. I hope my colleagues will join us in supporting this legislation.

Mr. Speaker, I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, it is my pleasure to yield such time as he may consume to the gentleman from Washington (Mr. REICHERT), the chief sponsor of the companion House legislation.

Mr. REICHERT. Mr. Speaker, I thank the chairman for yielding generous time for my comments. I also want to thank you for your strong support for this legislation, and I take a moment also to thank Ms. JACKSON LEE for her strong words of support. Her passion was evident and felt in her words.

This is a very close topic to my heart, very near and dear to me. I think, as most Members in this body know, I spent 33 years in law enforcement before I came to Congress. I have been here 10 years; I tell people I just look like I have been here 40 years, but I have had the blessing of serving in many different ways, first in the Air Force and now in Congress.

Today is just an honor to stand here in support of this legislation because, this week, we have families from all across the country. When I arrived at the airport this afternoon, at 3:30, motorcades were lined up to escort the survivors of the fallen officers, honor guards standing at the gates where people are coming off the airplanes, to escort the families of the fallen officers.

These men and women risk their lives every day across this great Nation to protect our communities, protect our families, protect our children, and we need to help them. This bill does just that because, when they leave home, they don't know if they are coming back. The families don't know if they are coming back home that day or that evening.

My own family has had that experience watching me being wheeled into a hospital room with stab wounds in the side of my neck. They learned about it on TV. That was back in the seventies, so it was a little bit different time back then, but it is still a dangerous job.

We worked hard to work with the New York Police Department, the Sergeants Benevolent Association, and the Federal Law Enforcement Officers Association to rename this bill after the two New York police officers, Ramos and Liu, because this is a story where this Blue Alert could have made a difference.

It could have made a difference because the suspect in this case shot his girlfriend in Maryland at 5:45 in the morning, and then at 2:45, 3 in the afternoon, showed up in New York, after posting on social media that he was going to make ''angels out of police officers that day.'' As Ms. JACKSON LEE said, the information came to NYPD too late.

We think Blue Alert can make a difference. We think Blue Alert can save lives. We think Blue Alert can keep our officers safer on the streets.

In Seattle, Washington, there is a community called Lakewood; and it is just a half an hour, 40 minutes, south of Seattle, the city of Lakewood. In 2009, there were four police officers sitting in a coffee shop.

They were having a squad meeting, a sergeant and three police officers—Sergeant Renninger, Officer Owens, Officer Griswold, and Officer Richard—just sitting there, having coffee, talking about what was going to happen that day, what they were going to focus on that day to keep that community safe.

A man walked in and assassinated all four officers. A 2-day manhunt occurred looking for that suspect, for that murderer, for that monster—2 days. If we had had Blue Alert—and during those 2 days, that suspect is on the loose. He is not only a danger to other police officers, he is a danger to the entire community. We need to find these people as soon as possible.

A Blue Alert—because we knew who this guy was, and in the New York case, we knew who this guy was—all we need to do is put the information out there sooner, quicker, faster, immediately so we could capture these people and put them behind bars and keep the community safe.

Also, a number of years ago, in 1982, I lost a friend, my best friend and my partner, and he was shot and killed chasing a murder suspect. I was one of the cops out there for 3 days searching for this guy in the foothills of the Cascade Mountains, about 45 minutes southeast of Seattle. In 1982, of course, we didn't have this technology. I know the feeling of losing a good friend, a good cop, a father of five, dedicated, would do anything for his community.

We have got to do everything we can to show support across this country for our cops on the street, for their families, and this week especially, when you see a police officer walking around the Capitol Grounds, make sure you say thank you. Make sure you say thank you to the family because this is a loss they will never, ever forget; and neither will we.

I encourage my colleagues to support this bill.

I also want to make mention of a good friend who has worked with me on law enforcement issues here in this body, who was the mayor of Paterson, New Jersey. I always tell BILL PASCRELL that he would have made a good sheriff. He is a strong supporter of law enforcement, first responders, and firefighters.

He and I co-chair the Law Enforcement Caucus together. He is here in this body today, and I know he is going to be speaking on some of these issues this evening.

He has been a good friend to law enforcement, and I appreciate all the

hard work that he has put into this bill and others to help support our law enforcement officers across this country.

I appreciate the time.

Ms. JACKSON LEE. Mr. Speaker, I thank Congressman REICHERT for his belief in this bill and for his statement of the preciousness of life of our law enforcement officers and our families who depend upon them.

This bill, of course, in particular, would work with States to ensure the regional coordination of various elements of the network, which speaks directly to the heinous crime committed against the two New York police officers and someone who traveled from Maryland to New York.

Mr. Speaker, I yield 4 minutes to the gentleman from New Jersey (Mr. PASCRELL), a gentleman who lives in the region and who we have had the privilege of working with, from COPS on the Beat to the Blue Alert and many other bills dealing with our first responders, and a cosponsor of this bill.

Mr. PASCRELL. Mr. Speaker, I thank the gentlewoman.

Anyone who listened to the gentleman from Washington State, Congressman REICHERT, if they have any doubt as to the significance, not only of this piece of legislation and the other three pieces of legislation that we will pursue after this, I don't know what it is going to take because he was on the front lines. He doesn't have to conjecture.

I personally thank Chairman GOODLATTE. I personally thank Ranking Member CONYERS and, of course, our brothers in the Senate, Senator CARDIN, Senator LINDSEY GRAHAM.

We had a press conference in April and introduced this legislation. At that press conference was Gina Miller. Gina Miller was the fiancee of a Washington State trooper, Tony Radulescu, who was shot at a traffic stop in Washington State and killed.

He went to high school in New Jersey. He was a vet from the gulf war, as many of our police officers are. I promised Gina I would not take off the wristband she gave me until we pass this legislation. It is fitting in this month, when we honor all law enforcement, it is fitting that we move this through the House of Representatives.

I am honored to stand with Mr. REICHERT as we present this, and I am honored and thank you all for coming on this piece of legislation.

We have heard the numbers about how many police officers were killed in the line of duty in 2013 and 2014. It is a grave reminder that these attacks are too common in our communities.

Last year, we mourned the loss of Jersey City Officer Melvin Santiago, who was killed in the line of duty responding to a gang-related robbery. Officer Santiago's death set off a series of targeted threats against the Jersey police officers from the assailant's fellow gang members.

The grave risk that our law enforcement officers face was tragically confirmed this past Christmas when on-duty New York Police Department Officers Ramos and Liu were murdered while simply sitting in their squad car.

When threats like this occur, the rapid dissemination of critical, time-sensitive information is essential, and the national Blue Alert system would provide that in New Jersey and across our Nation.

Regardless of what aspect you talk of about police work, law enforcement, talk must be followed by action.

□ 1745

So cops, the police officers just don't need a pat on the back from us while we place our grandchildren in the back of the car to see what it is like to sit in a police car. They need our actions here in Washington to help communities throughout America.

So I thank Chairman GOODLATTE for putting this bill before us tonight and the other bills that will follow.

Mr. GOODLATTE. I reserve the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, it is my pleasure to yield 2 minutes to the gentleman from Tennessee (Mr. COHEN), another distinguished gentleman who has worked on these issues and is now the ranking member of the Constitution and Civil Justice Subcommittee of the House Judiciary Committee.

Mr. COHEN. Mr. Speaker, I want to thank the ranking member for the time; I want to thank the chairman for scheduling these bills; and particularly I want to thank the gentleman from Washington (Mr. REICHERT) and the gentleman from New Jersey (Mr. PASCRELL) for bringing them.

My first job out of law school was attorney for the Memphis Police Department, and I served 3½ years working as the attorney for the Memphis Police Department. I know that police are on the front lines of democracy in seeing that we have a society that can function and that we have people's rights protected in a most direct way.

The ranking member talked about the losses of the lives in New York of Officer Davis; the two officers this bill is named for, Officers Ramos and Liu; and then there were the two officers killed in Hattiesburg, Mississippi, each of which is tragic and each of which caused me to grieve and be mournful about the loss of these men's lives in the course of duty.

While we have some issues with law enforcement in certain areas, we need to have law enforcement; and the loss of any life of a law enforcement member in the actions of their duties or because of their position is wrong, and we should have a system in place to apprehend and arrest somebody who, with probable cause, committed that crime.

I also want to thank the chairman of the committee for scheduling a hearing next week on civil rights issues. These issues go together. No one should lose their life wrongfully. We must deal with these issues, and it is commendable.

There are some good things happening in Congress. So many times I go home, and people talk about the acrimony and don't we get along. Well, we get some things done, and we get some things done together, and the Judiciary Committee is doing some of those things.

I want to thank the chairman and the ranking member, who is not here, for that.

I am a proud sponsor of this bill. I hope everybody will vote for it and pass it. It will save some law enforcement people's lives.

Mr. GOODLATTE. Mr. Speaker, I have no further speakers, and if the gentlewoman from Texas is prepared to yield back, I am prepared to do the same.

Ms. JACKSON LEE. I yield myself such time as I may consume.

Mr. Speaker, I was moved by all of the presentations that have been made here today, statements on the floor, by passionate Members of Congress. It reminded me of my time as a municipal court judge, seeing officers in clothing that would not be recognizable because they were undercover officers, seeking what we call probable cause warrants and trying to save communities.

I think this legislation is extremely important in this week because what it says is that we can all get along, that we can pass legislation that deals with the pain of our law enforcement officers and commits us to the statement that we want them to go home to their families. At the same time, we can use the words ''criminal justice reform'' and not offend by saying it is to help everyone: our law enforcement officers and our civilians.

I am also grateful that next week we will have the opportunity to hear a myriad of issues on this particular point.

But as we come together this week, officers of the law will be coming to Washington, D.C., from all parts of the Nation. This legislation will make the statement that we want to coordinate, we want to establish advisory groups, we want to establish guidelines for States, and we want to provide assistance to have the Blue Alert plans.

As we have saved children through the AMBER Alerts and helped find senior citizens through the Silver Alerts, I want to make sure that we bring more officers home to their families by ensuring that heinous criminals who are out to do them harm are caught before they do more harm.

I also want to say that I look forward to working on legislation that deals with bringing us together and making sure that we address all of the concerns.

So I join today with the Fraternal Order of Police, the National Association of Police Organizations, and the National Sheriffs' Association in supporting this legislation, S. 665. But more importantly, Mr. Speaker, I stand today mourning those who have been lost and joining our officers as they

converge upon the United States Capitol, standing shoulder-to-shoulder. I want to say to them that America cares. We honor you; we mourn you; and we stand in assistance to you.

I would like to introduce into the RECORD a list of officers killed in the line of duty in my own hometown of Houston, Texas, from the Houston Police Department.

HOUSTON POLICE DEPARTMENT OFFICERS KILLED IN THE LINE OF DUTY

LINE OF DUTY DEATHS: 112

Assault: 1
Automobile accident: 10
Fire: 1
Gunfire: 69
Gunfire (Accidental): 2
Heart attack: 2
Motorcycle accident: 9
Stabbed: 2
Struck by vehicle: 5
Vehicle pursuit: 1
Vehicular assault: 10

BY MONTH

January: 12
February: 7
March: 12
April: 10
May: 7
June: 15
July: 5
August: 14
September: 9
October: 6
November: 6
December: 9

BY GENDER

Male: 109
Female: 3

Police Officer Kevin Scott Will, Houston Police Department, EOW: Sunday, May 29, 2011, Cause: Vehicular assault.

Police Officer Eydelmen Mani, Houston Police Department, EOW: Wednesday, May 19, 2010, Cause: Automobile accident.

Police Officer Henry Canales, Houston Police Department, EOW: Tuesday, June 23, 2009, Cause: Gunfire.

Police Officer Timothy Scott Abernethy, Houston Police Department, EOW: Sunday, December 7, 2008, Cause: Gunfire.

Police Officer Gary Allen Gryder, Houston Police Department, EOW: Sunday, June 29, 2008, Cause: Vehicular assault.

Officer Rodney Joseph Johnson, Houston Police Department, EOW: Thursday, September 21, 2006, Cause: Gunfire.

Officer Reuben Becerra DeLeon, Jr., Houston Police Department, EOW: Wednesday, October 26, 2005, Cause: Gunfire.

Police Officer Frank Manuel Cantu, Jr., Houston Police Department, EOW: Thursday, March 25, 2004, Cause: Vehicular assault.

Police Officer Charles Roy Clark, Houston Police Department, EOW: Thursday, April 3, 2003, Cause: Gunfire.

Police Officer Keith Alan Dees, Houston Police Department, EOW: Thursday, March 7, 2002, Cause: Motorcycle accident.

Police Officer Alberto ''Albert'' Vasquez, Houston Police Department, EOW: Tuesday, May 22, 2001, Cause: Gunfire.

Officer Dennis E. Holmes, Houston Police Department, EOW: Wednesday, January 10, 2001, Cause: Heart attack.

Police Officer Jerry Keith Stowe, Houston Police Department, EOW: Wednesday, September 20, 2000, Cause: Assault.

Police Officer Troy Alan Blando, Houston Police Department, EOW: Wednesday, May 19, 1999, Cause: Gunfire.

Sergeant Kent Dean Kincaid, Houston Police Department, EOW: Saturday, May 23, 1998, Cause: Gunfire.

Police Officer Cuong Huy ''Tony'' Trinh, Houston Police Department, EOW: Sunday, April 6, 1997, Cause: Gunfire.

Police Officer Dawn Suzanne Erickson, Houston Police Department, EOW: Sunday, December 24, 1995, Cause: Struck by vehicle.

Police Officer David Michael Healy, Houston Police Department, EOW: Saturday, November 12, 1994, Cause: Automobile accident.

Police Officer Guy P. Gaddis, Houston Police Department, EOW: Monday, January 31, 1994, Cause: Gunfire.

Police Officer Michael P. Roman, Houston Police Department, EOW: Thursday, January 6, 1994, Cause: Vehicle pursuit.

Sergeant Bruno David Soboleski, Houston Police Department, EOW: Friday, April 12, 1991, Cause: Gunfire.

Police Officer John Anthony Salvaggio, Houston Police Department, EOW: Sunday, November 25, 1990, Cause: Vehicular assault.

Police Officer James Bruce Irby, Houston Police Department, EOW: Wednesday, June 27, 1990, Cause: Gunfire.

Police Officer James Charles Boswell, Houston Police Department, EOW: Saturday, December 9, 1989, Cause: Gunfire.

Officer Fiorentino M. Garcia, Jr., Houston Police Department, EOW: Friday, November 10, 1989, Cause: Motorcycle accident.

Officer Elston Morris Howard, Houston Police Department, EOW: Wednesday, July 20, 1988, Cause: Gunfire.

Officer Andrew Winzer, Houston Police Department, EOW: Thursday, February 18, 1988, Cause: Automobile accident.

Officer Maria Michelle Groves, Houston Police Department, EOW: Friday, April 10, 1987, Cause: Vehicular assault.

Officer William Moss, Houston Airport Police Department, EOW: Monday, September 12, 1983, Cause: Automobile accident.

Police Officer Charles Robert Coates, II, Houston Police Department, EOW: Wednesday, February 23, 1983, Cause: Struck by vehicle.

Police Officer Kathleen C. Schaefer, Houston Police Department, EOW: Wednesday, August 18, 1982, Cause: Gunfire (Accidental).

Officer James D. Harris, Houston Police Department, EOW: Tuesday, July 13, 1982, Cause: Gunfire.

Detective Daryl W. Shirley, Houston Police Department, EOW: Wednesday, April 28, 1982, Cause: Gunfire.

Police Officer Winston J. Rawlins, Houston Police Department, EOW: Monday, March 29, 1982, Cause: Fire.

Police Officer William Edwin DeLeon, Houston Police Department, EOW: Monday, March 29, 1982, Cause: Vehicular assault.

Police Officer Jose A. Zamarron, Houston Police Department, EOW: Saturday, April 18, 1981, Cause: Vehicular assault.

Detective Victor R. Wells, III, Houston Police Department, EOW: Thursday, October 2, 1980, Cause: Gunfire.

Deputy City Marshal Charles H. Baker, Houston City Marshal's Office, EOW: Thursday, August 16, 1979, Cause: Gunfire.

Police Officer Timothy Lowe Hearn, Houston Police Department, EOW: Thursday, June 8, 1978, Cause: Gunfire.

Police Officer James F. Kilty, Houston Police Department, EOW: Thursday, April 8, 1976, Cause: Gunfire.

Police Officer George G. Rojas, Houston Police Department, EOW: Wednesday, January 28, 1976, Cause: Stabbed.

Police Officer Richard H. Calhoun, Houston Police Department, EOW: Friday, October to, 1975, Cause: Gunfire.

Officer Francis Eddie Wright, Houston Police Department, EOW: Saturday, August 2, 1975, Cause: Struck by vehicle.

Police Officer Johnny Terrell Bamsch, Houston Police Department, EOW: Thursday, January 30, 1975, Cause: Gunfire.

Police Officer Jerry Lawrence Riley, Houston Police Department, EOW: Tuesday, June 18, 1974, Cause: Automobile accident.

Police Officer David Huerta, Houston Police Department, EOW: Wednesday, September 19, 1973, Cause: Gunfire.

Patrolman Antonio Guzman Jr., Houston Police Department, EOW: Tuesday, January 9, 1973, Cause: Gunfire.

Police Officer Jerry L. Spruill, Houston Police Department, EOW: Thursday, October 26, 1972, Cause: Gunfire.

Police Officer David Franklin Noel, Houston Police Department, EOW: Saturday, June 17, 1972, Cause: Stabbed.

Police Officer Claude R. Beck, Houston Police Department, EOW: Friday, December 10, 1971, Cause: Struck by vehicle.

Police Officer Robert Wayne Lee, Houston Police Department, EOW: Sunday, January 31, 1971, Cause: Gunfire.

Police Officer Leon Griggs, Houston Police Department, EOW: Saturday, January 31, 1970, Cause: Gunfire.

Police Officer Kenneth L. Moody, Houston Police Department, EOW: Wednesday, November 26, 1969, Cause: Gunfire.

Police Officer Bobby L. James, Houston Police Department, EOW: Wednesday, June 26, 1968, Cause: Vehicular assault.

Police Officer Ben Eddie Gerhart, Houston Police Department, EOW: Wednesday, June 26, 1968, Cause: Gunfire.

Police Officer Louis R. Kuba, Houston Police Department, EOW: Wednesday, May 17, 1967, Cause: Gunfire.

Police Officer Louis L. Sander, Houston Police Department, EOW: Saturday, January 21, 1967, Cause: Gunfire.

Police Officer Floyd T. DeLoach Jr., Houston Police Department, EOW: Wednesday, June 30, 1965, Cause: Gunfire .

Police Officer Herbert N. Planer, Houston Police Department, EOW: Thursday, February 18, 1965, Cause: Gunfire.

Police Officer James Franklin Willis, Houston Police Department, EOW: Wednesday, July 1, 1964, Cause: Automobile accident.

Sergeant Charles R. McDaniel, Houston Police Department, EOW: Sunday, August 4, 1963, Cause: Automobile accident.

Police Officer James T. Walker, Houston Police Department, EOW: Friday, March 8, 1963, Cause: Motorcycle accident.

Police Officer Gonzalo Q. Gonzalez, Houston Police Department, EOW: Sunday, February 28, 1960, Cause: Automobile accident.

Police Officer John W. Suttle, Houston Police Department, EOW: Monday, August 3, 1959, Cause: Struck by vehicle.

Police Officer C.E. Branon, Houston Police Department, EOW: Friday, March 20, 1959, Cause: Vehicular assault.

Police Officer Noel R. Miller, Houston Police Department, EOW: Friday, June 6, 1958, Cause: Gunfire.

Police Officer Robert Schultea, Houston Police Department, EOW: Saturday, August 25, 1956, Cause: Gunfire.

Auxiliary Officer Frank L. Kellogg, Houston Police Department, EOW: Wednesday, November 30, 1955, Cause: Gunfire.

Captain Charles R. Gougenheim, Houston Police Department EOW: Saturday, April 30, 1955, Cause: Gunfire.

Police Officer Jack B. Beets, Houston Police Department EOW: Saturday, April 30, 1955 Cause: Gunfire.

Police Officer Fred Maddox Jr., Houston Police Department, EOW: Wednesday, February 24, 1954, Cause: Gunfire.

Police Officer Smith Anderson ''Buster'' Kent, Houston Police Department, EOW: Tuesday, January 12, 1954, Cause: Motorcycle accident.

Police Officer Howard B. Hammond, Houston Police Department, EOW: Sunday, August 18, 1946, Cause: Gunfire.

Police Officer George D. Edwards, Houston Police Department, EOW: Friday, June 30, 1939, Cause: Gunfire.

Police Officer M.E. Palmer, Houston Police Department, EOW: Thursday, March 24, 1938, Cause: Gunfire.

Police Officer A.P. Martial, Houston Police Department EOW: Monday, November 8, 1937 Cause: Automobile accident.

Police Officer James T. Gambill, Houston Police Department EOW: Tuesday, December 1, 1936 Cause: Heart attack.

Detective Rempsey H. Sullivan, Houston Police Department EOW: Saturday, March 9, 1935 Cause: Gunfire.

Officer Harry T. Mereness, Houston Police Department, EOW: Wednesday, October 18, 1933, Cause: Motorcycle accident.

Officer J.D. Landry, Houston Police Department, EOW: Wednesday, December 3, 1930, Cause: Motorcycle accident.

Officer Willie Bonner Phares, Houston Police Department, EOW: Tuesday, September 30, 1930, Cause: Gunfire.

Officer Edward D. Fitzgerald, Houston Police Department, EOW: Saturday, September 20, 1930, Cause: Gunfire.

Motorcycle Officer C.F. Thomas, Houston Police Department, EOW: Tuesday, December 17, 1929, Cause: Motorcycle accident.

Detective Ed Jones, Houston Police Department, EOW: Friday, September 13, 1929, Cause. Gunfire.

Detective Oscar Hope, Houston Police Department, EOW: Saturday, June 22, 1929, Cause: Gunfire.

Detective A. Worth Davis, Houston Police Department, EOW: Sunday, June 17, 1928 Cause: Gunfire.

Detective Carl Greene, Houston Police Department, EOW: Wednesday, March 14, 1928, Cause: Gunfire.

Officer R. Q. Wells, Houston Police Department, EOW: Saturday, July 30, 1927, Cause: Automobile accident.

Officer Perry P. Jones, Houston Police Department, EOW: Sunday, January 30, 1927, Cause: Gunfire.

Detective E. C. Chavez, Houston Police Department, EOW: Thursday, September 17, 1925 Cause: Gunfire.

Detective Pete Corrales, Houston Police Department, EOW: Sunday, January 25, 1925, Cause: Gunfire.

Officer J. Clark Etheridge, Houston Police Department, EOW: Saturday, August 23, 1924, Cause: Motorcycle accident.

Police Officer George Benard Crawford, Magnolia Park Police Department, EOW: Saturday, September 17, 1921, Cause: Motorcycle accident.

Police Officer Dave Murdock, Houston Police Department, EOW: Monday, June 27, 1921, Cause: Gunfire.

Officer Jeter Young, Houston Police Department, EOW: Sunday, June 19, 1921, Cause: Vehicular assault.

Detective Johnnie Davidson, Houston Police Department, EOW: Saturday, February 19, 1921, Cause: Gunfire.

Police Officer Ira Raney, Houston Police Department, EOW: Thursday, August 23, 1917, Cause: Gunfire.

Police Officer Ross Patton, Houston Police Department, EOW: Thursday, August 23, 1917, Cause: Gunfire.

Police Officer Horace Moody, Houston Police Department, EOW: Thursday, August 23, 1917, Cause: Gunfire.

Police Officer E. G. Meinke, Houston Police Department, EOW: Thursday, August 23, 1917, Cause: Gunfire.

Police Officer Rufus E. Daniels, Houston Police Department, EOW: Thursday, August 23, 1917, Cause: Gunfire.

Detective Isaac Parson, Houston Police Department, EOW: Sunday, May 24, 1914, Cause: Gunfire (Accidental).

Detective Joseph Robert Free, Houston Police Department, EOW: Friday, October 18, 1912, Cause: Gunfire.

Officer John M. Cain, Houston Police Department, EOW: Thursday, August 3, 1911, Cause: Gunfire.

Deputy Chief William E. Murphy, Houston Police Department, EOW: Friday, April 1, 1910, Cause: Gunfire.

Police Officer John C. James, Houston Police Department, EOW: Thursday, December 12, 1901, Cause: Gunfire.

Police Officer Herman Youngst, Houston Police Department, EOW: Thursday, December 12, 1901, Cause: Gunfire.

Officer William F. Weiss Houston Police Department, EOW: Tuesday, July 30, 1901, Cause: Gunfire.

Officer James E. Fenn, Houston Police Department, EOW: Sunday, March 15, 1891, Cause: Gunfire.

Officer Henry Williams, Houston Police Department, EOW: Monday, February 8, 1886, Cause: Gunfire.

Patrolman Richard Snow, Houston Police Department, EOW: Friday, March 17, 1882, Cause: Gunfire.

Officer C. Edward Foley, Houston Police Department, EOW: Saturday, March 10, 1860 Cause: Gunfire.

Ms. JACKSON LEE. Mr. Speaker, I will close with a prayer that those who are already lost will know that we pray for their eternal rest, and for those who live, that we pray for their continued service to this Nation.

Mr. Speaker, as a senior Member of the House Judiciary Committee; as the Ranking Member of the Subcommittee on Crime, Terrorism, Homeland Security, and Investigations; as the representative from Houston, which has one of the Nation's most effective police departments; and as a co-sponsor of the House companion measure, I rise in strong support of S. 665, the ''Rafael Ramos and Wenjian Liu National Blue Alert Act of 2015.''

Every day, more than 900,000 officers protect and serve the people of the United States. On average, one law enforcement officer is killed in the line of duty every 58 hours. And, each year, there is an average of 58,930 assaults on our law enforcement officers, resulting in 15,404 injuries.

Just yesterday, in Hattiesburg, Mississippi, a community held a memorial for two dedicated public servants fatally shot during a traffic stop on Saturday night. Married and the father of two, Benjamin Deen, a 34-year-old K–9 officer, was recognized in 2012 as the Hattiesburg ''Officer of the Year.'' Liquori Tate, just 25 years old, fulfilled a childhood dream when he graduated the police academy and joined the police force less than one year ago. For the community of Hattiesburg, these senseless deaths of on duty officers are the first in three decades.

Hattiesburg is not alone in these tragic developments. Law enforcement fatalities in the U.S. rose 24 percent in 2014, reversing two years of significant decline. The number of law enforcement officers killed in the line of duty rose from 102 in 2013 to 126 in 2014. Preliminary statistics released yesterday by the FBI show that 51 law enforcement officers were feloniously killed in the line of duty in 2014. This is an increase of almost 89 percent when compared to the 27 killed in 2013. And, of those 51 felonious deaths, offenders used firearms in 46.

Just one day before this tragedy in Mississippi, Officer Brian Moore was laid to rest thousands of miles away in Long Island, New York. Around 6 p.m. on a Saturday, Moore and his partner came upon the gunman. After identifying himself as a police officer, and asking the gunman about the object in his waistband, the gunman fatally shot Moore in the face. Moore was just 20 years old when he joined the New York Police Department and, over five years of service, he earned two medals for meritorious police duty and two for excellent police duty.

The killing of Officer Moore in New York City comes on the heels of the December killings of NYPD Officers Rafael Ramos and Wenjian Liu, for whom the legislation before us memorializes. These officers were killed on a Saturday afternoon, while sitting in their parked patrol car, by a man who had shared his intent to kill police officers on social media. This man traveled from Maryland to New York to execute his plan. Unfortunately, at the same time Maryland authorities were warning the NYPD of this threat, Officers Ramos and Liu were being assassinated.

Benjamin Dean, Liquori Tate, Brian Moore, Rafael Ramos, and Wenjian Liu—these fallen heroes join the more than 20,000 U.S. law enforcement officers who have made the ultimate sacrifice since the first known line-of-duty death in 1791, nearly 1,700 of whom hail from my home state of Texas and 121 from the Houston Police Department.

The brave men and women who risk their lives to keep the peace and keep us safe are too often taken by the violence they are working to prevent. So when a law enforcement officer is seriously injured or killed, rapid dissemination of information about the suspected criminal is critical to ensuring justice for that officer and keeping the public safe.

These officers deserve more than just a response after violence, they deserve an effective, nationwide system that can widely disseminate advance warnings when an imminent and credible threat is made against them.

Having in place such a system could be the difference between life and death. And, for Officers Ramos and Liu, having such a system in place may have given them a fighting chance. The measure before us seeks to meet these safety challenges by putting in place such a system.

The Blue Alert system is modeled after the Amber Alert and the Silver Alert programs, which have been very successful in finding abducted children and missing seniors. Currently 22 states, including my home state of Texas, have local Blue Alert programs in operation. There is no national system, however, to coordinate alerts across multiple state lines.

This legislation addresses this gap by directing the Attorney General to establish a national communications network within the Department of Justice to disseminate information when an officer is seriously injured or killed in the line of duty, or the target of an imminent, credible threat to do the same, and assign a Department of Justice officer to act as the national coordinator of the Blue Alert Network.

The National Blue Alert Coordinator will—

(1) provide assistance to states and local governments using Blue Alert plans;

(2) establish voluntary guidelines for states and local governments for developing these plans; develop protocols for efforts to apprehend suspects;

(3) work with states to ensure regional coordination of various elements of the network; and

(4) establish advisory groups, to assist states, local governments, law enforcement agencies and other entities in initiating, facilitating, and promoting Blue Alerts through the network.

The Coordinator will also determine what procedures and practices to use in notifying law enforcement and the public when a law enforcement officer is killed or seriously injured in the line of duty, or is the target of an imminent, credible threat to do the same, and which procedures and practices are the most cost effective to implement.

Mr. Speaker, it is time to expand this excellent program nationwide. Passage of S. 665 will not prevent the loss of all brave law enforcement officials in the future, but it can help. Even if it saves one life, and enables one officer to return safely home to his or her loved ones, this legislation will have proven its value.

It is particularly timely that we consider this measure during National Police Week.

This week is a special occasion during which we recognize our law enforcement officers and honor those who lost their lives in the line of duty. But it would be careless not to also reflect on the events that are unfolding across the Nation in response to tragic incidents involving the use of lethal force against unarmed citizens.

The measure before us will enhance officer safety, which should always be one of our major concerns, but the issuance of alerts alone is not enough. The safety of law enforcement officers and community members are undeniably intertwined, but recent events have made it clear that the mutual trust and respect necessary for this relationship needs to be strengthened.

If we are to succeed in the vital mission of building trust and mutual respect between law enforcement and the communities they serve, we must work to really see each other. We must also work to understand each other's reality.

Citizens need to see the risks and dangers the men and women of law enforcement experience when they put on their badge. Law enforcement needs to see the same risks and dangers men and women in their communities experience when they walk down the street or drive their cars. We must see that we are not enemies and we must commit to addressing these problems in a productive and nonviolent manner.

In order to fully see each other, we need to gain a clear picture of what is happening in our communities. The lack of comprehensive and reliable data feeds into this distrust and is an obstacle to moving us forward.

As stated by FBI Director Comey, we cannot effectively address concerns about ''use of force'' policies and officer-involved shootings if we do not have a firm grasp on the demographics and circumstances of such incidents.

That is why I have introduced H.R. 1810, the CADET Act, which would mandate the data collection and analysis necessary to properly educate and train law enforcement. We simply cannot have an informed discussion about sound policy if we do not improve the way we collect and analyze data.

But it does not stop there. If we are to truly succeed in this mission, we in Congress must have a frank conversation about the policies we have enacted that have caused and exacerbated this distrust.

We must recognize the role that our actions have played in constructing a criminal justice system that creates more criminals and victims than justice. And, we must do our part by taking up the task of reforming our criminal justice system so that it is fairer and delivers equal justice to all persons.

Mr. Speaker, I support this bipartisan legislation because it increases safety for us all and it is an important step towards repairing the relationship between law enforcement and the communities that they serve.

Accordingly, I urge my colleagues to join me, the Fraternal Order of Police, the National Association of Police Organizations, and the National Sheriffs Association in supporting S. 665.

I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I urge my colleagues to support this good and important legislation, and I yield back the balance of my time.

The SPEAKER pro tempore (Mr. YOUNG of Iowa). The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, S. 665.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

DON'T TAX OUR FALLEN PUBLIC SAFETY HEROES ACT

Mr. REICHERT. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 606) to amend the Internal Revenue Code of 1986 to exclude certain compensation received by public safety officers and their dependents from gross income.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 606

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Don't Tax Our Fallen Public Safety Heroes Act''.

SEC. 2. EXCLUSION OF CERTAIN COMPENSATION RECEIVED BY PUBLIC SAFETY OFFICERS AND THEIR DEPENDENTS.

Subsection (a) of section 104 of the Internal Revenue Code of 1986 is amended by striking ''and'' at the end of paragraph (4), by striking the period at the end of paragraph (5) and inserting ''; and'', and by inserting after paragraph (5) the following new paragraph:

''(6) amounts received pursuant to—

''(A) section 1201 of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796); or

''(B) a program established under the laws of any State which provides monetary compensation for surviving dependents of a public safety officer who has died as the direct and proximate result of a personal injury sustained in the line of duty,

except that subparagraph (B) shall not apply to any amounts that would have been payable if death of the public safety officer had occurred other than as the direct and proximate result of a personal injury sustained in the line of duty.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Washington (Mr. REICHERT) and the gentleman from New Jersey (Mr. PASCRELL) each will control 20 minutes.

The Chair recognizes the gentleman from Washington.

GENERAL LEAVE

Mr. REICHERT. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include statements and extraneous material on H.R. 606 currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Washington?

There was no objection.

Mr. REICHERT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I would like to thank my friend and colleague from Minnesota (Mr. PAULSEN), who is also a member of the Ways and Means Committee, for introducing the legislation that we are considering today.

Mr. PAULSEN has been a great champion for our Nation's law enforcement, and this bill will provide much-needed relief to the families of fallen public safety officers.

As we celebrate National Police Week, we are reminded of the sacrifices of our many brave men and women who wear the badge.

When law enforcement officers pay the ultimate price and give their lives in the line of duty, we have a responsibility to help take care of the families that they leave behind.

For too long, the law has been silent on whether the benefits surviving spouses and dependents receive through State and Federal Public Safety Officers' Benefits programs are subject to Federal income tax. This bill will remove all ambiguity and codify the IRS' 1977 ruling that PSOB benefits should not be subject to taxation.

When a public safety officer has been catastrophically injured or killed in the line of duty, their families should not also have to deal with paying taxes on the benefits they receive after that loved one has paid the ultimate price while protecting their fellow Americans. The sacrifices of our men and women who wear the badge keep us safe, and now we have the opportunity to help provide for those that they leave behind.

With that, I reserve the balance of my time.

Mr. PASCRELL. Mr. Speaker, I yield myself such time as I may consume.

I thank both Chairman RYAN and Ranking Member LEVIN of the Ways and Means Committee for allowing the bill coming to the floor today, and I thank my good friends Representatives PAULSEN and REICHERT, my co-chair, for presenting this bill with me and for their continued support of our law enforcement.

Our public safety officers make extraordinary sacrifices to protect our communities by putting their lives on the line day in and day out.

Members take an oath after we are elected. The first part of the oath, our

chief priority, is to protect the country from foreign, but it also says domestic, foreign and domestic. That is our priority. That is the main reason why we are in the Congress of the United States. There are a lot of other reasons, but that is our primary oath to the people of this country. And that is why the gentleman from Washington (Mr. REICHERT) and myself—there isn't a day that goes by that we are not talking about how we could support police officers, not in word but in deed, those folks who put their lives on the line, be they trooper, be they sheriff officer, be they municipal police officer, be they an authority police officer, regardless.

We heard the tragic numbers before in the previous bill.

Officer Rafael Ramos, who died with Officer Liu, was sitting in a squad car. Officer Ramos was a 40-year-old married father who was studying to become a pastor when he was killed. His friends and family remember him as a selfless man of faith. He left behind a wife and two children. Officer Ramos loved playing basketball with his sons in the park, watching the Mets, and playing Spanish gospel music.

It is families like these that we honor in this legislation. The last thing a family mourning their lost loved one who died in the line of service should be faced with is a tax penalty.

We have a responsibility to take care of the families of the officers slain in the line of duty. It is a priority. When everything is a priority, nothing is a priority. We are saying in this legislation this is a priority of ours.

This commonsense legislation ensures that the families of fallen public safety officers are not taxed on the death benefits they receive should a horrible tragedy occur and their family member be taken from them on the job.

Mr. Speaker, I urge this legislation to be passed, and I yield back the balance of my time.

Mr. REICHERT. Mr. Speaker, I yield such time as he may consume to the gentleman from Minnesota (Mr. PAULSEN).

Mr. PAULSEN. I thank the gentleman from Washington, Chairman REICHERT, for yielding.

Mr. Speaker, for the past 54 years, we have celebrated National Police Week during the third week of May; and once again, thousands of officers and the families of law enforcement are here in Washington this week to remember and honor the sacrifices of our officers who serve and protect our homes, our small businesses, and our families every day. That is because, Mr. Speaker, every day, our Nation's police officers—900,000 officers across this country—wear their uniforms with pride. They go about their jobs without a second thought to the dangers that come with protecting others and in securing our community.

Sadly, though, we are reminded too often of the dangers that these heroes face.

Just 3 days ago, in Hattiesburg, Mississippi, Officers Benjamin Deen and Liquori Tate were shot and killed while making a routine traffic stop. They were just 34 and 24 years old.

□ 1800

Last July in Minnesota, Mendota Heights police officer Scott Patrick tragically lost his life in the line of duty. A 19-year veteran, Officer Patrick is remembered as a loving father of two children and somebody who was friendly, helpful, and was always looking to serve others. This year, he would have celebrated his 48th birthday. Instead of a party, his family spent the day in court for the murder trial of his killer.

It is not only law enforcement that put their lives on the line to protect and serve our community. Just last week, 44-year-old Kevin McRae, a 24-year veteran of the Washington, D.C., fire department, tragically lost his life when a high-rise building where he had been fighting a fire for nearly an hour collapsed. He leaves behind a wife and three young children.

For these public safety officers and these first responders who have lost their lives in the line of duty, we have a responsibility to ensure that their families are taken care of. In fact, that is why the Federal Government and many State governments provide that public safety officer benefit to the dependents of those heroes that are killed in the line of duty.

However, because current law is silent on whether State or Federal survivor benefits are subject to Federal income tax, there is a question of whether the IRS can collect tax on these benefits. And the last thing these families need after losing a loved one is for the IRS to come knocking. That is why I worked with Senator AYOTTE to introduce the Don't Tax Our Fallen Public Safety Heroes Act. It will ensure that families of fallen law enforcement officers and firefighters who die in the line of duty receive the benefits they were promised without a tax grab from the IRS.

While the IRS ruled back in 1977 that Federal PSOB benefits should be treated just like workers compensation and not be subject to taxation, the IRS has refused to make a similar rule for State-based payments and instead has forced families to go through a burdensome private letter ruling.

Clarifying current law will provide relief. It will provide certainty to surviving dependents, and it will guarantee they are not forced to pay Federal income tax on survivor benefits after their loved ones have given the ultimate sacrifice.

Mr. Speaker, I want to thank Sheriff REICHERT, my colleague, and I want to thank Congressman PASCRELL for their bipartisan leadership of the Law Enforcement Caucus and standing up for this legislation and the other bills we have heard today on the floor. I also want to thank Senator AYOTTE for her leadership in the Senate. It was this legislation that was a passion project of hers ever since the IRS went after one of her constituents' survivor benefits.

The bill is endorsed by many different law enforcement organizations: The Fraternal Order of Police, the National Association of Police Organizations, the National Conference on Public Employee Retirement Systems, the National Troopers Coalition, the Sergeants Benevolent Association, the International Union of Police Associations, the Federal Law Enforcement Officers Association, and the Major County Sheriffs' Association.

So, Mr. Speaker, I will close by just asking my colleagues to support this legislation for the families of those police officers, firefighters, and first responders who help keep us safe.

Mr. REICHERT. Mr. Speaker, I inquire of Mr. PASCRELL if he has any additional speakers.

The SPEAKER pro tempore. The gentleman from New Jersey has yielded back his time.

Mr. PASCRELL. Mr. Speaker, I ask unanimous consent to reclaim the balance of my time.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Jersey?

There was no objection.

Mr. PASCRELL. I yield myself such time as I may consume.

Mr. Speaker, currently the IRS has not ruled on the tax treatment of State payments, instead allowing any dispute, as Mr. PAULSEN just pointed out, to be resolved via what they call a private letter ruling.

This bill will provide clarity and relief to surviving dependents, guaranteeing they are not forced to pay an excessive tax after their loved ones have given the ultimate sacrifice.

So, Mr. Speaker, I think that we are together on this. I wish we were together on a lot of other things, but we are together on this because we will do anything to support our law enforcement officers in the United States of America, the greatest country in the world.

Mr. Speaker, I yield the balance of my time.

Mr. REICHERT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I want to agree with the comments made by Mr. PASCRELL and Mr. PAULSEN on how important this legislation is to the families who have lost a loved one. They should not be burdened further with additional taxes on the benefits that that family should be receiving, the sad loss of their loved one in service to their community. This is the second bill tonight that we are considering in support of and showing our appreciation for and honoring those who serve across this country today and who have lost their lives in service to this country and all the communities across this great Nation.

In fact, the first piece of legislation that we considered earlier was the Blue Alert legislation, and that was one of the recommendations that came out of the President's own police and community task force. So, as Mr. PASCRELL said, not only are the Members of the House and the Senate in agreement here, but also the administration, which is a moment that we all need to pause and appreciate that we are all together on this. We see how important and how critical this legislation is and how important and critical it is to show our support for those men and women who leave their families each and every day to keep us safe.

Mr. Speaker, I urge support of this legislation, and I yield back the balance of my time.

Ms. LAWRENCE. Mr. Speaker, as we pass the bipartisan Don't Tax Our Fallen Public Safety Heroes Act, I'd like to share with you a little bit about fallen Michigan State Trooper Paul K. Butterfield II. On September 9th, 2013, Trooper Butterfield was shot on a routine traffic stop.

Responding units located Trooper Butterfield on the ground suffering from a gunshot wound to the head. He was then flown to a regional hospital, where he eventually succumbed to his wounds while in surgery.

Trooper Butterfield was a dedicated public servant; after serving in the U.S. Army, he joined the Michigan State Police where he served for 14 years until his death in the line of duty. Family and friends remember him for being soft-spoken, kind, and always smiling.

This bill honors the legacy of not only Trooper Butterfield, but all first responders who have laid down their lives. Several hundred first responders die every year in the line of duty. These officers, and their families, should know that we support them and what they do. I am proud to cosponsor this bipartisan legislation to ensure that families of public safety officers will receive the full benefits they deserve should their loved ones succumb to the ultimate sacrifice.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Washington (Mr. REICHERT) that the House suspend the rules and pass the bill, H.R. 606.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. REICHERT. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

DEFENDING PUBLIC SAFETY EMPLOYEES' RETIREMENT ACT

Mr. REICHERT. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2146) to amend the Internal Revenue Code of 1986 to allow Federal law enforcement officers, firefighters, and air traffic controllers to make penalty-free withdrawals from governmental plans after age 50, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2146

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Defending Public Safety Employees' Retirement Act''.

SEC. 2. EARLY RETIREMENT DISTRIBUTIONS TO FEDERAL LAW ENFORCEMENT OFFICERS, FIREFIGHTERS, AND AIR TRAFFIC CONTROLLERS IN GOVERNMENTAL PLANS.

(a) IN GENERAL.—Section 72(t)(10)(B) of the Internal Revenue Code of 1986 is amended—

(1) by striking the period at the end and inserting '', or'',

(2) by striking ''means any employee'' and inserting the following: ''means—

''(i) any employee'', and

(3) by adding at the end the following new clause:

''(ii) any Federal law enforcement officer described in section 8331(20) or 8401(17) of title 5, United States Code, any Federal customs and border protection officer described in section 8331(31) or 8401(36) of such title, any Federal firefighter described in section 8331(21) or 8401(14) of such title, or any air traffic controller described in 8331(30) or 8401(35) of such title.''.

(b) APPLICATION TO DEFINED CONTRIBUTION PLANS.—Section 72(t)(10)(A) of such Code is amended by striking ''which is a defined benefit plan''.

(c) DISTRIBUTIONS NOT TREATED AS MODIFICATION OF SUBSTANTIALLY EQUAL PAYMENTS.—Section 72(t)(4)(A)(ii) of such Code is amended by inserting ''or a distribution to which paragraph (10) applies'' after ''other than by reason of death or disability''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to distributions after December 31, 2014.

SEC. 3. BUDGETARY EFFECTS.

The budgetary effects of this Act shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Washington (Mr. REICHERT) and the gentleman from New Jersey (Mr. PASCRELL) each will control 20 minutes.

The Chair recognizes the gentleman from Washington.

GENERAL LEAVE

Mr. REICHERT. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on H.R. 2146 currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Washington?

There was no objection.

Mr. REICHERT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the Defending Public Safety Employees' Retirement Act, H.R. 2146, is a straightforward bill that would simply ensure fairness to public safety officials by extending the same treatment that applies to State and local public safety officials to Federal public safety officials as well.

I spent 33 years in law enforcement. I know from my own experience and from those with whom I worked just how strenuous a job protecting our fellow Americans can be. You never know when or what kind of situation you might be called to intervene in. It is taxing both mentally and physically. I could tell lots of stories here tonight over my 33-year career to illustrate that point, but I won't put Congress through that. Sometimes it is so mentally and physically draining that many law enforcement officials are subject to mandatory retirement at young ages. Think of someone who has spent an entire lifetime, 30, 35 years, in law enforcement, and the things that they have witnessed and seen.

I was a homicide detective. I, unfortunately, was in an assignment where you had to process the scenes of murder victims and collect the remains of people who had been victims of serious assaults resulting in death. Those memories never leave you. The stress of responding to a ''person with a gun'' call, a ''man with a knife,'' a domestic violence call, and never knowing what is going to happen day after day after day in responding to those calls—it is a stressful job. Through no fault of their own, they may need to access savings earlier than a standard retirement age. So we should ensure they are granted access without penalty.

Under the current law, Mr. Speaker, individuals who attempt to access their retirement savings before the age of 59½ are hit with a 10 percent tax. In 2006 Congress removed this penalty for State and local government public safety officers accessing their retirement accounts at the age of 50. This legislation would give Federal law enforcement officers, Federal firefighters, and air traffic controllers, who often must retire early, the same treatment. They are treated equally as local officials and officers. We previously recognized the need for this to happen at the State and local level, and it is just common sense that Federal public safety officials should receive the same opportunity.

When it comes down to it, these men and women have spent a majority of their lives protecting us, and because of that, we should be able to protect them from the IRS.

With that, Mr. Speaker, I reserve the balance of my time.

Mr. PASCRELL. Mr. Speaker, I yield myself such time as I may consume.

I want to thank Mr. REICHERT for all the work he has done on this legislation to bring it to the floor this evening. We are talking about H.R. 2146.

Law enforcement officers face physically demanding work day in and day out. Current law recognizes this by making Federal law enforcement officers and firefighters eligible to retire after 20 years and at age 50.

By the way, if I may say something on this, Mr. Speaker, I don't particularly like this idea because it is a way to get rid of experienced police officers throughout the United States of America. If you dump on them the fact that

what we are going to do is we are going to play games with their pension funds, you force even more out. We are not saving any money, and we are not saving any time when we push the most experienced officers off the payroll.

A flaw in the system makes it impossible for many of these retirees to access their earned benefits in their fifties. Most Federal employees—we are talking about Federal here—receive retirement benefits through the Federal Employees Retirement System. This three-part system is made up of a defined pension plan, a defined TSP contribution plan, and Social Security.

However, although Federal law enforcement officers can retire at 50 and access two-thirds of their retirement benefits, they face a 10 percent tax penalty if they withdraw from the defined contribution plans like TSP before the age of 59½. State and local law enforcement officers do not face the same penalty because Congress rightly recognized they should not be penalized after a physically taxing career protecting our communities.

Federal law enforcement officers do not enjoy these same protections. This bill would bring equity to the men and women carrying out their sworn duty to protect and serve. It would address a fundamental unfairness in the U.S. Tax Code by removing Federal law enforcement from the 10 percent penalty provisions that currently apply to early withdrawals from government plans.

Additionally, Mr. Speaker, the bill would ensure that the penalty-free withdrawals apply to both governmental defined benefit and defined contribution plans like the Federal Thrift Savings Plan.

There is no justifiable reason that Federal law enforcement officers and firefighters from a diverse array of agencies and missions must wait up to 9½ years longer than their State and local counterparts before they can fully access their savings without incurring a penalty.

□ 1815

The brave men and women who work in our law enforcement agencies, fire departments, and others who sacrifice themselves each day deserve equitable treatment under the Tax Code.

Let's stand up for their fair treatment and well-deserved retirement benefits for the men and women who work so hard to protect us.

The American Federation of Government Employees writes:

> On a daily basis, Federal firefighters, BOP correctional workers, Customs and Border Protection officers, and Federal law enforcement officers secure our Federal buildings' safety, handle the most dangerous offenders behind bars, and patrol our Nation's borders. When these Federal employees meet all of the established requirements for Federal retirement, they deserve full access to their government retirement plan.

Let's honor the faithful commitment these officers have shown us by showing our commitment to them here on the floor of Congress.

I urge my colleagues to support this bill.

Mr. Speaker, I yield back the balance of my time.

Mr. REICHERT. Mr. Speaker, I yield such time as he may consume to the gentleman from Minnesota (Mr. PAULSEN), a member of the Ways and Means Committee.

Mr. PAULSEN. Mr. Speaker and Members, I rise in support of this very commonsense bill, as Mr. PASCRELL just laid out, to correct an inequity that exists within the retirement system for Federal law enforcement officers.

Public safety employees are often subject to mandatory retirement upon reaching a certain age. Unfortunately, for many Federal law enforcement officers, this forced retirement occurs a couple of years before they are able to legally access their retirement accounts without a penalty.

It makes no sense to force these officers who protect us and who serve our communities to then retire without being able to access their own money that they have earned and diligently saved. The Defending Public Safety Employees' Retirement Act corrects this inequity and gives these public safety officers the certainty they deserve after years of service.

I want to thank Sheriff REICHERT for his leadership on this issue and look forward to its passage.

Mr. REICHERT. Mr. Speaker, I yield myself such time as I may consume.

I wanted to just comment on some of the words from my friend, Mr. PASCRELL. Again, I appreciate his partnership in co-chairing the Law Enforcement Caucus with me and all those who are members of the Law Enforcement Caucus in recognizing this is a very important week, a sad week, for a lot of families that are here in Washington, D.C., putting names of their loved ones on the National Law Enforcement Officers Memorial.

On Thursday night, there will be a candlelight vigil at the National Law Enforcement Officers Memorial. On Friday afternoon, with the President, there will be a service on the front lawn of the Capitol recognizing those who lost their lives in service to their communities across this country with all of those family members present in the audience.

There are three bills tonight that we considered that have come together to really, I think, show bipartisan support from the administration, to the House of Representatives, to the Senate, both Democrats and Republicans coming together to show their support for the men and women who wear the badge and the uniform across this country.

There are still things that we can do, and people wonder what the Federal Government can do for local law enforcement. Well, we showed three things tonight that we can do to help local law enforcement and show our support for them.

Mr. PASCRELL pointed out, I think, one other, and that is the retirement issue. I think that is another thing that we can work on. I agree with Mr. PASCRELL on that issue.

I think that there is another issue that we can work on that some Members may not be fully aware of, and that is the delayed payment of death benefits for those killed in the line of duty.

For example, Mr. Speaker, in my community, a police officer died in the line of duty over 3½ years ago—3½ years ago—and, as far as I know, today, his family has still not received the death benefit that is due. Three-and-a-half years is too long for a family to wait when their loved one has lost their life in service to this country.

Mr. PASCRELL and I will continue to work together with the law enforcement organizations across this country looking for ways that we can support them and show that we care and show the families that we care.

I urge my colleagues to support this legislation, and I yield back the balance of my time.

Mrs. LAWRENCE. Mr. Speaker, as we vote on H.R. 2146 in the House today, I would like to share with you the dire reality facing our brave first responders who put their lives on the line for the safety of the American people.

The health-related risks associated with the work of our first responders, though rarely considered by the average American, are largely due to stress and overexertion. The United States Fire Administration (USFA) tracks the number of first responder fatalities each year and has provided valuable analysis for nearly four decades. The data shows that over the course of the past 10 years, 757 first responders in the United States have suffered from heart-related fatalities; including heart attacks, due to the extremely stressful nature of their work.

While firefighting can be an incredibly rewarding profession for a first responder—make no mistake—it is also one of the deadliest. High rates of cancer and heart attacks plague our public safety defenders. Under our current law, first responders can retire at the age of 50, as long as they have completed 20 years of service. Those 20 years are consumed by immediate midnight response calls, the physical toll of carrying heavy equipment, ventilating smoke-filled areas, salvaging building contents, rescuing victims and administering emergency medical care.

H.R. 2146 is a bipartisan proposal that would reform federal tax law by allowing firefighters, federal law enforcement officers and air traffic controllers, to access funds from their government plans after age 50 and without facing a 10 percent penalty fee. These first responders have more than earned their ability to access their retirement after over 20 years of strenuous service. We should feel ashamed for penalizing our public safety defenders by levying penalties and fees on those who are entitled and deserve to retire.

When our lives are on the line and we call 911, we expect help to come without hesitation and our brave first responders do not fail in their duty. For this reason we must not fail them after a lifetime of service.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Washington (Mr.

REICHERT) that the House suspend the rules and pass the bill, H.R. 2146, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. REICHERT. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess for a period of less than 15 minutes.

Accordingly (at 6 o'clock and 21 minutes p.m.), the House stood in recess.

□ 1831

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. YOUNG of Iowa) at 6 o'clock and 31 minutes p.m.

DON'T TAX OUR FALLEN PUBLIC SAFETY HEROES ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 606) to amend the Internal Revenue Code of 1986 to exclude certain compensation received by public safety officers and their dependents from gross income, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Washington (Mr. REICHERT) that the House suspend the rules and pass the bill.

The vote was taken by electronic device, and there were—yeas 413, nays 0, not voting 18, as follows:

[Roll No. 216]

YEAS—413

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Eshoo
Esty
Farenthold
Farr
Fattah
Fitzpatrick
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
MacArthur
Maloney, Carolyn
Maloney, Sean
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruppersberger
Russell
Ryan (OH)
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—18

Barletta
Capps
Crawford
DesJarlais
Engel
Fincher
Fleischmann
Gutiérrez
Hinojosa
Katko
Lieu, Ted
Lynch
Marchant
Meng
Rokita
Ruiz
Rush
Sewell (AL)

□ 1857

Mr. PRICE of North Carolina and Mr. TIPTON changed their votes from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, May 6, 2015.

Hon. JOHN BOEHNER,
Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: I have the honor to transmit herewith a facsimile copy of a letter received from Mr. Robert A. Brehm and Mr. Todd D. Valentine, Co-Executive Directors of the New York State Board of Elections, indicating that, according to the preliminary results of the Special Election held May 5, 2015, the Honorable Dan Donovan was elected Representative to Congress for the Eleventh Congressional District, State of New York.

With best wishes, I am

Sincerely,

KAREN L. HAAS,
Clerk.

Enclosure.

STATE OF NEW YORK,
STATE BOARD OF ELECTIONS,
Albany, NY, May 6, 2015.

Hon. KAREN HAAS,
Clerk, House of Representatives, Washington, DC.

DEAR MS. HAAS: This correspondence is being sent to advise that the unofficial results as calculated after the close of polls at the Special Election held on Tuesday, May 5, 2015 for Representative in Congress from New York's 11th Congressional District are as follows: Vincent J. Gentile received 15,808 votes, Dan Donovan received 23,409 votes, James C. Lane received 527 votes.

Absentee and provisional ballots will be counted pursuant to New York's statutes, beginning on Wednesday, May 13, 2015, Absentee ballots mailed to eligible voters numbered 5,528 and voted ballots returned to date number 2,922. The number of absentee and

provisional ballots will not alter the outcome of this special election.

To the best of our knowledge, there is no pending litigation that would alter the outcome of this contest,

As soon as official results are certified to this office by the boroughs of Richmond and Kings in the City of New York, constituting the 11th Congressional District, our official Certification of Election will be prepared and transmitted, as required by law.

Sincerely,

ROBERT A. BREHM.
TODD D. VALENTINE.

□ 1900

SWEARING IN OF THE HONORABLE DANIEL M. DONOVAN, JR., OF NEW YORK, AS A MEMBER OF THE HOUSE

Mr. RANGEL. Mr. Speaker, I ask unanimous consent that the gentleman from New York, the Honorable Daniel M. Donovan, Jr., be permitted to take the oath of office today.

His certificate of election has not arrived, but there is no contest and no question has been raised with regard to his election.

The SPEAKER. Is there objection to the request of the gentleman from New York?

There was no objection.

The SPEAKER. Will Representative-elect Donovan and the members of the New York delegation present themselves in the well.

All Members will rise and the Representative-elect will please raise his right hand.

Mr. DONOVAN appeared at the bar of the House and took the oath of office, as follows:

Do you solemnly swear that you will support and defend the Constitution of the United States against all enemies, foreign and domestic; that you will bear true faith and allegiance to the same; that you take this obligation freely, without any mental reservation or purpose of evasion; and that you will well and faithfully discharge the duties of the office on which you are about to enter, so help you God.

The SPEAKER. Congratulations, you are now a Member of the 114th Congress.

WELCOMING THE HONORABLE DANIEL M. DONOVAN, JR., TO THE HOUSE OF REPRESENTATIVES

The SPEAKER. Without objection, the gentleman from New York (Mr. RANGEL) is recognized for 1 minute.

There was no objection.

Mr. RANGEL. My dear friends, the good people of Staten Island and Brooklyn of the great city and State of New York have sent to us a man to represent the Empire State of New York, the open door for immigrants who have come here historically from all over the world, and we welcome him on behalf of this delegation, as well as the good Democrat and Republican Members of this House of Representatives.

I welcome him to the House and look forward to the great contribution he will make to our city, our State, the Congress, and our great country.

I would like to introduce someone also of good democratic stock from the great State of New York, PETER KING, who will join with me in welcoming our friend from Richmond County.

Mr. KING of New York. Thank you, Congressman RANGEL.

It is my privilege to introduce a man who has been a friend for many years. He has been a career prosecutor. For 12 years, he was district attorney in Staten Island. He was overwhelmingly elected. He is a true public servant. He is universally respected and is a man of unquestioned integrity. He is going to be an outstanding Congressman.

It is my privilege to introduce the Congressman from Brooklyn and Staten Island, the Honorable Dan Donovan.

Mr. DONOVAN. Mr. Speaker, I am honored to join you, and I am humbled by the confidence that the people of the 11th Congressional District of New York have placed in me.

I want to thank all of my volunteers and supporters for helping me get here. I want to thank my family for everything that they have done for me. I promise to make all of them proud of my representation of them here as a Member of the greatest legislative body in the world.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. Under clause 5(d) of rule XX, the Chair announces to the House that, in light of the administration of the oath to the gentleman from New York (Mr. DONOVAN), the whole number of the House is 433.

REGULATORY INTEGRITY PROTECTION ACT OF 2015

The SPEAKER. Pursuant to House Resolution 231 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 1732.

Will the gentleman from Iowa (Mr. YOUNG) kindly resume the chair.

□ 1903

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the further consideration of the bill (H.R. 1732) to preserve existing rights and responsibilities with respect to waters of the United States, and for other purposes, with Mr. YOUNG of Iowa in the chair.

The Clerk read the title of the bill.

The CHAIR. When the Committee of the Whole rose earlier today, amendment No. 2 printed in part B of House Report 114–98 offered by the gentleman from Michigan (Mr. KILDEE) had been disposed of.

AMENDMENT NO. 1 OFFERED BY MS. EDWARDS

The CHAIR. Pursuant to clause 6 of rule XVIII, the unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from Maryland (Ms. EDWARDS) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 167, noes 248, not voting 17, as follows:

[Roll No. 217]

AYES—167

Adams	Fudge	Nadler
Aguilar	Gabbard	Napolitano
Bass	Gallego	Neal
Beatty	Garamendi	Nolan
Becerra	Grayson	Norcross
Bera	Green, Al	O'Rourke
Bonamici	Green, Gene	Pallone
Boyle, Brendan F.	Grijalva	Pascrell
Brady (PA)	Hahn	Payne
Brown (FL)	Hastings	Pelosi
Brownley (CA)	Heck (WA)	Perlmutter
Bustos	Higgins	Peters
Butterfield	Himes	Pingree
Capuano	Honda	Pocan
Cárdenas	Hoyer	Polis
Carney	Huffman	Price (NC)
Carson (IN)	Israel	Quigley
Cartwright	Jackson Lee	Rice (NY)
Castor (FL)	Jeffries	Richmond
Castro (TX)	Johnson (GA)	Roybal-Allard
Chu, Judy	Johnson, E. B.	Ruppersberger
Cicilline	Kaptur	Ryan (OH)
Clark (MA)	Keating	Sánchez, Linda T.
Clarke (NY)	Kelly (IL)	Sanchez, Loretta
Clay	Kennedy	Sarbanes
Cleaver	Kildee	Schakowsky
Clyburn	Kilmer	Schiff
Cohen	Kind	Schrader
Connolly	Kirkpatrick	Scott (VA)
Conyers	Kuster	Scott, David
Costa	Langevin	Serrano
Courtney	Larsen (WA)	Sherman
Crowley	Larson (CT)	Sires
Cummings	Lawrence	Slaughter
Davis (CA)	Lee	Smith (WA)
Davis, Danny	Levin	Speier
DeFazio	Lewis	Swalwell (CA)
DeGette	Lipinski	Takai
Delaney	Loebsack	Takano
DeLauro	Lofgren	Thompson (CA)
DelBene	Lowenthal	Thompson (MS)
DeSaulnier	Lowey	Titus
Deutch	Lujan Grisham (NM)	Tonko
Dingell	Luján, Ben Ray (NM)	Torres
Doggett	Maloney, Carolyn	Tsongas
Doyle, Michael F.	Maloney, Sean	Van Hollen
Duckworth	Matsui	Vargas
Edwards	McCollum	Veasey
Ellison	McDermott	Velázquez
Engel	McGovern	Visclosky
Eshoo	McNerney	Wasserman Schultz
Esty	Meeks	Waters, Maxine
Farr	Moore	Watson Coleman
Fattah	Moulton	Welch
Foster	Murphy (FL)	Wilson (FL)
Frankel (FL)		Yarmuth

NOES—248

Abraham	Bishop (GA)	Bridenstine
Aderholt	Bishop (MI)	Brooks (AL)
Allen	Bishop (UT)	Brooks (IN)
Amash	Black	Buchanan
Amodei	Blackburn	Buck
Ashford	Blum	Bucshon
Babin	Blumenauer	Burgess
Barr	Bost	Byrne
Barton	Boustany	Calvert
Benishek	Brady (TX)	Carter (GA)
Bilirakis	Brat	Carter (TX)

Chabot	Issa	Reichert
Chaffetz	Jenkins (KS)	Renacci
Clawson (FL)	Jenkins (WV)	Ribble
Coffman	Johnson (OH)	Rice (SC)
Cole	Johnson, Sam	Rigell
Collins (GA)	Jolly	Roby
Collins (NY)	Jones	Roe (TN)
Comstock	Jordan	Rogers (AL)
Conaway	Joyce	Rogers (KY)
Cook	Katko	Rohrabacher
Cooper	Kelly (PA)	Rooney (FL)
Costello (PA)	King (IA)	Ros-Lehtinen
Cramer	King (NY)	Roskam
Crenshaw	Kinzinger (IL)	Ross
Cuellar	Kline	Rothfus
Culberson	Knight	Rouzer
Curbelo (FL)	Labrador	Royce
Davis, Rodney	LaMalfa	Russell
Denham	Lamborn	Ryan (WI)
Dent	Lance	Salmon
DeSantis	Latta	Sanford
Diaz-Balart	LoBiondo	Scalise
Dold	Long	Schweikert
Donovan	Loudermilk	Scott, Austin
Duffy	Love	Sensenbrenner
Duncan (SC)	Lucas	Sessions
Duncan (TN)	Luetkemeyer	Shimkus
Ellmers (NC)	Lummis	Shuster
Emmer (MN)	MacArthur	Simpson
Farenthold	Marino	Sinema
Fitzpatrick	Massie	Smith (MO)
Fleming	McCarthy	Smith (NE)
Flores	McCaul	Smith (NJ)
Forbes	McClintock	Smith (TX)
Fortenberry	McHenry	Stefanik
Foxx	McKinley	Stewart
Franks (AZ)	McMorris Rodgers	Stivers
Frelinghuysen	McSally	Stutzman
Garrett	Meadows	Thompson (PA)
Gibbs	Meehan	Thornberry
Gibson	Messer	Tiberi
Gohmert	Mica	Tipton
Goodlatte	Miller (FL)	Trott
Gosar	Miller (MI)	Turner
Gowdy	Moolenaar	Upton
Graham	Mooney (WV)	Valadao
Granger	Mullin	Vela
Graves (GA)	Mulvaney	Wagner
Graves (LA)	Murphy (PA)	Walberg
Graves (MO)	Neugebauer	Walden
Griffith	Newhouse	Walker
Grothman	Noem	Walorski
Guinta	Nugent	Walters, Mimi
Guthrie	Nunes	Walz
Hanna	Olson	Weber (TX)
Hardy	Palazzo	Webster (FL)
Harper	Palmer	Wenstrup
Harris	Paulsen	Westerman
Hartzler	Pearce	Westmoreland
Heck (NV)	Perry	Whitfield
Hensarling	Peterson	Williams
Herrera Beutler	Pittenger	Wilson (SC)
Hice, Jody B.	Pitts	Wittman
Hill	Poe (TX)	Womack
Holding	Poliquin	Woodall
Hudson	Pompeo	Yoder
Huelskamp	Posey	Yoho
Huizenga (MI)	Price, Tom	Young (AK)
Hultgren	Rangel	Young (IA)
Hunter	Ratcliffe	Young (IN)
Hurd (TX)	Reed	Zeldin
Hurt (VA)		Zinke

NOT VOTING—17

Barletta	Fleischmann	Meng
Beyer	Gutiérrez	Rokita
Capps	Hinojosa	Ruiz
Crawford	Lieu, Ted	Rush
DesJarlais	Lynch	Sewell (AL)
Fincher	Marchant	

□ 1910

So the amendment was rejected.

The result of the vote was announced as above recorded.

The CHAIR. The question is on the amendment in the nature of a substitute, as amended.

The amendment was agreed to.

The CHAIR. Under the rule, the Committee rises.

Accordingly, the Committee rose; and the Speaker pro tempore (Ms. ROS-LEHTINEN) having assumed the chair, Mr. YOUNG of Iowa, Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 1732) to preserve existing rights and responsibilities with respect to waters of the United States, and for other purposes, and, pursuant to House Resolution 231, he reported the bill back to the House with an amendment adopted in the Committee of the Whole.

The SPEAKER pro tempore. Under the rule, the previous question is ordered.

Is a separate vote demanded on the amendment to the amendment reported from the Committee of the Whole? If not, the question is on the adoption of the amendment in the nature of a substitute, as amended.

The amendment was agreed to.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. AGUILAR. Madam Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. AGUILAR. I am, in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Aguilar moves to recommit the bill H.R. 1732 to the Committee on Transportation and Infrastructure with instructions to report the same back to the House forthwith with the following amendment:

At the end of the bill, add the following:

SEC. 4. PROTECTING THE SUPPLY OF WATER FOR SAFE DRINKING, TO MITIGATE AGAINST WESTERN DROUGHT, FOR AGRICULTURAL USES, AND FOR PROTECTION FROM FLOODING.

In the process of rulemaking required by this Act, the Secretary of the Army and the Administrator of the Environmental Protection Agency shall protect the quality and integrity of surface waters and wetlands that are available:

(1) For public water supplies, which are a significant source of drinking water for municipalities, including in the Great Lakes where the Lake Erie algal bloom has forced cities such as Toledo, Ohio, to rely on bottled water.

(2) To mitigate against the harmful impact of drought in California and other western States, which has reached historic proportions.

(3) For agricultural uses, including irrigation.

(4) To mitigate against the adverse impacts of flooding and coastal storms, such as the Mississippi River Flood of 2011 and Hurricanes Katrina, Rita, and Sandy.

Mr. AGUILAR (during the reading). Madam Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The SPEAKER pro tempore. The gentleman from California is recognized for 5 minutes.

□ 1915

Mr. AGUILAR. Madam Speaker, this is a final amendment to the bill which will not kill the bill or send it back to committee. If adopted, the bill will immediately proceed to final passage, as amended.

This motion is simple. It requires the Army Corps and the EPA to ensure that important surface waters and wetlands are protected during the new rulemaking process this bill starts.

This motion requires that the quality of public water supplies be protected. Around the country, we have seen drinking water sources contaminated, like the algal bloom in Lake Erie that forced Toledo, Ohio, to use bottled water.

In California, the historic drought has reduced many surface waters to stagnant pools of water. Seven million Californians rely on these streams for their drinking water. We need to make sure these drinking water sources are protected to keep families and communities healthy.

The drought in California has reached emergency levels, and this motion ensures that waters and wetlands that help mitigate the drought in the West are protected. These waters need protection under this rule because, if they are contaminated, then we have few other options to ensure communities in southern California have access to water sources.

California is implementing water use restrictions to deal with the drought, but it doesn't make sense to take these steps if we don't make sure the wetlands and waters that recharge them are protected.

Finally, this motion guarantees that water used for agriculture, including for irrigation, are safeguarded. California's agriculture industry depends on clean water, and this motion preserves the exemptions agriculture already gets under regulations.

In short, this is a commonsense amendment to the bill to guarantee protections for water used for the public's drinking supply, for lessening the impact of the drought in California and the West, and for agriculture.

Madam Speaker, I yield back the balance of my time.

Mr. SHUSTER. Madam Speaker, I rise in opposition to the motion to recommit.

The SPEAKER pro tempore. The gentleman from Pennsylvania is recognized for 5 minutes.

Mr. SHUSTER. Madam Speaker, I strongly oppose this motion to recommit.

First of all, it has nothing to do with drought. Second, it is just a backdoor attempt to allow the EPA to take control of all the waters in America. In addition to that, my colleagues from California have tried, time and time again, to work with their colleagues on the other side of the aisle to solve this drought problem in California, but my colleagues on the other side of the aisle have refused to work together. Again, this has nothing to do with drought.

The purpose of H.R. 1732 is to uphold the Federal-State partnership in regulating the Nation's waters by maintaining the balance between the States and the Federal Government in carrying out the Clean Water Act.

H.R. 1732 restricts the administration's current administrative efforts to expand Federal jurisdiction under the Clean Water Act and requires the Agency to engage in federalism consultation with their State and local partners to implement the Clean Water Act.

However, this motion is designed to undermine the legislation by giving the EPA unfettered discretion in making State water quality determinations in order to allow the EPA to continue to implement this flawed rule.

In effect, the amendment says that the underlying bill will not apply virtually anywhere the EPA decides that the bill should not apply. This amendment would further erode the Federal and State partnership that H.R. 1732 seeks to preserve.

Let me remind my colleagues that 32 States have said revise or eliminate this rule. My colleagues, all day, have talked about we haven't seen the final rule, but we have seen the proposed rule, and the proposed rule is going to be very similar to the final rule. We have seen this happen time and time again.

We have to stop this rule. I urge my colleagues, all 435 Members of this body, to take notice. This is another attempt by the executive branch to take Congress' constitutional authority away from us. We should all take this as a serious challenge.

For too long, this body has allowed the executive branch to take our authority granted to us by the constitution. I say, whether it is a Republican or Democrat administration, we have to stop that.

The bill, H.R. 1732, is a step in the right direction. It is a good bill that maintains the balance of regulation and of our Nation's water.

We must preserve the Federal-State partnership that exists under the Clean Water Act, which has been for 40 years, until this administration's attempting to impose an overbearing EPA on our States.

I urge a ''no'' vote.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. AGUILAR. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 5-minute vote on the motion to recommit will be followed by 5-minute votes on passage of the bill, if ordered, and the motion to suspend the rules and pass H.R. 2146.

The vote was taken by electronic device, and there were—yeas 175, nays 241, not voting 16, as follows:

[Roll No. 218]

YEAS—175

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NAYS—241

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costa
Costello (PA)
Cramer
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fitzpatrick
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—16

Barletta
Capps
Crawford
DesJarlais
Fincher
Fleischmann
Gutiérrez
Hinojosa
Lieu, Ted
Lynch
Marchant
Meng
Rokita
Ruiz
Rush
Sewell (AL)

□ 1926

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mrs. NAPOLITANO. Madam Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 261, noes 155, not voting 16, as follows:

[Roll No. 219]

AYES—261

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost

Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Bustos
Byrne
Calvert
Carney
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Clyburn
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cooper
Costa
Costello (PA)
Cramer
Crenshaw
Cuellar
Culberson
Curbelo (FL)
Davis, Danny
Davis, Rodney
Delaney
Denham
Dent
DeSantis
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fitzpatrick
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (IL)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Maloney, Sean
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schrader
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Thompson (PA)
Thornberry
Tiberi
Tipton
Torres
Trott
Turner
Upton
Valadao
Veasey
Vela
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—155

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Butterfield
Capuano
Cárdenas
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Cohen
Connolly
Conyers
Courtney
Crowley
Cummings
Davis (CA)
DeFazio
DeGette
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Grayson
Green, Al
Grijalva
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Maloney, Carolyn
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Roybal-Allard
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Scott (VA)
Serrano
Sherman
Sires
Slaughter
Smith (WA)
Speier
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Tsongas
Van Hollen
Vargas
Velázquez
Visclosky
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—16

Barletta
Capps
Crawford
DesJarlais
Fincher
Fleischmann
Gutiérrez
Hinojosa
Lieu, Ted
Lynch
Marchant
Meng
Rokita
Ruiz
Rush
Sewell (AL)

□ 1932

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

DEFENDING PUBLIC SAFETY EMPLOYEES' RETIREMENT ACT

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 2146) to amend the Internal Revenue Code of 1986 to allow Federal law enforcement officers, firefighters, and air traffic controllers to make penalty-free withdrawals from governmental plans after age 50, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Washington (Mr. REICHERT) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 407, nays 5, not voting 20, as follows:

[Roll No. 220]

YEAS—407

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Babin
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fattah
Fitzpatrick
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
MacArthur
Maloney, Carolyn
Maloney, Sean
Marino
Matsui
McCarthy
McCaul
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rooney (FL)
Ros-Lehtinen
Roskam
Ross

Rothfus	Smith (NE)	Visclosky
Rouzer	Smith (NJ)	Wagner
Roybal-Allard	Smith (TX)	Walberg
Royce	Smith (WA)	Walden
Ruppersberger	Speier	Walker
Russell	Stefanik	Walorski
Ryan (OH)	Stewart	Walters, Mimi
Ryan (WI)	Stivers	Walz
Salmon	Stutzman	Wasserman Schultz
Sanchez, Loretta	Swalwell (CA)	Waters, Maxine
Sanford	Takai	Watson Coleman
Sarbanes	Takano	Weber (TX)
Scalise	Thompson (CA)	Webster (FL)
Schakowsky	Thompson (MS)	Welch
Schiff	Thompson (PA)	Westerman
Schrader	Thornberry	Westmoreland
Schweikert	Tiberi	Whitfield
Scott (VA)	Tipton	Williams
Scott, Austin	Titus	Wilson (FL)
Scott, David	Tonko	Wilson (SC)
Sensenbrenner	Torres	Wittman
Serrano	Trott	Womack
Sessions	Tsongas	Woodall
Sherman	Turner	Yarmuth
Shimkus	Upton	Yoder
Shuster	Valadao	Young (AK)
Simpson	Van Hollen	Young (IA)
Sinema	Vargas	Young (IN)
Sires	Veasey	Zeldin
Slaughter	Vela	Zinke
Smith (MO)	Velázquez	

NAYS—5

Amash	McClintock	Yoho
Massie	Ribble	

NOT VOTING—20

Barletta	Grijalva	Rokita
Capps	Gutiérrez	Ruiz
Crawford	Hinojosa	Rush
DesJarlais	Lieu, Ted	Sánchez, Linda T.
Fincher	Lynch	
Fleischmann	Marchant	Sewell (AL)
Goodlatte	Meng	Wenstrup

□ 1941

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MOMENT OF SILENCE IN HONOR OF OFFICERS LIQUORI TATE AND BENJAMIN DEEN OF HATTIESBURG, MISSISSIPPI

(Mr. PALAZZO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PALAZZO. Mr. Speaker, I rise today to honor the lives of the two police officers who were killed in the line of duty in Hattiesburg, Mississippi, on May 9, 2015, Officer Benjamin Deen and Officer Liquori Tate.

I am joined tonight by my fellow colleagues and Mississippians, Congressman GREGG HARPER and Congressman BENNIE THOMPSON. We would like to take this time to lend our prayers to the families of these two young men, to the Hattiesburg Police Department, and to the community for their loss.

This week, our Nation observes National Police Week, and we recognize the bravery, fortitude, and sacrifice demonstrated by police officers nationwide. They put their lives on the line to defend our communities and our citizens against criminals and thugs.

I ask the House to join us tonight in honoring the lives of Liquori Tate and Benjamin Deen by joining me in a moment of silence.

PERMISSION FOR COMMITTEE ON ARMED SERVICES TO FILE SUPPLEMENTAL REPORT ON H.R. 1735, NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2016

Mr. THORNBERRY. Mr. Speaker, I ask unanimous consent that the Committee on Armed Services be authorized to file a supplemental report on the bill H.R. 1735.

The SPEAKER pro tempore (Mr. HILL). Is there objection to the request of the gentleman from Texas?

There was no objection.

WIOA TECHNICAL AMENDMENTS ACT

Ms. FOXX. Mr. Speaker, I ask unanimous consent that the Committee on Education and the Workforce be discharged from further consideration of the bill (S. 1124) to amend the Workforce Innovation and Opportunity Act to improve the Act, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from North Carolina?

There was no objection.

The text of the bill is as follows:

S. 1124

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''WIOA Technical Amendments Act''.

SEC. 2. AMENDMENTS TO WORKFORCE INNOVATION AND OPPORTUNITY ACT.

(a) DESIGNATION OF AREAS SERVED BY RURAL CONCENTRATED EMPLOYMENT PROGRAMS AS LOCAL AREAS.—

(1) IN GENERAL.—Section 106(b) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3121(b)) is amended—

(A) by redesignating paragraphs (5) and (6) as paragraphs (6) and (7), respectively; and

(B) by inserting after paragraph (4) the following:

''(5) AREAS SERVED BY RURAL CONCENTRATED EMPLOYMENT PROGRAMS.—The Governor may approve, under paragraph (2) or (3), a request for designation as a local area from an area described in section 107(c)(1)(C).''.

(b) LOCAL WORKFORCE DEVELOPMENT BOARDS.—Section 107(i)(1)(B) of such Act (29 U.S.C. 3122(i)(1)(B)) is amended by striking ''the day before the date of enactment of this Act'' and inserting ''the day before the date of enactment of the Workforce Investment Act of 1998''.

(c) PERFORMANCE ACCOUNTABILITY SYSTEM.—Section 116 of such Act (29 U.S.C. 3141) is amended—

(1) in subsection (b)(2)(A)(iv), by striking ''clause (i)(IV)'' and inserting ''clause (i)(VI)''; and

(2) in subsection (g), by striking ''for a program described in subsection (d)(2)(A)''.

(d) STATE ALLOTMENTS.—Section 132(b) of such Act (29 U.S.C. 3172(b)) is amended, in paragraphs (1)(B)(iv)(I) and (2)(B)(iii)(I), by inserting ''less than'' after ''fiscal year that is''.

(e) CONFORMING AMENDMENTS.—

(1) Section 102(b)(2)(D)(i)(III) of such Act (29 U.S.C. 3112(b)(2)(D)(i)(III)) is amended by striking ''section 106(b)(5)'' and inserting ''section 106(b)(6)''.

(2) Section 129(b)(1)(C) of such Act (29 U.S.C. 3164(b)(1)(C)) is amended by striking ''subsections (b)(6) and (c)(2) of section 106'' and inserting ''subsections (b)(7) and (c)(2) of section 106''.

(3) Section 134(a)(2)(B)(ii) of such Act (29 U.S.C. 3174(a)(2)(B)(ii)) is amended by striking ''section 106(b)(6)'' and inserting ''section 106(b)(7)''.

(f) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the Workforce Innovation and Opportunity Act.

SEC. 3. ESTABLISHMENT OF NATIONAL COUNCIL ON DISABILITY.

(a) IN GENERAL.—Section 400(b) of the Rehabilitation Act of 1973 (29 U.S.C. 780(b)) is amended to read as follows:

''(b)(1) Each member of the National Council shall serve for a term of 3 years.

''(2)(A) No member of the National Council may serve more than two consecutive full terms beginning on the date of commencement of the first full term on the Council. Members may serve after the expiration of their terms until their successors have taken office.

''(B) As used in this paragraph, the term 'full term' means a term of 3 years.

''(3) Any member appointed to fill a vacancy occurring before the expiration of the term for which such member's predecessor was appointed shall be appointed only for the remainder of such term.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall take effect as if enacted 1 day after the date of enactment of the Workforce Innovation and Opportunity Act (29 U.S.C. 3101 et seq.).

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

□ 1945

EXPRESSING THE CONDOLENCES OF THE HOUSE OF REPRESENTATIVES ON THE DEATH OF THE HON. JAMES CLAUDE WRIGHT, JR., FORMER SPEAKER OF THE HOUSE OF REPRESENTATIVES

Mr. BURGESS. Mr. Speaker, I offer a privileged resolution (H. Res. 254) and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 254

Resolved, That the House has learned with profound sorrow of the death of the Honorable James Claude Wright, Jr., former Member of the House for 18 terms and Speaker of the House of Representatives for the One Hundredth and One Hundred First Congresses.

Resolved, That in the death of the Honorable James Claude Wright, Jr. the United States and the State of Texas have lost a valued and eminent public servant and citizen.

Resolved, That the Clerk communicate these resolutions to the Senate and transmit a copy thereof to the family of the deceased.

Resolved, That when the House adjourns today, it adjourn as a further mark of respect to the memory of the deceased.

The resolution was agreed to.

A motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair

will postpone further proceedings today on the additional motion to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Any record vote on the postponed question will be taken later.

FALLEN HEROES FLAG ACT OF 2015

Mr. NUGENT. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 723) to provide Capitol-flown flags to the immediate family of fire fighters, law enforcement officers, members of rescue squads or ambulance crews, and public safety officers who are killed in the line of duty.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 723

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Fallen Heroes Flag Act of 2015''.

SEC. 2. PROVIDING CAPITOL-FLOWN FLAGS FOR FAMILIES OF LAW ENFORCEMENT AND RESCUE SQUAD WORKERS KILLED IN THE LINE OF DUTY.

(a) IN GENERAL.—At the request of the immediate family of a fire fighter, law enforcement officer, member of a rescue squad or ambulance crew, or public safety officer who died in the line of duty, the Representative of the family may provide the family with a Capitol-flown flag, together with the certificate described in subsection (c).

(b) NO COST TO FAMILY.—A flag provided under this section shall be provided at no cost to the family.

(c) CERTIFICATE.—The certificate described in this subsection is a certificate which is signed by the Speaker of the House of Representatives and the Representative providing the flag, and which contains an expression of sympathy from the House of Representatives for the family involved, as prepared and developed by the Clerk of the House of Representatives.

(d) DEFINITIONS.—In this section—

(1) the term ''Capitol-flown flag'' means a United States flag flown over the United States Capitol in honor of the deceased individual for whom such flag is requested; and

(2) the term ''Representative'' includes a Delegate or Resident Commissioner to the Congress.

SEC. 3. REGULATIONS AND PROCEDURES.

(a) IN GENERAL.—Not later than 30 days after the date of the date of the enactment of this Act, the Clerk shall issue regulations for carrying out this Act, including regulations to establish procedures (including any appropriate forms, guidelines, and accompanying certificates) for requesting a Capitol-flown flag.

(b) APPROVAL BY COMMITTEE ON HOUSE ADMINISTRATION.—The regulations issued by the Clerk under subsection (a) shall take effect upon approval by the Committee on House Administration of the House of Representatives.

SEC. 4. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated for each of the fiscal years 2015 through 2020 such sums as may be necessary to carry out this Act, to be derived from amounts appropriated in each such fiscal year for the operation of the Capitol Visitor Center, except that the aggregate amount appropriated to carry out this Act for all such fiscal years may not exceed $30,000.

SEC. 5. EFFECTIVE DATE.

This Act shall take effect on the date of its enactment, except that no flags may be provided under section 2 until the Committee on House Administration of the House of Representatives approves the regulations issued by the Clerk of the House of Representatives under section 3.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Florida (Mr. NUGENT) and the gentleman from Pennsylvania (Mr. BRENDAN F. BOYLE) each will control 20 minutes.

The Chair recognizes the gentleman from Florida.

GENERAL LEAVE

Mr. NUGENT. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and to include extraneous material in the RECORD on the consideration of this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. NUGENT. Mr. Speaker, I yield myself as much time as I may consume.

Mr. Speaker, today I rise in support of H.R. 723, the Fallen Heroes Flag Act. The bill before us would allow Members of Congress to honor a firefighter, law enforcement officer, member of a rescue squad or ambulance crew, or public safety officer who died in the line of duty by providing the family of the deceased individual, at their request, a United States flag flown over this Capitol.

Our Nation's flag would be accompanied by a certificate containing an expression of sympathy for the family of the individual who passed away, signed by both the Speaker of the House and the individual's Representative here in Congress.

This measure, authored by the distinguished gentleman from New York (Mr. KING) allows our House to express its gratitude and recognition for an individual who made the ultimate sacrifice in the name of public service to this great country.

Many in our country put their lives on the line every day to serve others. They are the firefighters who charge into burning buildings in order to save life or property; they are the police officers and other law enforcement officers who respond to incidents and through their actions shield others from harm; they are the members of rescue squads or ambulance crews who spend countless hours perfecting life-saving skills and rush to the scene of a disaster; and they are the public safety officers who work to patrol our roads, man the dispatch communication lines, and work within our justice system to accomplish countless other safety services for our communities.

Our Nation is exceedingly blessed to have individuals who answer the call to dedicate their lives serving others. We are very grateful to be surrounded by individuals who work hard each day to save and protect lives. Each swore an oath to uphold our laws, and each sacrifices safety in the defense of others.

These individuals are our daily heroes. The rescue workers and law enforcement officers are our sons and daughters, they are our mothers and fathers, they are our sisters and brothers who each day rise up and stand in the defense of others. And in some cases, these heroes pay the ultimate sacrifice, and they are killed in the line of duty, just as we heard earlier. It is a tragedy in the truest sense of the word when one of these extraordinarily fine individuals loses their life, most especially while in the act of saving the life of another.

I stand here, Mr. Speaker, not just as a Member representing my congressional district but also as someone who knows firsthand the sacrifices that these men and women put forward to serve their communities. Before I came to Congress, I served my community as a police officer, as a deputy sheriff, and eventually as a sheriff in a county in Florida. I know what it means for so many men and women to come to work every day not knowing—you can never predict the events of the day and what those events may hold for you. But one thing is certain: you will answer the call for help with everything you have got. When you kiss your wife or husband goodbye or your children goodbye, when you start your shift, they want to know you are going to come home. But they also know that the realities of life are it is possible that you may make the ultimate sacrifice for your community.

So, Mr. Speaker, it is appropriate that we recognize their selfless efforts of sacrifice and offer this meaningful token as an expression of our Nation's gratitude. It is an honor to stand here today in support of this legislation. Each Member of Congress should have the ability to recognize these brave individuals for their heroism and to extend a gesture of sympathy and gratitude to their immediate families.

Mr. Speaker, I reserve the balance of my time.

Mr. BRENDAN F. BOYLE of Pennsylvania. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am pleased to join with my colleague across the aisle, Congressman NUGENT, in support of H.R. 723, the Fallen Heroes Flag Act.

This sensible bill provides for Capitol-flown flags in memory of firefighters, police, and emergency response personnel who are tragically killed in the line of duty.

While we can never fully convey our gratitude to public safety and emergency personnel who risk their lives practically every day, it is my hope that this small gesture brings some level of comfort to the families of those who have given the ultimate sacrifice in the line of duty.

We recognize their sacrifice and that of their families and loved ones. We are

eternally grateful. As Members of Congress, we often have the sad duty and solemn responsibility of expressing condolences to families who have lost a loved one in the line of duty. At no expense to these families, this is one small way to express our condolences and gratitude for their service.

Mr. Speaker, I urge all Members to support H.R. 723, and I reserve the balance of my time.

Mr. NUGENT. Mr. Speaker, I yield 3 minutes to the gentleman from New York (Mr. KING). He is the distinguished sponsor of this bill.

Mr. KING of New York. I thank the gentleman for yielding, and I thank him for his years of service in law enforcement and for his dedication here in the United States Congress.

Mr. Speaker, I rise in strong support of this legislation. I think it is particularly appropriate that this bill will be passed during National Police Week at a time when we honor those who put their lives on the line every day. This isn't just an abstraction. This is really very real, as we saw tonight with the delegation from Mississippi acknowledging their two police officers who were murdered on Saturday night. And just last week in New York a neighbor and constituent of mine, Brian Moore, a member of the NYPD, was shot down. He was murdered in Queens Village in Queens, New York, a young man, 25 years old. He already had 150 arrests. He was a member of an elite anticrime unit. He was shot down in the prime of life. His father was a retired police sergeant. His cousins were on the NYPD and also the Nassau County Police Department.

So these are real, Mr. Speaker. These are real lives. These are real lives that are lost. These are real people putting their lives on the line, and there are real families who suffer when they are left behind. That is why it is so important, I think, that we in Congress acknowledge that. One way to do that is by being able to present a flag signed by the Speaker and by the Member of Congress who represents the person who was killed in the line of duty.

Tonight we had a new Member of Congress sworn in, DAN DONOVAN from Staten Island. DAN was with me on Friday at the funeral of Brian Moore. Also, we had two tragic deaths in December, Wenjian Liu and Rafael Ramos, two NYPD officers who were murdered in Brooklyn. DAN and I were at that funeral along with thousands and thousands, in fact, tens of thousands of officers from all over the country.

So it is important that we stand in solidarity with the men and women of blue. They come under terrible onslaughts and attacks. So much of it is untrue, so much of it is slanderous, and so much of it is carried on by the media. But, Mr. Speaker, the fact is these men and women are out there every day. They are out there doing their job, and it is really important that we stand with them. The very least we can do is stand here in Congress and support them and also then pay them the tribute of standing with their family with the flag when that terrible moment comes that they lose their lives in the line of duty.

So with that, Mr. Speaker, I again thank the gentleman for his leadership, I thank the gentleman from Pennsylvania for his bipartisan spirit, and I strongly urge support of this legislation.

Mr. BRENDAN F. BOYLE of Pennsylvania. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I just want to say how proud I am to stand with Mr. NUGENT as well as with my fellow Notre Dame alumnus, Mr. KING, in backing this very sensible and decent piece of legislation. I would also say, as he was mentioning the unfortunate tragedies that have happened to members of the NYPD, as a proud resident of the city of Philadelphia, I have only been a Member of Congress for a few months, but I have been in elective office for 6 years, and during that time we, unfortunately, lost more Philadelphia police officers killed in the line of duty, as well as three Philadelphia firefighters killed in the line of duty. That was more than in any 5- or 6-year period in the city's history, which dates to 100 years before the founding of our country.

So it is a sad and solemn reminder of the sacrifice that they are willing to make on our behalf each and every day.

I believe that supporting this legislation is a proper gesture that we can make here in this House, and I am happy to support it. With that, Mr. Speaker, I yield back the balance of my time.

Mr. NUGENT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, it is a proud day. Mr. BOYLE, I do appreciate your comments in regard to those who serve us. Mr. KING, I think your reputation precedes you in regard to caring about those who care for us every day.

It is a thankless job a lot of times to be a fireman or a police officer or an EMT. Those folks go to work because they want to help people. They don't go to work because they want to hurt someone. They are driven by this desire to do right and to do good every day.

It is really easy sometimes, I think, that we forget that these are men and women who, whether they wear the badge of a law enforcement officer or a firefighter or an EMT or any other public safety officer, do their job because they are committed to their community. They do it because they love their community. So when some folks want to rush to judgment, I would just suggest that until you walk in their shoes, until you know what it is like to serve in that capacity, I would ask that people use a little restraint and maybe wait until investigation is complete before we start making decisions in regards to guilt or innocence.

I had to do that as sheriff. I had deputies who were involved in fire fights where other folks were killed. But you wanted to make sure that—listen, we want to know the facts. We want to know the truth. And if a police officer does something that is wrong, then he should be dealt with. But not all police officers do things wrong. They are human beings, and sometimes they do make mistakes.

Mr. Speaker, this particular bill talks to those who have paid the ultimate sacrifice, no matter how they served this great country, whether it was in the fire service or the law enforcement service or public safety in any manner. This is about recognizing them and their families for their service. These first responders and public safety officers stand side by side with each other supporting each other in a common goal. Whether you are a fireman or a police officer, it is a common goal to do the right thing.

They and their families live with these risks. They know what the job brings, the risks that are incurred, but they do that selflessly. Every time they put on that uniform to go to work, they do it knowing that something bad could happen to them that could change the lives of their children and their families forever.

Mr. Speaker, this bill allows us in Congress to offer a simple yet meaningful expression, I believe, of sympathy. We can't make up the family's loss to them, but we can remember these fallen heroes, and we can offer their families our gratitude as we honor those loved ones' memories, as I think this body should do every day because there are folks that stand the line for us, whether it is fighting a fire, rescuing us from a trapped vehicle at a scene of horrific destruction, whether it is tornadoes or earthquakes, law enforcement officers have to go places that no other folks want to go.

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I just thank you, Mr. KING, for bringing this bill forward. I want to thank my good friend on the other side of the aisle, Mr. BOYLE, for standing for what is right, and I appreciate that.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Florida (Mr. NUGENT) that the House suspend the rules and pass the bill, H.R. 723.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

NATIONAL SMALL BUSINESS WEEK

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, last week was National Small Business Week; and, while back in Pennsylvania's Fifth Congressional District, I attended a ceremony honoring Jim and Colleen Small for receiving the 2015 Western Pennsylvania District Small Business Persons of the Year Awards.

For Jim and Colleen, pursuing a second career as businessowners trumped an early retirement, so they decided to open UPS Store #5642 in State College, Pennsylvania.

Like many small-business owners starting out, Jim and Colleen faced challenges, but through community outreach, a dedicated staff, and lots of hard work, the Smalls now run a very successful small business.

Mr. Speaker, small businesses are the backbone of our economy, and I couldn't think of a better way to celebrate National Small Business Week than by recognizing two outstanding local small-business leaders.

I ask my colleagues to join me in congratulating Mr. and Mrs. Small on receiving this well-deserved award, and I thank them for all that they do for our community.

UCR BOURNS COLLEGE 25TH ANNIVERSARY

(Mr. TAKANO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TAKANO. Mr. Speaker, I rise today to commemorate the 25th anniversary of the University of California, Riverside's Bourns College of Engineering. In 1990, UCR opened its new public engineering college to educate the next generation of engineering leaders. Since then, the college has produced over 5,600 engineering graduates and is ranked first among public universities of the same size.

Not only does the UCR Bourns College of Engineering offer a quality engineering education, it is committed to recruiting students who are a true reflection of the ethnic and cultural diversity of the world in which we live.

The college is also home to world-class engineering researchers who are leveraging Federal dollars to improve air quality, predicting wildfires, discovering alternative energy fuels, and developing new materials that will change our lives.

I want to applaud UCR's chancellor, Kim Wilcox, and dean of engineering, Reza Abbaschian. I know they will lead the Bourns College of Engineering down an even more successful path over the next 25 years.

THANKING UNNAMED GARLAND POLICEMEN

(Mr. BURGESS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BURGESS. Mr. Speaker, this is National Police Week, and I did want to rise in recognition of the brave law enforcement officers of the police department in Garland, Texas.

Mr. Speaker, just a little over a week ago, May 3, two heavily armed assailants opened fire outside an event at the Curtis Culwell Center in Garland, Texas. Thankfully, some of Texas' finest police officers were on hand to protect the innocent lives inside.

Traffic police and SWAT officers from the Garland Police Department did their job. They subdued these two would-be mass murderers before they were able to take a life.

To date, these heroes remain unnamed, but we cannot overlook their bravery and their willingness to put their lives on the line to protect ours. They kept this crisis from becoming a tragedy, and they averted what likely could have been the largest mass casualty situation north Texas has ever seen.

Mr. Speaker, I extend to the Garland Police Department my sincerest appreciation for their service and their bravery. These heroes deserve our deepest appreciation for their selfless preservation of human life.

TRANS-PACIFIC PARTNERSHIP

(Ms. KAPTUR asked and was given permission to address the House for 1 minute.)

Ms. KAPTUR. Mr. Speaker, I rise tonight to bring light to the secretive, job-killing global trade pact called the Trans-Pacific Partnership, the TPP. Supporters want to rush it through Congress using a procedure called fast-track authority, which forces a vote with no opportunity to amend the deal. This should alarm all Americans.

In its current form, this deal would outsource even more of America's good jobs out from under our working families, degrade global environmental and working standards, and cause investor rights to override worker rights. It propels a global race to the bottom.

The trade ambassador and the administration assert that the TPP has strong and enforceable labor standards and environmental commitments. The TPP includes four nations—Mexico, Brunei, Vietnam, and Malaysia—that are notorious labor and human rights violators.

They are already out of compliance with the standards supposedly in TPP. Frankly, our U.S. Trade Representative has had a bad habit of sweeping trade violations right under the rug.

Our history of trade agreements in Guatemala, Honduras, and Colombia show the need for stronger obligations and a rigorous plan for implementing and overseeing them.

Including commitments in the final agreement is not enough. These nations have to change their laws and practices, and we have to enforce them.

Mr. Speaker, we should vote against TPP because what is going to happen is more American workers will be cashed out, and exploited workers around the world will find life gets harder.

NEED FOR LONG-TERM HIGHWAY BILL

(Mrs. BUSTOS asked and was given permission to address the House for 1 minute.)

Mrs. BUSTOS. Mr. Speaker, I rise today to urge my colleagues to act swiftly to prevent the highway transit trust fund from expiring. If we do not act, this critical program will expire in just 7 legislative days.

I am proud to be a member of the House Transportation and Infrastructure Committee, and my district in Illinois is a central hub for the shipment of goods and people over road, rail, water, and air.

I truly believe that, by investing in our infrastructure, we are making a down payment on our Nation's long-term economic well-being. These investments not only create jobs, but they create jobs that cannot be outsourced. By investing in our infrastructure now, as opposed to punting the ball down the field, we are saving money in the long term.

Over half a million good-paying construction jobs hang in the balance, and construction on 6,000 critical projects across the country could be put on hold. This is unacceptable and why we must act now to provide certainty that our local communities, businesses, and hard-working families deserve.

HIGHWAY TRUST FUND

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Hello, America. Do you know what is going to happen in just a few days? In 7 legislative days, the United States highway trust fund runs out of money—kaput, it is over—a fund established by President Eisenhower in the 1950s, out of money.

What is the House of Representatives doing? What is your Representative and your Senator doing? Well, I suspect debating the Trans-Pacific Partnership—the TPA—when, in fact, this is the big jobs issue.

The trade negotiations, you can debate it forever; but if you really want to create jobs in America, pay attention to this, America. Pay attention to the fact that the Federal highway trust fund expires in 7 legislative days. We have got work to do here; we have got a lot of work to do, and it is not happening.

I am a Californian. I represent the State of California. We have a pretty high opinion of ourselves in California, maybe deserved or not; but what it means to us when the highway trust fund shuts down, what it means is a lot of jobs. 73,572 jobs will be jeopardized at the end of this month of May. We are looking at 5,692 active highway and transit projects will stop, red light stop, don't go forward.

For California, in just 7 legislative days, a very, very important thing happens—actually, far, far more important than the Trans-Pacific Partnership or the trade promotion authority. This is where the big jobs are in America. Building the infrastructure of America is how you create jobs today and on into the future because you lay the foundation for economic growth.

If you couple those transportation programs with another long, long-standing American law, which is Buy America, Make It In America, you not only create the foundation, but you also create immediate manufacturing jobs of all kinds. From the bulldozers, to the tractors and the backhoes, to the steel and the concrete, you buy it in America; you build the infrastructure in America, and you create immediate jobs.

How many? Well, I think we all know Duke University. It is more than a basketball school. It also happens to be one of the more thoughtful research institutions in the United States. They produced a little book that about 535 of the Representatives of the American people ought to be reading.

This ought to be the bedtime reading for the Senators and the Members of Congress: ''Infrastructure Investment Creates American Jobs,'' Duke University Center on Globalization, Governance, and Competitiveness.

I am going to read just a few things here just to drive this point home.

Old and broken transportation infrastructure makes the United States less competitive than 15 of our major trading partners and makes manufacturers less efficient in getting goods to market.

You want to get goods to market, build the infrastructure.

Underinvestment costs the United States over 900,000 jobs, including more than 97,000 American manufacturing jobs.

You want to Make It In America, build the infrastructure.

Maximizing American-made materials when rebuilding infrastructure has the potential to create even more jobs. Relying on American-made inputs can also mitigate safety concerns related to large-scale outsourcing.

It is our Make It In America policy. It is the agenda that we have been driving for the last 5 years here. Build the infrastructure, Buy America, Make It In America.

Competitiveness, a lot of talk, everybody wants to talk about the Trans-Pacific Partnership, or the TPA. You want to be competitive; you build the American infrastructure—again, Duke University.

The United States boasts the world's largest stock of transportation infrastructure as measured by combined bridges, airports, seaports, and miles of road, rail, pipeline, and inland waterways.

It is a very good start, foundation.

The United States is not well positioned compared to its major trading partners in terms of quality of transportation infrastructure. Global assessments of transportation infrastructure place the United States in 16th place out of 144 nations.

You want to improve our competitiveness, you want to create jobs, build the infrastructure.

□ 2015

The quality of transportation infrastructure affects the United States' competitiveness, point No. 6, and here is what we can do about it.

Instead of the administration's spending all of its energy and all of its time talking about how we are going to deal with international trade that, in all likelihood, will create fewer jobs in America—so much so that they have to put into that Trans-Pacific Partnership a provision that would actually pay American workers who have lost their jobs—why don't they talk about their own GROW AMERICA Act?

This is the Department of Transportation. This is the President's program, the GROW AMERICA Act. It is, really, a good piece of legislation. It is not yet introduced, unfortunately, but it calls for $7.6 billion to fix our highway system—this is all annual—$6.8 billion to improve public transportation, $3.4 billion to strengthen our rail systems—Amtrak and other kinds of rail systems—and $1 billion to accelerate our freight support system. If you really want to do international trade, you really have to build the freight management system in this Nation. It has got to go out, not just in, and you can't do it with the antiquated freight systems that we have in the United States. This is $476 billion over a 4-year period of time. It is a good project—it is fully paid for—but we are not even talking about it here.

We have got work to do. The purpose of this 1 hour, which will, actually, be significantly less than an hour, is to say, ''Hello, America. Wake up. Ask your Members of Congress: 'What are you doing about transportation? What are you doing in 7 legislative days to fix the transportation system? Are you paying attention? Are you paying attention to your State? to your community that you represent? to the jobs that you are going to see and the highway projects and the transit projects? Are you paying attention?''' In 7 legislative days, at the end of this month, the Federal highway trust fund terminates along with the projects that are supported by it. It is a problem. It is our problem. We need the courage to act, and we need to pay attention to what is really important, which happens to be the transportation infrastructure of this great Nation. We need to rebuild it.

Joining me this hour is the gentlewoman representing the Capital of the United States, Washington, D.C., Delegate ELEANOR HOLMES NORTON, the ranking member of the Highways and Transit Subcommittee of the Transportation and Infrastructure Committee.

Delegate NORTON, thank you for joining us tonight. I am looking forward to your presentation.

Ms. NORTON. I want to thank my good friend from California because it is you who have done a great service to the Nation's infrastructure and transportation by taking out this hour virtually every week. Sometimes it is a lonely hour, but I want you to know that some of us notice.

Mr. GARAMENDI. I am not lonely tonight with you. I am glad you have joined us.

Ms. NORTON. I will say that the way in which you have persisted is really a model for how Members get things done in this House, so I have come down, first, to thank and honor you for what you have done.

Mr. GARAMENDI. Thank you.

Ms. NORTON. I have to say, in listening to you, I simply can't figure it out, as your one-man show alone should have been enough to get this bill reauthorized. It is a very unusual way for one Member to take one issue and just not let it rest. Our committee and this Congress owe you a great debt of thanks particularly when you consider, Mr. GARAMENDI, that you are talking about a bill that has strong bipartisan support in a Congress that is not known for bipartisanship. So I thank you from the bottom of my heart for what you have done.

Mr. GARAMENDI. Thank you. Thank you for your leadership on the Highways and Transit Subcommittee, because you are carrying the weight of this particular piece of legislation.

Ms. NORTON. And it is weighing us down. I am afraid we are not getting anywhere, but if we keep trying and if we keep following your leadership and the leadership of Mr. SHUSTER on that side of the aisle and of Mr. DEFAZIO on this side of the aisle, you couldn't have a better partnership in this Congress. I can't believe we won't be able to get something done, but May 31, my friend, looms, as you said in 7 days—or is it 6? The fact is that we are counting down, and there are some of us coming on the floor with you each day to count down. I was here on a 1-minute earlier today, and I think Members are beginning to understand the obligation that they have to take on, the obligation that you have taken on as a lonely Member for months now.

Mr. GARAMENDI. It has to be done. We absolutely have to do this with your leadership on the subcommittee in trying to find a path to build the infrastructure and in looking for ways to pay for it.

Actually, the administration in the GROW AMERICA Act found a way to pay for it—with the earnings of American corporations that are overseas. Bring those back; tax them; and we would have enough money, together with the existing excise tax, to build our infrastructure over the next 4 to 5 years, so we have got to do it.

Ms. NORTON. And that would give us a long-term bill. The administration admits that it, too, is not the answer because, after that, we still have to come up with a new way to pay for transportation and infrastructure. You, yourself, talked about when this

all started, which was in the Eisenhower administration. We have gotten so efficient now. I drive a hybrid car, which doesn't use much gas. So we have got to be prepared to really think through an entirely new way of funding transportation and infrastructure.

You mentioned the GROW AMERICA Act. I will be introducing that act soon.

Mr. GARAMENDI. Good.

Ms. NORTON. The administration does want it introduced. Mr. GARAMENDI, we need it, if for nothing else but as a marker. What are we talking about? If nothing has been introduced, I am not sure the American people will recognize just how far we have to go.

Mr. GARAMENDI. You have to lay down the marker. You laid down the first proposal, and it is really good. I said 4 years. Actually, it is a 6-year bill—$478 billion—and it covers all of the elements. All of the elements are there. If somebody has got a better idea, we haven't heard it.

I am delighted. When you introduce that bill, count me as one of the coauthors of it, and I look forward to working with your leadership to push it along.

Ms. NORTON. Oh, you would be the very first one given what you have done on this floor, and I am glad you mentioned some parts of the bill and its cost. Yes. Guess what? It costs money; it costs something to do transportation and infrastructure; but the administration has had many Members' support of bringing back untaxed funds abroad that want to come back and of using it for something that everybody is for.

I understand that our ranking member, Mr. DEFAZIO, has written Mr. RYAN of Ways and Means to ask for a joint hearing of our committee with the Ways and Means Committee so that we can work together, and there are rumors, because that is all we hear about of this bill these days, that there may be one in June. You will notice that that is after May 31.

Mr. GARAMENDI. This is a major concern in that it seems as though the most common thing that happens here in Congress is a game that we used to play as children. It is called ''kick the can.'' You would get an old No. 16 can, and you would kick it around the yard. We kick the can down the road here so often instead of really gripping the issue and saying, ''Okay. Let us do something that lays out a long-term, 6-year plan where the States and the counties and the cities can actually project projects and know that the funding is going to be there so they can be efficient and effective and prioritize.'' Instead of doing that, we just kind of kick the can down the road.

They are talking about a 6-month, until the end of September, with the same level of funding. We are going to lose a lot of jobs, and the opportunity to build the systems that we absolutely have to have in order to grow our economy is not going to happen. I just go, ''Why would we do that? We have a good model.''

I am looking forward to the introduction of the GROW AMERICA Act that you are going to introduce. Tell us what is wrong with this. Tell us where it doesn't meet the needs.

My Republican colleagues and Democratic colleagues, what is missing? What improvements should there be? Tell us what it is. We will deal with it.

The funding source, as you said, makes sense. American corporations—Apple and others—have billions of dollars—almost $1 trillion—of profits overseas that are not taxed. Bring it home. Use that to invest in America. Bring the capital home so that you can put labor and capital together, starting with infrastructure, and build this Nation. Mr. DELANEY, our colleague from Maryland, has a good proposal, a bipartisan proposal, that does that.

Run with it, Congress. Run with it, Senate. Let's do something.

Ms. NORTON. Oh, you have made such an important point because you say, if not this, what?

The Democrats—we on this side of the aisle—are willing to sit down with you to come up with whatever bill we can compromise on. We just have to be shown a bill. The reason I am going to introduce the GROW AMERICA Act is so that we can begin there. Maybe they don't want that. Okay. Let's bargain down from there, but we can't do nothing. We can't go home and say, ''Well, we did nothing,'' and we certainly can't simply wait for our friends on the other side of the aisle.

Now, I want my friend from California to know that representatives of the states were in the House today and I went to say a few words to them. They were in one of our committee rooms—a group that calls itself the ''Big Seven.'' They were the leaders in the States. They were the Governors, the National Conference of State Legislatures, the National League of Cities, the United States Conference of Mayors. They were begging for this bill, so they had their own meeting here.

I think that it behooves us to ramp up the pressure, we who are on the inside. When you see that those who represent the infrastructure we are talking about are on the Hill, pleading, without an answer from either side, well, our side is trying to answer; and because there is so much bipartisanship, there is just no reason that we shouldn't be sitting down and trying to figure this out.

Mr. GARAMENDI. We really must do that.

Yesterday, I was in the Central Valley—Modesto, California—for a meeting, and I had to drive to San Francisco for a speech over Interstate 580, the Altamont Pass, and it is so broken up. There is the fast lane on the Altamont Pass, as you go up over the mountain, that actually has about a 6-inch crack in the fast lane. As you drive down, you are driving down on one side of the crack. You have one wheel on one side and the other wheel on the other side of this crack, and you say, ''Whoa, I hope I can make it through here.'' That is a major transportation route with tens of thousands of cars traveling on it every day. So the state of good repair? Not in California.

What does it mean? If we were to take the GROW AMERICA Act that you are going to introduce, it would mean that, compared to this year, 2015, we would have $7.6 billion more across the Nation to repair the highways in our Nation. The Altamont Pass, it is downright dangerous—I was shocked—but they don't have any money to fix it. There would be $7.6 billion for all of this Nation to do it.

Then the buses, the transit agency in San Francisco. I was parked in San Francisco, waiting for a stoplight. A bus pulls up, and it had to be a 1950 bus. It was rusted out, and I am sure the seats were torn apart. All good credit to San Francisco for trying, but across the Nation, it is the same way—here in Washington, D.C., with the transit agencies, Amtrak.

By the way, Amtrak came to Congress. They wanted money—this is some good news—and we actually passed an Amtrak bill out of the House of Representatives a couple of months ago. Yet do you know what they wanted to do? They wanted to get a waiver on the Buy America provisions. They have to build, I think, 28 locomotives and train sets—high-speed—and they didn't want to buy it in America. I am going, no, no way. If we are going to spend American taxpayer money, spend it on American-made equipment, on American jobs. Make It In America. No way are you going to get out of that.

□ 2030

I also want to talk about this, but you have got a bridge behind you.

Ms. NORTON. I do. You talked about the project in your district, and that project with the crack in the road is emblematic of what is happening in the United States.

Mr. GARAMENDI, they can't even start on that repair because that is a major project. So another patch, as we call it, or short-term funding, means that the backlog of major projects remains. You can't start what America needs, which are major projects. If we could put them all here in this Chamber, they would pile up to the ceiling. They simply have to sit there with 6-month patches or even a 1-year patch. Yours is a major Federal highway, and California can't do anything about it.

I went to such a highway in my own city, and that is why I brought this poster. The Washington Post picked it up and says, ''Norton Uses Bridge to Make a Point.'' It is interesting. Although this bridge also has real defects, I was using it to make another point, that every form of transportation depends upon this bridge in the

Nation's Capital: the intercity buses; the intracity buses; the street car, if you are going to a major highway; the Metro—all of it comes to a head there.

A point that you touched upon, which is seldom made here, is a point I tried to make when I went to the H Street—or Hopscotch—Bridge, and that is that the failure to rebuild that bridge is keeping a complete overhaul of Union Station from occurring, not to mention a whole new community that would be built over it, because they can't move on those major economic development projects until the bridge is done, and it will take 5 years to rebuild that bridge.

So you see, Mr. GARAMENDI, we are not just holding up obvious infrastructure projects; we are holding up major economic development projects that simply can't get started until the roads and bridges are fixed.

Mr. GARAMENDI. Well, you couldn't be more accurate, and you certainly did make the point. I was looking at the picture there. You have got the Northeast corridor, the entire Amtrak system underneath that bridge into Union Station, which I think is probably just to what I would say stage left, and the rail system goes through there, and then the highway system. I didn't realize that this is holding up the reconstruction of Union Station.

Ms. NORTON. So that we can get high-speed rail. So you can't get high-speed rail unless you dig down. You can't do that unless people can get over this bridge. You talked about billions of dollars of highway bridge and transit that is being held up. I don't even want to begin to try to calculate how much economic development that depends upon our fixing those major road projects is not getting done.

Mr. GARAMENDI. Well, also, the lives of our citizens. I don't have the placards with me, but in previous presentations I have shown pictures of the Interstate 5 bridge that collapsed in Washington State near the Canadian border. It shut down commerce going north. You were not going north on that bridge because it collapsed. And then there was the bridge over the Mississippi River in the Twin Cities, in Minneapolis. That bridge collapsed. I think five people lost their lives there. This is an ongoing issue, one that we need to deal with.

The solution is at hand. The solution is at hand. Every community in this Nation has a transportation issue of one sort. It might be a transit, a bus, a train, or a bridge, or a highway, but we all have it.

I am going to make one more point, and this will be my last, and then I will let you wrap it up. I am going to go back to what is the discussion of the day here in Washington, the Trans-Pacific Partnership and the TPA, the authorization of the fast track legislation. Ninety-nine percent of our trade goes through the ports, and this is part of the GROW AMERICA Act. It is part of the freight system. I don't think this trade bill should pass, but should it become law, you have to have the infrastructure that goes with it, and you cannot have a robust trade program unless you have a well-built port system.

By the way, one of the things that is going to happen is, because of our energy boom, the United States is creating an enormous amount of natural gas. That natural gas is in the process of being transported, shipped overseas in what is known as liquefied natural gas. You supercool, you supercompress the natural gas; you put it into a tanker, a big ship, and you transport it.

A new facility will go online in Louisiana, and it is called the Cheniere facility at Sabine Pass. It will take 100 tankers, ships, to handle the volume of that one export facility, and there are five others that are in the permitting process. I am saying, Wait a minute, that is a strategic national asset; that is part of our infrastructure. Why don't we ship that strategic asset on American-built ships with American sailors? If we passed a simple law here, which actually replicates the North Slope oil law back in the 1960s, we could replicate that and simply say: If we are going to export liquefied natural gas, do it on American-built ships with American sailors. We would build over the next two decades more than a hundred ships in American shipyards with American-built equipment and Americans doing the welding and building those ships, probably well over 100,000 jobs; and the seamen, the merchant marine, they would be American.

It all fits together. It is part of our transportation infrastructure. It is using our great national assets, improving them, the transportation system, and then using those assets to create American jobs. Buy America, make it in America, transport that natural gas on American-built ships with American mariners, and take what will be your legislation, the GROW AMERICA Act, and build the infrastructure.

I am looking forward to the introduction of your legislation. I am looking forward to your leadership in making this happen. We have got to talk about this every single day until we wake up, until America wakes up, and says: Wait a minute, guys, do something for our Nation; build the foundation of economic growth.

Thank you so very much for joining us, Delegate. I will let you close.

Ms. NORTON. Well, again, Mr. GARAMENDI, you have my thanks, and you should have the thanks of this entire House. I am glad you closed with the program you did—you talked about the ports—because in the GROW AMERICA Act is a multimodal freight program. This is the first time it has ever been in the transportation bill.

Now, you gave an example: multimodal, because we are trying to make sure that rail and highway and port projects are coordinated together. That is the efficient use of all modes of transportation together. Here on the East Coast, The Panama Canal is coming and now you have every single port trying to get that business, and you have the private sector investing like mad in railroads because they want that business, and the buses want that business.

The private sector, Mr. GARAMENDI, is doing its job, but you can't, in fact, in the States do the ports and the freight all by yourself or with the private sector alone. And so this bill, the GROW AMERICA Act, brings it all together, gives us for the first time something that we have had in ground transportation, multimodal, but we have not had it in freight transportation so that those ports you are focusing on would grow, and we grow them here, just as you said, buying American.

I thank you once again for all you have done.

Mr. GARAMENDI. I thank you so very much. I thank you for your leadership. I am looking forward to the introduction of the bill and to push that through. Whether we can do it in 7 days or not—we could. It is possible. All the language is written. You will introduce it. The way of paying for it is known. We have just got work to do.

I am just thinking about the greatness of this Nation and the enormous potential that we have, and how we just let that slip away, for lack of solid programs that really build this Nation. I think about Eisenhower and what he did with the great highway system that we have, the Interstate Highway System. There is much to be done. I look forward to your leadership.

Mr. Speaker, I notice that our Republican colleagues have been listening to our debate and have decided to come and take the next hour and carry forth to Make It in America, build the infrastructure and the foundation for economic growth. I look forward to hearing the gentlemen.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Mr. RUSSELL). The gentleman yields back the balance of his time.

Mr. GARAMENDI. Do you have more you wish to say?

Ms. NORTON. Yes, I certainly do.

Mr. GARAMENDI. I thought we had completed, but I guess I am not yielding back quite yet.

The SPEAKER pro tempore. The gentleman is recognized.

Ms. NORTON. Again, I thank the gentleman for the leadership he has taken on not only this bill but on infrastructure in our country. I did want to say a few more words because in these last 6 days we can't leave words unsaid.

I want to say that what my chief frustration is—there is really no serious thinking going on in this House about ways to replace the highway trust fund except what is in the GROW AMERICA Act, and that, of course, would be for one 6-year period. The reason I bring this up is because I want

the American people to help us think about what has happened to the highway trust fund. We have got to bring it together this time and grow America with repatriated taxes that would otherwise not be there.

But let's think of why we have to do that. The efficiency that we now have and we ought to be proud of that, but it means that that 1950s approach, which worked so magically, is now entirely out of date, and there have got to be other ways to fund transportation and infrastructure. I was very frustrated that in the last bill, we call it MAP–21, there were not even pilots to guide us, like the so-called VMT miles driven that all of us, even those of us who are in hybrid cars, those who therefore don't contribute as much on the present highway fund, would play our part.

We need to sit around a table right here in the House and figure out what to do in the long run because we didn't do that last July when this bill was extended. There are even some people talking about, well, it can go to July because it runs out in July. Yeah, it runs out in July, and then look what happens. Treasury funds will have to be transferred just to make sure that we keep level funding going, and that level funding, meaning just base funding, will mean that no new major projects will be started in the States because of what has come to be called lack of certainty. I know of no major project that can be finished in 6 months. If it takes you 2 or 3 years, leave alone the 5 years like my H St Bridge project I spoke about, then you don't start it at all. So the money just lies fallow. It goes to no good major need.

So who is to blame? They are going to look to us and say, What are you doing? That is why we are coming on this floor. They are going to look to us to stop doing the same thing over and over again and think of something that we didn't do the last time. These short term patches are what we did the last time.

Mr. GARAMENDI. Well, we have done it over and over again, and the general talk around this building is that we are going to kick the can down the road yet again, probably for another 6 months, just like we extended the last one for 9 months. It is not the way to do it, and the result is bad public policy and an inability to really build the foundation for our economic future.

You mentioned the funding, the notion of a joint committee hearing between the Committee on Transportation and Infrastructure and the Committee on Ways and Means to discuss the funding options that you just described, and so we should talk about what the options are, and then select the one that makes the most sense for this Nation's well-being.

□ 2045

We can do that. That is what we were hired to do and what the voters put us here for.

Ms. NORTON. Meanwhile, as you indicated, GROW AMERICA would be a way to do it for at least 6 years.

I went to speak with the various organizations representing the States that were here today. I had my staff look at what the States are doing. Frankly, I found the States in a desperate position. There are States that have already done gas tax increases or reforms of their own. You have got to be pretty desperate to raise your own tax and leave ours where it was 20 years ago.

Iowa, Wyoming, Maryland, Massachusetts, New Hampshire, Pennsylvania, Rhode Island, Virginia, Vermont, the District of Columbia, South Dakota, these State have nothing in common, except that they couldn't continue to go on without funding.

Six States are making progress on trying to raise their own gas tax in the absence of our doing something. Those States, in the same way, don't have anything in common. When I say ''making progress,'' it generally means one House has at least done it, and they are trying to get the other House to raise the gas tax. They are Georgia, Michigan, North Carolina, Utah, and Washington State.

Then there are another seven States which are considering changes because they just can't wait any longer to get long-term projects going: Idaho, Kentucky, Missouri, Nebraska, New Jersey, South Carolina, and Vermont.

When I came into the meeting today, there was someone from the South Dakota Department of Transportation speaking, and it was interesting because they raised the gas tax in South Dakota, a very red State, and it included an amendment also to raise the speed limit by 5 miles an hour. I think that would make it something like 80 miles an hour out there.

He said—and he just laughed at this—that, although they had raised the gas tax on the residents in the legislature, nobody talked about anything except the increase the speed limit. That is how little the notion that you shouldn't raise your gas tax had become in a State like South Dakota.

The States are way ahead of us and looking to us for leadership. These 6-month increments are the exact opposite of leadership—delaying, as I indicated before, Mr. GARAMENDI, billions of dollars of other infrastructure that the Federal Government wouldn't have to pay for often, that can't get done, like a road or a bridge. That is why I went to such an example in my own district.

Mr. Speaker, I ask unanimous consent to submit for the RECORD a list of the top five critical infrastructure projects in my own district, the Nation's Capital. The National Capital Region Transportation Planning Board has also written to this region's bipartisan delegation, and I would like to have its resolution also included in the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from the District of Columbia?

There was no objection.

TOP FIVE CRITICAL INFRASTRUCTURE PROJECTS IN THE DISTRICT OF COLUMBIA STALLED UNTIL THERE IS A LONG-TERM SURFACE TRANSPORTATION REAUTHORIZATION

1. Rehab of 14th St NW, Thomas Circle to FL Ave.
2. Safety & Geometric Improvements to I–295/DC295
3. 11th St. SE Bridge (various components)
4. Improved Signal System and Communication Network
5. Intersection of PA Ave. and Potomac Ave. SE

NATIONAL CAPITAL REGION,
TRANSPORTATION PLANNING BOARD,
April 27, 2015.

Hon. JAMES INHOFE,
Chairman, Senate Committee on Environment and Public Works, Washington DC.
Hon. BARBARA BOXER,
Ranking Member, Senate Committee on Environment and Public Works, Washington DC
Hon. BILL SHUSTER,
Chairman, House Committee on Transportation and Infrastructure, Washington DC.
Hon. PETER DEFAZIO,
Ranking Member, House Committee on Transportation and Infrastructure, Washington DC.

DEAR CHAIRMEN INHOFE AND SHUSTER, AND RANKING MEMBERS BOXER AND DEFAZIO: On behalf of the National Capital Region Transportation Planning Board (TPB) at the Metropolitan Washington Council of Governments (MWCOG), I transmit the attached board resolution and policy principles for the reauthorization of the federal transportation programs.

Our policy principles represent a commonsense approach to reauthorization. We urge Congress to enact legislation that will fund priority needs and promote effective planning and project development.

As we face the expiration of MAP–21, this moment offers an opportunity to demonstrate that our nation is still capable of taking care of its most basic needs as we plan for future generations. We urge Congress to act decisively and comprehensively.

Sincerely yours,

PHIL MENDELSON,
Chairman.

NATIONAL CAPITAL REGION CONGRESSIONAL DELEGATION

The Honorable Ben Cardin, United States Senate, Maryland.

The Honorable Barbara Mikulski, United States Senate, Maryland.

The Honorable Don Beyer, United States House of Representatives, 8th District, Virginia.

The Honorable Barbara Comstock, United States House of Representatives, 10th District, Virginia.

The Honorable Gerald Connolly, United States House of Representatives, 11th District, Virginia.

The Honorable Robert Wittman, United States House of Representatives, 1st District, Virginia.

The Honorable Tim Kaine, United States Senate, Virginia.

The Honorable Mark Warner, United States Senate, Virginia.

The Honorable John Delaney, United States House of Representatives, 6th District, Maryland.

The Honorable Donna Edwards, United States House of Representatives, 4th District, Maryland.

The Honorable Steny Hoyer, United States House of Representatives, 5th District, Maryland.

The Honorable Christopher Van Hollen, United States House of Representatives, 8th District, Maryland.

The Honorable Eleanor Holmes Norton, United States House of Representatives, District of Columbia.

NATIONAL CAPITAL REGION,
TRANSPORTATION PLANNING BOARD,
Washington, DC, April 15, 2015.

RESOLUTION TO APPROVE POLICY PRINCIPLES FOR THE 2015 REAUTHORIZATION OF FEDERAL SURFACE TRANSPORTATION PROGRAMS

Whereas, the National Capital Region Transportation Planning Board (TPB), which is the metropolitan planning organization (MPO) for the Washington Region, has the responsibility under provisions of the Moving Ahead for Progress in the 21st Century Act (MAP–21) for developing and carrying out a continuing, cooperative and comprehensive transportation planning process for the Metropolitan Area; and

Whereas, since 2000 the TPB has been calling attention to the region's long-term transportation funding shortfall, and has documented its unmet preservation, rehabilitation and capacity expansion needs for the region's highway and transit systems; and

Whereas, federal funding for transportation infrastructure plays a significant role in the National Capital Region; projects such as the interstate system and the Metro system could never have been built without the leadership, long-standing commitment, and financial support of the federal government; and

Whereas, the Washington region continues to face the challenges of accommodating growth in people and employment, more pervasive congestion on highways and transit systems, and delays in completing critical rehabilitation needs and key expansion projects; and

Whereas, MAP–21 was enacted on July 6, 2012 as a two-year bill, and was extended on August 8, 2014 through May 31, 2015, which was the ninth time in the last decade that Congress has enacted a short-term extension of the federal highway and transit programs.

Whereas, it is anticipated that Congress will likely again enact a short-term extension prior to the May 31st expiration of MAP–21, but the need for sustained and long-term federal funding could remain unaddressed; and

Whereas, the lack of predictability in federal funding programs has undermined the ability of state and local implementing agencies to effectively plan and build transportation facilities that are vital to meet the challenges of the future; and

Whereas, the lack of sustained and adequate federal funding for transportation undermines economic growth in our region and across the nation and hinders our global competitiveness; and

Whereas, both Maryland and Virginia took historic steps in 2013 to address their transportation funding shortfalls by raising new revenues, and the District of Columbia took similar steps five years ago, but nonetheless, the inadequacy of sustainable federal funding remains a critical concern; and

Whereas, the TPB has regularly communicated its positions regarding federal transportation legislation to Congress, including policy principles in 2002 and 2008, and a letter on May 21, 2014 calling upon Congress to protect the Highway Trust Fund from insolvency; and

Whereas, at the November 19, 2014 meeting, the TPB directed staff to develop a set of policy principles for the reauthorization of the federal surface transportation program that the Board might communicate to the U.S. Congress; and

Whereas, on April 3, 2015, the TPB Technical Committee received a briefing and commented on draft proposed policy principles: Now,therefore, be it

Resolved that the National Capital Region Transportation Planning Board approves the attached 2015 Policy Principles for the Reauthorization of Federal Surface Transportation Programs'' and further, be it

Resolved that the National Capital Region Transportation Planning Board calls on the United States Congress to reauthorize an enhanced federal surface transportation program for a full six-year period, consistent with the attached Policy Principles.

NATIONAL CAPITAL REGION
TRANSPORTATION PLANNING BOARD,
April 15, 2015.

2015 POLICY PRINCIPLES FOR THE REAUTHORIZATION OF FEDERAL SURFACE TRANSPORTATION PROGRAMS

The federal government has an historic interest in transportation. The benefits of federal investment in a balanced, multimodal transportation system have long been recognized as critical to our national interest, promoting economic growth and providing access to opportunities for all individuals. In addition, the federal government has a unique obligation to support interstate commerce and to meet critical emergency and security requirements, and thus should provide an equitable contribution towards the cost of maintaining, operating and building our transportation infrastructure.

The National Capital Region Transportation Planning Board supports the following policy principles as a common-sense approach for reauthorization of the federal surface transportation programs.

1. Increase Federal Transportation Funding

A substantial increase in federal surface transportation funding levels is needed to address the current under-investment in the maintenance, operations and expansion of the nation's transportation system.

All reasonable and predictable strategies for sustained long-term funding should be pursued, including:

Increases in federal fuel taxes or other user-based taxes and fees;

Indexing fuel taxes and user fees to inflation so as to maintain the buying power of transportation funds;

Implementing pricing strategies enabled by emerging technology for all modes of travel, including rates that vary by time of day, type of vehicle, level of emissions, and specific infrastructure segments used;

Incentivizing federal support and coordination of innovative financing techniques, including public/private partnerships;

Utilizing savings from tax reform legislation; and

Creation of national infrastructure banks or bonding programs.

2. Fund Priority Needs

An explicit program focus, with enhanced funding, is needed to put and keep the nation's transportation infrastructure in a state of good repair.

Federal transportation policy should provide for increased federal funding focused on metropolitan congestion and other metropolitan transportation challenges, with stronger partnerships between federal, state, regional and local transportation officials.

The federal commitment to balanced multi-modal transportation systems must be reaffirmed including by restoring parity between the transit commuter benefit and the parking commuter benefit. As communities seek to reduce dependency on driving and serve non-drivers, alternatives must be developed and supported. In particular, federal funding for public transit and safe pedestrian and bicycle infrastructure should be enhanced.

3. Promote Effective Planning and Project Development

More timely, detailed, and flexible requirements to comply with MAP–21's mandate for performance based planning and programming should be promulgated. Adequate and timely federal support, including funding, should be provided to the states and metropolitan areas to adopt and implement the program requirements.

The current set of performance measures outlined in MAP–21 should be allowed time to take effect and be evaluated before enhancements are considered.

Streamlining federal planning and environmental review processes, outlined in MAP–21, that are aimed at ensuring timely delivery of transportation projects, should be supported.

Given the critical role of goods movement in our economy and the demands of freight on our infrastructure, a national freight program should be a key component of a long-term reauthorization act.

Ms. NORTON. I want to emphasize, as we approach the end, how little of a partisan problem we are talking about this evening. Republican Governors have signed the laws that I have referred to.

The committee—Mr. GARAMENDI will remember this—had Republican Governors, State department of transportation executives, cities, counties, regional councils, and the rest before us, and the notion of devolution came up.

This hearing was interesting because when devolution has come up, and devolution simply means that if States are raising their gas tax. Well, let's stop doing a Federal highway or surface transportation bill.

These States are raising their gas tax, and they are waiting for us to raise ours so that the partnership that is represented by State gas taxes and Federal gas taxes will remain whole until we find some other way to do this.

Mr. GARAMENDI. Mr. Speaker, I yield back the balance of my time.

PASS A SURFACE TRANSPORTATION BILL

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentlewoman from the District of Columbia (Ms. NORTON) is recognized for the remainder of the hour as the designee of the minority leader.

Ms. NORTON. Mr. Speaker, may I ask how much time is remaining in the hour?

The SPEAKER pro tempore. The gentlewoman from the District of Columbia has 16 minutes remaining.

Ms. NORTON. Mr. GARAMENDI spoke about the Eisenhower years, which gave us the present highway trust fund. Its lasting effects make it a monumental contribution to American law. Our generation has the obligation to move on, now that we have become so efficient that the highway trust fund, as set up 50 years ago, is obsolete.

I remind the House that, during the Civil War, Abraham Lincoln built the railroad system. How could you do that during a time when the country is split apart, and in this House, we can't figure out a way to get a highway surface transportation bill passed?

I looked up the latest figures—actually, 2015—on how our country ranks today. We ought to compare that to what Lincoln did, now going on 150 years ago, and what Eisenhower did 50 years ago.

We now rank 25th in the world for infrastructure quality. We are behind every last one of our allies, and now, we see some developing countries creeping forward. We better watch out for China. They are not in the top 30 now, but they are going to get there soon.

I remind this House that the way in which this country became the heavyweight that it is in the world was through the development of its infrastructure. We had to somehow create a seamless infrastructure that would go from across the continental United States, from east to west and from north to south.

With that, everything else became possible. Without that, we are simply going to be overtaken by nations that are far behind us now but, as I indicated are getting caught up.

I wanted to say a word about at least one other section of the GROW AMERICA Act because it relates to transit systems which are under special strain and which, interestingly enough, are embraced by people, from big cities to the smallest towns.

When I say ''transit systems,'' I am talking about everything from light rail and street cars that we have here in a big city like the Nation's Capital to rapid transit and buses that rural America depends upon and that are simply breaking down and unable to handle the traffic.

There is a very special provision of $115 billion to invest in these transit systems. The reason that this investment would be so acceptable is that there is no part of America that it does not touch.

I am not talking about, for example, subway systems of the kind we have in the District of Columbia and New York. I am talking about light rail and street cars and buses and rapid transit buses that small-town America uses and depends upon, and that is in the GROW AMERICA Act.

Mr. Speaker, tomorrow, the Democrats on the Transportation and Infrastructure committee are having a roundtable where each member is going to discuss a project that is stuck because we have not passed a surface transportation bill. What we are trying to do at 2:30 p.m. tomorrow is put a face on what infrastructure means.

What infrastructure means, for example, in the District of Columbia, is the H Street or Hopscotch Bridge. I didn't take on one of the bridges that is simply falling down. There are altogether 31 projects in the District of Columbia that are awaiting funding. I have asked that the projects be put into the RECORD. Some of you would be interested if you were from the District, but it doesn't matter. You all have projects like this in your districts.

Unless we raise the ante, unless we make this an offer that this House cannot refuse, we are going to keep patching this bill until there is nothing left to patch.

This is a House that does not move, even in a crisis. We saw that with the Department of Homeland Security appropriation, that they simply would not give up. Finally, when the administration wouldn't change its immigration executive order, they simply had to let it pass. That is how we figured that one out.

Surely, there is a more rational way to figure out a surface transportation bill. I am working—at least on my side of the aisle—with 1-minutes this week, with the Special Order hour Mr. GARAMENDI has taken out, with social media, and with our work with the many organizations who have come here because this is National Highway and Transportation Week, as they have so declared. We are trying our best.

In this case, we are not trying to reach a compromise. We are simply trying to get to a bill so that we can simply sit down and talk about it. If you don't want to talk about the GROW AMERICA bill, put your own version of a bill, but don't insult the American people by giving us nothing except another patch.

I appreciate that, at least on my own committee, the Transportation and Infrastructure Committee, there is an earnest effort to find a solution to this crisis. I commend Chairman SHUSTER and Ranking Member DEFAZIO for working together in search of a solution. I call upon the Ways and Means Committee, through whom the funds must come, to do their job.

Together, we can do this. We are not going to let this House rest; we are not going to drop this issue, even on May 31, when the funds are set to run out and we have to find a patch. We are going to keep coming to this floor so that the American people know that there are at least some Members of this House who are struggling to get a surface transportation bill, are earnest about it, and won't give up.

Mr. Speaker, I yield back the balance of my time.

□ 2100

CONSTRUCTION OF THE KEYSTONE XL PIPELINE

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Louisiana (Mr. GRAVES) is recognized for 60 minutes as the designee of the majority leader.

Mr. GRAVES of Louisiana. Mr. Speaker, I appreciate the opportunity to talk for a little while tonight about some challenges that we are facing as a nation.

Mr. Speaker, I have never run for office before, and I will tell you I never had intentions of running for office. After sitting home watching from my home State of Louisiana, watching what is happening in Washington, and watching the dysfunction in this Nation, I think that the major motivation for running for office was more out of frustration than anything else—the disparity, the inconsistency in policies, decisions being made that lack, I think, the public interest and are being made more so as a result of political decisions.

Unfortunately, what I am going to talk about tonight I don't think will be the only subject that I end up coming back and talking about over the next several months.

It seems that, oftentimes, the Federal Government's decisions, their policies, their regulations seem to lack any type of connectivity to what is actually happening on the ground—decisions being made in a vacuum, decisions lacking, I think, the true expertise. What I am going to talk about tonight is an example of that.

This picture right here is a picture or the result of bad Federal policy. Now, the administration would lead you to believe that this picture is what is going to happen by building the Keystone pipeline.

This is oil, Mr. Speaker. This is oil in all of these bags that was recently picked up, but the administration would make you think that this is what is going to result from constructing, from building the Keystone pipeline.

The irony is that these bags don't have anything to do with the Keystone pipeline. This was actually oil that was picked up just in the last few months from an oil spill that happened in the Gulf of Mexico, the Deepwater Horizon oil spill 5 years ago—5 years ago, Mr. Speaker.

This administration has been asked over and over and over again by the State of Louisiana and by the coastal parishes in our State to force the responsible parties to go clean up the oil, and it is not happening. It hasn't happened. They haven't been held accountable.

It is unbelievable to me that we have an administration out there talking about their opposition to the Keystone pipeline because they are concerned about the environmental consequences at the exact same time—and over the last 5 years—allowing this to continue. It is hypocrisy. It is absurd, and it is obviously not in the public interest, Mr. Speaker.

The only reason that the White House, the only reason that the State Department is involved in any decisionmaking whatsoever in the Keystone pipeline is a result of the fact that the pipeline actually crosses the border between Canada and the United

States. That is the one thing that actually introduces the Federal Government into this decision.

For the most part, pipelines can be permitted and built by States, with State approval. They don't need interaction or approval from the Federal Government.

Now, by not building the Keystone pipeline or not approving it, many folks in the administration would lead you to believe that that is actually going to benefit the environment, that it will result in less oil consumption, that it will result in less greenhouse gases being released into the environment, into the atmosphere. The reality is that that is not accurate at all.

The reality is that, first of all, if you don't build the Keystone pipeline, you are still going to transport that oil. The Canadians will still be producing that oil, but what is going to happen is they will use other modes of transportation. They will use things like barges. They will use things like rail.

I think it is noteworthy to look at the statistics, to look at the historic performance of these other modes of transportation, which clearly indicate that transporting by pipeline is actually the safest means, the safest mode of transportation to get this product into the United States.

It is safest in regard to different incidents. It is safest in regard to spills, impacts on individuals, on communities, on the economy, on the environment. The safest way to transport is doing it by pipeline.

I mentioned that the oil will still be transported. Here is an example of what happens when you transport through other modes, when you don't transport by pipeline. This is an example of what happens.

As a result, you have had additional oil being transported by rail lines. Look at the extraordinary spike. Look at the extraordinary spike in the spills and the impacts to the environment as a result of transitioning to that mode of transportation.

Mr. Speaker, we have all seen in the news the various accidents that have happened all over the Nation as a result of this flawed policy of refusing to allow for this pipeline to proceed.

The State of Louisiana is a logistics—it is an intermodal hub. We have five of the top 15 ports in the United States. We have enough pipelines in our offshore region that they would go around the Equator if you put them end on end.

We have an extraordinary network of pipelines, demonstrated right here. You can see this high concentration of pipelines that are all over our State and in the adjacent State of Texas and in all 48 States in this graphic here very, very clearly.

I will say it again. The only reason the administration is involved in the Keystone pipeline decision is because that pipeline crosses the U.S. Canadian border. It is the sole reason.

All of these pipeline networks in here probably did not include Federal approval in regard to crossing over international borders. Take a look at this, Mr. Speaker. Take a look at, as I recall, 1.5 million miles of pipelines across the country.

The reality is that major components of the Keystone pipeline are actually already built or can be built without the approval of the Federal Government. That 1-foot section crossing over our Canadian border on the north is the only reason, again, that the administration is involved in this.

The fact remains, number one, by building the Keystone pipeline, it will not result in additional greenhouse gases being released. The Canadians are going to continue to produce the oil. The oil will be sent either through other modes of transportation in the United States, or it will be sent to other countries.

I remind you, Mr. Speaker, the Clean Air Act regimes of these other nations, in most cases, is not as stringent or as strict as it is in the United States, so resulting in a net increase in the greenhouse gases that this administration is so concerned about.

I will say it again. By not approving this pipeline, you are going to force the oil onto barges, onto trucks, onto rail, or other less safe means of transportation.

I certainly have nothing against those other modes of transportation. They are all critically important, but to see this administration hide behind the oil spill or the suggested oil spill impacts of the pipeline is simply absurd. Facts prove otherwise.

As you see here, the majority of this pipeline, by far, can be built without the Federal Government's approval. It is simply nonsensical. It is nonsensical to watch this administration hide behind false excuses to drag this decision out for years, whenever it is contrary to our economy.

What is going to happen if we don't build this pipeline? In addition to using other means of transportation, we will be importing oil, not from the North American continent, but from other countries like Venezuela, like Nigeria and Middle Eastern nations that make up the top 10 nations that export oil to the United States.

In many cases, Mr. Speaker, I will say again, Venezuela, countries that don't share American values; yet we are exporting hundreds of billions of dollars and thousands and thousands of jobs to other countries.

Who is running this place?

Mr. Speaker, the House of Representatives and the U.S. Senate passed a bipartisan bill that was going to allow for the pipeline to be approved, for us to put this behind us and move towards other things, towards higher priority things that actually should have the attention of the United States Congress and the White House, as opposed to these things, decisions that should have been made years ago, and we should have passed on from there.

As a result of these ridiculous decisions, all these tortured reports, all the involvement of various agencies—including the EPA, the State Department, and other agencies—we are continuing to go through this long process, dragging this out, resulting again in less safe means of transportation.

Whether it is coming in through ships from other countries, across the Atlantic Ocean, or it is coming in on rail lines, it is coming in tugs and barges on our waterways, it is being transported to the United States, through less safe means of transportation.

Mr. Speaker, I just want to say, in closing, that this is what happens when you have bad Federal policy, when you are making bad Federal decisions. This is what happens.

You result in thousands of pounds of oil, in miles and miles of shoreline, tens of miles of shoreline, still oil in our home State of Louisiana, as a result of bad Federal policy.

We are watching a similar bad Federal policy unroll right now as the administration continues to invent impediments to what makes sense, to what statistically makes the most sense—by approving a pipeline and getting out of the way—and obstructing our economy development, jobs for Americans, and North American energy independence.

Mr. Speaker, I yield back the balance of my time.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 9 o'clock and 11 minutes p.m.), the House stood in recess.

□ 2215

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. SESSIONS) at 10 o'clock and 15 minutes p.m.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 1735, NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2016; PROVIDING FOR CONSIDERATION OF H.R. 36, PAIN-CAPABLE UNBORN CHILD PROTECTION ACT; PROVIDING FOR CONSIDERATION OF H.R. 2048, USA FREEDOM ACT OF 2015; AND PROVIDING FOR CONSIDERATION OF MOTIONS TO SUSPEND THE RULES

Ms. FOXX from the Committee on Rules, submitted a privileged report (Rept. No. 114–111) on the resolution (H. Res. 255) providing for consideration of the bill (H.R. 1735) to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense and for military construction, to prescribe military personnel

strengths for such fiscal year, and for other purposes; providing for consideration of the bill (H.R. 36) to amend title 18, United States Code, to protect pain-capable unborn children, and for other purposes; providing for consideration of the bill (H.R. 2048) to reform the authorities of the Federal Government to require the production of certain business records, conduct electronic surveillance, use pen registers and trap and trace devices, and use other forms of information gathering for foreign intelligence, counterterrorism, and criminal purposes, and for other purposes; and providing for consideration of motions to suspend the rules, which was referred to the House Calendar and ordered to be printed.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. BARLETTA (at the request of Mr. MCCARTHY) for today and the balance of the week on account of a successful procedure to clear a blocked artery.

Mr. RUIZ (at the request of Ms. PELOSI) for today on account of jury duty.

Ms. SEWELL of Alabama (at the request of Ms. PELOSI) for today.

SENATE BILLS AND CONCURRENT RESOLUTION REFERRED

Bills and a concurrent resolution of the Senate of the following titles were taken from the Speaker's table and, under the rule, referred as follows:

S. 136. An act to amend chapter 21 of title 5, United States Code, to provide that fathers of certain permanently disabled or deceased veterans shall be included with mothers of such veterans as preference eligibles for treatment in the civil service; To The Committee on Oversight and Government Reform.

S. 179. An act to designate the facility of the United States Postal Service located at 14 3rd Avenue NW, in Chisholm, Minnesota, as the ''James L. Oberstar Memorial Post Office Building''; To The Committee on Oversight and Government Reform.

S. 994. An act to designate the facility of the United States Postal Service located at 1 Walter Hammond Place in Waldwick, New Jersey, as the ''Staff Sergeant Joseph D'Augustine Post Office Building''; To The Committee on Oversight and Government Reform.

S. Con. Res. 16. Concurrent Resolution stating the policy of the United States regarding the release of United States citizens in Iran; To The Committee on Foreign Affairs.

ADJOURNMENT

Ms. FOXX. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 10 o'clock and 16 minutes p.m.), under its previous order and pursuant to House Resolution 254, the House adjourned until tomorrow, Wednesday, May 13, 2015, at 10 a.m. for morning-hour debate, as a further mark of respect to the memory of the late Honorable James Claude Wright, Jr.

OATH OF OFFICE MEMBERS, RESIDENT COMMISSIONER, AND DELEGATES

The oath of office required by the sixth article of the Constitution of the United States, and as provided by section 2 of the act of May 13, 1884 (23 Stat. 22), to be administered to Members, Resident Commissioner, and Delegates of the House of Representatives, the text of which is carried in 5 U.S.C. 3331:

> ''I, AB, do solemnly swear (or affirm) that I will support and defend the Constitution of the United States against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties of the office on which I am about to enter. So help me God.''

has been subscribed to in person and filed in duplicate with the Clerk of the House of Representatives by the following Member of the 113th Congress, pursuant to the provisions of 2 U.S.C. 25:

DANIEL M. DONOVAN, JR., Eleventh District of New York.

EXPENDITURE REPORTS CONCERNING OFFICIAL FOREIGN TRAVEL

Reports concerning the foreign currencies and U.S. dollars utilized for Official Foreign Travel during the first quarter of 2015, pursuant to Public Law 95–384, are as follows:

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, SHUWANZA GOFF, EXPENDED BETWEEN MAR. 27 AND APR. 4, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Shuwanza Goff	3/28	4/4	Burma		2,079.00		15,126.10				17,205.10
Committee total					2,079.00		15,126.10				17,205.10

SHUWANZA GOFF, Apr. 21, 2015.

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, EMILY MURRY, EXPENDED BETWEEN MAR. 27 AND APR. 4, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Emily Murry	3/28	4/4	Burma		2,079.00		15,226.10				17,305.10 −310.00
Committee total					2,079.00		15,226.10				16,995.10

EMILY MURRY, May 4, 2015.

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO THE UNITED KINGDOM, JORDAN, KUWAIT, IRAQ, SAUDI ARABIA, ISRAEL, AND SPAIN, EXPENDED BETWEEN MAR. 27 AND APR. 3, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. John Boehner	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. Rodney Frelinghuysen	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. John Kline	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. Devin Nunes	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. Ileana Ros-Lehtinen	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. Ken Calvert	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. Mike Simpson	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. Tom Cole	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. Martha Roby	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. George Holding	3/27	3/28	United Kingdom		540.00	[3]					540.00
Mike Sommers	3/27	3/28	United Kingdom		540.00	[3]	890.00				1,430.00
Jen Stewart	3/27	3/28	United Kingdom		540.00	[3]					540.00
Michael Ricci	3/27	3/28	United Kingdom		540.00	[3]					540.00
Jeff Shockey	3/27	3/28	United Kingdom		540.00	[3]					540.00
Rob Blair	3/27	3/28	United Kingdom		540.00	[3]					540.00
Hon. John Boehner	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. Rodney Frelinghuysen	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. John Kline	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. Devin Nunes	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. Ileana Ros-Lehtinen	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. Ken Calvert	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. Mike Simpson	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. Tom Cole	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. Martha Roby	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. George Holding	3/28	3/30	Jordan		586.00	[3]	5,885.00				6,471.00
Jen Stewart	3/28	3/30	Jordan		586.00	[3]					586.00
Michael Ricci	3/28	3/30	Jordan		586.00	[3]					586.00
Jeff Shockey	3/28	3/30	Jordan		586.00	[3]					586.00
Rob Blair	3/28	3/30	Jordan		586.00	[3]					586.00
Hon. John Boehner	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. Rodney Frelinghuysen	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. John Kline	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. Devin Nunes	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. Ileana Ros-Lehtinen	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. Ken Calvert	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. Mike Simpson	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. Tom Cole	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. Martha Roby	3/30	3/31	Kuwait		369.00	[3]					369.00
Jen Stewart	3/30	3/31	Kuwait		369.00	[3]					369.00
Michael Ricci	3/30	3/31	Kuwait		369.00	[3]					369.00
Jeff Shockey	3/30	3/31	Kuwait		369.00	[3]					369.00
Rob Blair	3/30	3/31	Kuwait		369.00	[3]					369.00
Hon. John Boehner	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. Rodney Frelinghuysen	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. John Kline	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. Devin Nunes	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. Ileana Ros-Lehtinen	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. Ken Calvert	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. Mike Simpson	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. Tom Cole	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. Martha Roby	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Jen Stewart	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Michael Ricci	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Jeff Shockey	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Rob Blair	3/31	4/02	Israel		1,000.00	[3]					1,000.00
Hon. John Boehner	4/02	4/03	Spain		250.00	[3]					250.00
Hon. Rodney Frelinghuysen	4/02	4/03	Spain		250.00	[3]					250.00
Hon. John Kline	4/02	4/03	Spain		250.00	[3]					250.00
Hon. Devin Nunes	4/02	4/03	Spain		250.00	[3]					250.00
Hon. Ileana Ros-Lehtinen	4/02	4/03	Spain		250.00	[3]					250.00
Hon. Ken Calvert	4/02	4/03	Spain		250.00	[3]					250.00
Hon. Mike Simpson	4/02	4/03	Spain		250.00	[3]					250.00
Hon. Tom Cole	4/02	4/03	Spain		250.00	[3]					250.00
Hon. Martha Roby	4/02	4/03	Spain		250.00	[3]					250.00
Jen Stewart	4/02	4/03	Spain		250.00	[3]					250.00
Michael Ricci	4/02	4/03	Spain		250.00	[3]					250.00
Jeff Shockey	4/02	4/03	Spain		250.00	[3]					250.00
Rob Blair	4/02	4/03	Spain		250.00	[3]					250.00
Committee total					37,351.00		6,775.00				44,126.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. JOHN BOEHNER, May 4, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO TUNISIA, UKRAINE, GERMANY, AND FRANCE, EXPENDED BETWEEN MAR. 26 AND APR. 2, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Kevin McCarthy	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Mike Conaway	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Kay Granger	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Fred Upton	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Peter Welch	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Diane Black	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Erik Paulsen	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Tom Graves	3/27	3/29	Tunisia		576.00		[3]				576.00
Natalie Buchanan	3/27	3/29	Tunisia		576.00		[3]				576.00
Barrett Karr	3/27	3/29	Tunisia		576.00		[3]				576.00
Kelly Dixon	3/27	3/29	Tunisia		576.00		[3]				576.00
Robert Karem	3/27	3/29	Tunisia		576.00		[3]				576.00
Hon. Kevin McCarthy	3/29	3/31	Ukraine		769.00		[3]				769.00
Hon. Mike Conaway	3/29	3/31	Ukraine		769.00		[3]				769.00
Hon. Kay Granger	3/29	3/31	Ukraine		769.00		[3]				769.00
Hon. Fred Upton	3/29	3/31	Ukraine		769.00		[3]				769.00
Hon. Peter Welch	3/29	3/31	Ukraine		769.00		[3]				769.00
Hon. Diane Black	3/29	3/31	Ukraine		769.00		[3]				769.00
Hon. Erik Paulsen	3/29	3/31	Ukraine		769.00		[3]				769.00

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO TUNISIA, UKRAINE, GERMANY, AND FRANCE, EXPENDED BETWEEN MAR. 26 AND APR. 2, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Tom Graves	3/29	3/31	Ukraine		769.00		[3]				769.00
Natalie Buchanan	3/29	3/31	Ukraine		769.00		[3]				769.00
Barrett Karr	3/29	3/31	Ukraine		769.00		[3]				769.00
Kelly Dixon	3/29	3/31	Ukraine		769.00		[3]				769.00
Robert Karem	3/29	3/31	Ukraine		769.00		[3]				769.00
Hon. Kevin McCarthy	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Mike Conaway	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Kay Granger	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Fred Upton	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Peter Welch	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Diane Black	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Erik Paulsen	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Tom Graves	3/31	3/31	Germany		N/A		[3]				N/A
Natalie Buchanan	3/31	3/31	Germany		N/A		[3]				N/A
Barrett Karr	3/31	3/31	Germany		N/A		[3]				N/A
Kelly Dixon	3/31	3/31	Germany		N/A		[3]				N/A
Robert Karem	3/31	3/31	Germany		N/A		[3]				N/A
Hon. Kevin McCarthy	3/31	4/2	France		937.00		[3]				937.00
Hon. Mike Conaway	3/31	4/2	France		937.00		[3]				937.00
Hon. Kay Granger	3/31	4/2	France		937.00		[3]				937.00
Hon. Fred Upton	3/31	4/2	France		937.00		[3]				937.00
Hon. Peter Welch	3/31	4/2	France		937.00		[3]				937.00
Hon. Diane Black	3/31	4/2	France		937.00		[3]				937.00
Hon. Erik Paulsen	3/31	4/2	France		937.00		[3]				937.00
Hon. Tom Graves	3/31	4/2	France		937.00		[3]				937.00
Natalie Buchanan	3/31	4/2	France		937.00		[3]				937.00
Barrett Karr	3/31	4/2	France		937.00		[3]				937.00
Kelly Dixon	3/31	4/2	France		937.00		[3]				937.00
Robert Karem	3/31	4/2	France		937.00		[3]				937.00
Committee total					27,384						27,384

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. KEVIN McCARTHY, May 1, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO CAMBODIA, VIETNAM, BURMA, KOREA, AND JAPAN, EXPENDED BETWEEN MAR. 26 AND APR. 4, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Nancy Pelosi	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Charles Rangel	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Sander Levin	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Anna Eshoo	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Zoe Lofgren	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Mike Thompson	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Doris Matsui	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Dan Kildee	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Mark Takai	3/28	3/30	Cambodia		622.00		[3]				622.00
Wyndee Parker	3/28	3/30	Cambodia		622.00		[3]				622.00
Katherine Monge	3/28	3/30	Cambodia		622.00		[3]				622.00
Drew Hammill	3/28	3/30	Cambodia		622.00		[3]				622.00
Kate Knudson Wolters	3/28	3/30	Cambodia		622.00		[3]				622.00
Bina Surgeon	3/28	3/30	Cambodia		622.00		[3]				622.00
Rachel Klay	3/28	3/30	Cambodia		622.00		[3]				622.00
Hon. Nancy Pelosi	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Sander Levin	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Charles Rangel	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Anna Eshoo	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Zoe Lofgren	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Mike Thompson	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Doris Matsui	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Michael Fitzpatrick	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Dan Kildee	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Mark Takai	3/30	4/1	Vietnam		555.45		[3]				555.45
Wyndee Parker	3/30	4/1	Vietnam		555.45		[3]				555.45
Katherine Monge	3/30	4/1	Vietnam		555.45		[3]				555.45
Drew Hammill	3/30	4/1	Vietnam		555.45		[3]				555.45
Kate Knudson Wolters	3/30	4/1	Vietnam		555.45		[3]				555.45
Bina Surgeon	3/30	4/1	Vietnam		555.45		[3]				555.45
Rachel Klay	3/30	4/1	Vietnam		555.45		[3]				555.45
Hon. Nancy Pelosi	4/1	4/1	Burma				[3]				
Hon. Charles Rangel	4/1	4/1	Burma				[3]				
Hon. Sander Levin	4/1	4/1	Burma				[3]				
Hon. Anna Eshoo	4/1	4/1	Burma				[3]				
Hon. Zoe Lofgren	4/1	4/1	Burma				[3]				
Hon. Mike Thompson	4/1	4/1	Burma				[3]				
Hon. Doris Matsui	4/1	4/1	Burma				[3]				
Hon. Michael Fitzpatrick	4/1	4/1	Burma				[3]				
Hon. Dan Kildee	4/1	4/1	Burma				[3]				
Hon. Mark Takai	4/1	4/1	Burma				[3]				
Wyndee Parker	4/1	4/1	Burma				[3]				
Katherine Monge	4/1	4/1	Burma				[3]				
Drew Hammill	4/1	4/1	Burma				[3]				
Kate Knudson Wolters	4/1	4/1	Burma				[3]				
Bina Surgeon	4/1	4/1	Burma				[3]				
Rachel Klay	4/1	4/1	Burma				[3]				
Hon. Nancy Pelosi	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Charles Rangel	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Sander Levin	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Anna Eshoo	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Zoe Lofgren	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Mike Thompson	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Doris Matsui	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Michael Fitzpatrick	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Dan Kildee	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Mark Takai	4/1	4/3	Korea		706.00		[3]				706.00
Wyndee Parker	4/1	4/3	Korea		706.00		[3]				706.00

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO CAMBODIA, VIETNAM, BURMA, KOREA, AND JAPAN, EXPENDED BETWEEN MAR. 26 AND APR. 4, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Katherine Monge	4/1	4/3	Korea		706.00		[3]				706.00
Drew Hammill	4/1	4/3	Korea		706.00		[3]				706.00
Kate Knudson Wolters	4/1	4/3	Korea		706.00		[3]				706.00
Bina Surgeon	4/1	4/3	Korea		706.00		[3]				706.00
Rachel Klay	4/1	4/3	Korea		706.00		[3]				706.00
Hon. Nancy Pelosi	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Charles Rangel	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Sander Levin	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Anna Eshoo	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Zoe Lofgren	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Mike Thompson	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Doris Matsui	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Michael Fitzpatrick	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Dan Kildee	4/3	4/4	Japan		338.00		[3]				338.00
Hon. Mark Takai	4/3	4/4	Japan		338.00		[3]				338.00
Wyndee Parker	4/3	4/4	Japan		339.00		[3]				339.00
Katherine Monge	4/3	4/4	Japan		339.00		[3]				339.00
Drew Hammill	4/3	4/4	Japan		339.00		[3]				339.00
Kate Knudson Wolters	4/3	4/4	Japan		339.00		[3]				339.00
Bina Surgeon	4/3	4/4	Japan		339.00		[3]				339.00
Rachel Klay	4/3	4/4	Japan		339.00		[3]				339.00
Committee total					$34,927.20						$34,927.20

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. NANCY PELOSI, May 1, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON AGRICULTURE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Collin C. Peterson	1/29	2/1	Panama		789.00		160.00		611.48		1,560.48
Committee total					789.00		160.00		611.48		1,560.48

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. K. MICHAEL CONAWAY, Chairman, Apr. 30, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON APPROPRIATIONS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Magan Milam Rosenbusch	1/11	1/13	Romania		251.10						251.10
	1/13	1/15	Poland		568.12						568.12
	1/15	1/17	Ukraine		741.38						741.38
Commercial airfare							2,721.50				2,721.50
Paul Terry	1/11	1/13	Romania		251.10						251.10
	1/13	1/15	Poland		568.21						568.21
	1/15	1/17	Ukraine		741.38						741.38
Commercial airfare							2,620.82				2,620.82
Hon. Rodney Frelinghuysen	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Hon. Peter Visclosky	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Hon. Kay Granger	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,162.12				878.98		2,041.10
Commercial airfare							1,034.80				1,034.80
Hon. Ken Calvert	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Hon. John Carter	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Hon. Steve Womack	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Hon. Marcy Kaptur	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,162.12				878.98		2,041.10
Commercial airfare							1,636.70				1,636.70
Hon. Steve Israel	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/14	United Kingdom		1,162.12				878.98		2,041.10
Commercial airfare							6,130.10				6,130.10
Paul Juola	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Tim Prince	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON APPROPRIATIONS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Brooke Boyer	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Kaitlyn Eisner-Poor	3/6	3/9	Egypt		1,151.45				284.90		1,436.35
	3/9	3/10	Cyprus		257.79				284.77		542.56
	3/10	3/12	Ukraine		738.59				222.69		961.28
	3/12	3/15	United Kingdom		1,743.18				878.98		2,622.16
Hon. Harold Rogers	3/6	3/9	United Kingdom		1,622.76				722.60		2,345.36
	3/9	3/12	Morocco		749.00				1,262.07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Mike Simpson	3/6	3/9	United Kingdom		1,622.76				722.60		2,345.36
	3/9	3/12	Morocco		749.00				1,262.07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Ander Crenshaw	3/6	3/9	United Kingdom		1,622.76				722.60		2,345.36
	3/9	3/12	Morocco		749.00				1,262.07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Tom Cole	3/6	3/9	United Kingdom		1,622.76				722.60		2,345.36
	3/9	3/12	Morocco		749.00				1,262.07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Diaz Balart	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
Commercial airfare							1,382.90				1,382,90
Hon. Chris Stewart	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. David Jolly	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Sanford Bishop	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Charles Dutch Ruppersberger	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Henry Cuellar	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
William Smith	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Dale Oak	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
B.G. Wright	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Anne Marie Chotvacs	3/6	3/9	United Kingdom		1,622.76				722.60		2,345,36
	3/9	3/12	Morocco		749,00				1,262,07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Steve Marchese	3/6	3/9	United Kingdom		1,622.76				722.60		2,345.36
	3/9	3/12	Morocco		749.00				1,262.07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Clelia Alvarado	3/6	3/9	United Kingdom		1,622.76				722.60		2,345.36
	3/9	3/12	Morocco		749.00				1,262.07		2,011.07
	3/12	3/12	Tunisia						25.14		25.14
	3/12	3/15	France		1,355.00				1,044.93		2,399.93
Hon. Chaka Fattah	3/10	3/11	Israel		439.00				2,652.54		3,091.54
Commercial airfare							2,786.36				2,786.36
Hon. Nita Lowey	3/7	3/10	India		906.00						906.00
	3/10	3/13	China		911.00						911.00
	3/13	3/15	Taiwan		546.00						546.00
Commercial airfare							1,135.00				1,135.00
Erin Kolodjeski	3/7	3/10	India		906.00						906.00
	3/10	3/13	China		911.00						911.00
	3/13	3/16	Taiwan		648.00						648.00
Commercial airfare							1,094.80				1,094.80
Jennifer Hing	3/6	3/10	Bahrain		1,022.22				142.92		1,165.14
	3/10	3/13	Jordan		1,066.23				264.65		1,330.88
Commercial airfare							12,012.00				12,012.00
Megan Milam Rosenbusch	3/6	3/10	Bahrain		1,022.22				142.92		1,165.14
	3/10	3/13	Jordan		1,066.23				264.65		1,330.88
Commercial airfare							12,012.00				12,012.00
Ground transportation							105.44				105.44
Tom O'Brien	3/6	3/10	Bahrain		1,022.22				142.92		1,165.14
	3/10	3/13	Jordan		1,066.23				264.65		1,330.88
Commercial airfare							12,012.00				12,012.00
Andrew Cooper	3/6	3/10	Bahrain		1,022.22				142.92		1,165.14
	3/10	3/13	Jordan		1,066.23				264.65		1,330.88
Commercial airfare							12,012.00				12,012.00
Ground transportation							95.06				95.06
Committee total					118,554.95		68,791.48		71,575.00		258,921.43

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. HAROLD ROGERS, Chairman, Apr. 30, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ENERGY AND COMMERCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Adam Kinzinger	1/29	1/31	Panama		526.00		569.35		611.48		1,706.83
Hon. Markwayne Mullin	1/29	2/1	Panama		789.00		160.00		611.48		1,560.48
Hon. Marsha Blackburn	2/13	2/18	England		1,808.54		1,098.10		455.40		3,362.04
Jessica Wilkerson	2/13	2/18	England		2,069.28		1,035.00				3,104.28
Hon. John Shimkus	3/8	3/12	Lithuania		826.72		8,003.90		963.84		9,794.46
Committee total					6,019.54		10,866.35		2,642.20		19,528.09

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. FRED UPTON, Chairman, Apr. 30, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON FINANCIAL SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Robert Dold	1/29	2/1	Panama		665.72		[3]		771.48		1,437.20
Hon. Luke Messer	3/7	3/10	India		906.00		[3]				906.00
Hon. Luke Messer	3/10	3/13	China		911.00		[3]				911.00
Hon. Luke Messer	3/13	3/15	Taiwan		546.00		1,135.00				1,681.00
Committee total					3,028.72		1,135.00		771.48		4,935.20

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. JEB HENSARLING, Chairman, Apr. 30, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON FOREIGN AFFAIRS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Gregory Meeks	2/14	2/15	Georgia		305.00		[3]				305.00
	2/15	2/17	Singapore		914.00		[3]				914.00
	2/17	2/18	Malaysia		274.58		[3]				274.58
	2/18	2/21	Japan		1,214.51		344.43				1,558.94
Sophia Lafargue	2/14	2/15	Georgia		305.00		[3]				305.00
	2/15	2/17	Singapore		844.00		[3]				844.00
	2/17	2/18	Malaysia		261.64		[3]				261.64
	2/18	2/21	Japan		1,214.51		344.43				1,558.94
Thomas M. Hill	3/09	3/10	Belgium		294.59		4,004.30				4,298.89
	3/10	3/12	Latvia		448.31						448.31
	3/12	3/14	Poland		550.13						550.13
Timothy Mulvey	3/09	3/10	Belgium		294.59		4,039.30				4,333.89
	3/10	3/12	Latvia		448.31						448.31
	3/12	3/14	Poland		550.13						550.13
Douglas Seay	2/15	2/18	Poland		825.00		5,784.20				6,609.20
Kyle Parker	2/15	2/17	Poland		562.10		7,127.70				7,689.80
	2/19	2/21	Belgium		633.67						633.67
	2/17	2/19	Germany		639.17						639.17
Amy Porter	1/18	1/20	Democratic Rep. of Congo		837.00		15,785.00				16,622.00
Worku Gachou	1/18	1/20	Democratic Rep. of Congo		827.00		15,785.00				16,612.00
Hon. Tom Emmer	2/24	2/24	Guantanamo Bay, Cuba				[3]				
Hon. Dana Rohrabacher	3/12	3/13	Kuwait		393.00		15,728.00			* 575.00	16,696.00
	3/13	3/16	Egypt		1,353.50					* 4,636.00	5,989.50
Hon. Reid Ribble	3/10	3/11	UK		369.00		20,560.20				20,929.20
	3/12	3/13	Kuwait		393.00						283.00
	3/13	3/15	Egypt		725.00						725.00
Paul Behrends	3/12	3/13	Kuwait		393.00		17,593.80				17,986.80
	3/13	3/16	Egypt		1,353.50						1,353.50
Hon. Darrell Issa	3/19	3/22	Belgium		1,134.00		2,410.20				3,544.20
Hon. Tom Marino	3/19	3/23	UK		1,656.59		1,026.60				2,683.19
Hon. Eliot Engel	2/06	2/08	Germany		819.85		[3]				819.85
	2/06	2/06	Tunisia				[3]				
Hon. Edward R. Royce	3/07	3/10	India		831.00		[3]			* 7,175.07	8,006.07
	3/10	3/13	China		911.00		[3]			* 7,770.05	8,681.05
	3/13	3/15	Taiwan		495.00		1,135.00			* 6,586.60	8,216.00
Hon. Matthew Salmon	3/07	3/10	India		906.00		[3]				906.00
	3/10	3/13	China		911.00		[3]				911.00
	3/13	3/15	Taiwan		546.00		1,135.00				1,681.00
Hon. Ami Bera	3/07	3/10	India		746.00		[3]				746.00
	3/10	3/13	China		751.00		[3]				751.00
	3/13	3/15	Taiwan		386.00		1,135.00				1,521.00
Shelley Su	3/07	3/10	India		881.00		[3]				881.00
	3/10	3/13	China		841.00		[3]				841.00
	3/13	3/16	Taiwan		501.00		1,094.80				1,595.00
Jennifer Hendrixson White	3/07	3/10	India		843.00		[3]				843.00
	3/10	3/13	China		817.00		[3]				817.00
	3/13	3/15	Taiwan		556.00		1,097.00				1,653.70
Elizabeth Heng	3/07	3/10	India		852.00		[3]				852.00
	3/10	3/13	China		911.00		[3]				911.00
	3/13	3/16	Taiwan		587.00		986.00				1,573.80
Hunter Strupp	3/07	3/10	India		856.00		[3]				856.00
	3/10	3/13	China		861.00		[3]				861.00
	3/13	3/16	Taiwan		819.00		1,097.70				1,916.70
Peter Freeman	3/07	3/10	India		856.00		[3]				856.00
	3/10	3/13	China		861.00		[3]				861.00
	3/13	3/16	Taiwan		819.00		1,097.70				1,916.70
Greg Simpkins	2/15	2/20	Ethiopia		648.00		6,259.32				6,907.32
	2/16	2/20	South Sudan		1,414.50					*300.00	1,714.50
Travis Adkins	2/15	2/20	Ethiopia		653.00		6,259.32				6,912.32
	2/16	2/20	South Sudan		1,455.00						1,455.00

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON FOREIGN AFFAIRS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Committee total					43,238.18		131,831.50			* 27,042.72	202,112.40

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.
* Indicates Delegation Costs.

HON. EDWARD R. ROYCE, Chairman, Apr. 30, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON HOMELAND SECURITY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]

HOUSE COMMITTEES

Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. MICHAEL T. McCAUL, Chairman, Apr. 28, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE JUDICIARY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Bob Goodlatte	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Hon. Jim Sensenbrenner	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Hon. Tom Marino	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Hon. Jerrold Nadler	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Hon. Zoe Lofgren	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Hon. David Cicilline	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Susan Jensen	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Shelley Husband	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Allison Halataei	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
George Fishman	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
John Manning	3/06	3/15	*		869.00		(3)		2,472.00		3,341.00
Committee total					9,559.00				27,192.00		36,751.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.
[4] Countries visited: Ireland, Turkey, Cypress, Jordan, Israel and the West Bank.

HON. BOB GOODLATTE, Chairman, Apr. 30, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON RULES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Pete Sessions	3/7	3/10	India		906.00		(3)				906.00
	3/10	3/13	China		911.00		(3)				911.00
	3/13	3/15	Taiwan		546.00		(3)				546.00
Committee total					2,363.00						2,363.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. PETE SESSIONS, Chairman, Apr. 21, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON SMALL BUSINESS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Steve Chabot	3/10	3/12	Chile		473.00						473.00
	3/12	3/13	Argentina		342.00				* 273.20		615.20
	3/13	3/14	Uruguay		247.00				* 1,907.00		2,154.00
Commercial airfare							11,020.49				11,020.49
Kevin Fitzpatrick	3/10	3/12	Chile		473.00						473.00
	3/12	3/13	Argentina		342.00				* 273.20		615.20
	3/13	3/14	Uruguay		247.00				* 1,907.00		2,154.00
Commercial airfare							12,027.39				12,027.39
Committee total					2,124.00		23,047.88		4,360.40		29,532.28

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
*Transportation and overtime and translator incurred by each traveler.

HON. STEVE CHABOT, Chairman, Apr. 22, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON VETERANS' AFFAIRS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES											
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. JEFF MILLER, Chairman, Apr. 29, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON WAYS AND MEANS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Paul Ryan	2/14	2/15	Georgia		305.00				1,561.10		1,866.10
	2/15	2/17	Singapore		914.00				2,277.51		3,191.51
	2/17	2/18	Malaysia		274.59				4,723.52		4,998.10
	2/18	2/21	Japan		1,021.20		344.33		15,761.86		17,127.40
Hon. David G. Reichert	2/14	2/15	Georgia		305.00						305.00
	2/15	2/17	Singapore		844.00						844.00
	2/17	2/18	Malaysia		261.64						261.64
	2/18	2/21	Japan		1,021.21		344.33				1,365.54
Hon. Vern Buchanan	2/14	2/15	Georgia		305.00						305.00
	2/15	2/17	Singapore		914.00						914.00
	2/17	2/18	Malaysia		274.58						274.58
	2/18	2/21	Japan		1,021.21		344.33				1,365.54
Hon. Adrian Smith	2/14	2/15	Georgia		305.00						305.00
	2/15	2/17	Singapore		914.00						914.00
	2/17	2/18	Malaysia		274.58						274.58
	2/18	2/21	Japan		1,021.20		344.33				1,365.53
Hon. Patrick J. Tiberi	2/14	2/15	Georgia		305.00						305.00
	2/15	2/17	Singapore		844.00						844.00
	2/17	2/18	Malaysia		261.64						261.64
	2/18	2/21	Japan		519.40		6,245.13				6,764.53
Angela Ellard	2/14	2/15	Georgia		248.00						248.00
	2/15	2/17	Singapore		787.00						787.00
	2/17	2/18	Malaysia		204.64						204.64
	2/18	2/21	Japan		964.20		344.33				1,308.53
Geoff Antell	2/14	2/15	Georgia		277.50						277.50
	2/15	2/17	Singapore		816.50						816.50
	2/17	2/18	Malaysia		234.14						234.14
	2/18	2/21	Japan		993.70		344.33				1,338.03
Steve Claeys	2/14	2/15	Georgia		277.50						277.50
	2/15	2/17	Singapore		816.50						816.50
	2/17	2/18	Malaysia		234.14						234.14
	2/18	2/21	Japan		993.70		344.33				1,338.03
Brendan Buck	2/14	2/15	Georgia		223.25						223.25
	2/15	2/17	Singapore		762.25						762.25
	2/17	2/18	Malaysia		179.89						179.89
	2/18	2/21	Japan		939.45		344.33				1,283.78
Austin Smythe	2/14	2/15	Georgia		207.50						207.50
	2/15	2/17	Singapore		746.50						746.50
	2/17	2/18	Malaysia		181.64						181.64
	2/18	2/21	Japan		906.20		344.33				1,250.53
Hon. Charles W. Boustany	2/14	2/15	Georgia		305.00						305.00
	2/15	2/17	Singapore		914.00						914.00
	2/17	2/18	Malaysia		274.58						274.58
	2/18	2/21	Japan		1,021.21		344.33				1,365.54
Hon. George Holding	3/7	3/10	India		906.00						906.00
	3/10	3/13	China		911.00						911.00
	3/13	3/15	Taiwan		546.00		1,135.00				1,681.00
Hon. Sander M. Levin	2/14	2/15	Colombia		2,069.00		222.97		4,595.00		6,886.97
	2/15	2/15	Panama		99.00				885.00		984.00
Committee total					29,946.25		11,046.40		29,803.99		70,796.63

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. PAUL RYAN, Chairman, Apr. 30, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, PERMANENT SELECT COMMITTEE ON INTELLIGENCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Michael Pompeo	2/6	2/6	Africa								
	2/6	2/8	Europe		819.85						
							[3]				819.85
Hon. Devin Nunes	2/6	2/8	Middle East		710.81						
	2/8	2/9	Asia		388.00						
							[3]				1,098.81
Jeffrey Shockey	2/6	2/8	Middle East		710.81						
	2/8	2/9	Asia		388.00						
							[3]				1,098.81
Hon. Devin Nunes	2/18	2/21	Asia		771.02						
Commercial airfare							13,752.20				14,523.22
Hon. Michael Quigley	3/10	3/13	Middle East		1,455,00						
Commercial airfare							13,337.10				14,792.10
Amanda Rogers Thorpe	3/10	3/13	Middle East		1,455,00						
Commercial airfare							13,604.70				15,059.70
Hon. Devin Nunes	3/27	3/28	Europe		543.21						
	3/28	3/30	Middle East		710.82						
	3/30	3/30	Middle East								
	3/30	3/31	Middle East		368.94						
	3/31	3/31	Middle East								
	3/31	4/2	Middle East		1,000.00						
	4/2	4/3	Europe		233.26						

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, PERMANENT SELECT COMMITTEE ON INTELLIGENCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
							([3])				2,856.23
Jeffrey Shockey	3/27	3/28	Europe		543.21						
	3/28	3/30	Middle East		710.82						
	3/30	3/30	Middle East								
	3/30	3/31	Middle East		368.94						
	3/31	3/31	Middle East								
	3/31	4/2	Middle East		1,000.00						
	4/2	4/3	Europe		233.26						
							([3])				2,856.23
Committee total					12,410.95		40,694.00				53,104.95

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. DEVIN NUNES, Apr. 28, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, JOINT COMMITTEE ON TAXATION, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]

HOUSE COMMITTEES
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return.☒

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. PAUL RYAN, Chairman, Apr. 20, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, U.S. COMMISSION ON SECURITY AND COOPERATION IN EUROPE, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Janice Helwig	2/9	3/31	Austria	Euro	15,830.00		11,675.50				27,505.50
Robert Hand	2/16	2/21	Austria	Euro	1,348.58		1,775.40				3,123.98
Hon. Chris Smith	2/18	2/20	Austria	Euro	337.15		4,705.10				5,042.25
Mark Milosch	2/18	2/21	Austria	Euro	674.29		1,810.40				2,484.69
Nathaniel Hurd	2/18	2/21	Austria	Euro	674.29		1,775.50				2,449.79
David Kostelancik	2/25	3/3	Tajikistan	Somoni	1,486.00		6,626.80				8,112.80
Mischa Thompson	3/17	3/24	Belgium	Euro	2,505.51		1,710.00				4,215.51
			Paris	Euro							
Alex Johnson	3/24	3/27	Serbia	Dinar	600.00		3,782.10				4,382.10
Commitee total					23,455.82		33,860.80				57,316.62

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. CHRISTOPHER H. SMITH, Chairman, Apr. 29, 2015.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

1419. A letter from the Administrator, Rural Business-Cooperative Service, Department of Agriculture, transmitting the Department's final rule — Subpart J — Value-Added Producer Grant Program (RIN: 0570-AA79) received May 6, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

1420. A letter from the Chairman and President, Export-Import Bank, transmitting the Export-Import Bank's export report for April 2015; to the Committee on Financial Services.

1421. A letter from the Assistant Secretary for Energy Efficiency and Renewable Energy, Department of Energy, transmitting the Department's Annual Report on Federal Government Energy Management and Conservation Programs, Fiscal Year 2013; to the Committee on Energy and Commerce.

1422. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the FY 2014 Performance Report to Congress, required by the Animal Generic Drug User Fee Act; to the Committee on Energy and Commerce.

1423. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Food and Drug Administration's FY 2014 Animal Generic Drug User Fee Act Financial Report, required by the Animal Generic Drug User Fee Act, as amended; to the Committee on Energy and Commerce.

1424. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Food and Drug Administration's FY 2014 Performance Report to Congress for the Animal Drug User Fee Act; to the Committee on Energy and Commerce.

1425. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Food and Drug Administration's FY 2014 Animal Drug User Fee Act Financial Report, required by the Animal Drug User Fee Act, as amended; to the Committee on Energy and Commerce.

1426. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's final rule — Organ Procurement and Transplantation: Implementation of the HIV Organ Policy Equity Act (RIN: 0906-AB05) received May 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1427. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Approval of Alabama's Request to Relax the Federal Reid Vapor Pressure Gasoline Volatility Standard for Birmingham, Alabama [EPA-HQ-OAR-2014-0905; FRL 9927-16-OAR] (RIN: 2060-AS58) received May 6, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1428. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Prevention of Significant Deterioration Permitting for Greenhouse Gases: Providing Option for Rescission of EPA-Issued Tailoring Rule Step 2 Prevention of Significant Deterioration Permits [EPA-HQ-OAR-2015-0071; FRL-9926-98-OAR] (RIN: 2060-AS57) received May 6, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1429. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Bacillus thuringiensis Cry1A.105 Protein in Soybean; Exemption from the Requirement of a Tolerance [EPA-HQ-OPP-2014-0454; FRL-9926-23] received May 6, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1430. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Washington: Infrastructure Requirements for the Fine Particulate Matter National Ambient Air Quality

Standards [EPA-R10-OAR-2014-0744; FRL-9927-45-Region 10] received May 6, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1431. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Significant New Use Rules on Certain Chemical Substances [EPA-HQ-OPPT-2014-0908; FRL-9925-42] (RIN: 2070-AB27) received May 6, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1432. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Pennsylvania; Infrastructure Requirements for the 2010 Nitrogen Dioxide and 2012 Fine Particulate Matter National Ambient Air Quality Standards [EPA-R03-OAR-2014-0910] received May 6, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1433. A letter from the Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Concentration Averaging and Encapsulation Branch Technical Position, Revision 1 received May 6, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1434. A letter from the Federal Register Liaison Officer, Census Bureau, Department of Commerce, transmitting the Department's final rule — Foreign Trade Regulations (FTR): Reinstatement of Exemptions Related to Temporary Exports, Carnets, and Shipments Under a Temporary Import Bond [Docket No.: 140821699-5179-02] (RIN: 0607-AA53) received May 5, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Foreign Affairs.

1435. A letter from the Special Inspector General for Afghanistan Reconstruction, transmitting the twenty-seventh quarterly report to the Congress on Afghanistan Reconstruction, pursuant to Public Law 110-181, Sec. 1229; to the Committee on Foreign Affairs.

1436. A letter from the Chair, Board of Governors of the Federal Reserve System, transmitting the Board's Semiannual Report to Congress for the six-month period ending March 31, 2015, as required by the Inspector General Act of 1978, as amended; to the Committee on Oversight and Government Reform.

1437. A letter from the Chief Executive Officer, Corporation for National and Community Service, transmitting the Corporation's FY 2014 annual report, pursuant to Sec. 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Pub. L. 107-174; to the Committee on Oversight and Government Reform.

1438. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 21-50, ''Pre-K Student Discipline Amendment Act of 2015'', pursuant to Public Law 93-198, Sec. 602(c)(1); to the Committee on Oversight and Government Reform.

1439. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 21-51, ''Health Benefit Exchange Authority Financial Sustainability Amendment Act of 2015'', pursuant to Public Law 93-198, Sec. 602(c)(1); to the Committee on Oversight and Government Reform.

1440. A letter from the Director, Environmental Protection Agency, transmitting the Agency's FY 2014 annual report, pursuant to Sec. 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Pub. L. 107-174; to the Committee on Oversight and Government Reform.

1441. A letter from the Chairman, Federal Deposit Insurance Corporation, transmitting the Corporation's updated Strategic Plan for the period 2015 through 2019, in accordance with the Government Performance and Results Act of 1993, as amended; to the Committee on Oversight and Government Reform.

1442. A letter from the Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's summary presentation of final rules — Federal Acquisition Regulation; Federal Acquisition Circular 2005-82; Introduction [Docket No.: FAR 2015-0051, Sequence No.: 2] received May 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1443. A letter from the Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation: Equal Employment and Affirmative Action for Veterans and Individuals with Disabilities [FAC 2005-82; FAR Case 2014-013; Item I; Docket 2014-0013, Sequence 1] (RIN: 9000-AM76) received May 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1444. A letter from the Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Review and Justification of Pass-Through Contracts [FAC 2005-82; FAR Case 2013-012; Item II; Docket No.: 2013-0012; Sequence No.: 1] (RIN: 9000-AM57) received May 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1445. A letter from the Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Enhancements to Past Performance Evaluation Systems [FAC 2005-82; FAR Case 2014-010; Item III; Docket No.: 2014-0010, Sequence No.: 1] (RIN: 9000-AM79) received May 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1446. A letter from the Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Technical Amendments [FAC 2005-82; Item IV; Docket No.: 2015-0052; Sequence No.: 1] received May 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1447. A letter from the Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's Federal Acquisition Regulation; Federal Acquisition Circular 2005-82; Small Entity Compliance Guide [Docket No.: FAR 2015-0051, Sequence No.: 2] received May 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1448. A letter from the Executive Director, Interstate Commission on the Potomac River Basin, transmitting the Commission's audited Seventy-Third Financial Statement for the period of October 1, 2013 to September 30, 2014, pursuant to the Federal Managers' Financial Integrity Act and the Inspector General Act of 1978, as amended; to the Committee on Oversight and Government Reform.

1449. A letter from the Board of Trustees, National Tropical Botanical Garden, transmitting the Garden's financial statements and schedules for the years 2012 and 2013, with the independent auditors' report, pursuant to 36 U.S.C. 1535; Public Law 105-225, Secs. 153510 and 10101; to the Committee on the Judiciary.

1450. A letter from the Chair, United States Sentencing Commission, transmitting the Commission's amendments to the federal sentencing guidelines, policy statements, and official commentary, with reasons for amendment, in conformance with the Commission's statutory obligations under 28 U.S.C. 994(o); to the Committee on the Judiciary.

1451. A letter from the Federal Register Liaison Officer, Office of the General Counsel, National Aeronautics and Space Administration, transmitting the Administration's direct final rule — Patents and Other Intellectual Property Rights [Docket No.: NASA-2015-0001] (RIN: 2700-AE02) received May 5, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Science, Space, and Technology.

1452. A letter from the Deputy Secretary, Department of Veterans Affairs, transmitting a draft bill, the ''Department of Veterans Affairs Purchased Health Care Streamlining and Modernization Act''; to the Committee on Veterans' Affairs.

1453. A letter from the Chief, Trade and Commercial Regulations Branch, Department of Homeland Security, transmitting the Department's final rule — Technical Corrections to the North American Free Trade Agreement Uniform Regulations [CBP Dec. 15-07] (RIN: 1515-AE04) received May 7, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

1454. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's interim final rule — Medicare Program; Changes to the Requirements for Part D Prescribers [CMS-6107-IFC] (RIN: 0938-AS60) received May 5, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); jointly to the Committees on Energy and Commerce and Ways and Means.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. THORNBERRY: Committee on Armed Services. Supplemental report on H.R. 1735. A bill to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense and for military construction, to prescribe military personnel strengths for such fiscal year, and for other purposes (Rept. 114–102, Pt. 2).

Mr. GRAVES of Georgia: Committee on Appropriations. H.R. 2250. A bill making appropriations for the Legislative Branch for fiscal year ending September 30, 2016, and for other purposes (Rept. 114–110). Referred to the Committee of the Whole House on the state of the Union.

Ms. FOXX: Committee on Rules. House Resolution 255. A resolution providing for consideration of the bill (H.R. 1735) to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense and for military constructions, to prescribe military personnel strengths for such fiscal year, and for other purposes; providing for consideration of the bill (H.R. 36) to amend title 18, United States Code, to protect pain-capable unborn children, and for other purposes; providing for consideration of the bill (H.R. 2048) to reform the authorities of the Federal Government to require the production of certain business records, conduct electronic surveillance, use pen registers and trap and trace devices, and use other forms of information gathering for foreign intelligence, counterterrorism, and criminal purposes, and for other purposes; and providing

for consideration of motions to suspend the rules (Rept. 114–111). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mrs. BLACK (for herself and Mr. HARRIS):

H.R. 2247. A bill to require the Secretary of Health and Human Services to provide for transparent testing to assess the transition under the Medicare fee-for-service claims processing system from the ICD-9 to the ICD-10 standard, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. LOWEY (for herself, Mr. LANCE, Ms. DELAURO, Mr. ROONEY of Florida, Ms. BORDALLO, Mr. RYAN of Ohio, Mr. POLIS, and Ms. MCCOLLUM):

H.R. 2248. A bill to provide that service of the members of the organization known as the United States Cadet Nurse Corps during World War II constituted active military service for purposes of laws administered by the Secretary of Veterans Affairs; to the Committee on Veterans' Affairs, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. GABBARD (for herself, Mr. TAKAI, Ms. BORDALLO, and Mr. SABLAN):

H.R. 2249. A bill to amend title IV of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 to restore Medicaid coverage for citizens of the Freely Associated States lawfully residing in the United States under the Compacts of Free Association between the Government of the United States and the Governments of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau; to the Committee on Energy and Commerce.

By Mr. KELLY of Pennsylvania (for himself, Mr. MCCAUL, and Mr. JONES):

H.R. 2251. A bill to prohibit the National Telecommunications and Information Administration from relinquishing responsibilities with respect to Internet domain name functions unless it certifies that it has received a proposal for such relinquishment that meets certain criteria, and for other purposes; to the Committee on Energy and Commerce.

By Mr. HURD of Texas (for himself, Mr. WELCH, Mr. CHAFFETZ, Mr. CUMMINGS, Mr. FARENTHOLD, and Mr. O'ROURKE):

H.R. 2252. A bill to clarify the effective date of certain provisions of the Border Patrol Agent Pay Reform Act of 2014, and for other purposes; to the Committee on Oversight and Government Reform.

By Ms. CASTOR of Florida (for herself and Ms. SPEIER):

H.R. 2253. A bill to amend title XIX of the Social Security Act to extend the application of the Medicare payment rate floor to primary care services furnished under Medicaid and to apply the rate floor to additional providers of primary care services; to the Committee on Energy and Commerce.

By Mr. KING of New York:

H.R. 2254. A bill to amend title 5, United States Code, to include certain Federal positions within the definition of law enforcement officer for retirement purposes, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. POE of Texas (for himself, Mr. DUNCAN of South Carolina, Mr. ROHRABACHER, Mr. HUELSKAMP, Mr. DUNCAN of Tennessee, Mrs. ELLMERS of North Carolina, and Ms. JENKINS of Kansas):

H.R. 2255. A bill to make participation in the American Community Survey voluntary, except with respect to certain basic questions, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. BENISHEK:

H.R. 2256. A bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to submit an annual report on the Veterans Health Administration and the furnishing of hospital care, medical services, and nursing home care by the Department of Veterans Affairs; to the Committee on Veterans' Affairs.

By Mr. MILLER of Florida:

H.R. 2257. A bill to amend title 38, United States Code, to improve the reproductive treatment provided to certain disabled veterans; to the Committee on Veterans' Affairs.

By Mr. BUCK (for himself, Mr. GOSAR, Mr. HENSARLING, Mr. COOK, Mrs. LUMMIS, and Mr. PEARCE):

H.R. 2258. A bill to amend section 320301 of title 54, United States Code, to modify the authority of the President of the United States to declare national monuments, and for other purposes; to the Committee on Natural Resources.

By Mr. RIGELL (for himself, Mr. MCKINLEY, Mr. WILSON of South Carolina, Mr. CARTER of Texas, and Mr. BABIN):

H.R. 2259. A bill to amend chapter 44 of title 18, United States Code, to provide that a member of the armed forces and the spouse of that member shall have the same rights regarding the receipt of firearms at the location of any duty station of the member; to the Committee on the Judiciary.

By Mr. ISRAEL (for himself, Mr. GOSAR, Ms. CLARK of Massachusetts, Mr. HONDA, Mr. GRIJALVA, Ms. DELAURO, Mrs. WATSON COLEMAN, Ms. NORTON, Mr. CARSON of Indiana, Mr. RANGEL, Mr. HASTINGS, Mr. CICILLINE, Mr. CAPUANO, Ms. MCCOLLUM, Mr. DELANEY, Mr. LIPINSKI, Mr. POLIS, Mr. MCGOVERN, Ms. CLARKE of New York, Ms. BASS, Mr. MEEKS, and Ms. JUDY CHU of California):

H.R. 2260. A bill to amend the Family and Medical Leave Act of 1993 to provide leave because of the death of a son or daughter; to the Committee on Education and the Workforce, and in addition to the Committees on Oversight and Government Reform, and House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BRIDENSTINE (for himself, Mr. PERLMUTTER, Mr. SMITH of Texas, Mr. POSEY, and Mr. BABIN):

H.R. 2261. A bill to facilitate the continued development of the commercial remote sensing industry and protect national security; to the Committee on Science, Space, and Technology.

By Mr. MCCARTHY (for himself, Mr. SMITH of Texas, Mr. PALAZZO, Mr. ROHRABACHER, Mr. LUCAS, Mr. MCCAUL, Mr. POSEY, Mr. KNIGHT, Mr. BABIN, Mr. HULTGREN, Mr. BRIDENSTINE, Mr. WEBER of Texas, and Mr. MOOLENAAR):

H.R. 2262. A bill to facilitate a pro-growth environment for the developing commercial space industry by encouraging private sector investment and creating more stable and predictable regulatory conditions, and for other purposes; to the Committee on Science, Space, and Technology.

By Mr. ROHRABACHER (for himself, Mr. SMITH of Texas, and Mr. BABIN):

H.R. 2263. A bill to rename the Office of Space Commerce and for other purposes; to the Committee on Science, Space, and Technology.

By Mr. BILIRAKIS:

H.R. 2264. A bill to amend title 10, United States Code, to establish a space-available transportation priority for veterans of the Armed Forces who have a service-connected, permanent disability rated as total; to the Committee on Armed Services.

By Ms. BROWNLEY of California:

H.R. 2265. A bill to amend the Internal Revenue Code of 1986 to extend the work opportunity credit for hiring veterans, and for other purposes; to the Committee on Ways and Means.

By Ms. JUDY CHU of California (for herself, Ms. HAHN, Ms. MENG, Mr. PAYNE, Ms. CLARKE of New York, Ms. ADAMS, Mr. TAKAI, Mrs. LAWRENCE, Mr. MOULTON, Mr. BERA, and Ms. TSONGAS):

H.R. 2266. A bill to extend the low-interest refinancing provisions under the Local Development Business Loan Program of the Small Business Administration, and for other purposes; to the Committee on Small Business.

By Mr. COLLINS of New York (for himself and Mr. FARENTHOLD):

H.R. 2267. A bill to amend title 11, United States Code, to provide an exception to the avoidance of transactions by bankruptcy trustee under section 548 where the transaction was a good faith payment by a parent of post secondary education tuition for that parent's child; to the Committee on the Judiciary.

By Mr. HASTINGS (for himself, Mr. CÁRDENAS, Mr. GRIJALVA, Mr. LOEBSACK, Mr. MCNERNEY, Ms. NORTON, Mr. PASCRELL, Ms. PINGREE, Mr. POLIS, Mr. RANGEL, Mr. SCOTT of Virginia, Ms. SLAUGHTER, and Ms. MCCOLLUM):

H.R. 2268. A bill to end the use of corporal punishment in schools, and for other purposes; to the Committee on Education and the Workforce.

By Mr. HASTINGS (for himself, Ms. BORDALLO, Mr. COHEN, Mr. FARR, Mr. POLIS, Ms. NORTON, and Mr. SCHRADER):

H.R. 2269. A bill to expand the workforce of veterinarians specialized in the care and conservation of wild animals and their ecosystems, and to develop educational programs focused on wildlife and zoological veterinary medicine; to the Committee on Agriculture, and in addition to the Committee on Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. HECK of Washington (for himself, Ms. DELBENE, Mr. LARSEN of Washington, Ms. HERRERA BEUTLER, Mr. NEWHOUSE, Mrs. MCMORRIS RODGERS, Mr. KILMER, Mr. MCDERMOTT, Mr. REICHERT, Mr. SMITH of Washington, Mr. COLE, Ms. MCCOLLUM, Mr. HONDA, Mr. DEFAZIO, Mr. BEN RAY LUJÁN of New Mexico, Mr. YOUNG of Alaska, and Mr. GRIJALVA):

H.R. 2270. A bill to redesignate the Nisqually National Wildlife Refuge, located in the State of Washington, as the Billy

Frank Jr. Nisqually National Wildlife Refuge, to establish the Medicine Creek Treaty National Historic Site within the wildlife refuge, and for other purposes; to the Committee on Natural Resources.

By Mr. LATTA (for himself, Mr. MCNERNEY, and Mrs. ELLMERS of North Carolina):

H.R. 2271. A bill to amend the Federal Power Act with respect to critical electric infrastructure security, and for other purposes; to the Committee on Energy and Commerce.

By Mrs. LUMMIS (for herself, Mr. WELCH, Mr. GUTIÉRREZ, Mr. PRICE of North Carolina, Mr. SENSENBRENNER, and Mr. JORDAN):

H.R. 2272. A bill to amend section 1105 of title 31, United States Code, to require that the annual budget submissions of the Presidents include the total dollar amount requested for intelligence or intelligence related activities of each element of the Government engaged in such activities; to the Committee on the Budget.

By Mrs. LUMMIS:

H.R. 2273. A bill to amend the Colorado River Storage Project Act to authorize the use of the active capacity of the Fontenelle Reservoir; to the Committee on Natural Resources.

By Mr. LYNCH (for himself, Mr. KING of New York, Ms. CLARK of Massachusetts, Mr. RUSH, Mr. MCGOVERN, Mr. KEATING, and Mr. LIPINSKI):

H.R. 2274. A bill to authorize the National Emergency Medical Services Memorial Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes; to the Committee on Natural Resources.

By Mr. MILLER of Florida (for himself and Mr. WENSTRUP):

H.R. 2275. A bill to amend title 38, United States Code, to establish in the Department of Veterans Affairs the Veterans Economic Opportunity and Transition Administration and to improve employment services for veterans by consolidating various programs in the Department of Veterans Affairs, and for other purposes; to the Committee on Veterans' Affairs, and in addition to the Committees on Ways and Means, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MURPHY of Florida (for himself, Ms. FRANKEL of Florida, Ms. WASSERMAN SCHULTZ, Mr. POSEY, Ms. GRAHAM, Mr. HASTINGS, Ms. BROWN of Florida, and Ms. CASTOR of Florida):

H.R. 2276. A bill to establish a moratorium on oil and gas-related seismic activities off the coastline of the State of Florida, and for other purposes; to the Committee on Natural Resources.

By Mr. PERLMUTTER (for himself, Mr. WELCH, Mr. RUSH, Mr. GRIJALVA, Mr. RANGEL, Mr. TONKO, Mrs. CAPPS, and Mr. SCHWEIKERT):

H.R. 2277. A bill to prohibit employers from compelling or coercing any person to authorize access to a protected computer, and for other purposes; to the Committee on the Judiciary.

By Mr. POSEY (for himself and Mr. GOODLATTE):

H.R. 2278. A bill to amend the Immigration and Nationality Act to eliminate the diversity immigrant program; to the Committee on the Judiciary.

By Mr. POSEY (for himself and Mr. MURPHY of Florida):

H.R. 2279. A bill to establish a moratorium on oil and gas-related seismic activities off the coastline of the State of Florida, and for other purposes; to the Committee on Natural Resources.

By Mr. QUIGLEY (for himself, Mr. GRIFFITH, Mr. GRIJALVA, Mr. TONKO, Mr. CONNOLLY, Mr. COHEN, Mr. RANGEL, and Mr. CONYERS):

H.R. 2280. A bill to amend title 40, United States Code, to direct the Administrator of General Services to incorporate bird-safe building materials and design features into public buildings, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. ROUZER:

H.R. 2281. A bill to provide for the elimination of the Department of Education, and for other purposes; to the Committee on Education and the Workforce.

By Mr. RYAN of Ohio (for himself and Mr. ROE of Tennessee):

H.R. 2282. A bill to amend title 38, United States Code, to improve the enrollment of veterans in certain courses of education, and for other purposes; to the Committee on Veterans' Affairs, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. WATSON COLEMAN (for herself, Ms. CASTOR of Florida, Mr. CICILLINE, Mr. CONYERS, Mr. CUMMINGS, Ms. EDWARDS, Mr. ENGEL, Ms. ESHOO, Mr. FARR, Mr. FATTAH, Ms. FRANKEL of Florida, Ms. HAHN, Mr. HASTINGS, Mr. HIMES, Ms. KELLY of Illinois, Mr. LANGEVIN, Mrs. LOWEY, Mr. LYNCH, Mrs. CAROLYN B. MALONEY of New York, Mr. MCGOVERN, Mr. NADLER, Ms. NORTON, Mr. QUIGLEY, Mr. PALLONE, Mr. PAYNE, Mr. PASCRELL, Mr. POCAN, Mr. RANGEL, Mr. SIRES, Ms. SLAUGHTER, and Mr. VAN HOLLEN):

H.R. 2283. A bill to require face to face purchases of ammunition, to require licensing of ammunition dealers, and to require reporting regarding bulk purchases of ammunition; to the Committee on the Judiciary.

By Mr. YOUNG of Alaska:

H.R. 2284. A bill to provide for the retention and future use of certain land in Point Spencer, Alaska, to support the mission of the Coast Guard, to convey certain land in Point Spencer to the Bering Straits Native Corporation, to convey certain land in Point Spencer to the State of Alaska, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. COLLINS of Georgia:

H.J. Res. 50. A joint resolution granting the consent of Congress to the Health Care Compact; to the Committee on the Judiciary.

By Mr. BURGESS:

H. Res. 254. A resolution expressing the condolences of the House of Representatives on the death of the Honorable James Claude Wright, Jr., a Representative from the State of Texas; considered and agreed to.

By Mrs. BEATTY (for herself, Mr. CONYERS, Mr. BISHOP of Georgia, Mrs. WATSON COLEMAN, Ms. KELLY of Illinois, Mr. RANGEL, Ms. MOORE, Mr. HASTINGS, Mrs. CAROLYN B. MALONEY of New York, Ms. SCHAKOWSKY, Mr. TIBERI, Ms. NORTON, Mr. MCGOVERN, Mr. YARMUTH, Mr. JOHNSON of Georgia, Mr. CARSON of Indiana, and Ms. BROWN of Florida):

H. Res. 256. A resolution expressing support for designation of May as Stroke Awareness Month; to the Committee on Energy and Commerce.

By Ms. EDDIE BERNICE JOHNSON of Texas (for herself, Mr. KING of New York, Ms. BROWN of Florida, Mr. JOYCE, Mr. GRAVES of Missouri, Mr. LEWIS, Mr. PETERS, Mr. RUIZ, Mrs. CAPPS, Ms. SLAUGHTER, Mr. RUSH, Ms. SCHAKOWSKY, Mr. ELLISON, Mrs. TORRES, and Ms. SPEIER):

H. Res. 257. A resolution supporting the goals and ideals of National Nurses Week on May 6, 2015, through May 12, 2015; to the Committee on Energy and Commerce.

By Ms. NORTON:

H. Res. 258. A resolution expressing the sense of the House of Representatives supporting the Federal workforce; to the Committee on Oversight and Government Reform.

By Mr. TIBERI (for himself and Mr. NEAL):

H. Res. 259. A resolution expressing support for designation of September 2015 as ''National Brain Aneurysm Awareness Month''; to the Committee on Energy and Commerce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mrs. BLACK:

H.R. 2247.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the United States Constitution.

By Mrs. LOWEY:

H.R. 2248.

Congress has the power to enact this legislation pursuant to the following:

ARTICLE I

By Ms. GABBARD:

H.R. 2249.

Congress has the power to enact this legislation pursuant to the following:

The U.S. Constitution including Article 1, Section 8.

By Mr. GRAVES of Georgia:

H.R. 2250.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states: ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made byLaw . . . .'' In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides: ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States. . . .'' Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

By Mr. KELLY of Pennsylvania:

H.R. 2251.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution.

By Mr. HURD of Texas:

H.R. 2252.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution

By Ms. CASTOR of Florida:
H.R. 2253.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 1 of the United States Constitution
By Mr. KING of New York:
H.R. 2254.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 6
The Congress shall have Power . . . To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.
By Mr. POE of Texas:
H.R. 2255.
Congress has the power to enact this legislation pursuant to the following:
Clause 18 of Section 8 of Article I of the Constitution
By Mr. BENISHEK:
H.R. 2256.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the United States Constitution.
By Mr. MILLER of Florida:
H.R. 2257.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the United States Constitution.
By Mr. BUCK:
H.R. 2258.
Congress has the power to enact this legislation pursuant to the following:
SUCH AS Article IV, section 3 of the Constitution of the United States grants Congress the authority to enact this bill. The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States; and nothing in this Constitution shall be so construed as to Prejudice any Claims of the United States, or of any particular State.
By Mr. RIGELL:
H.R. 2259.
Congress has the power to enact this legislation pursuant to the following:
The 2nd Amendment of the Constitution of the United States
By Mr. ISRAEL:
H.R. 2260.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 of the United States Constitution
By Mr. BRIDENSTINE:
H.R. 2261.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3:
The Congress shall have power to regulate commerce with foreign nations, and among the several states, and with Indian tribes.
and
Article I, Section 8, Clause 18:
The Congress shall have power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department of Officer thereof.
By Mr. McCARTHY:
H.R. 2262.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3:
The Congress shall have power to regulate commerce with foreign nations, and among the several states, and with Indian tribes.
and
Article I, Section 8, Clause 18:
The Congress shall have power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department of Officer thereof.
By Mr. ROHRABACHER:
H.R. 2263.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3:
The Congress shall have power to regulate commerce with foreign nations, and among the several states, and with Indian tribes.
and
Article I, Section 8, Clause 18:
The Congress shall have power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department of Officer thereof.
By Mr. BILIRAKIS:
H.R. 2264.
Congress has the power to enact this legislation pursuant to the following:
Article I, section 8, clause XII–XIV of the Constitution of the United States, which gives Congress the authority to:
To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;
To provide and maintain a Navy;
To make Rules for the Government and Regulation of the land and naval Forces;
By Ms. BROWNLEY of California:
H.R. 2265.
Congress has the power to enact this legislation pursuant to the following:
Amendment XVI to th U.S. Constitution.
By Ms. JUDY CHU of California:
H.R. 2266.
Congress has the power to enact this legislation pursuant to the following:
Art. 1, Sec. 8 ''The Congress shall have Power to lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defense and general Welfare of the United States.''
By Mr. COLLINS of New York:
H.R. 2267.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the United States Constitution.
By Mr. HASTINGS:
H.R. 2268.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the powers granted to the Congress by Article I, Section 8, Clause 1 and Article I, Section 8, Clause 18 of the United States Constitution.
By Mr. HASTINGS:
H.R. 2269.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 3
The Congress shall have Power to regulate Commerce with foreign Nations, and among several States, and with Indian Tribes.
By Mr. HECK of Washington:
H.R. 2270.
Congress has the power to enact this legislation pursuant to the following:
Article IV, Section 3, Clause 2: ''The Congress shall have power to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States . . .''
By Mr. LATTA:
H.R. 2271.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3
To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;
By Mrs. LUMMIS:
H.R. 2272.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 18: The Congress shall have Power To . . . make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.
By Mrs. LUMMIS:
H.R. 2273.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3.
By Mr. LYNCH:
H.R. 2274.
Congress has the power to enact this legislation pursuant to the following:
Article 1 section 8 Clause 3 of the United States Constitution.
By Mr. MILLER of Florida:
H.R. 2275.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the United States Constitution.
By Mr. MURPHY of Florida:
H.R. 2276.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority of Congress to enact this legislation is provided by Article I, Section 8 of the United States Constitution.
By Mr. PERLMUTTER:
H.R. 2277.
Congress has the power to enact this legislation pursuant to the following:
Amendment IV
By Mr. POSEY:
H.R. 2278.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 4, which states that Congress has the power to establish a uniform Rule of Naturalization.
By Mr. POSEY:
H.R. 2279.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3
By Mr. QUIGLEY:
H.R. 2280.
Congress has the power to enact this legislation pursuant to the following:
Section 8 of Article I of the Constituion
By Mr. ROUZER:
H.R. 2281.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 18 of the United States Constitution states that ''The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department of Officer thereof.''
By Mr. RYAN of Ohio:
H.R. 2282.
Congress has the power to enact this legislation pursuant to the following:
The above mentioned legislation is based upon the following Section 8 statement:
To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.
By Mrs. WATSON COLEMAN:
H.R. 2283.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3 of the United States Constitution.

By Mr. YOUNG of Alaska:

H.R. 2284.

Congress has the power to enact this legislation pursuant to the following:

Article IV, Section 3, Clause 2 and Article 1, Section 8, Clause 3.

By Mr. COLLINS of Georgia:

H.J. Res. 50.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 10, Clause 3 of the United States Constitution:

No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 24: Mr. RENACCI and Mr. ROUZER.

H.R. 36: Mrs. HARTZLER.

H.R. 91: Mr. BLUMENAUER, Mr. HENSARLING, Mr. HIMES, Mr. DEUTCH, Mr. COHEN, Mr. LARSEN of Washington, Mrs. MILLER of Michigan, Ms. ESTY, Mr. COSTELLO of Pennsylvania, and Mr. JOHNSON of Georgia.

H.R. 93: Mr. WEBER of Texas and Mr. BILIRAKIS.

H.R. 114: Mr. MILLER of Florida.

H.R. 140: Mr. FORBES and Mr. CARTER of Georgia.

H.R. 160: Mr. BRENDAN F. BOYLE of Pennsylvania.

H.R. 188: Ms. FUDGE.

H.R. 201: Mr. POCAN.

H.R. 232: Mr. RANGEL, Mr. CALVERT, Mr. PERRY, and Mr. PETERSON.

H.R. 235: Ms. HERRERA BEUTLER, Mr. ROSS, Mr. YODER, Mr. ZINKE, Mr. ROGERS of Kentucky, Mr. MURPHY of Pennsylvania, Mr. ROE of Tennessee, Ms. JENKINS of Kansas, Mr. ROHRABACHER, Ms. WILSON of Florida, Mr. GIBBS, Mr. FARR, Mr. BLUM, Mr. HIGGINS, Ms. FOXX, Mr. THOMPSON of Mississippi, Mr. GIBSON, and Mr. BOUSTANY.

H.R. 288: Mr. WALZ and Ms. GABBARD.

H.R. 290: Mrs. DINGELL.

H.R. 303: Mr. PETERS, Ms. MCSALLY, Mrs. BEATTY, and Mr. WALDEN.

H.R. 310: Mr. MILLER of Florida.

H.R. 333: Mr. WALDEN, Ms. GABBARD, Mr. JONES, and Mr. PETERS.

H.R. 343: Mrs. ELLMERS of North Carolina.

H.R. 353: Mr. LOWENTHAL.

H.R. 374: Mr. NORCROSS.

H.R. 375: Mr. NORCROSS.

H.R. 411: Mr. DEUTCH.

H.R. 449: Ms. LOFGREN.

H.R. 474: Mr. TED LIEU of California.

H.R. 483: Mr. HONDA.

H.R. 504: Mr. OLSON, Mr. COFFMAN, and Mrs. ELLMERS of North Carolina.

H.R. 528: Mrs. MILLER of Michigan.

H.R. 532: Mr. FARR.

H.R. 560: Mr. MILLER of Florida.

H.R. 565: Mr. LARSEN of Washington.

H.R. 571: Mr. ROTHFUS.

H.R. 578: Mr. DESJARLAIS and Mrs. MILLER of Michigan.

H.R. 590: Mr. RUSH.

H.R. 604: Mr. BARLETTA.

H.R. 624: Mr. DESAULNIER and Ms. MAXINE WATERS of California.

H.R. 628: Mr. RYAN of Ohio, Mr. JOHNSON of Ohio, Mr. MOULTON, Mr. TONKO, Ms. SLAUGHTER, Mr. JOLLY, Mr. PETERS, and Mr. LOWENTHAL.

H.R. 653: Mr. POSEY.

H.R. 662: Mr. MICA.

H.R. 690: Mrs. WAGNER.

H.R. 699: Ms. MOORE and Mr. BOST.

H.R. 702: Mrs. ELLMERS of North Carolina.

H.R. 711: Mr. KENNEDY and Mr. LYNCH.

H.R. 721: Ms. BONAMICI, Mr. LONG, Mr. ROGERS of Alabama, and Mr. ROKITA.

H.R. 723: Mr. CARSON of Indiana.

H.R. 726: Mr. CLEAVER.

H.R. 802: Mr. FRELINGHUYSEN, Mr. RODNEY DAVIS of Illinois, Mr. HIMES, and Ms. MCCOLLUM.

H.R. 815: Mr. SMITH of Texas and Mr. WALBERG.

H.R. 817: Mr. FLORES.

H.R. 835: Mr. LOEBSACK and Mr. CICILLINE.

H.R. 837: Mr. TIPTON.

H.R. 842: Mr. RODNEY DAVIS of Illinois, Mr. RUSH, Mr. BARLETTA, Mr. BISHOP of Georgia, and Mr. GIBSON.

H.R. 845: Mr. CHAFFETZ.

H.R. 863: Mr. BENISHEK and Mr. YOUNG of Indiana.

H.R. 864: Mr. HONDA.

H.R. 866: Mr. POE of Texas.

H.R. 868: Mr. COSTELLO of Pennsylvania.

H.R. 880: Mr. CARTER of Georgia, Mr. NUNES, Mr. TIBERI, Mr. VALADAO, and Mr. SMITH of Missouri.

H.R. 915: Mr. PAYNE, Mr. CONYERS, and Mr. MOULTON.

H.R. 920: Mr. BLUMENAUER and Mr. RODNEY DAVIS of Illinois.

H.R. 923: Mr. ROE of Tennessee and Mr. RIGELL.

H.R. 990: Ms. SCHAKOWSKY, Mr. WELCH, and Mr. CONNOLLY.

H.R. 999: Mr. FLORES.

H.R. 1018: Mr. TIBERI and Mr. ROE of Tennessee.

H.R. 1057: Mr. COHEN and Mr. PERRY.

H.R. 1062: Mr. ADERHOLT.

H.R. 1073: Mr. COOK and Mr. LAMBORN.

H.R. 1086: Mr. SMITH of Texas, Mr. FLEISCHMANN, Mr. ADERHOLT, and Mr. THOMPSON of Pennsylvania.

H.R. 1114: Mr. BABIN, Mr. BUCK, Mr. NEWHOUSE, and Mr. LATTA.

H.R. 1117: Ms. WILSON of Florida and Mr. MURPHY of Florida.

H.R. 1125: Mr. FORTENBERRY.

H.R. 1131: Ms. MATSUI.

H.R. 1133: Mr. RUIZ.

H.R. 1151: Mr. PETERS, Mr. FLORES, and Mr. GUTHRIE.

H.R. 1171: Mr. GROTHMAN and Mrs. MILLER of Michigan.

H.R. 1173: Mr. DOGGETT.

H.R. 1188: Mr. WOODALL, Mr. PETERS, and Ms. ESHOO.

H.R. 1190: Mr. HANNA, Mr. KATKO, Mr. SANFORD, Mr. WALKER, Mrs. MIMI WALTERS of California, and Mr. SMITH of Missouri.

H.R. 1197: Ms. BROWNLEY of California, Ms. SINEMA, Mr. TONKO, Ms. MATSUI, Ms. LORETTA SANCHEZ of California, Mr. MCCAUL, Ms. MOORE, Mr. LANCE, Mr. LYNCH, Mr. CONNOLLY, Mr. GIBSON, Mrs. CAPPS, Mr. FATTAH, Mr. FITZPATRICK, Mr. GRAVES of Missouri, Mr. CLAY, Mr. CICILLINE, Mr. SWALWELL of California, Mr. CUMMINGS, Mrs. NAPOLITANO, Mr. BLUM, Mr. GRIJALVA, Mr. ENGEL, Mr. ROSS, Ms. WILSON of Florida, Mrs. COMSTOCK, and Ms. ROYBAL-ALLARD.

H.R. 1209: Mrs. COMSTOCK, Mr. COSTELLO of Pennsylvania, and Mr. LOEBSACK.

H.R. 1221: Mr. LYNCH and Mr. SARBANES.

H.R. 1222: Mr. MCGOVERN, Mr. RUSH, and Mr. LOWENTHAL.

H.R. 1227: Mr. HONDA.

H.R. 1233: Mr. ABRAHAM, Mr. HANNA, Mr. HUDSON, Mr. ROGERS of Alabama, and Mr. ZELDIN.

H.R. 1234: Mr. MEADOWS, Mr. MCKINLEY, Mr. ROUZER, Mr. PITTENGER, Mr. ALLEN, and Mr. WILSON of South Carolina.

H.R. 1249: Mr. GROTHMAN.

H.R. 1250: Mr. KILDEE and Mr. LARSON of Connecticut.

H.R. 1258: Ms. SCHAKOWSKY and Mr. SMITH of Washington.

H.R. 1269: Mr. CONYERS and Ms. JACKSON LEE.

H.R. 1283: Mr. FINCHER.

H.R. 1284: Mr. PASCRELL and Mr. ELLISON.

H.R. 1300: Mr. WALKER, Mr. BARLETTA, and Mr. WENSTRUP.

H.R. 1301: Mr. WILLIAMS, Mr. PERLMUTTER, Mr. OLSON, Mr. SHIMKUS, and Mr. WENSTRUP.

H.R. 1309: Mr. ROE of Tennessee and Mr. PETERS.

H.R. 1310: Mr. KATKO and Mrs. LOWEY.

H.R. 1331: Mr. COSTELLO of Pennsylvania.

H.R. 1340: Ms. VELÁZQUEZ and Ms. LEE.

H.R. 1384: Mr. ROSS.

H.R. 1399: Mr. ISRAEL and Mrs. NAPOLITANO.

H.R. 1404: Mr. RUSH.

H.R. 1434: Mr. CÁRDENAS, Ms. GABBARD, and Mr. BEYER.

H.R. 1453: Mr. LANCE.

H.R. 1461: Mr. BRAT.

H.R. 1462: Ms. KUSTER, Mr. GUTHRIE, Ms. DELBENE, and Mr. HULTGREN.

H.R. 1464: Mr. VAN HOLLEN.

H.R. 1475: Mr. SMITH of Texas and Mr. HENSARLING.

H.R. 1478: Mr. DUFFY, Mr. GUTHRIE, Mrs. NOEM, and Mr. HULTGREN.

H.R. 1479: Mr. HUELSKAMP, Mr. YOUNG of Iowa, and Mr. DUNCAN of Tennessee.

H.R. 1482: Mr. YARMUTH and Mrs. NAPOLITANO.

H.R. 1504: Mr. WENSTRUP.

H.R. 1507: Mr. HUFFMAN and Ms. DELBENE.

H.R. 1515: Mrs. NAPOLITANO.

H.R. 1516: Mr. WALZ, Mrs. BLACKBURN, Mr. SCHIFF, Mr. LARSEN of Washington and Ms. MICHELLE LUJAN GRISHAM of New Mexico.

H.R. 1517: Mr. PETERS.

H.R. 1528: Mrs. NAPOLITANO.

H.R. 1531: Mr. AUSTIN SCOTT of Georgia.

H.R. 1532: Mr. KLINE, Ms. FRANKEL of Florida, and Mr. POLIQUIN.

H.R. 1548: Mr. COHEN, Mr. BEYER, Ms. JUDY CHU of California, Mr. DESAULNIER, Mrs. LAWRENCE, Mr. TED LIEU of California, Mr. SMITH of Washington, Mr. YARMUTH, and Mrs. Napolitano.

H.R. 1559: Ms. ESHOO, Mr. THOMPSON of California, Mr. SMITH of Washington, Mr. LANGEVIN, Ms. SCHAKOWSKY, Ms. LORETTA SANCHEZ of California, Mr. PASCRELL, Mrs. NAPOLITANO, Mr. JOLLY, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mr. BEYER, Mr. COURTNEY, Mr. GRAYSON, Mr. MCNERNEY, Mr. CÁRDENAS, Mr. PAYNE, Mr. LUETKEMEYER, Mr. HIMES, and Mr. RIBBLE.

H.R. 1571: Mr. SENSENBRENNER, Ms. KUSTER, Mr. NOLAN, Mr. KIND, Mr. AMODEI, Mr. HECK of Washington, Mr. LYNCH, and Mr. CICILLINE.

H.R. 1587: Mr. DEFAZIO.

H.R. 1599: Mr. CLEAVER, Mr. MESSER, Mr. JONES, Mr. ROKITA, and Mr. GUTHRIE.

H.R. 1600: Mr. CICILLINE, Mr. VAN HOLLEN, Ms. KUSTER, and Mr. MURPHY of Pennsylvania.

H.R. 1602: Mrs. BEATTY, Mrs. NAPOLITANO, Mr. LOWENTHAL, Mr. PETERS, Mr. GARAMENDI, Ms. HAHN, and Ms. BORDALLO.

H.R. 1604: Mr. COSTELLO of Pennsylvania and Mr. ZELDIN.

H.R. 1608: Mr. NORCROSS, Mrs. CAROLYN B. MALONEY of New York, Mr. KIND, Ms. TSONGAS, Ms. KELLY of Illinois, Mr. WALZ, and Mr. BRADY of Pennsylvania.

H.R. 1610: Mr. ROE of Tennessee.

H.R. 1611: Mr. SIMPSON, Mr. WALZ, Mr. NOLAN, Mr. HUELSKAMP, and Mr. HECK of Washington.

H.R. 1615: Mr. PERRY and Mrs. MILLER of Michigan.

H.R. 1634: Mr. GOSAR.

H.R. 1635: Mr. STEWART and Mr. BISHOP of Utah.

H.R. 1637: Mrs. MILLER of Michigan.
H.R. 1640: Mrs. MILLER of Michigan and Mr. PERRY.
H.R. 1644: Mr. BARR, Mr. GOSAR, and Mr. JENKINS of West Virginia.
H.R. 1650: Mr. JONES, Mr. OLSON, Mr. ALLEN, Mr. BISHOP of Michigan, and Mr. DESJARLAIS.
H.R. 1654: Mrs. LOWEY.
H.R. 1655: Mr. CAPUANO, Ms. ESTY, Mr. KEATING, Mr. NUNES, Ms. TSONGAS, Mr. YOUNG of Alaska, Mr. MCGOVERN, and Mr. LOEBSACK.
H.R. 1657: Mr. SAM JOHNSON of Texas.
H.R. 1664: Mr. NEWHOUSE.
H.R. 1669: Mr. AUSTIN SCOTT of Georgia.
H.R. 1674: Ms. LOFGREN.
H.R. 1677: Mr. LANCE.
H.R. 1708: Ms. MOORE and Mr. FARR.
H.R. 1713: Mr. CICILLINE.
H.R. 1718: Mr. NEUGEBAUER and Mr. ROKITA.
H.R. 1722: Mr. CÁRDENAS and Mr. LOWENTHAL.
H.R. 1734: Mr. BOST and Mr. GIBBS.
H.R. 1737: Mr. GENE GREEN of Texas, Mr. HILL, Mrs. BUSTOS, Mr. RENACCI, Mr. WELCH, Mr. GRAVES of Georgia, Mr. HASTINGS, Mr. MCHENRY, Ms. JACKSON LEE, Mr. FINCHER, Mr. GRAVES of Louisiana, Mr. JOHNSON of Ohio, Ms. DELBENE, Mr. LUETKEMEYER, Mr. HINOJOSA, Mr. RIBBLE, Mr. ISRAEL, and Mr. SWALWELL of California.
H.R. 1739: Mr. NEWHOUSE.
H.R. 1742: Ms. NORTON.
H.R. 1752: Mr. LAMBORN.
H.R. 1767: Ms. JENKINS of Kansas.
H.R. 1769: Mr. ROTHFUS, Ms. FRANKEL of Florida, and Mr. CROWLEY.
H.R. 1773: Mrs. BROOKS of Indiana.
H.R. 1785: Mrs. ELLMERS of North Carolina.
H.R. 1786: Mr. WELCH, Mr. GARRETT, and Mr. DONOVAN.
H.R. 1814: Mr. MCNERNEY, Ms. DELBENE, Ms. MCCOLLUM, Mr. SMITH of Washington, Mr. DESAULNIER, Ms. ESHOO, Mr. HONDA, Mr. WELCH, Mr. KATKO, Mr. LOWENTHAL, and Ms. NORTON.
H.R. 1818: Mr. POCAN, Mr. GIBSON, and Ms. ESTY.
H.R. 1832: Ms. SPEIER and Mr. DEFAZIO.
H.R. 1834: Mr. DOLD.
H.R. 1842: Mr. HECK of Nevada.
H.R. 1846: Mr. SCOTT of Virginia, Mr. WELCH, Mr. CARTWRIGHT, Mr. JEFFRIES, Miss RICE of New York, Ms. FUDGE, and Mr. MOULTON.
H.R. 1848: Mr. GUTIERREZ.
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H.R. 1854: Mr. COHEN.
H.R. 1859: Mr. TED LIEU of California.
H.R. 1884: Miss RICE of New York, Ms. STEFANIK, Mr. KATKO, and Mr. REED.
H.R. 1901: Mr. HULTGREN.
H.R. 1902: Mr. CONYERS and Mrs. NAPOLITANO.
H.R. 1911: Mrs. BEATTY.
H.R. 1919: Mr. WALDEN.
H.R. 1932: Mrs. WAGNER and Mr. GRAVES of Missouri.
H.R. 1942: Mr. TAKAI, Mr. BARLETTA, Mr. O'ROURKE, Ms. TSONGAS, Mrs. CAPPS, Mr. PETERS, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. SCHIFF, Mr. MULVANEY, Mr. MCGOVERN, Mr. COFFMAN, Mr. PASCRELL, Mr. COSTELLO of Pennsylvania, Mr. RANGEL, Mrs. CAROLYN B. MALONEY of New York, Mr. BEN RAY LUJÁN of New Mexico, and Mr. MEEKS.
H.R. 1948: Mr. HONDA and Ms. GABBARD.
H.R. 1978: Ms. LEE and Mr. TED LIEU of California.
H.R. 1982: Mr. RICHMOND.
H.R. 1986: Mr. MCHENRY.
H.R. 1989: Mr. REICHERT and Mr. CUELLAR.
H.R. 1994: Mr. STEWART, Mrs. LAWRENCE, Mr. JONES, Mr. ROTHFUS, Mr. CARTER of Georgia, Mr. HENSARLING, Mr. SMITH of Texas, Mr. JOYCE, and Mr. DENT.
H.R. 2016: Ms. LOFGREN, Mr. PRICE of North Carolina, and Mr. FARR.
H.R. 2017: Mr. UPTON, Mr. JORDAN, Mr. GROTHMAN, Mr. CRAWFORD, Mrs. WAGNER, Mr. CRAMER, Mr. BISHOP of Utah, Mr. GRAVES of Missouri, and Mr. MOOLENAAR.
H.R. 2025: Mr. RUIZ, Ms. MCCOLLUM, Mr. VAN HOLLEN, Mr. RUSH, Ms. SLAUGHTER, Mr. RANGEL, and Mr. YARMUTH.
H.R. 2026: Ms. KUSTER, Mr. CLEAVER, Mrs. BUSTOS, Mr. JONES, and Mr. BROOKS of Alabama.
H.R. 2042: Mr. GIBBS, Mr. MURPHY of Pennsylvania, Mr. JONES, and Mr. BROOKS of Alabama.
H.R. 2044: Mr. AMODEI.
H.R. 2050: Mr. GARAMENDI, Mr. JEFFRIES, Mr. FATTAH, Mr. NOLAN, Mr. BISHOP of Georgia, Mr. DESAULNIER, Mrs. LOWEY, Ms. KUSTER, Ms. ADAMS, Mrs. BEATTY, and Ms. ROYBAL-ALLARD.
H.R. 2061: Mr. LONG, Mr. YOUNG of Alaska, Mr. PETERSON, and Mr. DEFAZIO.
H.R. 2066: Mrs. MCMORRIS RODGERS.
H.R. 2072: Mr. LOWENTHAL, Mr. HONDA, Ms. ESHOO, Mr. CONYERS, Mr. KILMER, and Mr. GRIJALVA.
H.R. 2089: Mr. COHEN.
H.R. 2090: Mr. POCAN and Mr. POLIS.
H.R. 2110: Mr. HONDA.
H.R. 2123: Ms. ESHOO, Mr. POMPEO, Mr. ASHFORD, Mr. LOWENTHAL, Mr. MCDERMOTT, Mr. THOMPSON of California, Mr. LOEBSACK, Mr. SESSIONS, and Mr. CRAMER.
H.R. 2128: Mr. PAULSEN.
H.R. 2140: Ms. ROS-LEHTINEN and Mr. EMMER of Minnesota.
H.R. 2142: Mr. SESSIONS.
H.R. 2146: Mr. RANGEL and Mr. NUGENT.
H.R. 2156: Mr. FARENTHOLD, Ms. SLAUGHTER, Mr. HUELSKAMP, Mr. ISRAEL, Mr. LUETKEMEYER, and Mr. LOWENTHAL.
H.R. 2173: Mr. GALLEGO, Mr. HUFFMAN, Mr. NOLAN, and Ms. SLAUGHTER.
H.R. 2174: Mr. HUFFMAN and Ms. MICHELLE LUJAN GRISHAM of New Mexico.
H.R. 2191: Mr. CICILLINE and Mr. ROE of Tennessee.
H.R. 2192: Mr. FARR and Mr. PETERS.
H.R. 2193: Mr. HONDA and Mr. LOWENTHAL.
H.R. 2201: Mr. PERRY.
H.R. 2210: Mr. OLSON and Mr. MULVANEY.
H.R. 2213: Mr. STIVERS, Mr. ROSS, and Mr. MULVANEY.
H.R. 2215: Mr. COFFMAN, Mr. CHAFFETZ, and Mr. MEADOWS.
H.R. 2216: Mr. HONDA, Ms. LEE, and Mr. CONYERS.
H.R. 2227: Miss RICE of New York.
H.R. 2236: Mr. CÁRDENAS.
H.R. 2241: Ms. ROS-LEHTINEN.
H.J. Res. 22: Mr. LEWIS, Ms. MENG, Ms. JACKSON LEE, Mrs. BEATTY, Mr. BRADY of Pennsylvania, Ms. MCCOLLUM, and Mr. DELANEY.
H. Con. Res. 17: Mr. GUTHRIE, Mr. MILLER of Florida, Mr. SHUSTER, Mr. GARRETT, Ms. ROS-LEHTINEN, and Mr. CARTER of Georgia.
H. Con. Res. 18: Mrs. RADEWAGEN.
H. Con. Res. 19: Mr. ROSKAM.
H. Con. Res. 33: Mr. DENHAM.
H. Res. 12: Mr. BEYER.
H. Res. 28: Mr. NORCROSS and Mr. SMITH of Washington.
H. Res. 54: Ms. FRANKEL of Florida, Mr. LATTA, Ms. VELÁZQUEZ, Mr. DELANEY, Mr. GIBSON, Ms. ADAMS, Mrs. NOEM, Mrs. COMSTOCK, and Mr. MOULTON.
H. Res. 82: Mr. KILMER.
H. Res. 112: Mr. LYNCH and Mr. HUFFMAN.
H. Res. 130: Ms. FRANKEL of Florida.
H. Res. 145: Ms. BROWN of Florida, Mr. CAPUANO, Ms. DEGETTE, Mr. DOGGETT, Mr. ELLISON, Mr. GRIJALVA, Mr. HUFFMAN, Mr. KEATING, Ms. LOFGREN, Mrs. LOWEY, Mr. MCNERNEY, Ms. NORTON, Mr. PAYNE, Mr. PETERS, Mr. TAKANO, and Mr. VAN HOLLEN.
H. Res. 147: Ms. MENG, Mr. HIGGINS, and Mr. CICILLINE.
H. Res. 161: Ms. DELBENE.
H. Res. 181: Mr. BARLETTA, Mr. CLAWSON of Florida, and Mr. PERRY.
H. Res. 193: Mr. NEUGEBAUER.
H. Res. 203: Mr. CONYERS and Mr. RUSH.
H. Res. 206: Mr. STIVERS and Mr. FORTENBERRY.
H. Res. 209: Mr. HENSARLING.
H. Res. 227: Ms. KAPTUR, Mr. HASTINGS, Mr. CICILLINE, Mr. FITZPATRICK, Mr. MCGOVERN, and Mr. KEATING.
H. Res. 232: Mr. POLIS and Ms. NORTON.
H. Res. 233: Mr. HONDA, Mr. CONNOLLY, Mr. MCGOVERN, Mr. SHERMAN, Mrs. BEATTY, Mr. LEVIN, Mr. POSEY, Mr. RANGEL, Mr. ROTHFUS, Mr. MESSER, Mr. WEBER of Texas, Mr. MARINO, Mr. CICILLINE, Mr. SIMPSON, Mrs. LUMMIS, Mrs. BUSTOS, Mr. LANCE, Mr. SMITH of New Jersey, Mrs. KIRKPATRICK, Mr. HURD of Texas, Mr. PITTENGER, Mr. SALMON, Mr. RIBBLE, and Mr. RODNEY DAVIS of Illinois.
H. Res. 235: Mrs. LOWEY, Ms. MAXINE WATERS of California, Mr. O'ROURKE, and Mr. COSTELLO of Pennsylvania.
H. Res. 236: Mr. PERRY.
H. Res. 241: Mr. DOLD.
H. Res. 253: Mr. ASHFORD, Mr. MCGOVERN, and Mr. HUFFMAN.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, MAY 12, 2015 *No. 72*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal Lord, preserve us in our pilgrimage through this life, using us as Your light to a dark world. Free us from hindrances that keep us from accomplishing Your purposes on Earth.

Today, abide with our Senators. Give light to guide them, faith to inspire them, courage to motivate them, and compassion to unite them now and evermore. Lord, help them in the making of laws to execute justice and to set the captives free. Protect them in their work and keep them from those things that lead to ruin. Give them faith to see beyond today, to sow the seeds and cultivate the soil that will bring our Nation a bountiful harvest.

We pray in Your Holy Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. COTTON). The majority leader is recognized.

TRADE

Mr. MCCONNELL. Mr. President, the Senate will have the opportunity this afternoon to open the legislative process for a broad 21st century American trade agenda.

Let me remind Senators that the vote we are taking today is not a vote to approve or disapprove of trade promotion authority. In fact, the bill we will be voting to proceed to is simply a placeholder that will allow us to open a broad debate on trade that our country very much needs. Voting yes to open debate on a 21st century American trade agenda offers every Member of this body the chance to stand up for American workers, American farmers, American entrepreneurs, and American manufacturers. It is a chance to stand with Americans for economic growth, opportunity, and good jobs.

Selling products stamped ''Made in America'' to the many customers who live beyond our borders is key. That is true across our entire country. It is true in my home State of Kentucky. We know that Kentucky already boasts more than half a million jobs related to trade. We know that nearly a quarter of Kentucky's manufacturing workers depend on exports for their jobs. And we know that manufacturing jobs tied to exports pay about 18 percent more than non-export related jobs.

So there is every reason to knock down more unfair international trade barriers and bring more benefits back to Americans, right here at home. According to one estimate, Kentucky alone could see thousands more jobs and millions more in economic investment if we enact smart agreements with countries in Europe and the Pacific.

We also know how important these types of agreements are to our national security—especially in the Pacific region. Just last week, seven former Defense Secretaries from both political parties wrote to express their ''strongest possible support'' for the bill before us today. ''The stakes are clear,'' they wrote. ''There are tremendous strategic benefits. . . . [and] America's prestige, influence, and leadership are on the line.''

If we care about preserving and extending American leadership in the 21st century, then we cannot cede the most dynamic region in the world to China. It is true from a national security perspective, and it is true from an economic perspective.

But first, we need fair and enforceable trade legislation that expands congressional oversight over the administration and sets clear rules and procedures for our trade negotiators. We have all those things in the Bipartisan Congressional Trade Priorities and Accountability Act, a bill that passed out of the Finance Committee 20 to 6 with strong support from both parties.

We should start the process of building on that bipartisan momentum right now. I know the opportunity to consider complex legislation via regular order became too uncommon in recent years, but that is changing now. The Senate may still be a little rusty, though, so I want to be clear about what today's vote is. This is a vote to begin a process. This is a vote to begin a debate on a broad trade agenda. Yes, TPA will be part of that debate. But trade adjustment assistance, or TAA, will be also.

Now, there are many Members on my side of the aisle who have real reservations about TAA. I do as well. But I expect that at the end of this process, after the Senate works its will, TAA—trade adjustment assistance—will be part of the package the Senate sends to the House.

The top Democrat on the Finance Committee made it clear at the markup of these trade bills that TAA needed to run alongside TPA. I know that the chairman of the committee, Senator HATCH, has also been working toward that end.

Now, the Finance Committee didn't just mark up TPA and TAA. It also marked up the African Growth and Opportunity Act and passed the generalized system of preferences bill by voice vote. It reported a customs and enforcement bill by voice vote, too.

So while TPA is clearly the centerpiece of the trade agenda before us,

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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there is also bipartisan support for other bills reported by the Finance Committee.

Now, I know we have heard some concern that these bills might get left behind. I don't think that was anybody's intent. I expect to have a robust amendment process that will allow trade-related amendments to be offered and considered, including on the subject matters that the committee dealt with. The underlying substitute will be a compromise between the two parties, marrying TAA and TPA.

But let me repeat so there is no misunderstanding: The measure before us will be open for amendment, and I expect that other trade policies considered by the committee—and possibly even more—will be debated on the floor. I also expect that Chairman HATCH and Senator WYDEN will be working hard to get as much done as they can on all of these proposals.

I know that Chairman HATCH wants to find a path forward on all of these bills. I know that Senator WYDEN and Chairman RYAN spent a lot of time working through TAA, and, despite the objections of many on our side, it is likely to be included in any trade bill that passes the Senate.

I am confident that an enduring agreement can be found if the Senate is allowed to work its will and debate openly. That is what we intend to have happen on this bill. So I repeat: All we are voting on today is whether to have that debate at all.

If there are Senators with concerns about particular details of the trade agenda before us, that is all the more reason to vote to debate it. Let's have these conversations in an open and transparent way. Let's give the American people a full-throated debate on an important issue.

But we can't debate any of the provisions Senators want to consider if they vote to filibuster even getting on the bill. So I am calling on colleagues to prove they are serious—prove they are serious about wanting to pass this legislation—rather than simply looking for new and creative ways to defeat it. Voting to proceed is the way we have an opportunity to prove we want to pass trade promotion authority.

All the good committee work I mentioned demonstrates a real hunger to process bipartisan trade legislation. So let's vote to build on that today. Let's vote to open debate on a 21st century American trade agenda. Let's not slam the door on even the opportunity of having that debate.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The minority leader is recognized.

WASHINGTON, DC, NFL TEAM NAME CHANGE

Mr. REID. Mr. President, yesterday the National Football League punished one of its most recognizable players for allegedly having tampered with game balls. I find it stunning that the National Football League is more concerned about how much air is in a football than with a racist franchise name that denigrates Native Americans across the country. The Redskins name is a racist name. So I wish the commissioner would act as swiftly and decisively in changing the name of the Washington, DC, team as he did about not enough air in a football.

TRADE

Mr. REID. Mr. President, we know that later today the Senate will vote on whether to move forward with consideration of trade legislation. What we do not know, other than what the leader just said, is what is going to be in the matter before us. It seems to me he said that there will be TPA and TAA in the bill, and that dealing with Africa and these other provisions dealing with customs won't be in the bill. That is unfortunate.

In April, the Senate Finance Committee reported four bills out of the committee. Each of these four bills addressed different trade issues. Several of these bills contain amendments that the Senate spent months and years working to pass.

As I stand here today, Senate Democrats still don't know for sure the procedure of the Republican leader. And I would say to my friend the Republican leader, and to everyone who hears me say this, that using the logic of the Republican leader, he should move to these four bills. If he wants a robust amendment process, which he talks about all the time, why doesn't he put this legislation before this body and we will have a robust amendment process.

The ranking member of the Finance Committee is here. He is an experienced legislator and he knows—he was here before the Republicans put skids on doing any legislation for 4 years. He knows what the process was before then. He knows what the process is today, and he knows that the reason a few things are being accomplished this work period—and I mean a few—is because we have cooperated with Republicans. We still want to do that.

But if the Republican leader is concerned about a robust amendment process, then, put everything the committee reported out. That is why we have been led by the good senior Senator from Oregon the way we have been.

I have been very clear. I am not a fan of fast track. But it is important to remember that the Senate's ongoing debate about trade is not limited to legislation granting President Obama fast-track trade authority.

One of the bills reported out of the committee provides worker assistance for American workers who lose their jobs because of trade—important. Trade adjustment helps American workers to be trained, to look for new jobs, and to reenter the workplace. It is a program that has worked well.

The second bill helps developing countries export their products to the United States.

The third bill started out as a customs bill and now includes bipartisan provisions fighting currency manipulation and includes provisions on the importation of goods made with forced labor. It also ensures that American manufacturers can enforce trade laws against foreign companies that refuse to play by the rules.

Simply put, these three other bills include many provisions to make sure that trade is fair for American workers and the American economy.

My views on trade—I repeat—are well known. I don't support these trade provisions. But if the Senate is going to talk about trade, we must consider its impact on the American workers and the middle class, and that is what the customs provision does. That is why I support combining these four bills into one piece of legislation—so no American will be left behind by the Senate Republicans.

It is essential that if we move to fast-track, we consider these other bills as part of the process. In past years, Democrats and Republicans joined together to pass other important trade legislation with fast-track. For example, in 2002, when that passed, Congress adopted in that trade adjustment assistance, customs and trade enforcement and an extension of our preference programs. If we did it in 2002, why can't we do it today?

My friend the majority leader talks about the motion to proceed as a way to move forward. There is also a way to move forward that would be less disruptive, and it would work a lot better; that is, have the majority leader put all these four bills together and then begin—his words—a ''robust amendment process.''

The absence of assurance that these four bills are together is a signal that some will be left behind, and the people left behind, of course, are the American middle class. I urge the majority leader to take the necessary steps to merge these four bills reported out of the Finance Committee into one piece of legislation; otherwise, we risk hurting every American whom we talk about protecting so much here; namely, the middle class.

Again, logically, if you use the statements of the Republican leader, we should put all four of them together. We would move forward on this legislation. We could have a process—again, using his words, a ''robust amendment process.'' Last time those words came out—''robust amendment process''—we had two amendments. That was the Iran bill, two amendments. That is robust? That is not very robust, in my estimation.

I wish my friend the ranking member of the Finance Committee the very best in this legislation. It is a huge responsibility for his caucus. We, at this

stage, support these four bills being moved forward at the same time and then the process can begin of legislating. If we do not—if he does not do that, then it is going to be very difficult to get to the guts of the bills that are reported out of committee.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business until 12:30 p.m., with Senators permitted to speak therein for up to 10 minutes each, with the time equally divided in the usual form.

The Senator from Oregon.

TRADE

Mr. WYDEN. Mr. President, I listened carefully to the remarks of the Senate majority leader, and I believe the majority leader's statement provides potential—potential—to find the bipartisan common ground on trade that we found in the Senate Finance Committee. In the Senate Finance Committee, we passed the Bipartisan Congressional Trade Priorities and Accountability Act of 2015 by a 20-to-6 vote and the Trade Adjustment Assistance Act of 2015 by a 17-to-9 vote. We passed a robust trade enforcement measure and package of trade preferences by voice vote.

Respectfully, I hope that the majority leader would take this morning to work with those on my side of the aisle who are supportive of trade to find a similar bipartisan approach to ensure that all four of the measures I have described are actually enacted.

I yield the floor.

The PRESIDING OFFICER. The Senator from California.

THE MIDDLE CLASS

Mrs. BOXER. Mr. President, I appreciate the leadership of Senator WYDEN on this, because if you leave out certain bills that help workers, then what you are left with, essentially, is a package that ignores their needs.

I do want to say that I hope we will not proceed to this debate on this free-trade agreement. I stand here as someone who comes from California, where I had voted for half of the trade agreements and I voted against half. I think I am a fair voice for what we should be doing.

If there is one unifying principle about the economics of today, it is this: the middle class is having a very hard time in America today, perhaps the worst time in modern history.

A new University of California study released last week makes it clear how our middle class is being hollowed out. In my State, we have a dynamic workforce. We have dynamic entrepreneurs. We are doing very well. But this study found that the lowest paid 20 percent of California workers have seen their real wages decline by 12 percent since 1979.

Think about that. This is a great country. We always say we have to be optimistic about tomorrow. You do everything right, you play by the rules, and your income for your family, in real terms, goes down by 12 percent. There is something wrong with this. I think everyone will say they want to do more for the middle class, and there is a straightforward agenda we could turn to, to do just that. But instead what do we turn to: a trade agreement that threatens the middle class—that threatens the middle class. What should we be doing here? Not confabbing in a corner over there about how to push a trade bill on this floor that doesn't help working America, we should pass a highway bill. The highway bill is critical—good-paying jobs, businesses that thrive in all of our communities. More than 60,000 of our bridges are structurally deficient, more than 50 percent of our roads are not in good condition. But, oh, no, even though the highway bill expires—we have no more authority to expend money out of that fund come the end of May—they are bringing forward a trade bill that is a threat to the middle class.

Why don't we increase the minimum wage? The minimum wage needs to be raised. Oh, no, they do not want to do that. They have not done it in years. The States are doing it. Oh, no, let's keep people working full time in poverty. So instead of confabbing over there on how to push a trade bill onto this floor, we ought to be raising the minimum wage.

What else should we be doing? We should make college more affordable. We have people here on Social Security in this country who are still paying off their student loans. That is a shame upon America. They cannot even refinance their student loans.

Instead of confabbing in the corner about how to bring a trade bill to this floor, why don't we fix the student loan problem? Why don't we raise the minimum wage? Why don't we pass a highway bill that is funded to help middle-class people?

It is all a matter of perspective, my friends. We still have not done equal pay for equal work, so women are not making what they should. That hurts our women when they retire. They have lost more than $400,000 in income.

Instead of standing in the corner and figuring out how to bring a trade bill to the floor, they ought to be fixing equal pay for equal work. They ought to be fixing student loans for our students. They ought to be passing a highway bill. They ought to be increasing the minimum wage. They ought to deal with currency fairness because our trading partners play with their currency in order to push forward their products. But oh, no, that is not on the agenda.

We could have an agenda for a vibrant middle class. But instead of that, we are moving toward a trade bill.

I know there are some who disagree with me and who come down to this floor and say: We are going to create jobs with this trade bill; it is going to be great. Let them explain how we are not going to see some of the 12 million jobs that are manufacturing jobs in America not move to countries that pay 56 cents an hour; another country, $1.19 an hour.

I know they will disagree with me. They are making all of these promises. The more I hear it, the more I hear the echoes of the NAFTA debate. That was a long time ago, and I was here then. In 1988, I voted for fast-track authority to allow the administration to negotiate the North American Free Trade Agreement. Then, 5 years later, I saw the deal. It was a bad deal, and I voted no, but it was too late—because when I saw the deal, I knew I could not fix it because that is what fast-track is.

What this majority today is saying to us is vote for fast-track and give up your right, Senator BOXER, to amend this trade agreement. They say: Well, it is very transparent. Go down and look at it.

Let me tell you what you have to do to read this agreement. Follow this: You can only take a few of your staffers who have to have a security clearance—because, God knows why, this is secure, this is classified. It has nothing to do with defense. It has nothing to do with going after ISIS. It has nothing to do with any of that, but it is classified.

I go down with my staff whom I can get to go with me, and as soon as I get there, the guard says to me: Hand over your electronics.

OK. I give over my electronics.

Then the guard says: You cannot take notes.

I said: I cannot take notes?

Well, you can take notes, but you have to give them back to me, and I will put them in a file.

I said: Wait a minute. I am going to take notes, then you are going to take my notes away from me, then you are going to have them in a file and you can read my notes—not on your life.

So instead of standing in a corner trying to figure out a way to bring a trade bill to the floor that does not do anything for the middle class, that is held so secretively that you need to go down there and hand over your electronics and give up your right to take notes and bring them back to your office, they ought to come over here and figure out how to help the middle class, how to extend the highway bill, how to raise the minimum wage, how to move toward clean energy, how to fix our currency manipulation that we see abroad.

Anyway, I take you back to 1988. I voted for fast-track for NAFTA. Instead of the millions of new jobs that were promised, by 2010 the United States had lost 700,000 jobs.

Instead of standing in a corner figuring out how we are going to lose more jobs, we ought to do something that works for the middle class.

Let me tell you what happened with NAFTA. Instead of improved pay for

our workers, which was promised, NAFTA pushed down American wages. It empowered employers to say to their workers: Either accept lower wages and benefits or we are moving to Mexico. Instead of strengthening our economy, it increased our trade deficit to Mexico, which now this year hit $50 billion. Before NAFTA we had a trade surplus with Mexico. Now we have a trade deficit.

So instead of standing in the corner and figuring out how to have more trade deficits with countries, we ought to do something to help the middle class.

I want to talk about something that happened in California—in Santa Ana—right after NAFTA. The city had worked hard to keep a Mitsubishi plant that assembled big-screen TVs, securing tax credits to help the plant stay competitive. Even after NAFTA passed, company officials promised they would keep the plant in Santa Ana. But guess what, folks. Three years later, Mitsubishi closed the plant. Company officials said they had to cut costs, especially labor costs, so they were moving their operations to Mexico.

We lost 400 good-paying, middle-class jobs, even though everyone promised NAFTA would never do that. This is going to be wonderful. I got suckered into voting yes on fast-track. I fear we see this pattern again.

The definition of ''insanity'' is doing the same thing over and over and expecting a different outcome. We have 12.3 million manufacturing jobs in this country. We are looking at a transpacific partnership deal, the largest trade deal in history, covering 40 percent of the world's economy. Tell me, what chance do our people who work in manufacturing have against countries that pay less than $1 an hour? In one case, I think it is 70 cents an hour.

Of the 12 countries in the TPP, 3 have minimum wages that are higher than ours, Australia, New Zealand, and Canada, but most of the countries have far lower wages, including Chile, with a minimum wage of $2.14; Peru, with a minimum wage of $1.38; and Vietnam, with a minimum wage of 70 cents. Brunei and Singapore don't even have a minimum wage.

I think I have laid out the argument as to why all of these promises about better wages and more jobs fall flat on their face when we look at that last free trade deal—and this one involves more countries.

Then there is the investor-state dispute settlement, or ISDS, which will allow polluters to sue for unlimited money damages. For example, they could use it to try to undo the incredible work in California on climate change by claiming that they were put at a disadvantage by having to live with California's laws.

Polluters could seek to undermine the President's Clean Power Plan or the toxic mercury pollution under the Mercury and Air Toxics Standards or they could sue because they had to spend a little money to make sure they didn't dump toxins into our waterways—drinking water.

We have seen this happen before. SD Myers, Lone Pine Resources, and the Renco Group sued. They notified Peru in 2010 and intended to launch an $800 million investor-state claim against the government because they said the fair-trade agreement was violated because it said they did not really have to install all of these antipollution devices. Yet Peru forced them to do it, and what happened was that ''polluters pay'' turned into ''polluters get paid.''

So we have a trade agreement that threatens 12 million manufacturing jobs. We have a trade agreement that is pushing all of the things we need to do for our middle class off the floor. We have a trade agreement that sets up this extrajudicial board that can overcome America's laws.

As former Labor Secretary Robert Reich has warned, the consequences could be disastrous. He calls the TPP ''a Trojan horse in a global race to the bottom, giving big corporations and Wall Street a way to eliminate any and all laws and regulations that get in the way of their profits.''

We should set this aside and not go to this today. Let's work together as Democrats and Republicans for a true middle-class agenda, for a robust investment in our roads, bridges, and highways, and to fix our immigration system.

I see Senator LEAHY is on the floor. He put together a comprehensive immigration reform bill that was amazing, but it was stopped and never happened. We have workers in the dark who are afraid to come out into the sunlight, and that puts a downward pressure on wages. Let's pass that. Let's make college more affordable, ensure equal pay for equal work, and fight for currency fairness. We can do it.

TOXIC REFORM

Mrs. BOXER. Mr. President, I will take about 3 minutes to talk about my last issue today, and that is the toxic reform bill that passed out of the Environment and Public Works Committee.

Mr. President, I have some great news about the toxic bill. The original Vitter-Udall bill was slain and is gone and in its place is a better bill. That is the great news. The bad news is it is still not a really good bill. We have to do better, and we can do better.

What we did in this bill is to understand that we had to negotiate certain items out of it, and one of the items we had to negotiate was how far the original bill went in preempting State laws, which we have now addressed. Credit goes to 450 organizations that—although they still oppose this bill—pushed hard for those changes. Credit also goes to Senators WHITEHOUSE, MERKLEY, and BOOKER, who told me they wanted to try to negotiate some changes. I blessed them, and they went and did it. For that I have to thank a Senator who is no longer with us, Ted Kennedy. He taught me that, as a chairman, you need to understand that sometimes you have to turn to your colleagues and let them move forward. And I was happy to do that.

The changes that came back included a part-way fix on preemption, a full fix on preempting air and water laws when it comes to toxics. And coenforcement has been fixed. So we are very, very pleased.

What is not really fixed, however, is that we want to make sure States have even more latitude to move if they see a danger. If there is a cancer cluster among kids or adults around this country, we want to make sure that the Federal Government will move to help them. We want to make sure that asbestos is addressed directly in this bill because 10,000 people a year die from asbestos exposure. If there is a chemical stored near a drinking water supply, we want to make sure that it, in fact, will receive priority attention.

What chemical is in there? We saw it happen in West Virginia. Senator MANCHIN wrote a really good bill with me. We should address that, and I was happy to see that we had some bipartisan votes on those last two fixes.

We have to fix this bill, and I just don't agree with anyone who comes to the floor and says it is perfect. But what I think is not important. What is important is what 450 groups think, and they think the bill has to be fixed.

Let's be clear. The people who say we have to fix the bill with perfecting amendments include the American Public Health Association and its Public Health Nursing Section, the Asbestos Disease Awareness Organization, the Consumers Union, the Institute for Agriculture and Trade Policy, the National Disease Clusters Alliance, the National Hispanic Medical Association, the Birth Defect Research for Children, Physicians for Social Responsibility, the Maryland Nurses Association, the Massachusetts Nurses Association, the National Association of Hispanic Nurses, the Association of Women's Health, Obstetric and Neonatal Nurses, the Breast Cancer Action, the Breast Cancer Fund, Huntington Breast Cancer Coalition, Kids v Cancer, and the Lung Cancer Alliance. It goes on and on. A full list of the organizations can be found at saferchemicals.org/coalition.

I say to my colleagues that the Vitter-Udall bill is much better now than when it was introduced, and these 450 groups did everything in their power to help us fix the bill. We are halfway there. I hope we can negotiate some more fixes—and maybe we can do that.

If we can pass four or five of these amendments, we are on our way. But if we cannot fix the bill and it does come here, there will be a lot of talking about how to fix it. There will be a lot of talking, a lot of standing on our feet, and a lot of rallies with 450 groups. That is the choice the Senate

faces, and in the end, we will deal with this.

I took to the floor today to thank my colleagues who helped negotiate this from a bill that was a disaster to a better bill, and I also want to make sure that these 450 organizations, including NRDC—what they did by standing up and calling for Safer Chemicals Healthy Families—was so fantastic. They never allowed people to talk them down or bully them out of the room. I stand with them 100 percent. The Asbestos Disease Awareness Organization was incredible.

We have some hope here. All we have to do is keep on fixing this bill, and it could come to a good place.

I so appreciate the patience of my colleagues. I talked long about two bills which are very important. I hope we will not get on this trade bill. I hope we will move to an agenda for the middle class.

As I said, the original toxic chemicals bill, S. 697, that according to a prize-winning reporter was written on the computer of the American Chemistry Council, was deeply flawed. That bill is gone. Thanks to the public health organizations, environmental organizations such as the Environmental Working Group, Safer Chemicals, the Breast Cancer Fund, Asbestos Disease Awareness Organization, NRDC, nurses, physicians, the media, and individuals such as Deirdre Imus, Linda Reinstein, and Trevor Schaefer. Those individuals and organizations put S. 697, the original bill, front and center and, despite its beautiful name, saw it for what it was.

The amended version that was reported out of the EPW Committee last month included fixes to preemption of State air and water laws, co-enforcement of chemical restrictions by States, and removal of a harmful provision that would have undermined EPA's ability to restrict the import of dangerous chemicals from foreign countries.

However, there are still critical changes that must be made in order for this bill to do what has been advertised and protect public health.

Leading public health, labor, and environmental groups, including the Safer Chemicals, Healthy Families Coalition, which represents 450 environmental, labor, and public health groups; the Asbestos Disease Awareness Organization; AFL–CIO; Environmental Working Group, the Breast Cancer Fund, and the Center for Environmental Health, and others have made clear that they do not support the bill reported from the EPW Committee because key improvements are needed if we are to achieve real TSCA reform.

Our common goal is real TSCA reform. We should fix the dangerous loopholes that could undo the good intentions of so many who have worked on this effort.

As Lisa Heinzerling, a professor at Georgetown University Law Center and former senior EPA official pointed out in a recent blog titled, ''Toxic Ambiguity: the Dangerous Mixed Messages of the Udall-Vitter Bill to Reform TSCA,'' these are serious loopholes that must be addressed.

I believe the needed fixes are achievable. Some of these changes, which I offered in the EPW Committee, received bipartisan support. As we move forward, I ask my colleagues to join me to keep making this bill better.

We need to address clusters of cancer, birth defects and other diseases, especially when children are affected. Communities should have the tools they need to determine whether there is a connection between these clusters and contaminants in the surrounding environment. Senator CRAPO was a cosponsor of this common-sense provision and voted for it in the EPW Committee.

We must ensure the chemicals that could contaminate drinking water supplies, such as the spill that occurred in West Virginia last year, are prioritized. Senator CAPITO from West Virginia supported this amendment in the EPW Committee.

We must ensure States can continue to act. The bill reported from the EPW Committee could still shut the States out for years from the ability to protect their citizens from toxic hazards. The process for State action is complicated and confusing and likely to end up in the courthouse. If the intention is to allow the States to act if the Federal Government has not done so, the bill needs to be amended to make that clear.

Asbestos has been a poster child for this bill and it is one of the most dangerous substances known to humankind—it takes 10,000 lives a year. We need to ensure that EPA can expeditiously review and take action to ban asbestos within 3 or less years.

The legal standard of review in this bill is the same as the original TSCA. We must ensure that there are no opportunities for the fatal flaws of current TSCA to be retained in the new law.

These are the kind of fixes I believe we can accomplish.

I think my colleagues and I can agree that there are safeguards that still need to be put in place. Now it is time to ensure that these safeguards become a reality.

We need to get it right this time. The stakes are high.

I look forward to working with colleagues to make this chemical safety bill do the job that our families and children deserve.

I thank the Presiding Officer.

The PRESIDING OFFICER. The Senator from Delaware.

TRADE

Mr. CARPER. Mr. President, I wish to harken back about 6 months, if I could, to the election of last November. For me there were at least three takeaways from that election. No. 1, the voters of this country want us to work together and across party lines. No. 2, they want us to get things done. Among the things they want us to get done is to find a way to strengthen the economic recovery that has been underway now for several years.

Senator BOXER has referred to a couple of things that would be on that to-do list—a robust 6-year transportation bill that rebuilds our roads, highways, bridges, transit systems and will put a lot of people to work and helps to strengthen our economic recovery by making a more efficient and effective transportation network to move products and goods all over this country and outside of this country.

We need to strengthen our cyber security. We need to address data breach and all of the attacks that are going on throughout this country to businesses, colleges, and universities—you name it.

We need tax reform that actually provides some predictability in the tax system and makes our Tax Code on the business side more competitive with the rest of the world.

We also need to acknowledge, as the President has done, that 95 percent of the world's market lies outside of our borders—95 percent. The fastest growing part of that market around the world is Asia. The President has suggested and strongly supported a trade agreement that would involve 12 nations, including about a half dozen here in this hemisphere and the other half over in Asia. All together it encompasses about 40 percent of the world trade market.

The President is not suggesting that we just open up our markets so that other countries can sell more of their stuff here. They already do that for the most part. The goal of this trade agreement is to open up these other markets in other countries so we can sell our goods, our products, and our services there. This is a top priority for this administration and this should be a top priority for Democrats and Republicans. This is a priority that should be hammered out and worked on in a way that will be fair to workers and middle-class families.

The majority leader has come here today to suggest a path forward. I hope we will not reject it. What he suggested is we allow, through a vote on the cloture, to move to the floor and begin debate on four different pieces of legislation that are part of the transportation agreement. We have seen this movie before. In fact, we have seen it any number of times before because I believe we have given trade promotion authority to every President since World War II except Richard Nixon. The reason why is because it is almost impossible for 535 of us in the Congress to negotiate a trade deal. Whether it is 3 nations or 11 other nations, it is pretty much impossible, and that is why we have trade promotion authority.

The majority leader suggested that we move to these four goals and let's

begin the debate. We should realize, as Democrats, that we already realized a great victory here. In the past, the Republicans have rejected our efforts almost every time to include trade assistance adjustment, so that when folks are displaced from their jobs, they can actually get help on their health care, job training, and have an opportunity to put their lives back together.

This legislation today, the trade promotion authority, actually expresses what our views and our priorities are as a Congress through the trade negotiator and to our negotiating partners overseas, and I think that is in our interest. The other thing that we get out of moving TPA with TAA together is that we get the assurance upfront that we are going to look after workers who are displaced. It is the best trade adjustment assistance we have ever had, at least in terms of the way it treats workers and displaced workers. It even helps those who are maybe not even affected by this agreement but are affected by other calamities in our economy—not just in the manufacturing sector but also in the service sector as well.

I suggest this to my colleagues: Let's spend the time between now and 2:30 p.m. trying to figure out how we can establish some confidence, faith, and trust here, so that if we move to this bill, it will not be just to consider trade promotion authority and trade adjustment assistance, we will have an opportunity to consider the other two pieces of legislation as well.

There is a lot riding on this. The economic recovery of our country does not rise and fall simply on the passage of this legislation and the conclusion of these negotiations, but it sure would help. It would sure help bolster a stronger economic recovery, just as would the passage of a 6-year transportation bill, just as would cyber security legislation, data breach legislation, and on and on.

I will close with this thought about the debate we have had in recent months with respect to the negotiations between the five permanent members of the Security Council, the Germans, and the Iranians in our efforts to make sure the Iranians don't develop a nuclear weapon. We have said again and again—we reworked the old Reagan slogan ''trust but verify,'' except with the Iranians, we have not said ''trust but verify, we have said ''mistrust but verify.''

I would suggest to my colleagues, especially on this side of the aisle, let's take that approach here. Maybe we don't trust the Republicans that they are going to do what they say they are going to do, but we have an opportunity to verify. The verifying comes with a vote later on. We go to the bill; we actually move to the bill, debate the amendments, and so forth.

If at the end of the day we are not happy with what has happened, if we feel as though we have been given a raw deal, that workers in this country have been given a raw deal, middle-class families have been given a raw deal, we have a chance to verify and we vote not to move the bill off the floor. We would not provide cloture to end debate. That is where we have our final vote. I hope we keep that in mind.

With that, Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, I ask unanimous consent to engage in a colloquy for up to 30 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

USA FREEDOM ACT

Mr. LEE. Mr. President, I am here to speak in support of the USA FREEDOM Act, a bill that would restrain the power of government to collect data on phone calls made by average, everyday, ordinary, law-abiding American citizens—300 million-plus Americans—without any suspicion that any one of them is engaged in any kind of criminal activity, any kind of activity involving the collection of foreign intelligence.

I appreciate the support I have received for this bill, and I appreciate the opportunity to work with my distinguished colleague, the senior Senator from Vermont. Senator LEAHY and I feel passionate about this issue. Although Senator LEAHY and I come from different ends of what some would perceive as the political spectrum and although we don't agree on every issue, there are many issues on which we do agree. There are many issues, such as this one, on which we can say that these issues are neither Republican nor Democratic, they are neither liberal nor conservative, they are simply American issues, constitutional issues. They are issues that relate to the proper order of government. They are issues that relate to the rule of law itself.

The Constitution of the United States protects the American people against unreasonable searches. It does so against a long historical backdrop of government abuse. Over time, our Founding Fathers came to an understanding that the immense power of government needs to be constrained because those in power will tend to accumulate more power and, in time, they will tend to abuse that power unless that power is carefully constrained.

America's Founding Fathers were informed in many respects by what they learned from our previous national government, our London-based national government. They were informed, in part, by the story of John Wilkes.

John Wilkes—not to be confused with John Wilkes Booth, the assassin of Abraham Lincoln—John Wilkes was a member of the English Parliament. He was a member of Parliament who in 1763 found himself at the receiving end of King George III's justice.

In 1763, John Wilkes had published a document known as the North Briton No. 45. The North Briton was a weekly circular, a type of news magazine in England—one that, unlike most of the other weeklies in England at the time, was not dedicated to fawning praise of King George III and his ministers. No. This weekly would from time to time criticize the actions of King George III and his ministers.

At the time John Wilkes published the North Briton No. 45, he became the enemy of the King because he had criticized certain remarks delivered by the King in his address to Parliament. While not openly directly critical of the King himself, he criticized the King's minister who had prepared the remarks.

For King George III, this was simply too much; this simply could not stand. So, before long, on Easter Sunday 1763, John Wilkes found himself arrested, and he found himself subject to an invasive search—a search performed pursuant to a general warrant and one that didn't specify the names of the individuals to be searched, the particular places to be searched, or the particular items subject to that invasive search. It said, basically, in essence: Go and find the people responsible for this horrendous publication, the North Briton No. 45, and go after them. Search through their papers and get everything you want, everything you need.

John Wilkes decided that his rights as an Englishman prevented this type of action—or should have, under the law, prevented this type of action—so he chose to fight this action in court. It took time. John Wilkes spent some time in jail, but he eventually won his freedom. He was subsequently reelected to multiple terms in Parliament. Because he fought this battle against the administration of King George III, he became something of a folk hero across England.

In fact, the number 45, with its association with the North Briton No. 45—the publication that had gotten him in trouble in the first place—the number 45 became synonymous not only with John Wilkes but also with the cause of freedom itself. The number 45 was a symbol of liberty not only in England but also in America. People would celebrate by ordering 45 drinks for their 45 closest friends. People would recognize this symbol by writing the number 45 on the walls of taverns and saloons. The number 45 came to represent the triumph of the common citizen against the all-powerful force of an overbearing national government.

With the example of John Wilkes in mind, the Founding Fathers were rightly wary of allowing government access to private activities and the communications of citizens. They feared not only that the government could seize their property but that it could gain access to details about their private lives. It was exactly for this reason that when James Madison began writing what would become the Fourth

Amendment in 1789, he used language to make sure that general warrants would not be the norm and, in fact, would not be acceptable in our new Republic.

Ultimately, Congress proposed and the States ratified the Fourth Amendment to the U.S. Constitution, which provides in pertinent part that any search warrants would have to be warrants ''particularly describing the place to be searched and the persons or things to be seized.''

General warrants are not the norm in America. General warrants are not acceptable in America. They are not compatible with our constitutional system. Yet, today, we see a disturbing trend, one that bears some eerie similarities to general warrants in the sense that we have the NSA collecting information—data—on every phone call that is made in America. If a person owns a telephone, if a person uses a telephone, the NSA has records going back 5 years of every number a person has called and every number from which a person has received a call. It knows when the call was placed. It knows how long the call lasted.

While any one of these data points might themselves not inform the government too much about a person, researchers using similar data have proven that the government could, if it wanted to, use that same data set, that same database to discern an awful lot of private information about a person. The government could discern private information, including a person's religious affiliation; political affiliation; level of activity politically, religiously, and otherwise; the condition of a person's health; a person's hobbies and interests. These metadata points, while themselves perhaps not revealing much in the aggregate, when put into a large database, can reveal a lot about the American people.

This database is collected for the purpose of allowing the NSA to check against possible abuses by those who would do us harm, by agents, foreign intelligence agents, spies. But the problem here is that the NSA isn't collecting data solely on numbers that are involved in foreign intelligence activity, nor is it collecting data solely on phone numbers contacted by those numbers suspected to be involved in some type of foreign intelligence activity. They are just collecting all of the data from all of the phone providers. They are putting it in one database and then allowing that database to be searched.

This issue was recently challenged in court. It was challenged and was recently the subject of a ruling issued by the U.S. Court of Appeals for the Second Circuit based in New York. Just a few days ago, this last Thursday, the Second Circuit concluded that Congress, in enacting the PATRIOT Act, in enacting section 215 of the PATRIOT Act—the provision in the PATRIOT Act that claims to justify this bulk data collection program—the Second Circuit concluded that section 215 of the PATRIOT Act does not authorize bulk collection. It does not authorize the NSA to simply issue orders to telephone service providers saying: Send us all of your data. The language in the PATRIOT Act permitted the government to access the records that were ''relevant to an authorized investigation.'' That is the language from section 215 that is at issue.

The government argued in that case that the term ''relevant'' in the context of the NSA's work meant and necessarily included every record regarding every telephone number used by every American. By interpreting it this way, they tried to basically strip all meaning from the word ''relevant.'' If Congress had meant every record, Congress could have said every record. It did not. That is not to say it would have been appropriate for Congress to do so, and had Congress legislated in such broad terms, I suspect there would have been significant concern raised, if not in court then at least within this Chamber and within the House of Representatives. But, importantly, Congress did not adopt that statutory language. Congress instead authorized NSA to collect records that are ''relevant to an authorized investigation.''

The Second Circuit agreed that this is a problem, holding last week that the bulk collection program exceeded the language of the statute—specifically, the word ''relevant.'' While ''relevant'' is a broad standard, it is intended to be a limiting term whose bounds were read out of the statute by a government willing to overreach its bounds.

The proper American response to government overreach involves setting clear limits—limits that will allow the people to hold the government accountable. We must not permit this type of collection to continue.

While it is true that a single call record reveals relatively little information about a person, again, the important thing to remember is that when we aggregate all of this data together, the government can tell a lot about a person. I have every confidence that and I am willing to assume for purposes of this discussion that the hardworking, brave men and women who work at the NSA have our best interests at heart. I am willing to assume for purposes of this discussion that they are not abusing this database as it stands right now.

Some would disagree with me in that assumption, but let's proceed under that assumption, that they are lawabiding individuals who are not abusing their access to this database. Who is to say the NSA will always be inhabited only by such people? Who is to say what the state of affairs might be 1 year from now or 2 years or 5 years or 10 or 15 years? We know that in time people tend to abuse these types of government programs.

We know from the Church report back in the 1970s that every administration from FDR through Nixon used our Nation's intelligence-gathering activities to engage in espionage. It is not a question of if such tools will be abused; it is a question of when they will be abused. It is our job as Senators to help protect the American people against excessive risk of this type of abuse. That is why Senator LEAHY and I have introduced the USA FREEDOM Act. It directly addresses the bulk data collection issue while preserving essential intelligence community capabilities.

Rather than relying on the government's interpretation of the word ''relevant,'' our bill requires that the NSA include a specific selection term—a term meant to identify a specific target—and that the NSA then use the term to limit to the greatest extent reasonably practicable the scope of its request.

We give the government the tools to make targeted requests in a manner that parallels the current practice at the NSA—in many respects, a practice that is currently limited only by Presidential preferences.

This bill would enable the court to invite precleared privacy experts to help decide how to address novel questions of law, if the court wanted input.

The bill also would increase our security in several ways, including by providing emergency authority when a target of surveillance enters the United States to cause serious bodily harm or death and instituting the changes necessary to come in line with the Bush era nuclear treaties.

This bill was negotiated in consultation with the House Judiciary Committee, the House Intelligence Committee, and the intelligence community at large. It is supported by the chairman and ranking members of the House Judiciary Committee, the House Intelligence Committee, and the Director of National Intelligence. It enjoys broad support from industry and from privacy groups.

This is a compromise—an important compromise that will enable us to protect Americans' privacy while giving the government the tools it needs to keep us safe. This is a compromise that is expected to pass the House overwhelmingly, and it is a bill I think we should take up and pass as soon as they have voted.

So I would ask my friend, my colleague, the distinguished senior Senator from Vermont, about his insights. My friend from Vermont has served his country well, having served a significant amount of time in the U.S. Senate. Prior to that time, he served as a prosecutor—a prosecutor who had to follow and was subject to the Fourth Amendment.

I would ask Senator LEAHY, in his experience as a prosecutor and as a Senator, what he sees as the major benefits to this legislation and the major pitfalls to the NSA's current practice of bulk data collection.

The PRESIDING OFFICER (Mr. FLAKE). The Senator from Vermont.

Mr. LEAHY. Mr. President, the senior Senator from Utah has laid out very well the reasons for the changes proposed in the House and proposed by his and my bill. He also said something we should all think about. A couple of minutes ago, he said: Assuming everybody is following the rules today, are they going to follow the rules tomorrow or next year or the year after?

When he mentioned that, he also mentioned my years as a prosecutor. Let me tell a short story. I became one of the officers of the National District Attorneys Association and eventually vice president. A number of us had occasion to meet the then-Director of the FBI, J. Edgar Hoover. I thought back to some of the frightening things he said about investigating people because of their political beliefs. You could tell Communists because they were all ''hippies driving Volkswagens'' was one of the things he said; secondly, that the New York Times was getting too leftist in some of its editorials and was coming very close to being a Communist paper, and he was making plans to investigate it as such. Think about that for a moment. The New York Times had criticized him editorially, and he was thinking he should investigate it as a Communist paper.

Not long thereafter, he died. We found out more and more about the secret files he had on everybody, from Presidents to Members of Congress. What if a J. Edgar Hoover had the kinds of tools that are available today? That would be my response to the Senator from Utah, and that is why I totally agree with him that we have to think about not just today but what might happen in the future.

For years, Section 215 of the USA PATRIOT Act has been used by the NSA to justify the bulk collection of innocent Americans' phone records. Americans were appropriately outraged when they learned about this massive intrusion into their privacy.

Look at what happened last week. The highly respected Federal Second Circuit Court of Appeals confirmed what we have known for some time: The NSA's bulk collection of Americans' phone records is unlawful, it is not essential, and it must end. That basically says it all. It is unlawful, it is not essential, and it should end.

Under the government's interpretation of Section 215, the NSA or FBI can obtain any tangible thing so long as it is ''relevant'' to an authorized investigation. Think for a moment back to J. Edgar Hoover—and I do not by any means equate the current Director of the FBI or his predecessors with what happened back then, but if you have somebody with that mindset.

In the name of fighting terrorism, the government convinced a secret court that it needed to collect billions of phone records of innocent Americans—not because those phone records were relevant to any specific counterterrorism investigation but, rather, because the NSA wanted to sift through them in the future. This is an extraordinarily broad reading of the statute—one that I can say, as someone who was here at the time, that Congress never intended—and the Second Circuit rightfully held that such an expansive concept of ''relevance'' is ''unprecedented and unwarranted.'' Such an interpretation of ''relevance'' has no logical limits.

This debate is not just about phone records. If we accept that the government can collect all of our phone records because it may want to sift through them someday to look for some possible connection to terrorists, where will it end?

We know that for years the NSA collected metadata about billions of emails sent by innocent Americans using the same justification. Should we allow the government to sweep up all of our credit card records, all of our banking or medical records, our firearms or ammunition purchases? Or how about anything we have ever posted on Facebook or anything we have ever searched for on Google or any other search engine? Who wants to tell their constituents that they support putting all this information into government databases?

I say enough is enough. I do not accept that the government will be careful in safeguarding this secret data—so careful that they allowed a private contractor named Edward Snowden to walk away with all this material. What is to stop anybody else from doing exactly the same thing?

During one of the six Judiciary Committee hearings that I convened on these issues last Congress, I asked the then-Deputy Attorney General whether there was any limit to this interpretation of Section 215. I did not get a satisfactory answer—that is, until the Second Circuit ruled last week and correctly laid out the implication of this theory. They said that if the government's interpretation of Section 215 is correct, the government could use Section 215 to collect and store in bulk ''any other existing metadata available anywhere in the private sector, including metadata associated with financial records, medical records, and electronic communications (including e-mail and social media information) relating to all Americans.'' I don't think you are going to find many Americans anywhere in the political spectrum who want to give this government or any other government that kind of power because nothing under the government's interpretation would stop it from collecting and storing in bulk any of this information.

The potential significance of this interpretation is staggering. It is no wonder that groups as disparate as the ACLU and the National Rifle Association have joined together to file a lawsuit in the Second Circuit to stop this bulk collection program.

Congress finally has the opportunity to make real reforms not only to Section 215 but to other parts of FISA that can be used to conduct bulk collection. Tomorrow, the House will consider the bipartisan USA FREEDOM Act of 2015. Senator LEE and I have introduced an identical bill in the Senate. If enacted, our bill will be the most significant reform to government surveillance authorities since the USA PATRIOT Act was passed nearly 14 years ago. Our bill will end the NSA's bulk collection program under Section 215. It also guarantees unprecedented transparency about government surveillance programs, allows the FISA Court to appoint an amicus to assist it in significant cases, and strengthens judicial review of the gag orders imposed on recipients of national security letters.

The USA FREEDOM Act is actually a very commonsense bill. That is why Senator LEE and I were able to join together on it. He is right—we come from different political philosophies, different parts of the country, and obviously we don't agree on all things, but we agreed on this because it makes common sense and it is something that should bring together Republicans and Democrats. It was crafted with significant input from privacy and civil liberties groups, the intelligence community, and the technology industry. It has support from Members of Congress and groups from across the political spectrum.

Mr. President, I ask unanimous consent to have printed in the RECORD editorials from the Washington Times, the Washington Post, USA TODAY, and the Los Angeles Times in support of the USA FREEDOM Act.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Washington Times, May 7, 2015]

BIG BROTHER TAKES A HIT

THE COURTS GIVE AN ASSIST TO REPEALING INTRUSIONS INTO THE PRIVACY OF EVERYONE

Sen. Mitch McConnell, the Republican majority leader, has made it clear to his colleagues that he wants the USA Patriot Act, including the controversial parts of the legislation scheduled to expire at the end of June, fully extended. He's seems ready to do whatever he can to get his way.

The USA Patriot Act was enacted in the days following Sept. 11, when the nation trembled on the verge of panic, with little debate and little opposition in Congress. The Patriot Act has been recognized since on both left and right as unfortunate legislation that granted too much power to the government to snoop into the lives, calls and emails of everyone in the name of national security.

Mr. McConnell thought he could force the Senate to either let the law lapse, to panic everyone again, or get an extension without modification until the year 2020. Even as Mr. McConnell praised the National Security Agency's reliance on the act to justify the collection of telephonic ''metadata'' from millions of Americans, the 2nd U.S. Circuit Court of Appeals was writing the decision, released Thursday, declaring the government program, first revealed by Edward Snowden, illegal because the language of the act cannot be read to justify such sweeping government action.

The lawsuit was brought by the American Civil Liberties Union and joined by groups,

including the National Rifle Association, and welcomed by civil libertarians across the land. To continue the program, the Obama administration would presumably have to persuade Congress to adopt language specifically authorizing the NSA to collect and hold such data. That attempt might be forthcoming.

The court's decision gives a boost to the advocates for the USA Freedom Act, which would modify the Patriot Act. The Freedom Act is expected to pass in the House and Mr. McConnell's strategy to kill it in the Senate may not work now, given the appeals court's decision.

Sen. Patrick Leahy, the ranking Democrat on the Senate Judiciary Committee, read the 97–page opinion and said, ''Congress should take up and pass the bipartisan USA Freedom Act, which would ban bulk collection under Section 215 and enact other meaningful surveillance reforms.''

The opinion of the liberal senator from Vermont is shared by the conservative Rep. James Sensenbrenner of Wisconsin, an author of the Patriot Act who has since regretted its excess. He joined the ACLU lawsuit as ''a friend of the court,'' and said Thursday that ''it's time for Congress to pass the USA Freedom Act in order to protect both civil liberties and national security with legally authorized surveillance.''

When the chips are down, blind partisanship, with genuine cooperation, can still be put aside.

[From the Washington Post, May 10, 2015]

NEW RULES FOR THE NATIONAL SECURITY AGENCY

For months, Congress has debated the National Security Agency's telephone metadata collection program, without legislative result. Now two factors have combined to make that frustrating situation even less sustainable. The legislative authority that first the George W. Bush administration and then the Obama administration cited for the program, Section 215 of the Patriot Act, is expiring on June 1. And, on Thursday, the U.S. Court of Appeals for the 2nd Circuit ruled that their interpretation of Section 215 was wrong anyway.

Congress needs to respond, and the sooner the better. To be sure, the court's ruling has no immediate practical impact, since the three-judge panel considered it superfluous to stop the program less than a month before Section 215 expires. The court's reasoning, though, could, and should, influence the debate. Judge Gerard E. Lynch's opinion noted that the NSA's mass storage of data, basically just in case it should be needed for a subsequent inquiry, stretched the statute's permission of information-gathering ''relevant to an authorized investigation'' beyond ''any accepted understanding of the term.''

Intelligence and law enforcement must be able to gather and analyze telephone metadata, but that requirement of national security can, and must, be balanced by robust protections of privacy and civil liberties. Under the current system, those protections consist of the NSA's own internal limitations on access to the database, subject to supervision by the Foreign Intelligence Surveillance Court (FISC)—which operates in secret and considers arguments only from the government. A democratic society requires more explicit, transparent protections.

There is, fortunately, a promising reform proposal readily available: the USA Freedom bill, which enjoys bipartisan support in both chambers as well as broad endorsement from President Obama—and the affected private industries as well. In a nutshell, it would abandon the bulk collection of the NSA's metadata, and warrantless searches of it, in favor of a system under which telecommunications firms retained the information, subject to specific requests from the government. Those queries, in turn, would have to be approved by the FISC. Along with the bill's provisions mandating greater disclosure about the FISC's proceedings, the legislation would go a long way toward enhancing public confidence in the NSA's operations, at only modest cost, if any, to public safety.

The measure has passed the House Judiciary Committee by a vote of 25 to 2. In the Senate, it failed to muster 60 votes last year when Democrats were in the majority, and its prospects appear even dimmer now that the Republicans are in control; their leader, Sen. Mitch McConnell (Ky.) favors reauthorizing Section 215 as-is.

Mr. McConnell's view—that the statute does, indeed, authorize bulk metadata collection—was legally tenable, barely, before the 2nd Circuit's opinion. Now he should revise it. If the Senate renews Section 215 at all, it should only be a short-term extension to buy time for intensive legislating after June 1—with a view toward enacting reform promptly. If the anti-terrorism effort is to be sustainable, Congress must give the intelligence agencies, and the public, a fresh, clear and, above all, sustainable set of instructions.

[From USA Today, May 10, 2015]

PATRIOT ACT CALLS FOR COMPROMISE IN CONGRESS

PROPOSAL ON NSA AND PHONE RECORDS WOULD GO A LONG WAY TOWARD REBALANCING SECURITY AND LIBERTY

In the years since the USA Patriot Act was approved in the frantic days following 9/11, it has become steadily more apparent that the law and the way it was applied were an overreaction to those horrific events.

The most flagrant abuse is the government's collection of staggering amounts of phone ''metadata'' on virtually every American. That program—which collects the number you call, when you call and how long you talk—was secret until Edward Snowden's leaks confirmed it in 2013.

Last Thursday, a federal appeals court—the highest to rule on the issue—found that the program is illegal. You'd think the unambiguous ruling from a unanimous three-judge panel would finally force changes to the bulk collection program.

But that's not necessarily going to happen, even though a compromise has emerged in Congress that would go a long way toward rebalancing security and liberty.

Under the compromise, the data would remain with the phone companies instead of the government. Requests to access the database would have to be far more limited, and each would require approval from the Foreign Intelligence Surveillance Court.

The new procedure would eliminate some of the phone collection program's most intrusive features, while keeping the security it offers at a time when the terrorist group Islamic State brings new threats. The measure has support from Republicans and Democrats, liberals and conservatives, and a long list of civil liberties and privacy groups.

It would also satisfy the court, which didn't dispute Congress' right to create such a program, just the executive branch's right to do so without Congress' assent.

Yet instead of embracing the compromise, Senate Majority Leader Mitch McConnell, Republican presidential hopeful Sen. Marco Rubio of Florida, and others are working to sabotage it. They want the Senate to ensure that the program will continue just as it is after parts of the Patriot Act expire at the end of this month.

While the phone program's benefits are dubious, its costs are clear. Several major tech companies have said that privacy intrusions have hurt U.S. companies. Meanwhile, innocent Americans suffer an assault to their privacy each day the government collects data on their calls. And if this sort of collection goes on, history demonstrates the government is likely to abuse it.

As the appeals court ruling warned, if the government's interpretation were correct in stretching the law to collect phone data, it could use the same interpretation to ''collect and store in bulk any other existing metadata available anywhere,'' including financial records, medical records, email and social media.

Choosing between privacy and security in these dangerous times is difficult. But, despite what supporters of bulk collection insist, lawmakers don't have to choose.

A carefully built compromise allows access to phone records, but with genuine privacy safeguards. The nation would be no less secure. And the civil liberties on which the nation was built would be better protected.

[From the Los Angeles Times, May 6, 2015]

THE USA FREEDOM ACT: A SMALLER BIG BROTHER

Last fall, Congress was on the verge of doing away with the most troubling invasion of privacy revealed by Edward Snowden: the National Security Agency's indiscriminate collection of the telephone records of millions of Americans. But then opponents cited the emergence of Islamic State as a reason for preserving the status quo. The Senate failed to muster the 60 votes needed to proceed with the so-called USA Freedom Act.

But the legislation has staged a comeback. Last week the House Judiciary Committee approved a bill of the same name that would end bulk collection—leaving phone records in the possession of telecommunications providers. The government could search telephone records only by convincing a court that there was ''reasonable, articulable suspicion'' that a specific search term—such as a telephone number—was associated with international terrorism. And rules would be tightened so that investigators couldn't search records from, say, an entire state, city or ZIP Code.

Americans were understandably alarmed in 2013 when Snowden revealed that information about the sources, destination and duration of their phone calls was being vacuumed up by the NSA and stored by the government, which could then ''query'' the database without court approval for numbers connected to suspected terrorists. After initially defending the program, President Obama modified it a bit, but he left it to Congress to make the fundamental change of ending bulk collection.

We had hoped that Congress would take a fresh look at whether this program is necessary at all, given a presidential task force's conclusion that it was ''not essential to preventing attacks.'' But if Congress is determined to continue the program, it must establish safeguards. The bill does this, though there is room for improvement. For example, unlike last year's Senate bill, this measure doesn't require the government to destroy information it obtains about individuals who aren't the target of an investigation or suspected agents of a foreign government or terrorist organization.

Approval is likely in the House, but prospects in the Senate are more doubtful. Senate Majority Leader Mitch McConnell (R–Ky.) has said that ending bulk collection of phone records would amount to ''tying our hands behind our backs.''

That was, and is, a specious objection. Under this legislation, the government can

continue to search telephone records when there is a reasonable suspicion of a connection to terrorism. But it will no longer be able to warehouse those records, and it will have to satisfy a court that it isn't on a fishing expedition. Those are eminently reasonable restrictions—unless you believe that the war against Islamic State and similar groups means that Americans must sacrifice their right to privacy in perpetuity.

Mr. LEAHY. Mr. President, additionally, I ask unanimous consent to have printed in the RECORD a letter from the major technology industry companies and trade associations in support of the USA FREEDOM Act.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

MAY 11, 2015.

Hon. JOHN BOEHNER,
The Capitol, Washington, DC.
Hon. NANCY PELOSI,
The Capitol, Washington, DC.

DEAR SPEAKER BOEHNER AND DEMOCRATIC LEADER PELOSI: We, the undersigned technology associations and groups, write to express our strong support for H.R 2048, the USA Freedom Act, as reported by the House Judiciary Committee on April 30th by a vote of 25 to two.

Public trust in the technology sector is critical, and that trust has declined measurably among both U.S. citizens and citizens of our foreign allies since the revelations regarding the U.S. surveillance programs began 2 years ago. As a result of increasing concern about the level of access the U.S. government has to user-generated data held by technology companies, many domestic and foreign users have turned to foreign technology providers while, simultaneously, foreign jurisdictions have implemented reactionary policies that threaten the fabric of the borderless internet.

The USA Freedom Act as introduced in the House and Senate on April 28th offers an effective balance that both protects privacy and provides the necessary tools for national security, and we congratulate those who participated in the bipartisan, bicameral effort that produced the legislative text. Critically, the bill ends the indiscriminate collection of bulk data, avoids data retention mandates, and creates a strong transparency framework for both government and private companies to report national security requests.

Meaningful surveillance reform is vital to rebuilding the essential element of trust not only in the technology sector but also in the U.S. government. With 21 days remaining until the sunset of certain national security authorities, we urge you to swiftly move to consider and pass the USA Freedom Act without harmful amendments.

Mr. LEAHY. Some would argue that no reforms are needed. Unfortunately, they do not go into the facts, as the Second Circuit did; they invoke fearmongering and dubious claims about the utility of the bulk collection programs to defend the status quo. These are the same arguments we heard last November when we were not even allowed to debate an earlier version of the USA FREEDOM Act because of a filibuster.

Last week, some Senators came to the floor to argue that the NSA's bulk collection of phone records might have prevented 9/11. Now, this specter is always raised, that it might have prevented 9/11 and is vital to national security. We also heard that if we enact the USA FREEDOM Act, that will somehow return the intelligence community to a pre-9/11 posture. None of these claims can withstand the light of day.

I will go back to some of the facts—not just hypotheses. Richard Clarke was working in the Bush administration on September 11, 2001. I asked him whether the NSA program would have prevented those attacks. He testified that the government already had the information that could have prevented the attacks, but failed to properly share that information among Federal agencies. Likewise, Senator Bob Graham, who investigated the September 11 attacks as part of the Senate Intelligence Committee, also debunked the notion that this bulk collection program would somehow have prevented the 9/11 attacks.

The NSA's bulk collection of phone records simply has not been vital to thwarting terrorist attacks. When the NSA was embarrassed by the theft of all of their information and the news about the NSA's phone metadata program first broke, they defended the program by saying it had helped thwart 54 terrorist attacks. Well, I convened public hearings on this and under public scrutiny, that figure of 54 initially shrunk to: Well, maybe a dozen. We scrutinized that further. They said: Well, maybe it was two. Everybody realized that the government had to tell the truth in these open hearings. And then they said: Maybe it was one. That sole example was not a ''terrorist attack'' that was thwarted. It was a material support conviction involving $8,000 not a terrorist plot.

Numerous independent experts also have concluded that the NSA's bulk collection program is not essential to national security. I mention these things, because as soon as you come down and say: We are all going to face another 9/11, we are all going to face ISIS, we are all going to face these terrible attacks if we do not have this program—yet we can show that it has not stopped any attacks.

The President's Review Group, which included former national security officials, stated: The bulk collection of American's phone records was not essential to preventing attacks, and could readily have been obtained in a timely manner using conventional Section 215 orders.

So we can go with hysteria and overstatements or we can go with facts. In my State of Vermont, we like facts. We should not be swayed by fearmongering. Congress cannot simply reauthorize the expiring provisions of the USA PATRIOT Act without enacting real reforms.

When the House passes the USA FREEDOM Act tomorrow and sends it to the Senate, we should take it up immediately, pass that bill. The American people are counting on us to take action. They did not elect us to just kick the can down the road or blindly rubber stamp intelligence activities that now have been found by the court to be illegal. Congress should pass the USA FREEDOM Act this week.

I thank my good friend from Utah for yielding to me. I totally agree with his position.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, I ask unanimous consent to extend the colloquy for a period of an additional 15 minutes to allow a couple of other Members to participate in the colloquy.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. LEE. I would like to now hear from my friend and colleague, the junior Senator from Nevada, Mr. HELLER, and hear his thoughts on how people in his State—how people he knows across the country feel about this program and what we ought to do about it.

The PRESIDING OFFICER. The Senator from Nevada.

Mr. HELLER. Mr. President, today, I rise to join this bipartisan group calling for support of the USA FREEDOM Act. I want to begin by thanking my friend and colleague from Utah for his hard work and effort on behalf of the American people on this, my friend from Vermont for his actions also, and other Members of this Chamber.

Together, what we are trying to do is bring transparency, accountability, and, most importantly, freedom to the American people—freedom from an unnecessary and what has now been declared an illegal invasion of American's privacy. I am talking specifically about section 215 under the PATRIOT Act. Just last week, a Federal appeals court ruled that this National Security Agency program that collects Americans' calls—these records are now illegal.

Our national security and protection of our freedom as Americans are not mutually exclusive. Allowing the Federal Government to conduct vast domestic surveillance operations under section 215 provides the government with too much authority. This court's ruling only reaffirms that the NSA is out of control.

Under section 215, the FBI can seek a court order directing a business to turn over certain records when they have reasonable grounds to believe the information asked for is ''relevant to an authorized investigation of international terrorism.'' However, the NSA has wrongly interpreted this to mean that all—all—telephone records are relevant.

So they are collecting and storing large amounts of data in an attempt to find a small amount of information that might be relevant. If we reauthorize these laws without significant reforms, we are allowing millions of law-abiding U.S. citizens' call records to be held by the Federal Government. I see this as nothing but an egregious intrusion of Americans' privacy.

So what does the NSA know? They know someone from my State in Elko, NV, got a call from the NRA and then

called their Senator. So what does the NSA know? They know someone from Las Vegas called the suicide hotline for 20 minutes and then called a hospital right after. So what does the NSA know? They know you called your church or received a phone call from political action committees.

So does the previous administration, does this administration or perhaps the next administration care about your party affiliation? Do they care about your religious beliefs? Do they care about your health concerns? How about your activities in nonprofit tax-exempt entities? Maybe not today, as the Senator from Utah said, but what about 5 years from now, what about 10 years from now and even 15 years from now?

That is why I have been working with my colleagues since the last Congress to pass the USA FREEDOM Act, and I am proud to join as an original cosponsor of this bill in this new Congress. Those reforms are not just a pipeline dream that will die in the Senate. This is a substantive bill that carefully balances the privacy rights of Americans and the needs of the intelligence community as they work to keep us safe.

That is why the House Judiciary Committee has passed this bill on a bipartisan basis and the full House of Representatives is expected to pass it later this week. Let me be clear. We are not here to strip the intelligence community of the tools needed to fight terrorism. To my colleagues who feel that the USA FREEDOM Act will do this, I would ask them to read this letter from our intelligence community.

In my hand, I have a letter signed by the Attorney General and the Director of National Intelligence that was sent to Senator LEAHY last year. I would like to read a portion of this. ''The intelligence community believes that your bill preserves essential intelligence community capabilities; and the Department of Justice and the Office of the Director of National Intelligence support your bill and believe that it is a reasonable compromise that enhances privacy and civil liberties and increases transparency.''

We are not here to harm the operational capabilities of the intelligence community who safeguard us every day. What we are here to do is provide the American people the certainty that the Federal Government is working without violating their constitutional rights. That is why I have also consistently opposed and voted against the PATRIOT Act during my time in Congress.

I will do everything I can to end the PATRIOT Act, but if I cannot do that, I will work to gut the PATRIOT Act of the most egregious sections that infringe upon American citizens' privacy and their civil liberties. That is what the reforms of the USA FREEDOM Act begin to achieve. This legislation, among other things, will rein in the dragnet collection of data by the National Security Agency. It will stop the bulk collection of American communication records by ending the specific authorization under section 215 of the PATRIOT Act.

We are reaching a critical deadline as several Foreign Intelligence Surveillance Act provisions expire at the end of May. I want to be clear that I expect reforms to our surveillance programs, and I will not consent to a straight reauthorization of the illegal activities that occur under section 215 of the PATRIOT Act.

It is time for our Nation to right this wrong, make significant changes necessary to restore America's faith in the Federal Government, and restore the civil liberties that make our Nation worth protecting. I want to again thank the Senator from Utah and my colleague from the State of Vermont for their hard work and effort on behalf of all Americans in protecting their privacies and their civil liberties. I will turn my time back over to the Senator from Utah.

Mr. LEE. Mr. President, we would like to hear next from my friend and colleague, the junior Senator from Montana, on this issue.

The PRESIDING OFFICER. The Senator from Montana.

Mr. DAINES. Mr. President, I want to thank the Senator from Utah, my good friend, for his leadership on the USA FREEDOM Act. I recently returned from an official trip to the Middle East with leader MCCONNELL and several of my fellow first-term Senators. We met with leaders in Israel, Jordan, Iraq, Kuwait, and Afghanistan to discuss the political and security issues facing Middle Eastern nations.

We also met with a number of American servicemembers who are bravely securing our country in these crisis-stricken regions and working every day to keep our Nation safe from the extreme forces that wish to destroy us. These meetings painted a very clear picture; that terror imposed by extreme forces such as ISIS and the threats facing our allies in the Middle East are real and they are growing every single day.

But the growing presence of ISIS in the Middle East is not just affecting the long-term security of nations such as Iraq and Syria, it is no longer a risk isolated geographically to the Middle East.

These extreme Islamic forces are working every day to harm the American people within our borders and on our soil. It is critical our law enforcement officials and our intelligence agencies have the tools they need to find terrorists in the United States and abroad, identify potential terror attacks, and eradicate these risks. ISIS is not just working to inflict physical damage upon our country and our people, this extreme group and other like-minded terrorists are intent on destroying our very way of life, our Nation's foundation of freedom and justice for all.

But as we strengthen our intelligence capabilities, we must, with equal vigor and determination, protect our Constitution, our civil liberties, the very foundation of this country. If the forces of evil successfully propel leaders in Washington to erode our core constitutional values, we will grant these terrorists a satisfying victory. We must never allow this. We must uphold the Constitution. We must work to protect the balance between protecting our Nation's security while also maintaining our civil liberties and our constitutional rights.

That is why I, similar to so many Montanans, am deeply concerned about the NSA's bulk metadata collection program and its impact on our constitutional rights. This program allows the NSA to have uninhibited access to America's phone records. I firmly believe this is a violation of America's constitutional rights and it must come to an end. Montanans have also long been concerned that the NSA has overreached its legal authority when implementing its bulk data collection program.

The recent ruling from the New York-based Second Circuit U.S. Court of Appeals confirmed it. The court ruled unanimously that section 215 of the PATRIOT Act does not authorize the NSA's bulk collection of Americans' phone metadata, but this is not the first time the legality of NSA's bulk data practices have been questioned.

A 2015 report from the Privacy and Civil Liberties Oversight Board, which is a nonpartisan, independent privacy board, found that section 215 does not provide authority for the NSA's collection program. The report raised serious concerns that the NSA's program violated the rights guaranteed under the First and Fourth Amendments. The report states:

> Under the section 215 bulk records program, the NSA acquires a massive number of calling records from telephone companies every day, potentially including the records of every call made across the Nation. Yet Section 215 does not authorize the NSA to acquire anything at all.

The report concludes:

> The program lacks a viable legal foundation under section 215. It implicates Constitutional concerns of the first and fourth amendments, raises serious threats to privacy and civil liberties as a policy matter, and has shown only limited value. For these reasons the government should end the program.

I strongly agree. In addition, the independent Commission found that the bulk collection program contributed only minimal value in combatting terrorism beyond what the government already achieves through other alternative means. So claims that this program provides unique value to our security were not validated, and, in fact, were refused by the Commission.

As Montana's Senator, I took an oath to protect and defend the Constitution. It is a responsibility and a promise I take very seriously. That is why I have joined Senators LEE, LEAHY, and others to introduce the USA FREEDOM Act

of 2015. This bipartisan legislation will end the NSA's bulk data collection program, while also implementing greater oversight, transparency, and accountability in the government's surveillance activities.

The USA FREEDOM Act strikes the right balance between protecting our security and protecting our privacy. It still allows necessary access to information specific to an investigation, with an appropriate court order, and provides the flexibility to be able to move quickly in response to emergencies, but it stops the indiscriminate government collection of data on innocent Americans once and for all.

I have long fought to defend Montanans' civil liberties, protecting privacy and constitutional rights from Big Government overreach. After spending 12 years in the technology sector, I know firsthand the power that data holds and the threats to American civil liberties that come with mass collection.

As Montana's loan representative in the U.S. House, I cosponsored the original USA FREEDOM ACT that would have ended the NSA's abuses and overreach. I also supported efforts led by Congressman JUSTIN AMASH to amend the 2014 Defense appropriations bill and end the NSA's blanket collection of Americans' telephone records.

We made significant ground last year in raising awareness of this overreach, but the fight to protect America's civil liberties and constitutional freedoms is far from over. That is why I am proud to stand today as a cosponsor of the USA FREEDOM Act of 2015 and a strong advocate and defender of America's right to privacy. As risks facing our homeland and our interests overseas remain ever present, it is critical that our law enforcement has the tools they need to protect our national security from extremists who would destroy our Nation and our very way of life.

The USA FREEDOM Act provides these tools, but we must also remain vigilant to ensure that American civil liberties aren't needlessly abandoned in the process. We need to protect and defend the homeland. We need to protect and defend the Constitution.

I stand today with the full confidence that the USA FREEDOM Act achieves both, and I urge the Senate to pass it.

I yield back.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, I ask unanimous consent to extend the colloquy by an additional 5 minutes so we can hear from my friend and colleague, the Senator from Connecticut, Mr. BLUMENTHAL.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Connecticut.

Mr. BLUMENTHAL. Mr. President, I thank my colleague from Utah, my friend and very distinguished colleague, as well as our friend from the State of Vermont for their leadership this morning and throughout the drafting and formulating of this very well-balanced compromise—a balance between security, which we must be able to preserve and defend, and our privacy and other essential constitutional rights, which we need to protect just as zealously, because the reason for fighting to preserve our security is so we maintain and preserve our great constitutional rights.

That balance can be struck. It is feasible, achievable, and this measure of the USA FREEDOM Act is a strong step in the right direction.

I wish to talk today about one of its great virtues, which is an American virtue, the virtue of due process having an effective adversarial process, one that is transparent and provides for effective appellate view. The lack of an adversarial process, as well as transparency and effective appellate review, is one of the reasons the USA FREEDOM Act is absolutely necessary.

We know bulk collection of megadata is unnecessary. The President's own review group made that fact clear. We also know bulk metadata collection is, essentially, un-American. This country was founded by people who, rightly, abhorred the so-called general warrant that permitted the King's officials to rummage through their homes and documents. No general warrant in our history has swept up as much information about innocent Americans as orders allowing bulk collection.

Last week, the Second Circuit Court of Appeals told us something more; that we now know bulk collection is unauthorized. It is illegal. It is unauthorized by statute and has been so for the last 9 years that the government has collected bulk data of this kind.

The question is, How did it happen? How did we arrive at a point where the Government of the United States has been collecting data illegally for 9 years? We know that in May of 2006, the FISA Court—the Foreign Intelligence Surveillance Court—first was asked whether the Federal Government could collect the phone records of potentially every single American, and it said yes.

It failed the most crucial test of any court, which is to uphold our liberties against any legal onslaught. It got it wrong because the government's argument hinged on a single word, the word ''relevance.'' The court ruled that relevance means all information. In other words, the court had to decide whether relevant information means all information, and it said yes.

That judgment was just plain wrong, and it did not strike the Second Circuit as a difficult question. It doesn't strike us—now in retrospect—as a difficult question. The Second Circuit held that the Federal Government's interpretation is ''unprecedented and unwarranted.'' Never before, in the history of the Nation, has this kind of bizarre overreaching been successfully entertained.

Now, the court—the Foreign Intelligence Surveillance Court—didn't even issue an opinion. There was no way for anyone to know that this bulk metadata collection had been authorized because the court never told anyone, never explained itself. One can hope the Court knew what it was thinking at the time, but we don't know what it was thinking.

Now, I don't mean any disrespect to the FISA Court, which is composed of judges who have been confirmed by this body, article 3 judges who serve because they have been appointed by the Chief Justice of the United States.

The reason the court got this issue so fundamentally wrong, I think, is because it heard only one side of the argument. It heard only the government's side. It heard only the advocates seeking to collect in this sweeping way that was contrary to statute and, in my view, also contrary to fundamental rights and principles.

The USA FREEDOM Act corrects that systemic problem. It not only enables, but it requires the court to hear both sides.

We know from our life's experience that people make better decisions when they hear both sides of an argument. Judges on the courts know they want to hear both sides of the argument before they make a decision. Often they will appoint someone to make the other side of the argument, if there isn't anyone to do so effectively. They want effective representation in the courtroom.

That is why I have advocated from the very start and proposed—and the President affirmed—that there needs to be advocacy for our constitutional rights before the court. The other side of the government's argument needs to be represented.

We need a FISA Court we can trust to get it right because this proposal for an adversarial proceeding in no way contemplates an abridgement of secrecy or unnecessary delay. Warrants could proceed without delay. They could proceed without violation of confidentiality and secrecy, but the systemic problem would be fixed so the FISA Court would hear from both sides.

This act also is important because it would bring more transparency to FISA Court decisions, requiring opinions to be released, unless there is good reason not to do so. It would require some form of effective appellate review so mistakes could be corrected.

These kinds of changes in the law are, in fact, basic due process. They are the rule of law throughout the United States in article 3 courts, and these changes will make the FISA Court look like the courts Americans are accustomed to seeing in their everyday experience. When they walk into a courtroom in any town in the State of Connecticut or the State of Utah or the State of Montana, what they are accustomed to seeing is two sides arguing before a judge, and that is what the FISA Court would look like—rather than one side making one argument,

whether it is for bulk collection of metadata or any other intrusion on civil rights and civil liberties, there would be an advocate on the other side to make the case that it is overreaching, that it is unnecessary, that it is unauthorized. In fact, that is what the Second Circuit said the government was doing by this incredibly overextended overreach in bulk collection of metadata.

Unless and until this essential reform is enacted, along with other critical reforms that are contained in the USA FREEDOM Act, I will oppose reauthorization of section 215, and I urge my colleagues to do so as well.

I thank my colleagues from Utah and Vermont for their leadership and all who have joined in this morning's discussion. The colloquy today, I think, illustrates some important points of why the USA FREEDOM Act is important at this point in our Nation's history.

I yield the floor.

Mr. LEE. Mr. President, I appreciate the patience of Senator HATCH and his willingness to wait while we finished this exercise.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

TRADE

Mr. HATCH. Mr. President, later today, the Senate will vote on whether to begin debate on the future of the U.S. trade policy. It is a debate that has been a long time coming. In fact, we haven't had a real trade debate in this Chamber since at least 2002. That was 13 years ago.

Think about that. Let's keep in mind that 95 percent of the world's consumers live outside of the United States and that if we want our farmers, our ranchers, manufacturers, and entrepreneurs to be able to compete in the world marketplace, we need to be actively working to break down barriers for American exports. This is how we can grow our economy and create good, high-paying jobs for American workers.

While the chatter in the media and behind the scenes surrounding today's vote has been nearly deafening, no one should make today's vote more than it is. It is, once again, quite simply, a vote to begin debate on these important issues.

Now, I know some around here are unwilling to even consider having a debate if they can't dictate the terms in advance, but that is not how the Senate works and, thankfully, that is not the path we are going to take.

I have been in Congress for a long time, so I think I can speak with some authority about how this Chamber is—under normal conditions and regular order—supposed to operate. Of course, before this year, it had been a while before this body had worked the way it was supposed to. Hopefully, today's vote can serve as a reminder, and we can go to regular order on these bills and do it in a way that brings dignity to this Chamber again.

Once again, today's vote will decide only whether we will begin a debate on trade policy. It will not in any way decide the outcome of that debate. Indeed, the question for today is not how this debate will proceed but whether it will proceed at all.

Right now, everyone's focus seems to be on whether we will renew trade promotion authority—or TPA—and that will, of course, be part of the trade debate. TPA is a vital element of U.S. trade policy. Indeed, it is the best way to ensure that Congress sets the objectives for our trade negotiators and provides assurances to our trading partners that if a trade agreement is signed, the United States can deliver on the deal.

As you know, the Finance Committee reported a strong bipartisan TPA bill on April 22. The committee vote was 20 to 6 in favor of the bill. It was a bipartisan vote. That was a historic day. Before that day, the last time the Finance Committee reported a TPA bill was in 1988, almost three decades ago.

But that is not all we did on that day. In addition to our TPA bill, we reported a bill to reauthorize trade adjustment assistance, or TAA, a bill to reauthorize expired trade preference programs, and a customs and trade enforcement bill.

These are all important bills—each one of them. They all have bipartisan support. I was a principal author of three of these four bills, and I don't intend to see any of them left by the wayside. However, that looks like it is becoming increasingly what might really happen here if we don't get together.

Everyone here knows that I am anxious to get TPA across the finish line. And though it pains me a little to say it, TAA is part of that effort. We know our colleagues on the left have to have that. While I oppose TAA, I have recognized—and I have from the beginning—that the program is important to many of my colleagues, some of whom are on this side of the aisle as well, and it is a necessary component to win their support for TPA.

On a number of occasions, including at the Finance Committee markup, I have committed to helping make sure that TPA and TAA move on parallel tracks, and I intend to honor that commitment. Toward that end, if we get cloture on the motion to proceed later today, I plan to combine TPA and TAA into basically a single package that can be split by the House, and move them as a substitute amendment to the trade vehicle. And, I have to say, Congressman RYAN, the chairman of the Ways and Means Committee, understands that TAA has to pass over there as well.

In other words, no one should be concerned about a path forward for TPA and TAA. That was the big debate throughout the whole procedural process. And even though it raises concerns for a number of Republicans, including myself, these two bills will move together.

The question ultimately becomes this: What about the preferences and customs bills? There are two other bills here. I have committed in the past to work on getting all four of these bills across the finish line or at least to a vote on the floor, and I will reaffirm that commitment here on the floor today. I will work in good faith with my colleagues on both sides of the aisle and in both the House and Senate to get this done.

Regarding preferences, the House and Senate have introduced very similar bills, and, in the past, these preference programs—programs such as the African Growth and Opportunity Act and the generalized system of preferences—have enjoyed broad bipartisan support. My guess is that support will continue and that there is a path forward on moving that legislation in short order.

Admittedly, the customs bill is a bit more complicated. However, I am a principal author of most of the provisions in the customs bill. Indeed, many of my own enforcement positions and priorities are in that bill. Put simply, I have a vested interest in seeing the customs bill become law, and I will do all I can to make sure that happens. I will work with Senator WYDEN and the rest of my colleagues to find a path forward on these bills. I don't want any of them to be left behind.

But we all know that the customs bill has language in there that cannot be passed in the House. I don't know what to do about that. All I can say is that we can provide a vote here in this body, and who knows what that vote will be. I am quite certain that if we are allowed to proceed today, these bills—not to mention any others—will be offered as amendments. But in the end, we can't do any of that—we can't pass a single one of these bills—if we don't even begin the trade debate.

If Senators are concerned about the substance of the legislation we are debating, the best way to address these problems is to come to the floor, offer some amendments, and take some votes. That is how the Senate is supposed to operate, and we are prepared to operate it that way.

I might add, though, we have to get the bill up. And if there is a cloture vote and cloture fails, Katy bar the door.

I know there are some deeply held convictions on all sides of these issues and that not everyone in the Senate agrees with me. That is all the more reason to let this debate move forward and let's see where it goes. Let's talk about our positions. Let's make all of our voices heard. I am ready and willing to defend my support for free trade and TPA here on the Senate floor. I will happily stand here and make the case for open markets and expanded access for U.S. exporters and refute any arguments made to the contrary. And I

am quite certain there are a number of my colleagues who would relish the opportunity to tell me why they think I am wrong. They should have that right. None of that happens if people vote today to prevent the debate from even taking place.

We need to keep in mind that we are talking about bipartisan legislation here. All of these bills are supported by Senators on both sides of the aisle. This isn't some partisan gambit to force a Republican bill through the Senate. And, of course, let's not forget that, with TPA, we are talking about President Obama's top legislative priority and one of the most important bills in this President's service as President of the United States of America.

This is a debate we need to have. I am prepared to have it. The American people deserve to see us talk about these issues on the floor instead of hiding behind procedural excuses.

I urge all of my colleagues, regardless of where they stand substantively on these issues, to vote to begin this important and, hopefully, historic debate on U.S. trade policy.

Let me say, I am basically shocked that after all we have done—the large vote in the committee, the importance of these two bills in particular but all four of them, and the importance of trade promotion authority and trade adjustment assistance to the President—that we now have a bunch of procedural mechanisms that could make this all impossible. It is hard for me to believe that this could take place. We had an agreement—the two sides—and I am concerned about that agreement being broken at this late date, when we were so happy to get these bills out of the committee and get them the opportunity of being on the floor.

I have to say, as a Republican and as a conservative, I have been willing to carry the water for the President on this because he is absolutely right that TPA and TAA should pass, especially TPA. On TAA, I have questions on it and I wish we didn't have to pass it, but I have agreed to see that it is on the Senate floor as part of passing TPA.

The bill deserves to pass. However, we know that the President does not like the language that was put into the customs bill and neither do I, at this point, because I think it could foul up the whole process, the way I am hearing from the other side. We understood we were going to have votes on TPA and TAA, without getting into the currency problem that will still be alive on the customs bill. I am very concerned about this because we have come this far, and we should follow through and get this done. The President will be better off, the country will be better off, and all of us will be better off. And we can walk away from this, I believe, in the end feeling that we have done the right thing. This is the best thing that could be done for our country. We have to be part of the free-trade movement in this country and in this world. There are 400 trade agreements out there. We have only agreed to 20 of them.

These trade agreements generally bring jobs that are much better paid than other jobs in our society, between 13 and 18 percent more. For the life of me, I will never understand why the unions are so opposed to it and, thus, so many Democrats are opposed to it. I can't understand it, because this will create jobs, and generally the better jobs—the jobs that unions can then fight to unionize if they want to, which they have a right to do under our laws. Yet every time these matters come up, they are a principal impediment to getting free-trade agreements passed.

Look, I think Ambassador Froman has done a very good job up to now, but his hands are tied. If we don't pass TPA, he is going to have a very difficult time, ever, bringing about the TPP, the Trans-Pacific Partnership, or TTIP, which is 28 European countries plus ours. TPP is 11 countries plus ours, mainly in Asia—not the least of which is Japan, which our Trade Representative believes he can get to sign a trade agreement with us. I believe he can. But I don't believe he can do it without TPA. We have already been told by the Ambassador from New Zealand that they are not going to sign without TPA.

So to hamper the passage of TPA because of some desire to do otherwise is not only a mistake, but it flies in the face of the support this President needs and should have on this particular bill.

Now, I understand there are folks on the other side who just aren't for free trade and they are not for trade bills. And they have a right to feel that way. I don't have a problem with that. What I have a problem with is making it impossible to pass these bills and get them through the Senate, which is the path we are on right now. If the votes are against cloture, I suspect our path to getting this done—to improving our trade throughout the world, to allowing us to compete worldwide the way we should—is going to be severely hampered, if not completely hurt.

With that, I yield the floor.

The PRESIDING OFFICER (Mr. DAINES). The Senator from Illinois.

Mr. DURBIN. Mr. President, how much time is remaining on the Democratic side?

The PRESIDING OFFICER. The Democrat side has 12½ minutes remaining.

Mr. DURBIN. Mr. President, most people who are following this debate may be a little bit put off by some of the initials that we use around here—TPP, TPA, TAA. What is it all about?

It is about a trade agreement. It involves a dozen countries, including the United States. Most of them are in Asia. We are preparing to discuss and debate it, and that trade agreement is known as the Trans-Pacific Partnership, or TPP. I think that is what that stands for. I will correct the record if I am wrong on that.

But before we get to the trade agreement, we have to decide how we are going to consider it, and that is known as TPA, trade promotion authority, or fast track. The question is whether the Senate will agree that we cannot amend the trade agreement—no amendments—and that it is a simple majority vote. That is what is known as fast track. Virtually every President in modern time has had that authority. It has expired, and now it has to be recreated by a vote on the floor.

What we are anticipating this afternoon is whether we go to the arguments about these various issues, and the uncertainty is what leads my friend from Utah, Senator HATCH, to come to the floor.

The uncertainty from our side is this: How are we going to consider this? Four bills came out of the Finance Committee related to trade. How are they going to be brought to the floor? Are they going to be part of one package? Are they separate votes? Which one will come out of the Senate? Will more than one come out of the Senate? These are unanswered questions, and because these questions are unanswered, the vote at 2:30 or so is in doubt.

Senator HATCH is upset. He believed that there was an agreement. I wasn't a party to it. I don't know. But this much I do know: Trade is a controversial issue. It is important to America's economy. But when you take it home and meet with the people you represent, there are strong mixed feelings about trade.

Some who work for the Caterpillar tractor company in Illinois want to promote trade, sell more of those big yellow tractors, and put more Americans to work to build them.

But many look at trade and say: I could be a casualty. I could be a victim. They could ship my job overseas, Senator. So what are you going to do to make sure I am protected in this?

That is why trade isn't an easy issue. It is a controversial issue.

TAA, which Senator HATCH referred to, is trade adjustment assistance. What it says is that if you lost your job because of a trade agreement, we will help pay for your training for a new job. Senator HATCH said he opposed that. I fully support it.

I just visited a high school in downstate Illinois. There was a man there teaching high school students—good, gifted high school students—how to repair computers. I said: How did you get into this business? He said: It is a funny thing. I lost my job in a factory years ago because of a trade agreement. But because of trade adjustment assistance, I was able to go back to college, got a degree, and now I am a teacher.

Do I support trade adjustment assistance? You bet I do—for that teacher and for many others who want to transition into a new job if they lose their job because of trade. So including trade adjustment assistance in any part of a

trade agreement is important to many of us. We want to make sure it is included on the floor of the Senate.

Equally so, we want to make sure that trade agreements are enforceable. It wasn't that long ago that we had thriving steel production companies in America that were victimized by many foreign countries that started dumping steel in the United States.

What does it mean to dump steel? These countries—Brazil, Japan, and Russia—were selling steel in the United States at prices lower than the cost of production. Why? They knew they could run the Americans out of business—and they did. By the time we filed an unfair trade grievance, went through the hearings and won our case, the American companies disappeared. Enforcement is an important part of any conversation about trade. We want to know from Senator HATCH and the Republicans who bring this to the floor, if we are going to enforce the trade agreements so Americans are treated fairly.

I think that is a pretty legitimate question. Until it is answered, there is uncertainty. Maybe the vote at 2:30 will reflect it. I hope we can get an answer before 2:30, but if not, then soon after, on how Senator MCCONNELL wants to bring this issue to the floor.

HIGHWAY TRUST FUND

Mr. DURBIN. Mr. President, May 31—today is May 12. On May 31, the Federal highway trust fund authorization expires. What it means is at that point in time, the Federal Government will stop sending Federal dollars back to our States to build highways and bridges and support buses and mass transit—May 31.

What are we going to do about it? We have 19 days to do something about it. Sadly, we know what we are going to do about it. The Republicans who control the House and the Senate have failed to come up with any means of extending the highway trust fund. What they are going to do probably is ask us for a short-term extension—1 month, 2 months.

The reason we think this will happen is that in the past 6 years, there have been 32 extensions of the highway trust fund. We used to pass highway trust fund bills to last 6 years, for obvious reasons. You cannot build highways a month at a time. You have to know you have money that is going to be there for years to build a highway, to repair a bridge, to make certain you have new mass transit modernization. But the Republicans have been unable to reauthorize the highway trust fund for any period of time. They want to extend it 30 days at a time, 60 days at a time.

There are some realities that we need to accept. We cannot patch our way to prosperity in America. You cannot fill enough potholes to build a highway. If we are going to accept our responsibility to be a great nation and a great leader in the world economy, we need an infrastructure to support it.

The Republican failure to extend the highway trust fund for 5 or 6 years, sadly, is going to cost us jobs in America—not just good-paying construction jobs but jobs in businesses that count on infrastructure. I have them all over Illinois. There are thousands of workers in Illinois who depend on them. But because the Republicans have failed to come up with an extension of the highway trust fund, we are going to limp along here and, sadly, not meet our national obligation to create an infrastructure to support our economy.

I am hoping that cooler heads will prevail and leadership will prevail, and that the Republican leadership in the House and the Senate—they are in the majority in both Chambers—will step forward with a plan to create a highway trust fund for 6 years. The President has; he put it on the table. Republicans rejected it. They have no alternative—none.

Let's get down to business. Let's put America back to work. Let's create the infrastructure we need to build our economy.

Mr. President, how much time do I have remaining?

The PRESIDING OFFICER. The Democrats have 5 minutes remaining.

Mr. DURBIN. Mr. President, I want to make a statement on Syria and humanitarian concerns in Syria, but it will take longer than that. I know my colleague from Vermont is here, and I would like to yield the remaining 5 minutes.

Mr. SANDERS. Let me say this, if I might. If I can get unanimous consent to speak after Senator THUNE, that would be fine, and I would yield back to the Senator.

How is that?

Mr. DURBIN. If the Senator wants to make that unanimous consent request——

Mr. SANDERS. Mr. President, I ask unanimous consent that I be allowed to speak for up to 15 minutes after Senator THUNE speaks.

The PRESIDING OFFICER (Mr. CRUZ). Is there objection?

Without objection, it is so ordered.

Mr. DURBIN. Mr. President, I believe the previous Presiding Officer suggested I had 5 minutes remaining of Democratic time at this point.

HUMANITARIAN CRISIS IN SYRIA

Mr. DURBIN. Mr. President, I would like to say, very briefly, a word about the situation in Syria. On May 13, 1994, a Senator from Illinois named Paul Simon was then chairman of the Senate Foreign Relations Subcommittee on Africa. His ranking Republican was Senator Jim Jeffords of Vermont. Senators Jim Jeffords and Paul Simon had been told that there was a looming genocide about to occur in Rwanda. They went on the phone together and spoke to U.N. General Romeo Dallaire in Kigali, Rwanda, in May of 1994. They asked: What can we do to stop the killing in Rwanda? General Dallaire said: If you would send 5,000 uniformed troops, I could stop this genocide.

Senators Simon and Jeffords wrote to the Clinton White House immediately at that time and asked for the administration to call on the United Nations to act.

Their letter said in part: ''Obviously there are risks involved but we cannot continue to sit idly by while this tragedy continues to unfold.''

The Senators received no reply from the White House. In less than 8 weeks, 800,000 Rwandans were massacred. Today, President William Clinton acknowledges that he should have done more—we should have done more. What happened in Rwanda was a classic genocide. Today, what is happening in Syria may not meet the classic definition of a genocide, but it certainly meets every standard and every definition as the looming humanitarian crisis of our time. The question before us and the United States is this: What will we do?

I think it has reached the point where we must act. That is why I have joined three of my colleagues—fellow Democrat TIM KAINE of Virginia and Republicans LINDSEY GRAHAM of South Carolina and JOHN MCCAIN of Arizona—and we have written to President Obama, urging him to call together world leaders and to establish a humanitarian zone—a safe zone, a no-fly zone—in Syria, where modern medical treatment can be provided and displaced persons can escape. We think it should be done under the auspices—I do—of the United Nations and that the United States can join other countries in providing a defensive security force.

We need to turn to our NATO allies, such as Turkey. We need to reach out to Saudi Arabia, even Iran, and try to find an international consensus to spare the suffering and death which has been occurring now for years. We do not know the exact number of casualties. We estimate that some 400,000 may have died in Syria. Millions have been displaced.

This is a picture of just one of the refugee camps to which the people of Syria have fled. I have visited camps such as this in Turkey. They are in Lebanon and Jordan. They cannot accommodate all of the people who are evacuating that country.

Once every few months a friend of mine comes to visit in Chicago. He is an extraordinary man. His name is Dr. Sahloul. He heads up a group of Syrian Americans who travel to Syria on a regular basis. They have to sneak into the country—this war-torn country. As doctors, they are providing basic medical care to the victims of the violence that is taking place in Syria.

Dr. Sahloul brings heartbreaking photographs to show me. The last photographs were of children who had been victims of barrel bombs, which Bashar al-Assad, the leader of Syria, drops on

his own people. These are literally garbage cans filled with munitions and explosives that explode, killing civilian populations. The photos showed children who had been maimed, lost their limbs, and some had been killed by these barrel bombs that continue. Now Assad has decided to up the ante. He is including chlorine gas in the barrel bombs as well.

These doctors try to save these children and save these victims. Many times they are operating on tables in abandoned schools. They are begging for medicines, which are at a high premium. Many times they are not successful. What will we do? What can the United States do?

I hope that we can be part of an effort—an international effort—to provide safe zones for medical treatment and for the displaced persons in Syria. I hope to join with others on a bipartisan basis in urging that alternative.

I yield the floor.

The PRESIDING OFFICER. The Senator from South Dakota.

TRADE PROMOTION AUTHORITY

Mr. THUNE. Mr. President, later today the Senate will vote on whether to proceed to a bill that was reported out of the Senate Finance Committee, on which I serve, the trade promotion authority legislation. What is so remarkable about this is that we are on the cusp here in the Senate of passing a major piece of legislation—bipartisan legislation on which a Republican majority in the Senate is working with a Democratic President to give him trade promotion authority—something that would be very good for our economy. If the Democrats in the Senate do not blow it, this could be a major hallmark achievement of this Congress. But my understanding is there is an effort on the other side now to prevent us from even getting on the bill to debate it. I hope that as Democrats contemplate that move, they will think long and hard about what they will be doing. Not only will they be undermining their own President, who is very much for this, but they will be hurting the American economy. Almost every President, literally back to FDR, has had trade promotion authority in which he has the ability to negotiate trade agreements with our trading partners in a way that Congress ultimately has to approve but in a way that expedites and gives the maximum amount of leverage to get the best trade agreement possible.

We are taking up that legislation, hopefully, later today. But it is all going to depend on Senate Democrats and whether they want to proceed to this bill or not. I certainly hope, as I said, that they will come to the conclusion that it is in the best interests of our country, of our economy, and certainly, I think, in the best interests of creating a bipartisan achievement here in which they are working with their own President and with Republicans here in the Senate.

With 96 percent of the world's consumers outside the borders of the United States, trade is essential to growing our economy and opening new markets for products marked ''Made in the USA.''

Over the past few years, exports have been a bright spot in our economy, supporting an increasing number of American jobs each and every year. In fact, in 2014 exports supported 11.7 million U.S. jobs and made up 13 percent of our Nation's economy.

In my home State of South Dakota alone, exports support more than 15,000 jobs in industries that range from farming and ranching to machinery and electronics. We need to continue to open markets around the globe to American goods and services. The best way to do that is through new trade agreements. Countries with which we have free and fair trade agreements purchase substantially more from us than other countries.

In fact, in 2013, free-trade agreement countries purchased 12 times more goods and services per capita from the United States than non-free-trade agreement countries. Let me restate that. In 2013, those countries with which we have a free-trade agreement purchased 12 times more goods per capita from the United States than those countries with which we do not have a free-trade agreement.

It is not just American farmers, ranchers, and manufacturers who benefit from trade agreements. American consumers benefit as well. Trade agreements give American families access to a greater variety of goods at lower prices.

The U.S. Chamber of Commerce estimates that trade increases American families' purchasing power by $10,000 annually. For American workers, increased trade means more opportunity and increased access to high-paying jobs. Manufacturing jobs tied to exports pay on average 13 to 18 percent more than wages in other areas of our economy.

Unfortunately, while trade agreements were proliferated around the globe over the past several years, the United States has not signed a new trade agreement in 5 years. Altogether, the United States has just 14 trade agreements currently in effect. That is a lot of lost opportunity for American workers and businesses, since trade agreements have proved to be the best way to increase demand for American products and services.

A big reason for the lack of trade agreements in recent years is the fact that trade promotion authority expired in 2007. As I said earlier, since 1934—you have to go back to the administration of FDR—almost all of the United States' free-trade agreements have been negotiated using trade promotion authority or a similar streamlined process. Trade promotion authority is designed to put the United States in the strongest possible position when it comes to negotiating trade agreements.

Under TPA, Congress sets guidelines for trade negotiations and outlines the priorities the administration has to follow. In return, Congress promises a simple up-or-down vote on the resulting trade agreement, instead of a long amendment process that could leave the final deal looking nothing like what was negotiated. That simple up-or-down vote is the key. It lets our negotiating partners know that Congress and trade negotiators are on the same page, which gives other countries the confidence they need to put their best offers on the table, and that in turn allows for a successful and timely conclusion to negotiations.

Currently, the administration is negotiating two major trade agreements that have the potential to vastly expand the market for American goods and services in the European Union and in the Pacific.

The Trans-Pacific Partnership is being negotiated with a number of Asia-Pacific nations, including Australia, Japan, New Zealand, Singapore, and Vietnam.

If this agreement is done right, there could be huge benefits for American agriculture, among other industries. Currently, American agricultural products face heavy tariffs in many Trans-Pacific Partnership countries. Poultry tariffs in TPP countries, for example, can reach a staggering 240 percent. Reducing the barriers to American agricultural products in these countries would have enormous benefits for American farmers and ranchers.

Agricultural producers in my State of South Dakota have contacted me to tell me how trade benefits their industries and to urge support for trade promotion authority as the most effective way to secure trade agreements that will benefit South Dakota farmers and ranchers.

The leader of the South Dakota Dairy Producers Association wrote to me about the Trans-Pacific Partnership Agreement, which could have significant benefits for South Dakota dairy farmers, and urged me to vote in favor of trade promotion authority. He said the Trans-Pacific Partnership talks ''have the potential to be positive for our dairy industry, but only if the U.S. insists on settling for nothing less than a balanced deal that delivers net trade benefits for the dairy industry. Passing TPA is a key part of getting there.'' That is from a dairy producer in my State of South Dakota.

Mr. President, passing TPA is a key part of getting there. Neither the Trans-Pacific Partnership nor the United States-European Union trade agreement is likely to be completed in a timely fashion without trade promotion authority. If we want to make sure that trade negotiations achieve the goals of American farmers and manufacturers, trade promotion authority is essential.

The bipartisan bill we are considering on the Senate floor this week reauthorizes trade promotion authority,

and it includes a number of important updates, such as provisions to strengthen the transparency of the negotiating process and ensure that the American people stay informed.

It also contains provisions that I pushed for to require negotiators to ensure that trade agreements promote digital trade as well as trade in physical goods and services. Given the increasing importance of digitally enabled commerce in the 21st-century economy, it is essential that our trade agreements include new rules that keep digital trade free from unnecessary government interference.

This trade promotion authority bill will help ensure that any trade deals the United States enters into will be favorable to American farmers, ranchers, and manufacturers, and it will hold other countries accountable for their unfair practices. Passing this bill is essential to prevent American workers and businesses from being left behind in the global economy.

Since Republicans took control of the Senate in January, Democrats and Republicans have come together on a number of issues to pass legislation to address challenges that are facing our country. I hope this bill will be our next bipartisan achievement.

The President has made it clear that he supports this bill, and key Democratic Senators are working to make sure it passes. I hope the rest of the Democratic Party here in the Senate will come together with the President and Republicans to get this done.

As President Obama said the other day, ''We have to make sure that America writes the rules of the global economy. . . . Because if we don't write the rules for trade around the world—guess what—China will. And they'll write those rules in a way that gives Chinese workers and Chinese businesses the upper hand, and locks American-made goods out.'' Again, that is a quote from President Obama.

To put it another way, if America fails to lead on trade, other nations will step in to fill the void, and those nations will not have the best interests of American workers and American families in mind.

It is time to pass trade promotion authority so we can secure favorable new trade deals and ensure that American goods and services can compete on a level playing field around the globe and that American workers and American consumers receive the benefits that come along with that. I hope that will be the outcome of the vote today, and I hope it will be a major achievement for this Senate—a bipartisan achievement where both sides work together for the good of our economy, for the good of jobs, for the good of higher wage levels for American workers, and for the good of a more competitive economy in which our consumers benefit.

I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

TRADE

Mr. SANDERS. Mr. President, at 2:30 this afternoon, the Senate will vote on a motion to proceed to the fast-track bill which was recently approved by the Finance Committee. I will be strongly opposing that legislation.

In a nutshell, here is the reality of the American economy today: While we are certainly better off than we were 6½ years ago, the truth is that for the last 40 years the American middle class has been disappearing. The truth is that today we have some 45 million Americans living in poverty, and that is almost at the highest rate in the modern history of America.

While the middle class continues to shrink, we are seeing more income and wealth inequality than at any time in our country since 1929, and it is worse in America than any other major country on Earth. Today, 99 percent of all new income is going to the top 1 percent. Today, the top one-tenth of 1 percent owns almost as much wealth as the bottom 90 percent. In the last 2 years, the 14 wealthiest people in this country have seen an increase in their wealth of $157 billion, and that $157 billion is more wealth than is owned by the bottom 130 million Americans.

How is that happening? Why is it happening? We have seen a huge increase in technology, productivity is way up, and the reality is that most working people should be seeing an increase in their income. Yet, median family income has gone down by almost $5,000 since 1999. How does that happen? Why is it that the richest country in the history of the world has almost all of its new wealth in the hands of the few, while the vast majority of the American people are working longer hours for lower wages? How does that happen? Well, there are a lot of factors, but I will tell everyone that our disastrous trade agreements, such as NAFTA, CAFTA, and permanent normal trade relations with China, are certainly one of the major reasons why the middle class is in decline and why more and more income and wealth goes to a handful of people on the top.

The sad truth is that many of the new jobs created in this country today are part-time and low-paying jobs. Thirty or forty years ago, people who maybe had a high school degree could go out and get a job in a factory. They never got rich and it wasn't a glamorous job, but they had enough wages and benefits to make it into the middle class.

Since 2001, we have lost almost 60,000 factories in America. When young people graduate from high school today, they don't have the opportunity to work in a factory and have a union job and make middle-class wages; their options are Walmart and McDonald's, where there are low wages and minimal benefits. Those are companies which are vehemently anti-union.

The sad truth is that we are in a race to the bottom. Not only have our trade agreements cost us millions of decent-paying jobs, they have depressed wages in this country because companies—virtually every major multinational corporation in this country has outsourced jobs and shed millions of American jobs. What they say to workers is: If you don't like the cuts in health care and wages, we will go to China. We can hire people there for $1 an hour.

Sadly, the Trans-Pacific Partnership Agreement follows in the footsteps of the other disastrous free-trade agreements that have forced American workers to compete against desperate and low-wage workers around the world.

Over and over again—and I have heard this so many times, including on the floor this morning—supporters of fast-track have told us that unfettered free trade will increase American jobs and wages and will be just wonderful for the American economy. Sadly, however, these folks have been proven wrong and wrong and wrong time after time after time. I hear the same language, and what they say proves not to be true every time.

I will mention some quotes from the supporters of NAFTA. These are people who were telling us how great the NAFTA free-trade agreement would be.

President Bill Clinton was pushing NAFTA in the same way that President Obama is pushing TPP today. On September 19, 1993, President Clinton said:

> I believe NAFTA will create 200,000 American jobs in the first two years of its effect. . . . I believe that NAFTA will create a million jobs in the first five years of its impact.

It wasn't just liberals, such as Bill Clinton, who supported NAFTA. I have a quote from the very conservative Heritage Foundation in 1993: ''Virtually all economists agree that NAFTA will produce a net increase of U.S. jobs over the next decade.''

In 1993, the distinguished Senator from Kentucky, our majority leader MITCH MCCONNELL, said: ''American firms will not move to Mexico just for lower wages.''

Were President Clinton, the Heritage Foundation, and MITCH MCCONNELL correct? Well, of course they were not. In fact, what happened was exactly the opposite of what they said.

According to the well-respected economists at the Economic Policy Institute, NAFTA has led to the loss of more than 680,000 jobs. In 1993, the year before NAFTA was implemented, the United States had a trade surplus with Mexico of more than $1.6 billion. Last year, the trade deficit with Mexico was $53 billion. So all of the verbiage we heard about NAFTA being so good for American workers turned out to be dead wrong.

What about China? We were told: Oh my God, China will open up the Chinese market, and there are billions of people. What an opportunity to create good-paying jobs in America.

Here is what President Clinton, one of the proponents of permanent normal trade relations with China, had to say in 1999:

In opening the economy of China, the agreement will create unprecedented opportunities for American farmers, workers and companies to compete successfully in China's market . . . This is a hundred-to-nothing deal for America when it comes to the economic consequences.

In 1999, conservative economists at the Cato Institute said:

The silliest argument against PNTR is that Chinese imports would overwhelm U.S. industry. In fact, American workers are far more productive than their Chinese counterparts . . . PNTR would create far more export opportunities for America than the Chinese.

Wow, were they wrong.

The Economic Policy Institute has estimated that PNTR with China has led to the net loss of over 2.7 million Americans jobs.

Go to any department store in America and walk in the door. Where are the products made? China, China, China. They are made in Vietnam and in other low-wage countries. In fact, it is harder and harder to buy a product not made in China.

So all of those people who told us what a great deal PNTR with China would be turned out to be dead wrong. In fact, our trade agreement with China has cost us almost 3 million jobs.

In 2001, the trade deficit with China was $83 billion. Today, it is $342 billion. In 2011, on another trade agreement, the U.S. Chamber of Commerce—a big proponent of unfettered free trade—strongly supported TPP. The Chamber of Commerce told us we had to pass a free-trade agreement with South Korea because it would create some 280,000 jobs in America. That is a lot of jobs. It turns out they were wrong again. In reality, the Economic Policy Institute recently found that the Korea Free Trade Agreement has led to the loss of some 75,000 jobs.

Now, the Obama administration says, trust us. Forget what they said about NAFTA. Forget what they said about Korea. Forget what they said about China. This one is different. Really, really, cross our fingers, hope to die, this one is really, really different. Yes, it may be true that every corporation in America—corporations that have shut down factories in this country and moved to China—they are supporting this agreement. Yes, it is true Wall Street, whose greed and recklessness have almost destroyed the American economy, is supporting this agreement. Yes, it is true the pharmaceutical industry, which charges us the highest prices in the world for prescription drugs, is supporting this agreement—but not to worry, we should trust these guys. They really are thinking of the American middle class and working families. Trust us when they tell us a trade agreement will be good for working people. Yes, we should really trust them. Meanwhile, every trade union in America and the vast majority of environmental groups in this country are saying be careful about TPP; vote no on fast-track.

Here is the reality of the American economy. Since 2001, we have lost 60,000 factories in this country and we have lost over 4.7 million manufacturing jobs. In 1970, 25 percent of all the jobs in this country were in manufacturing. Today, that figure is down to 9 percent.

The point is that, by and large, especially if there were unions, those manufacturing jobs paid working people a living wage, not a Walmart wage, not a McDonald's wage.

Our demand must be to corporate America—which tells us every night on TV to buy this product, to buy this pair of sneakers, to buy this television, to buy whatever it is—that maybe, just maybe, they might want to start manufacturing those products here in the United States of America and pay our workers a decent wage, rather than looking all over the world for the lowest possible wages in which they can exploit workers who are desperate.

I was very disappointed that President Obama chose the headquarters of Nike to tout the so-called benefits of the TPP. Nike epitomizes why disastrous, unfettered free-trade policies during the past four decades have failed American workers. Nike does not employ a single manufacturing worker who makes shoes in the United States of America—not one worker. One hundred percent of the shoes sold by Nike are made overseas in low-wage countries. That is the transformation of the American economy, and it is not just Nike.

When Nike was founded in 1964, just 4 percent of U.S. footwear was imported. In other words, we manufactured the vast majority of the shoes and the sneakers we wore. Today, nearly all of the shoes that are bought in the United States are manufactured overseas. Today, over 330,000 workers manufacture Nike's products in Vietnam, where the minimum wage is 56 cents an hour.

I hear President Obama and other proponents of TPP talking about a level playing field. We have to compete on a level playing field. Does anybody think competing against desperate people who make 56 cents an hour is a level playing field, is fair to American workers? Of course, we want the poor people all over the world to see an increase in their standard of living, and we have to play an important role in that, but we don't have to destroy the American middle class to help low-income workers around the world.

In Vietnam, not only is the minimum wage 56 cents an hour, independent labor unions are banned, and people are thrown in jail for expressing their political beliefs. Is that the level playing field President Obama and other proponents of unfettered free trade are talking about?

Back in 1988, Phil Knight—Phil Knight is the founder and the owner of Nike—said Nike had ''become synonymous with slave wages, forced overtime, and arbitrary abuse.'' Phil Knight was right. In fact, factories in Vietnam where Nike shoes are manufactured have been cited by the Worker Rights Consortium for excessive overtime, wage theft, and physical mistreatment of workers. Today, Mr. Knight is one of the wealthiest people on this planet, worth more than $22 billion. While Mr. Knight's net worth has more than tripled since 1999, the average Vietnamese worker who makes Nike shoes earns pennies an hour. That is pretty much synonymous with what unfettered free trade is about. A handful of people such as Phil Knight become multi-multi-multibillionaires and poor people all over the world are exploited and paid pennies an hour.

It is not just Nike and it is not just Vietnam. Another country that is part of the Trans-Pacific Partnership is Malaysia. Today, there are nearly 200 electronics factories in Malaysia where high-tech products from Apple, Dell, Intel, Motorola, and Texas Instruments are manufactured and brought back to the United States. If the TPP is approved, that number will go up substantially. What is wrong with that? It turns out that many of the workers at the electronics plants in Malaysia are being forced to work there under horrible working conditions. According to Verite, which conducted a 2-year investigation into labor abuses in Malaysia—an investigation which was commissioned by the U.S. Department of Labor—32 percent of the industry's nearly 200,000 migrant workers in Malaysia were employed in forced situations because their passports had been taken away or because they were straining to pay back illegally high recruitment fees. In other words, American workers are going to be forced to compete against people in Malaysia—immigrant workers there whose passports have been taken away and who can't leave the country and who are working under forced labor situations.

So let me conclude by saying this: All of us understand trade is good. It is a good thing. But I think most of us now have caught on to the fact that the trade agreements pushed by corporate America, pushed by Wall Street, pushed by the pharmaceutical industry are very, very good if you are the CEO of a major corporation, but they are a disaster if you are an American worker.

It is my view that we have to rebuild manufacturing in America. It is my view that we have to create millions of decent-paying jobs in America. It is my view that we need to fundamentally rewrite our trade agreements so our largest export does not become decent-paying American jobs.

I urge my colleagues to vote no on the fast-track agreement. Let us sit down and work on trade agreements that work for the American middle class, that work for our working people and not just for the CEOs of the largest corporations in this country.

With that, Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. SANDERS. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:39 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

CLOTURE MOTION

The PRESIDING OFFICER. Under the previous order, the time until 2:30 p.m. will be equally divided in the usual form.

The Senator from Colorado.

Mr. GARDNER. Thank you, Mr. President.

In just a few minutes, we will be holding a vote on whether to invoke cloture to cut off debate and move to the trade promotion authority bill, granting trade promotion authority to the President—a very important conversation this country needs to have in terms of what we are going to do to expand our opportunities in a region of the world that represents 50 percent of the population of this world and that represents 40 percent of our trade opportunities. It is a great opportunity for this Congress, this Senate, to show how serious we are about truly rebalancing our efforts with Asian nations.

In Colorado alone, we exported nearly $8.4 billion in goods in 2014. In Colorado, 48 percent of all goods were exported in 2014.

Over 260,000 jobs are derived from trade with nations represented by the Trans-Pacific Partnership negotiating group. The TPP represents an opportunity for Colorado to create nearly 4,000 new jobs, and that is just a start.

So today's conversation is not just a vote on whether we will have more delay on an important bill; this is about something that represents far greater opportunity than that. The fact is, over the past several years we have focused our time on the Middle East, and rightfully so, but as our day-to-day attention gets grabbed by the Middle East, our long-term interests lie in Asia and the Trans-Pacific Partnership region.

So I hope today that Members will put aside tendencies to decide they want to play politics with the trade promotion authority and instead, indeed, pursue policies that will give us a chance to grow our economy, to make more products representative with the symbol and the label ''Made in America.'' That is the chance we have today—to give our workers a competitive advantage, to create an opportunity for increased trade in an area of the world where we face increasing competition and regional threats, to show that the United States will indeed be a part of a region in the world that represents so much opportunity.

As we have seen increases in Colorado and beyond in trade and trade opportunities, this bill represents a chance for us to continue improving our ability to grow Colorado's economy and Colorado trade.

So to our colleagues across the Senate, I indeed hope that we will invoke cloture today, that we will move forward on debate, and that we will have an opportunity to continue our work to support trade and to move toward passage of the final TPP.

Thank you, Mr. President.

I yield the floor.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Thank you, Mr. President.

The trade package we are considering today is missing important provisions that support American companies and American workers. We cannot have trade promotion without trade enforcement. Even supporters of fast-track and TPP—those cheerleaders, the most outspoken cheerleaders for free trade—even those supporters acknowledge there will be winners and losers from this agreement.

Past deals show how widespread the losses will be. Travel the State the Presiding Officer and I represent in the Senate and look at what NAFTA has done, look at what PNTR with China has done, look at what the Central America Free Trade Agreement has done, and look at what the South Korea trade agreement has done to us.

It would be a tragedy if the Senate acted and failed to help the American companies and the American workers and the communities that we acknowledge will be hurt by TPP. In other words, we take an action in this body, working with the administration, and there are losers and winners from this action. The losers are those who lose their jobs, the small businesses that go out of business, and the communities that get hurt by this. Those are the losers. How do you ignore them when it comes to these trade agreements?

By excluding two of the four bills from the initial trade package, we are excluding critical bipartisan provisions that protect workers and ensure strong trade enforcement.

We need to make sure that our steel manufacturers and other companies in our country are protected from unfair dumping. That is why I introduced—along with my colleagues, Senators PORTMAN, CASEY, BURR, BENNET, and COATS—the Leveling the Playing Field Act. We included it in the Customs and Border Protection reauthorization with bipartisan support. It would strengthen enforcement of trade laws. It would increase the ability of industries—such as the steel industry, which is so important in my State—to fight back against unfair trade practices. It passed the Senate Finance Committee, but in the majority leader's package and Senator HATCH's package, it is nowhere to be found on the floor today.

We need to make sure strong currency provisions are included. The Finance Committee overwhelmingly supported my amendment 18 to 8. We had the support of Republican colleagues: Senators PORTMAN, GRASSLEY, CRAPO, ROBERTS, BURR, ISAKSON—who is sitting in the Chamber—and SCOTT. Again, this provision, which passed the Finance Committee overwhelmingly, ensures a level playing field for American businesses. It is nowhere to be found in the majority leader's package on the floor today.

Finally, any trade package needs to ensure we are not importing products made with child labor. That is why the Finance Committee passed an amendment with overwhelming bipartisan support to close a 75-year-old loophole that allowed products made with forced labor and child labor into this country. For 75 years, that loophole stood. We passed that amendment 21 to 5. We had the support of Republican colleagues: Senators GRASSLEY, CRAPO, ROBERTS, CORNYN, THUNE, TOOMEY, PORTMAN, COATS, and HELLER. But, again, this bipartisan provision is nowhere to be found in the majority leader's package.

That is why I call on my Republican colleagues—many of whom I have named; almost every one on them on the Finance Committee—who have voted for either the currency amendment or the level the playing field amendment or the prohibition on child labor amendment. Some Republican members of the Finance Committee voted for all three of those amendments, but they are not in the package.

I am hopeful my Republican colleagues will join Democratic colleagues to vote no on cloture so we can bring a package to the floor that does trade promotion authority, that takes cares of workers, and also takes care of enforcing trade rules.

The trade package which passed out of the Finance Committee is far from perfect. I still have grave concerns about fast-track. I know what bad trade rules have done to my State. There is a reason these provisions were included in the trade package. The Senate should consider all four of them. Majority Leader MCCONNELL says he wants to respect committee work on legislation. Well, here is his chance.

The only way to get these important provisions to the President's desk is to combine all four into one. We have done it in the past. Keep in mind, every time Congress does major trade laws—2002 fast-track included provisions on enforcement, and it included provisions to help workers through trade adjustment assistance; the same thing in 1988 in the trade package; the same thing in 1974 in the trade package. Why would we bifurcate this? Why would we take out enforcement when that is a very important part of trade?

We should not move forward with any trade package that does not include all four bills. I ask my colleagues in both parties, those who supported

our enforcement efforts in both parties in Finance, to join us and vote no on cloture when we take the vote in the next few minutes.

I yield the floor.

Mr. President, I ask unanimous consent that the time during the quorum call be charged evenly to both parties.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from Oregon.

Mr. MERKLEY. Mr. President, a few moments ago, we heard an argument that this envisioned trade agreement will increase the number of products that are stamped ''Made in America,'' ''Made in the United States of America.'' Certainly that is the argument that has been put forward for trade agreement after trade agreement after trade agreement.

The first step in the process is to say: Look at those markets. Wouldn't it be wonderful in that nation if we had direct access, improved access?

Particularly, we have done a series of agreements with very low-wage, low-environmental standards, low-enforcement nations. Well, that is the first stage.

Then the second stage becomes: Now that we have this broader connection, we are competing with products made in that country, so we better make sure we open a factory there as well. And then suddenly, instead of those products coming from the United States to a foreign nation, in fact, those products are being made in that foreign nation.

Then comes stage three: Oh, now that we are making those products overseas at a much lower price because of the lower wages and lower environmental standards and lower enforcement, it does not make sense to make those products in the United States anymore.

So that is how we lost 5 million manufacturing jobs in America. That is how we lost 50,000 factories in America. So for those who want to put forward the chimera, the illusion, the mirage that somehow this is going to increase American production, American citizens should know, in fact, that is a false promise—a false promise that has been put out time after time after time and shown to be wrong again and again and again.

Let's think about this: Why would you pave a path to put the workers in your State directly in competition with workers earning 60 cents an hour? Tell me that is advantageous to making things in your nation, and I will tell you, you are wrong.

So let's not go down a path in which we pave a highway to essentially destroy American manufacturing, to disrupt American manufacturing, to decrease the competitiveness of living wages here in the United States of America. Let's enhance and strengthen our position in the world, not undermine it.

Thank you, Mr. President.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. Mr. President, in the remaining 2½ minutes we have, I want to take a few seconds of it.

I urge my colleagues to support the motion to proceed. All this does is get us on the bill. We need to have a robust debate about the trade agenda, and I am willing to do that. Of course, the centerpiece is TPA—no question about it. I know our staffs have been working together to find a path forward on Enforce Customs.

This is an important bill, and we need to get it through the Senate, but to do that, we need to begin debate today.

Trade promotion authority is the key to our economic future. I hope my colleagues on both sides of the aisle will stand with me and President Obama and vote yes so we may update and modernize our trade laws, including TPA, and help lay the groundwork for a healthy economy for our children and our grandchildren.

Ninety-five percent of the world's trade is outside of our country. Trade produces better salaries—13 to 18 percent. We have worked through all the problems in the committee. We have had plenty of amendments, lots of debate, and we put this on the floor with the understanding that it would be voted on.

Mr. BROWN. Would the Finance chair yield for a question?

Mr. HATCH. My time is just about gone, but go ahead.

Mr. BROWN. I would just ask, the four bills that we passed in committee—African growth and opportunity, trade adjustment assistance, trade promotion authority, and the Customs bill—all passed out of committee by strong bipartisan majorities, right, and we hoped at the time they would come together in the motion to proceed to a vote.

Mr. HATCH. I understand the question. They passed out with an understanding between the vice chairman of the committee and me that we would vote on them separately but would move TPA and TAA—which most Republicans hate—we would move them together, and then we would move the third one, and then we would move the fourth one. It was supposed to be done that way because everybody knew that putting the Schumer amendment on the one bill would not be acceptable in the House and would not be acceptable to the President, and that is the problem here. We all are prepared to have a vote on that bill, but the agreement was that we would vote individually on all four bills. Finally, we agreed to do TPA and TAA because your side was concerned about whether this side would allow TAA to go through. There never had been a question that we were willing to do that even though most of us hate that bill.

Mr. BROWN. Mr. President, I ask unanimous consent to speak for 1 minute.

The PRESIDING OFFICER. Is there objection?

Mr. ISAKSON. I object.

Mr. BURR. I object.

The PRESIDING OFFICER. Objection is heard.

Mr. HATCH. If we could get a minute, too, I would be happy to have that. OK.

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to H.R. 1314, an act to amend the Internal Revenue Code of 1986 to provide for the right to an administrative appeal relating to adverse determinations of tax-exempt status of certain organizations.

Mitch McConnell, Bob Corker, Joni Ernst, Bill Cassidy, John Cornyn, Thad Cochran, Shelley Moore Capito, Deb Fischer, John McCain, James Lankford, Patrick J. Toomey, Roy Blunt, Ron Johnson, Pat Roberts, David Perdue, David Vitter, Ben Sasse.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the motion to proceed to H.R. 1314, an act to amend the Internal Revenue Code of 1986 to provide for the right to an administrative appeal relating to adverse determinations of tax-exempt status of certain organizations, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Florida (Mr. RUBIO).

Mr. DURBIN. I announce that the Senator from New Jersey (Mr. BOOKER) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 52, nays 45, as follows:

[Rollcall Vote No. 176 Leg.]

YEAS—52

Alexander	Enzi	Paul
Ayotte	Ernst	Perdue
Barrasso	Fischer	Portman
Blunt	Flake	Risch
Boozman	Gardner	Roberts
Burr	Grassley	Rounds
Capito	Hatch	Sasse
Carper	Heller	Scott
Cassidy	Hoeven	Sessions
Coats	Inhofe	Shelby
Cochran	Isakson	Sullivan
Collins	Johnson	Thune
Corker	Kirk	Tillis
Cornyn	Lankford	Toomey
Cotton	Lee	Vitter
Crapo	McCain	Wicker
Cruz	Moran	
Daines	Murkowski	

NAYS—45

Baldwin	Blumenthal	Brown
Bennet	Boxer	Cantwell

Cardin	Klobuchar	Reed
Casey	Leahy	Reid
Coons	Manchin	Sanders
Donnelly	Markey	Schatz
Durbin	McCaskill	Schumer
Feinstein	McConnell	Shaheen
Franken	Menendez	Stabenow
Gillibrand	Merkley	Tester
Heinrich	Mikulski	Udall
Heitkamp	Murphy	Warner
Hirono	Murray	Warren
Kaine	Nelson	Whitehouse
King	Peters	Wyden

NOT VOTING—3

Booker	Graham	Rubio

The PRESIDING OFFICER. On this vote, the yeas are 52, the nays are 45.

Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected.

The majority leader.

Mr. MCCONNELL. Mr. President, I enter a motion to reconsider the vote by which cloture was not invoked.

The PRESIDING OFFICER. The motion is entered.

Mr. MCCONNELL. Mr. President, I move to proceed to H.R. 1314.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

ENSURING TAX EXEMPT ORGANIZATIONS THE RIGHT TO APPEAL ACT—MOTION TO PROCEED

The PRESIDING OFFICER. The clerk will report the motion.

The senior assistant legislative clerk read as follows:

Motion to proceed to Calendar No. 58, H.R. 1314, a bill to amend the Internal Revenue Code of 1986 to provide for a right to an administrative appeal relating to adverse determinations of tax-exempt status of certain organizations.

Mr. MCCONNELL. I ask unanimous consent that Senators be permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCONNELL. Mr. President, well, what we just saw here is pretty shocking. There are always limits to what can be accomplished when the American people choose divided government, but of course it does not mean Washington should not work toward bipartisan solutions that make sense for our country. Trade offers a perfect opportunity to do just that. We on this side believe strongly in lifting up the middle class and knocking down unfair barriers that discriminate against American workers and American products in the 21st century.

On this issue, the President agrees. So we worked in good faith all year—all year long—to formulate a package that both parties could support. The top Republican on the Finance Committee, Senator HATCH, engaged in months of good-faith negotiations with the top Democrat on the committee, Senator WYDEN. They consulted closely with colleagues over in the House such as Chairman RYAN. They consulted closely with President Obama, with Democrats, with Republicans.

The issues they had to work through were tough. Difficult concessions had to be made. Many believed an agreement would never emerge, but in the end a strong bipartisan trade package came together that was able to pass through the committee by an overwhelming margin of 20 to 6—20 to 6. It was a significant win for the people we represent. It was a win for the Americans who look to us to secure economic growth and good jobs for them, not give in to the special interests who, apparently, would rather see those jobs end up in countries like China.

It was a win for the security of our country and for our leadership around the world. The Secretary of Defense, for example, was at lunch with Republicans today talking about the importance to our repositioning to the Pacific, from a defense and foreign policy point of view, to get TPP. He was accompanied by seven—not at our lunch, but seven former Defense Secretaries of both parties said this just last week, ''The stakes are clear and America's prestige, influence and leadership are on the line.''

So the rationale for voting yes today, a vote that would have simply allowed the Senate to debate the issue, was overwhelming. It was supported by the facts, and yet voices in the President's party who rail against the future won out today. I do not routinely quote President Obama, but today is no ordinary day. So when the President said, ''The hard left is just making stuff up,'' when the President said their increasingly bizarre arguments didn't ''stand the test of fact and scrutiny,'' it was hard to argue with him.

''You don't make change through slogans,'' the President reminded his adversaries on this issue. ''You don't make change through ignoring realities.''

I think that is something worth reflecting on.

Now this doesn't have to be the end of the story. Trade has traditionally been a bipartisan issue that cuts across the partisan divide. I suspect we have colleagues on the other side who aren't that comfortable filibustering economic benefits for their constituents or a President who leads their party.

What we have just witnessed is that the Democratic Senate shut down the opportunity to debate the top economic priority of the Democratic President of the United States.

I suspect some may be parking their vote, rather than buying the outlandish rhetoric we have heard from the left. Certainly, that is my hope.

But to get the best outcome for the country, we have to be realistic. For instance, the idea that any Senator can make a guarantee that a particular bill will be enacted into law is simply impossible.

I assure you that we would have had a different outcome on today's cloture motion if Senators actually wielded the power to force things through by sheer will alone. Obviously, we don't. What we can guarantee is that Senators receive a fair shake once we proceed to the debate our country deserves on a 21st century American trade agenda.

We will have an open and fair amendment process. How many times have I said that this year? That is what we intend to do when we get on TPA. For my part, I can restate my commitment to processing TPA, TAA, and other policies that Chairman HATCH and Senator WYDEN can agree to.

The Senate has historically been a place where our country debates and considers big issues. This is an issue worthy of our consideration. Yet today we have voted to not even consider it. It doesn't mean we can predetermine outcomes. It doesn't mean we can even guarantee the successful passage of legislation once we proceed to debate it. We can't make those kinds of guarantees that the other side was saying are preconditions to even considering the President's No. 1 domestic priority.

But blocking the Senate from even having a debate of such an important issue is not the answer. Senators who do so are choosing to stand with special interests and against the American jobs that knocking down more unfair trade barriers could support.

So I sure hope that some of our colleagues across the aisle will heed the words of President Obama and rethink their choice. I hope they will vote with us to open debate on this issue.

Let me reiterate. We will continue to engage with both sides. We will continue to engage with both sides. We will have an open amendment process. We will continue to cooperate in the same spirit that got us through so many impossible hurdles already in getting this bill to the floor.

This was no small accomplishment to get it as far as it has come, given the various points of view on the Finance Committee. Chairman HATCH and Senator WYDEN deserve a lot of credit for that. But they didn't go through all of that to stall out on the floor before we have the chance to do something important for the American people.

So I hope that folks on the other side who are preventing this debate will seriously consider the implications. Other countries are taking a look at us. They are wondering whether we can deliver. We hear TPP is close to being finalized, and here is the headline they see—that every single one—with one exception, I believe—of the President's own party in the Senate prevented the mechanism for having trade considered, prevented it from even coming to the Senate floor. That is not the kind of headline that we want to send around the world—that America cannot be depended upon, that America cannot deliver trade agreements. To our allies in the Pacific that are apprehensive about the Chinese—and who thought this was not only good for

their commerce but good for their security—what kind of message does that send?

So I moved to reconsider. Hopefully, it will be an opportunity for people to think this over, and we will be able to come together and go forward on a bipartisan basis to achieve an important accomplishment for the American people.

The PRESIDING OFFICER (Mr. LANKFORD). The Democratic leader.

Mr. REID. Mr. President, my friend, the majority leader, has one person to blame for our not being on the floor now debating this important piece of legislation, and that person is the majority leader. The next time he looks in the mirror, he can understand who is responsible for not having debate, as he said, with robust amendments. It is he.

The reason for this situation we are in today is very simple. The Finance Committee reported four bills out by a large, bipartisan vote of the Finance Committee. The majority leader decided, on his own, that he would consider two of those and that the others would have to figure out some other way to get done.

As the Republican leader said this morning in his opening statement, let's move to those two bills, and then we will start the amendment process. Do all four and start the amendment process. It is very logical.

It is illogical what he is saying. Why should we only do two of the four reported out of the Finance Committee? It doesn't make sense.

Now, my friend the Republican leader is very aware of motions to proceed. During the last 4 years, because of the Republicans' cynical approach to government, they basically defeated everything we tried to do while not allowing us to proceed on legislation. However, we are saying we are willing to work with you on this legislation. We don't want to stop moving forward on this bill. We think, though, the bill should be what was reported out of the Finance Committee. That seems the fair thing to do.

That is all we ask—a path forward, a realistic path for all of us to proceed on this legislation. If we are stuck here, it is too bad. We shouldn't be.

I say to my friend the Republican leader, I am always available to speak with him—here, telephone, my office, his office—to figure a way forward on this legislation.

I have stated the last week or so that the way we should go forward is to have all four of the measures that came out of the Finance Committee lumped together and start legislating on those—to have, in the words of the Republican leader, a robust amendment process on those bills as lumped together.

The PRESIDING OFFICER. The majority leader of the Senate.

Mr. MCCONNELL. Mr. President, obviously the most sensitive political issue surrounding this is the currency issue. I want to make sure everybody has a clear understanding of where we are on that.

In committee a Senator stated: I explicitly did not offer the currency amendment to the TPA bill. We were told that it would not be a part—if it were a part of TPA, we all know it would kill it, the President wouldn't sign the bill. So my goal is not to use currency to kill the TPA bill and not to kill the TPA bill, it is to get currency passed. That is why we offered it to the Customs bill, a separate bill, on the strong view that no one disputed in committee—no one disputed this in committee—that we would get a vote separately—separately, I repeat—on the Customs bill on the floor and that it would come to the floor just like the other bills.

As for currency, in the committee they agreed they would deal with it on the Customs bill and not on TPA. And now our friends on the other side are trying to bunch it all together.

But look, we need to be clear. The currency issue on TPA is a killer. The President would veto the bill. It would defeat the bill. That is why in committee they sensibly reached the conclusion to deal with currency on the Customs bill. So I want to be clear about that. So when we get on the bill, everybody will understand the significance of that issue.

The PRESIDING OFFICER. The Democratic leader.

Mr. REID. Mr. President, one word before my friend from Oregon is recognized—

The PRESIDING OFFICER. The majority leader.

Mr. MCCONNELL. Mr. President, that is exactly what Senator SCHUMER said in committee, what I just read. That was what Senator SCHUMER said in committee. It was not clear from my notes who said it, but that is exactly what Senator SCHUMER said in committee:

> And, explicitly I did not offer the currency amendment to the TPA bill. We were told that it would not be part—if it were part of TPA it might kill it.

Senator SCHUMER:

> My goal is not to use currency to kill the TPA bill and not to kill the TPA bill, it's to get currency passed.

Senator SCHUMER, further:

> And that's why we offered it to the customs bill, on the view, strong view, that no one disputed in committee that we'd get a vote separately on the customs bill on the floor, that it would come to the floor just like the other bills.

That is Senator SCHUMER in committee.

The PRESIDING OFFICER. The minority leader.

Mr. REID. Mr. President, Senator SCHUMER has been involved in the currency issue from basically the time he came to the Senate. It has been an important issue for him, and he can speak for himself.

I am not an expert on the bill, and I don't intend to debate anyone here on the merits of the bill. People know how I feel about the legislation generally, but I am kind of an expert on the procedural aspect of what goes on around here.

I suggest the best way to move forward is to come up with a program to have all of these bills discussed at the same time, and that is why we have felt the way we did and we indicated that in the vote we just took. So I think everybody should just take a deep breath, and I think there are probably ways we can move forward with this without disparaging either side.

I think the vote was important, procedurally. We, as a minority—as the Republican leader certainly can understand, having been in the minority for a number of years—I think we would be better off with the minority having a say in what goes on in this body.

That is the way we spoke today. We believe that, and we look forward to continuing the process of moving forward on this bill. We cannot be debating the merits of this legislation unless we figure out some way to move forward, and right now that process is not looking very good.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. CORNYN. Mr. President, will the Senator briefly yield for a unanimous consent request?

The PRESIDING OFFICER. Does the Senator yield?

The Senator from Texas.

Mr. CORNYN. Mr. President, I ask unanimous consent that after the bill manager, the ranking member of the Finance Committee is recognized to speak, that I be recognized to speak, and that following me, the chairman of the Senate Finance Committee be recognized to speak.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Oregon is recognized.

Mr. WYDEN. Mr. President, the majority leader has entered a motion to reconsider the trade legislation. I want to be clear, both for the majority leader and all our colleagues here, that I am very interested in working with the majority leader and our colleague from the other side of the aisle to find a bipartisan path to get back to the trade legislation at the earliest possible time.

This morning, 14 protrade Democrats met, and I can assure all the Senators here that these are Senators who are committed—strongly committed—to ensuring that this bill passes.

Now, with respect to just another brief description about where we are, all the hard work that the majority leader correctly described as going on in connection with this legislation has been about four bills: the trade promotion act, Customs—which is really trade enforcement to help displaced workers—and then trade preferences for developing countries.

Just briefly, I want to describe why it was so important for Senators on a bipartisan basis in the Finance Committee to tackle these issues.

The first, trade promotion authority, helps strip the secrecy out of trade policy. The second is the support system for American workers. This is known as trade adjustment assistance, which has been expanded. The third finally puts our trade enforcement policies into high gear so America can crack down on the trade cheats. The fourth renews trade programs that are crucial to American manufacturers. Together, these bills would form a legislative package that throws out the 1990s NAFTA playbook on trade. It is an opportunity to enact fresh, middle-class trade policies that will create high-skill, high-wage jobs in Oregon and across our land. That opportunity is lost if this package of four bills gets winnowed down to two.

In particular, dropping the enforcement bill in my view is legislative malpractice. The calculation is quite simple. The Finance Committee gave the Senate a bipartisan trade enforcement bill that will protect American jobs and promote American exports, which are two propositions that I believe every Member of this body supports. The enforcement legislation closes a shameful loophole that allows for products made with forced and child labor to be sold in our country. This is 2015, and there is absolutely no room for a loophole that allows slavery in American trade policies. If the decision is made to drop this bipartisan legislation, that shameful loophole would live on.

Now, any Senator who goes home and speaks, as I do, about the virtues of job-creating trade policies has, in my view, a special obligation to ensure that American trade enforcement is tough, effective, and built on American values. That is what the Finance Committee's bipartisan enforcement bill is all about. Without proper enforcement, no trade deal can ever live up to the hype. This enforcement bill is a jobs bill, plain and simple, and it needs to get to the President's desk.

Some elements of this package represent priorities that have traditionally belonged to Republicans. Other elements are traditionally Democratic. But taken as a whole, this is a bipartisan package that both sides of the Finance Committee supported strongly, with the understanding that its component parts would be linked together. You can't make this stool stand up with just two legs.

The Senate should not begin debate until there is a clear path forward for each of these four bills, and I use that word specifically because I have talked with colleagues about it. We are going to work together in a bipartisan fashion. That is what Chairman HATCH and I have done since he became chairman, and I have been grateful to him because that is the way he sought to carry out his responsibilities when I was chairman. We are going to work together, but the challenge has always been to find a clear path forward for each of these four bills.

So I urge my colleagues to continue down the Finance Committee's bipartisan route and find a path that moves all four of these bills forward.

In closing, I want to reiterate that with the majority leader having entered into a motion to have the trade bill reconsidered, I want to express to my colleagues—and I see several Finance members here, Chairman HATCH and Senator CORNYN, a senior member of the committee, a member of the leadership—that I am very interested in working closely with both of them to find a bipartisan path and get back to this legislation just as soon as possible.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The majority whip.

Mr. CORNYN. Mr. President, I ask unanimous consent that the chairman of the Finance Committee be recognized and then I be recognized following his remarks.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HATCH. Mr. President, I thank my colleague for his kindness in doing that.

I listened to the debate, and I have to say I am very disappointed.

Everybody knew that Senator SCHUMER accommodated us—the ranking member and myself—in putting the language on the Customs bill. In fact, here is what Senator SCHUMER said:

> And, explicitly I did not offer the currency amendment to the TPA bill. We were told that it would not be part—if it were part of TPA it might kill it. My goal is not to use currency to kill the TPA bill and not to kill the TPA bill, it's to get currency passed. And that's why we offered it to the customs bill, on the view, strong view, that no one disputed in committee that we'd get a vote separately on the customs bill on the floor, that it would come to the floor just like the other bills.

That was the agreement. The distinguished Senator from Oregon knows that was the agreement; that we were going to lump the two together, the TPA and TAA—although I would have preferred to have those voted on separately, but we agreed to do that because there was a concern on the Democratic side that maybe we wouldn't put TAA out. That was a ridiculous concern because we know TPA can't pass unless you give the unions what they want on TAA. So we grit our teeth and we were willing to do that. We put them together so we could accommodate again. And it was completely understood that the AGOA bill, the next two bills, would be voted on separately. Senator SCHUMER knew, and said so; that he realized it would give the House a very, very bad stomachache because they probably couldn't put this bill through with that language on it.

I even agreed with Senator SCHUMER that we could have hearings later. He could bring up a bill. We would have hearings. We would have a markup on the currency matters because there are a lot of people who would like to see something done on currency—but not to destroy the TPA bill or, should I say, all of the negotiations that this administration has been conducting with regard to TPP—the Trans-Pacific Partnership—with 11 nations, including Japan, which has always been difficult to get to the table because they have very great concerns there, but they were willing to come to the table. And it might ruin TTIP, which is 28 nations in Europe.

Forty to sixty percent of all trade in the world would come through these two agreements that would be done by the Trade Representative, subject to the review by Congress provided in TPA, which happens to be the procedural mechanism pursuant to which we can assert congressional control over these foreign policy agreements, these trade agreements.

So there was no agreement to bring these up all at one time. The first time I heard that was, I think, yesterday or the day before, and I was flabbergasted. To have our colleagues vote against cloture on a bill the President wants more than any other bill, after he talked to them, is astounding to me.

So I am going to take a moment to talk about what transpired this afternoon because I think it warrants further discussion.

As I stated this morning, with today's vote, we were trying to do something good for the American people, to advance our Nation's trade agenda and to provide good jobs for American workers, all of which would happen should we get this through both Houses of Congress and the President signs it into law.

Now, to do that, we can't have killer amendments put on bills that everybody knows will kill it and that the President can't sign. I know people disagree with us on how we intended to get there. That much was clear from the outset. Sadly, these colleagues—who have always been against TPA—were unwilling to have a discussion about their disagreements in a fair and open debate, and, I have to say, that was all of them on the other side today. Instead, they voted this afternoon to prevent any such debate from taking place.

We are willing to debate, we are willing to have amendments, but I am also only willing to abide by the agreement we have with Senator SCHUMER with regard to the Customs bill. That was the agreement, and I compliment Senator SCHUMER for being willing to put it on there because he knew it would kill TPA.

Needless to say, I am disappointed by this outcome.

While we are talking about trade policy at large, the bill receiving the most attention was, of course, the TPA bill, which is bipartisan. I made sure it was bipartisan—that we could work together, that we could come together, that we could all basically feel good about it—and it passed 20 to 6, which is astounding to even me. I didn't know

we would get seven Democrats on the bill, and I compliment the distinguished ranking member for working hard to get seven Democrats on the bill. But still, that doesn't take away the fact that the minority leader and others don't want any bill at all.

While we are talking about trade policy at large, I would just say the bill receiving the most attention was, of course, the TPA bill, which is bipartisan, supported by Republicans and Democrats in both the House and the Senate, by the way, not to mention the President of the United States and his administration.

On April 22, the bill was voted out of the Senate Finance Committee by a historic vote of 20 to 6, with seven Democrats on the committee voting to report the bill. The bill which was President Obama's top legislative priority, by the way, was riding a wave of amendments headed to the floor. Yet, today, the mere thought of even debating this bill was apparently too much for my Democratic colleagues to bear. Nothing changed. It is the same bill we reported out of committee. I can remember the happy time we had talking about how wonderful it was to finally get this bill out of the committee, after going to 10 p.m. one night and actually beyond that for staff.

This is the same bill we have been talking about for months. The only thing that was different today than just a few days ago was the strategy being employed by the opposition.

As we all know, the TPA bill wasn't the only trade bill reported out of the Finance Committee in April. We also reported a bill to reauthorize Trade Adjustment Assistance, a bill to reauthorize some trade preference programs and a Customs and Enforcement bill.

A few days before we were to begin the floor debate on trade policy, we heard rumblings from our colleagues on the other side, and we started hearing statements from some Senators, including some who had generally been supportive of TPA, that they would only support the pending motion to proceed if they had assurances that all four bills—TPA, TAA, preferences, and Customs—would be debated and passed at the same time. That never was the agreement, and everybody understood that. These new demands brought forward at the eleventh hour were problematic for a number of reasons, most notably because, as reported out of the Finance Committee, the Customs bill faces a number of problems both with the White House and the House of Representatives, and my friends on the other side realized that in this bipartisan effort that we were making together. They recognized that there were problems for both the White House and House of Representatives that would prevent it from being enacted into law any time soon. I will not detail all the problems, but I think most of my colleagues know what they are. But I will say that those problems existed from the beginning and we knew about them at the outset. We had people on the committee who were totally opposed to this bill. I made sure they had a right to bring up their amendments. I respect them. I don't agree with them. I can't even agree on how they ever reached the positions that they do. But the fact is they have a right to do that, and we protected that right.

Now, I might say these problems existed from the beginning. We knew about them from the onset. That is why the ranking member of the Finance Committee and I agreed at our markup to move our four trade bills separately.

As one of the principal authors of three of the four trade bills, I want to be very clear because there has apparently been some confusion on this point. There was never a plan to move all four of these bills together or as part of TPA.

While we agreed that TPA and TAA would have to move on parallel tracks—we did agree to that—there was no such agreement with regard to the other bills, only a commitment that we would do our best to try to get all four enacted into law, with no guarantees that they would be but to do our very best.

The agreement with TPA and TAA was honored. Both the majority leader and I made clear today that if cloture was invoked on the motion to proceed, we would file a substitute amendment that included both of these bills—TPA and TAA.

We also made commitments—commitments I had already made—to work with our colleagues to find a path forward on the Customs and the preferences legislation. But that was not enough, apparently. We have had numerous discussions regarding alternative paths for other trade bills. That was not enough, either. The only thing they would accept was full inclusion of all the trade bills at the outset of the debate. We could not agree to that, and they knew it.

Of course, to be fair, some of the Democrats were not necessarily insisting that the four bills be part of the same package. Instead, they just wanted guarantees that all of them would be enacted into law. That is not the way it works around here.

I do not even know how to comment on that. It is, to put it bluntly, simply absurd to think that a Senate leader can guarantee any bill will become law before a debate even begins. Yet those were the demands we faced over the last few days. Although they were obviously impossible, we worked in good faith to try to reach an accommodation with those who—in my opinion—were not working in good faith. And I am willing to forgive that. Even then, there was no path to yes.

Of course, as we all know that the idea for demanding a ''four bills or no bills'' strategy did not originate in the Finance Committee. This demand materialized last week and came directly from the Senate Democratic leadership, virtually all of whom oppose TPA and their President on this bill, outright. Sadly, it seems they were able to sell this idea to other Members of their caucus, including more than a few who should know better.

We were never talking about reaching an agreement with people who wanted a path forward on good trade legislation. We have been talking about an idea devised for the sole purpose of stopping progress on TPA. At least for today, it appears they have been successful.

Once again, I am disappointed. A lot of work has gone into this effort in both the Senate and the House of Representatives—not to mention the administration. I, personally, have been at this from the very moment I took over as the lead Republican on the Senate Finance Committee in January 2011.

In January 2014—more than a year ago—I introduced legislation with the former chairmen, Max Baucus and Dave Camp, that formed the basis of the bill that we had hoped to start debating this week. Both Baucus and Camp were committed to this effort. Sadly, Chairman Camp retired and Chairman Baucus was sent off to China.

When Senator WYDEN took over the committee, I worked with him to address his concerns about the bill, and that work continued after I took over as chairman this year. Even though I thought some of his proposals were unworkable, I bent over backwards to accommodate his desires, because in the end, I thought it would broaden support for TPA, and I wanted to please him, as my partner on the committee.

Chairman RYAN joined us in this effort, and we did all we could to put together a bill and a path forward that both parties could support. We met with Chairman RYAN regularly. Until the last few days and the advent of these new demands materializing out of whole cloth, I thought we had been successful. Even after these new demands came up, I did my best to find an agreement, working right up to the vote to find a reasonable path forward. But, apparently, something reasonable was not in the cards.

Everyone here knows I am an optimist. I still believe we can get something done, that we can work something out. I have told the President the same. I am still willing to do what it takes to pass these bills. I hope my colleagues will see the light here and come to the table with some realistic alternatives for a path forward. Until that happens, the President is going to have to wait on these trade agreements, as will all the farmers, ranchers, manufacturers, and other job creators in our country who desperately need market access and a level international playing field in order to compete.

In the future, if we see a sharp decline in U.S. agriculture and manufacturing and if the United States retreats

from the world, ceding the Asia-Pacific region, in particular, to China's overwhelming economic influence, people may very well look back at today's events and wonder why we could not get our act together. I am already thinking that. Why couldn't we get our act together?

I certainly hope that does not happen—that these other nations—particularly China—take advantage of our not getting our act together. Perhaps, in my frustration, I am being a little dramatic. Still, I have no doubt that some will come to regret what went on here today—one way or another.

As for me, I have no regrets. I have done all I can to get these important bills across the finish line. I am going to continue to do all I can in the future to get these bills across the finish line.

Unfortunately, after today, it is very unclear how many of my colleagues on the other side of the aisle are willing to do the same. I believe there are honest, good people on that side of the aisle who want to make this right, who want to make up for what happened here today. I feel confident that is so. I am going to proceed on the basis that that is so. I sure hope it is so because, my gosh, to put this Nation's foreign policy—especially in the Asia-Pacific region, in particular—on hold when we could be building relationships in these countries as never before and at the same time spurring on international trade as never before is a matter of grave concern to me.

I yield the floor.

The PRESIDING OFFICER. The majority whip.

Mr. CORNYN. Mr. President, I want to congratulate the chairman of the Finance Committee, who I know has labored long and hard to get this bill where it is today. I know how disappointed he is at the filibuster by our friends across the aisle on the President's No. 1 domestic priority.

I have heard it said that the U.S. economy is just one or two steps away—a few policy choices away—from awakening that slumbering giant known as the U.S. economy and growing it for the benefit of all Americans. Unfortunately, the filibuster that occurred today is a backwards step.

I know there are some people that say to Republicans: Why would you want to work with President Obama? The truth of the matter is that is what we are here for, if we agree on the principle. We are not here to agree with him just to agree with him. As a matter of fact, sometimes it is easier to go back home and say: Well, I disagreed with the President.

But this is one area where the President of the United States is absolutely correct. We are here not to do what he wants us to do, but we are here to do what our constituents—what the American people—want us to do. What they want is the better jobs, the improved wages, the sort of robust economic growth that comes along with trade agreements.

It has been said numerous times, but I will say it again: 95 percent of the world lies out beyond our borders; 80 percent of the purchasing power in the world lies beyond the borders of the United States. Why in the world would we not want to open markets to the things that we grow, that our ranchers raise, and that our manufacturers make? Why in the world would we not want to do it?

You will have to ask our colleagues across the aisle, who today, with the exception of one Democrat, chose to filibuster this bill. I am intrigued to hear the numbers that were mentioned earlier: 14 protrade Democrats—14. I guess that means there are at least 32 antitrade Democrats. But I must say, on this side of the aisle, we are by and large a protrade party—for the very reasons that I mentioned earlier. We would like to work with anybody—including the President of the United States—to try to get our economy growing again, to open markets to the things that we make and grow and manufacture here in the United States, because it benefits the entire country, including hard-working families.

The irony is that last week the Senate overwhelmingly voted on a bill that would guarantee Congress the time and opportunity to review a potential agreement between President Obama and Iran. That bill passed 98 to 1 and will prevent implementation by the President until the American people, through their elected representatives, are given the chance to scrutinize, study, and debate that particular agreement and vote on it up or down. So far, the so-called deal or framework has been incredibly vague, and I think it is important that we understand what is in it.

You can imagine that if we voted 98 to 1 to require the President to lay before the American people this important negotiation with Iran, why it is so strange that our Democratic friends do not want us to participate in the same process by which to vote up or down on trade agreements.

Trade promotion authority, historically, has had bipartisan support here in the Chamber. By the way, this is not just something that will be extended for the next 20 months of President Obama's administration. This will be extended 6 years into the Presidency of the next President of the United States.

The Chairman mentioned that this legislation sailed through the Finance Committee by a wide margin of 20 to 6. And, of course, as I said—and I will say it again—it is supported by the administration, by President Obama's administration.

It is very strange to see Democrats blocking a bill supported by the leader of their political party, the President of the United States. The excuses they gave here today are that all of a sudden they woke up and decided that the deal that Senator WYDEN and Senator HATCH agreed to—which is to combine trade promotion authority with trade adjustment assistance—was not good enough and they wanted to renegotiate the deal.

I think, from my perspective, there are really two types of folks in the camp across the aisle. There are those who, perhaps, would like to get to yes, and that means that you can have a negotiation and try to find a way to get to yes. But I can only gather from what was said earlier that there are probably 32 Senators on that side of the aisle who are antitrade. They are not interested in getting to yes. What they do is they throw up phony barriers, such as this attempt to renegotiate the package that was brought here to the floor. This is sort of typical obstructionism.

We saw this happen in the antitrafficking legislation as well, when a piece of legislation passed out of the Senate Judiciary Committee unanimously and came to the floor. And then all of a sudden, someone woke up and said: Well, we did not read the bill, and now we object.

This trade tool will give Congress the opportunity to examine any upcoming deal that the President is trying to cut and make sure—we make sure; we do not take the President's word for it. We make sure the American people get a fair shake.

Many of the provisions in trade promotion authority are common sense and they are nonpartisan. For example, if passed, TPA would give Congress the authority to read the full text of the trade agreement. It is hard to argue that this is a bad thing. It is hard to get more straightforward than that, but we have no guarantee without this provision.

Trade promotion authority would promote greater transparency and accountability in the negotiations process. Some, understandably, have complained that up to this point the Obama administration has relayed very little information about this unfolding trade agreement—known as the Trans-Pacific Partnership—or the affected industries—that it has relayed very little information about the negotiations taking place with countries along the Pacific Rim and in Europe.

This bill prioritizes transparency and accountability front and center and will require the administration to brief Members of Congress regularly on the progress of the negotiations. It will actually allow Members of Congress to attend the negotiations. How more transparent can you get than that? That way Congress can work directly with those who are finalizing this agreement to ensure, again, that the American people are getting a good deal.

So through the trade promotion authority, the bill that has been filibustered today, Congress would have been able to get to know important details regarding the actual implementation of the trade deal.

I am disappointed our Democratic colleagues were not able to see how important this legislation is, not to us,

not to the President but to the people they represent and to the economy and wages we need to see grow.

Well, as we heard from Secretary Ash Carter today at lunch, this is important for national security reasons as well. It is important America thoroughly engage in Asia with our trading partners because there is a strange but simple phenomenon that occurs when two countries trade with each other. They are sure a lot less likely to go to war with each other if they are doing business and talking to each other.

From a national security perspective, we want to make sure we make the rules with regard to trading in Asia and that we don't default and let China fill the void, which they will be happy if we don't take care of our business.

Trade is important to my State, and as I said, it is important to the United States. In the 20th century all we needed back in Texas were farm-to-market roads to find customers for our goods. But in the 21st century, our customers are not just in the next town over, they are all around the world. As I said, 95 percent of our potential customers live outside of the United States.

This legislation would help connect American farmers, ranchers, and small businesses to the markets around the world which would help our economy. As the country's largest exporter, we in Texas know the value of trade firsthand because we depend on it. I know a lot of people think, well, Texas is just about oil and gas. Well, that is not actually true. We have a very diversified economy. But part of what we have done, which has set us apart from the rest of the country in terms of economic growth and job creation, is trade.

Last year, Texas reported $289 billion of exported goods, with some 41,000 businesses exporting goods from Texas to outside the country. Now, this type of trade has helped our economy grow and keep people employed, able to provide food for their families and other necessities of life. We have prospered, relatively speaking, during a time when much of the American economy has been relatively stagnant and trade has been an important part of that.

Opening up our country to greater trade through the trade promotion authority would help American businesses send their goods to even more markets. The United States is the leading exporter of agricultural products. Last year alone, America's farmers and ranchers who could benefit tremendously from this legislation exported more than $152 billion in agricultural commodities and products to customers around the world.

In Texas, for example, in the agriculture sector, we lead the Nation in exports of beef and cotton. By opening up more international opportunities for these products, our economy would grow and our Texas commodities, such as beef and cotton, would become staples in fast-growing markets like Asia.

We also know, as I suggested earlier, that trade is not just about selling products, it is about the jobs that are necessary to make and grow the products we sell. According to a report released last month by the International Trade Administration, as of 2014, more than 1 million jobs in Texas alone are supported by exporting, and in the entire country that figure is 11 million. So with 11 million jobs dependent on exports, why in the world wouldn't we want to improve our ability to export more abroad to other markets around the world and to create more jobs in the process?

Well, TPA is important because it would allow Congress to also have clear oversight over the pending trade agreements. I know there is a lot of skepticism about the kind of deal that is being cut behind closed doors. We would open those doors and bring it out into the open and allow all Americans to examine it. And we, as their representatives, will exam it as well and ask the hard questions, such as why is this in the best interest of the American farmer, rancher, and manufacturer.

We know that TPP—the Trans-Pacific Partnership, which is the big Asia trade agreement—alone makes up about 40 percent of the world's economy.

I admit I am a little disappointed that the Democrats, with the exception of one Senator, would choose to block this important piece of legislation. With so much of the world's purchasing power located beyond our borders, one would think that on a bipartisan basis we would all support opening up new access to consumers and markets for America's farmers, ranchers, and manufactured goods, and that should be a top priority.

Unfortunately, our colleagues across the aisle did not see our Nation's businesses and our economy as their main priority today. I hope that after today's failure of this particular legislation, we will engage in serious negotiations.

I agree with the majority leader, that after November 4, the American people gave the U.S. Senate new management. They were dissatisfied with the management of last year and previous years because all they saw was dysfunction. Well, now the U.S. Senate is starting to function again. We are starting to produce important pieces of legislation, such as the first budget since 2009. This is a great opportunity for us on a bipartisan basis—on a nonpartisan basis—to do something really good.

I hope, after making the mistake of blocking this legislation, that our colleagues—the 14 so-called progrowth Democrats out of the 46 across the aisle—will see fit to work with us to try and move this legislation forward.

ORDER FOR RECESS SUBJECT TO THE CALL OF THE CHAIR

Mr. President, I ask unanimous consent that at 4 p.m., the Senate stand in recess subject to the call of the Chair.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORNYN. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Ms. COLLINS. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECESS SUBJECT TO THE CALL OF THE CHAIR

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess subject to the call of the Chair.

Thereupon, the Senate, at 3:59 p.m., recessed subject to the call of the Chair and reassembled at 5:29 p.m. when called to order by the Presiding Officer (Ms. AYOTTE).

MORNING BUSINESS

VOTE EXPLANATION

Mr. THUNE. Madam President, yesterday I missed the vote on S. Con. Res. 16, which states U.S. policy on the release of American citizens in Iran, because I was touring tornado damage in Delmont, in my home State of South Dakota. Had I been able to be here, I would have voted in support of this concurrent resolution. Iran's treatment of these detained Americans is reprehensible, and I believe we should be using every diplomatic tool at our disposal to obtain their release.

VOTE EXPLANATION

Mr. SANDERS. Madam President, I was necessarily absent during the Senate's consideration of S. Con. Res. 16, which states that Iran should immediately release Saeed Abedini, Amir Hekmati, and Jason Rezaian, and cooperate with the U.S. Government to locate and return Robert Levinson. The resolution also states that the U.S. Government should use every diplomatic tool at its disposal to secure their immediate release. Had I been present, I would have voted in support of S. Con. Res. 16.

MEMORIAL DAY

Mrs. STABENOW. Madam President, I wish to reflect on this year's Memorial Day and the importance of this holiday in American life.

As I attend Memorial Day parades and commemorations, I am struck by our spirit of national unity. I know that across Michigan—and across our Nation—our fellow Americans are taking part in similar gatherings where we stop and reflect on our history and the sacrifice made by so many in order to bring our Nation to where we are today.

Memorial Day is unique among American holidays. On Memorial Day, we do not honor a particular date or event, a battle or the end of a war. On Memorial Day, we do not honor an individual leader—a President or a general.

On Memorial Day, we pay homage to the thousands and thousands of individual acts of bravery and sacrifice that stretch back to the battlefields of our Revolution and to those taking place today in conflicts across our world.

Last month, I was reminded of the significance of this day when I welcomed 76 Michigan World War II and Korean war veterans to Washington from Michigan's Upper Peninsula as part of the Honor Flight Network.

These veterans visited the World War II and Korean war memorials, and at the end of the day, received personalized notes thanking them for their service. The mission of the Honor Flight Network is a fitting tribute to our ''greatest generation.''

This Memorial Day we not only honor past generations, but our current generation of young men and women who are serving or have come home. In April, 350 airmen and 12 A–10 Thunderbolt II planes from our Selfridge Air National Guard Base deployed to the Middle East to fight the terrorist group ISIL as part of Operation Inherent Resolve.

This Memorial Day is a reminder of our obligation to honor our commitment to all our generations of veterans by making sure they have the support they need and the benefits they deserve.

As we observe this holiday, let us remember the centuries of sacrifice by the many men and women that this day represents. And let us make sure that all who served with honor are honored in return.

REMEMBERING CORPORAL BRYON K. DICKSON

Mr. CASEY. Madam President, I wish to honor Corporal Bryon K. Dickson, a Pennsylvania State trooper who was killed in the line of duty on September 12, 2014. Corporal Dickson was a resident of Dunmore, PA, who served our Commonwealth and our Nation with honor, valor and distinction.

Corporal Dickson spent the majority of his life in service to others. A graduate of Wyoming Area High School, he entered the Marines after high school and served with honor for 4 years. Following his discharge, Corporal Dickson went on to study at the Pennsylvania State University, where he earned a degree in the administration of justice before entering the Pennsylvania State Police Academy.

As a member of the Pennsylvania State Police, Corporal Dickson distinguished himself as a passionate and dedicated officer. He became a certified drug recognition expert and devoted himself to removing impaired drivers from Pennsylvania's roads. In recognition of his efforts, Corporal Dickson received several awards from the Pennsylvania DUI Association, and numerous State police commendations. At the time of his death, he was a 7-year veteran of the force, serving as the patrol unit supervisor for Troop R at the Blooming Grove Barracks.

Corporal Dickson represented the very best of law enforcement in Pennsylvania and around the country. He wanted to help his community, so he put himself at risk every day to keep us safe. He ultimately gave, as Abraham Lincoln once said, ''the last full measure of devotion'' to his Commonwealth and his country. We owe him a debt of gratitude for that sacrifice.

As he was laid to rest, thousands of police officers from around the country, some from as far away as Alaska, lined the streets of Scranton, PA to pay their final respects to Corporal Dickson. He was eulogized by police commissioner Frank Noonan as a ''steadfast soldier of the law.'' But Corporal Dickson was more than just a brave public servant. In addition to being an honored marine, and distinguished State trooper, he was a devoted family man who ''took perfect care of his wife'' and handcrafted flawless wood toys for his two young sons. He was, most importantly, a loving husband, father, son, brother, uncle, and friend; and that is how he will be most dearly remembered.

My thoughts and prayers will remain with his wife Tiffany, his two children Bryon III and Adam, and all those who knew and loved Corporal Dickson. May he rest in peace. And may his sacrifice never be forgotten.

ADDITIONAL STATEMENTS

RECOGNIZING THE LOUISIANA VETERANS FESTIVAL

• Mr. VITTER. Madam President, today, I recognize the Second Annual Louisiana Veterans Festival taking place on May 16, at the Northshore Harbor Center in Slidell, LA. The event is hosted by the East St. Tammany Habitat for Humanity, which constructs homes for low-income families in Louisiana, including veterans. The event offers an opportunity for families of military personnel and members of the community to celebrate and thank veterans for their service to our Nation.

Habitat for Humanity's efforts are incredibly important, especially for our veterans. When we send our American citizens to war, we make a promise to protect them and a commitment to support them when they return home. Habitat for Humanity's work ensures that many will have a home when they return.

Throughout America's history, our military has bravely defended our Nation—especially our beliefs and values—from the threat of tyranny and oppression. Our service men and women have defended us in all corners of the Earth, and they continue to defend us today. It is through the service and devotion of the military members and our veterans that our Nation has remained the strong America we know today. For their sacrifices, we owe them a debt of gratitude that can never be repaid.

Through my work in the United States Congress, I have had the privilege of meeting with veterans throughout the State of Louisiana, from World War II veterans to recent veterans from Operation Enduring Freedom and Operation Iraqi Freedom. I am humbled by the stories of heroism and selflessness. May we never forget those who have made the ultimate sacrifice to protect our freedoms.

It is our responsibility to remember their courage, not only in ceremonies such as the Veterans Festival in Slidell, but also every day. Louisiana is blessed to have such a successful organization with so many dedicated workers and volunteers building a better future for our veterans and their families. We honor those who have served for us and have given so much, and I am pleased to recognize the Second Annual Louisiana Veterans Festival and the East St. Tammany Habitat for Humanity for its role in building homes for veterans.•

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. HATCH, from the Committee on Finance:

Report to accompany S. 995, A bill to establish congressional trade negotiating objectives and enhanced consultation requirements for trade negotiations, to provide for consideration of trade agreements, and for other purposes (Rept. No. 114–42).

Report to accompany S. 1267, An original bill to extend the African Growth and Opportunity Act, the Generalized System of Preferences, the preferential duty treatment program for Haiti, and for other purposes (Rept. No. 114–43).

Report to accompany S. 1268, An original bill to extend the trade adjustment assistance program, and for other purposes (Rept. No. 114–44).

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. KIRK (for himself, Ms. HIRONO, Mr. CASSIDY, Mr. SCHUMER, and Mr. MERKLEY):

S. 1287. A bill to amend the Public Health Service Act to revise and extend the program for viral hepatitis surveillance, education, and testing in order to prevent deaths from chronic liver disease and liver cancer, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. VITTER:

S. 1288. A bill to require States to implement a cash withdrawal daily limit for recipients of cash assistance under the temporary assistance for needy families program; to the Committee on Finance.

By Mr. ROUNDS:

S. 1289. A bill to amend title 10, United States Code, to provide for the inclusion of certain contractor personnel in matters on the defense acquisition workforce in the annual strategic workforce plan of the Department of Defense; to the Committee on Armed Services.

By Mr. ROUNDS:

S. 1290. A bill to ensure the ability of covered beneficiaries under the TRICARE program to access care under a health plan under such program in each TRICARE program region, and for other purposes; to the Committee on Armed Services.

By Mrs. FISCHER:

S. 1291. A bill to authorize early repayment of obligations to the Bureau of Reclamation within the Northport Irrigation District in the State of Nebraska; to the Committee on Energy and Natural Resources.

By Mr. VITTER (for himself and Mr. KING):

S. 1292. A bill to amend the Small Business Act to treat certain qualified disaster areas as HUBZones and to extend the period for HUBZone treatment for certain base closure areas, and for other purposes; to the Committee on Small Business and Entrepreneurship.

By Ms. HEITKAMP (for herself and Mr. MANCHIN):

S. 1293. A bill to establish the Department of Energy as the lead agency for coordinating all requirements under Federal law with respect to eligible clean coal and advanced coal technology generating projects, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. WYDEN:

S. 1294. A bill to require the Secretary of Energy and the Secretary of Agriculture to collaborate in promoting the development of efficient, economical, and environmentally sustainable thermally led wood energy systems; to the Committee on Energy and Natural Resources.

By Mr. BENNET (for himself and Mr. GARDNER):

S. 1295. A bill to adjust the boundary of the Arapaho National Forest, Colorado, and for other purposes; to the Committee on Energy and Natural Resources.

By Mrs. FISCHER:

S. 1296. A bill to establish the American Infrastructure Bank to offer States the option for more flexibility in financing and funding infrastructure projects; to the Committee on Finance.

By Mr. CRUZ (for himself, Mr. NELSON, Mr. PETERS, Mr. RUBIO, and Mr. GARDNER):

S. 1297. A bill to update the Commercial Space Launch Act by amending title 51, United States Code, to promote competitiveness of the U.S. commercial space sector, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. THUNE (for himself, Mrs. FISCHER, Mr. GARDNER, and Mr. ALEXANDER):

S. 1298. A bill to provide nationally consistent measures of performance of the Nation's ports, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. REED (for himself, Ms. MURKOWSKI, Mr. UDALL, Mr. DURBIN, Mr. COONS, Ms. WARREN, Mr. SCHATZ, Mr. HEINRICH, Mr. DONNELLY, Ms. AYOTTE, Ms. KLOBUCHAR, Mr. BLUMENTHAL, Ms. STABENOW, Mr. TESTER, Ms. HIRONO, Mr. MERKLEY, Mr. SANDERS, Mr. GRASSLEY, Ms. COLLINS, and Mr. REID):

S. 1299. A bill to revise and extend provisions under the Garrett Lee Smith Memorial Act; to the Committee on Health, Education, Labor, and Pensions.

By Mrs. FEINSTEIN (for herself, Mr. JOHNSON, Mr. GRASSLEY, Ms. KLOBUCHAR, Mr. MCCONNELL, Mrs. BOXER, and Mr. CORKER):

S. 1300. A bill to amend the section 221 of the Immigration and Nationality Act to provide relief for adoptive families from immigrant visa feeds in certain situations; to the Committee on the Judiciary.

By Ms. HIRONO (for herself and Mr. SCHATZ):

S. 1301. A bill to amend title IV of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 to restore Medicaid coverage for citizens of the Freely Associated States lawfully residing in the United States under the Compacts of Free Association between the Government of the United States and the Governments of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau; to the Committee on Finance.

By Mr. TESTER (for himself, Mr. MARKEY, Ms. WARREN, Mr. DURBIN, Mr. FRANKEN, Mrs. GILLIBRAND, Mr. COONS, and Ms. BALDWIN):

S. 1302. A bill to amend the Family and Medical Leave Act of 1993 to provide leave because of the death of a son or daughter; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BROWN (for himself and Mr. TILLIS):

S. 1303. A bill to amend title 38, United States Code, to improve the enrollment of veterans in certain courses of education, and for other purposes; to the Committee on Veterans' Affairs.

By Ms. CANTWELL:

S. 1304. A bill to require the Secretary of Energy to establish a pilot competitive grant program for the development of a skilled energy workforce, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. BARRASSO:

S. 1305. A bill to amend the Colorado River Storage Project Act to authorize the use of the active capacity of the Fontenelle Reservoir; to the Committee on Energy and Natural Resources.

By Mr. MANCHIN (for himself and Ms. HEITKAMP):

S. 1306. A bill to amend the Energy Policy Act of 2005 to use existing funding available to further projects that would improve energy efficiency and reduce emissions; to the Committee on Energy and Natural Resources.

By Mr. WYDEN:

S. 1307. A bill to amend section 1105 of title 31, United States Code , to require that the annual budget submissions of the Presidents include the total dollar amount requested for intelligence or intelligence related activities of each element of the Government engaged in such activities; to the Committee on the Budget.

By Mr. VITTER:

S. 1308. A bill to amend chapter 44 of title 18, United States Code, to more comprehensively address the interstate transportation of firearms or ammunition; to the Committee on the Judiciary.

By Mr. PETERS (for himself and Mrs. CAPITO):

S. 1309. A bill to provide for the removal of default information from a borrower's credit report with respect to certain rehabilitated education loans; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. MARKEY:

S. 1310. A bill to prohibit the Secretary of the Interior from issuing new oil or natural gas production leases in the Gulf of Mexico under the Outer Continental Shelf Lands Act to a person that does not renegotiate its existing leases in order to require royalty payments if oil and natural gas prices are greater than or equal to specified price thresholds, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. MARKEY:

S. 1311. A bill to amend the Federal Oil and Gas Royalty Management Act of 1982 and the Outer Continental Shelf Lands Act to modify certain penalties to deter oil spills; to the Committee on Energy and Natural Resources.

By Ms. MURKOWSKI (for herself, Ms. HEITKAMP, Mr. HOEVEN, Mr. BARRASSO, Mr. MCCAIN, Mr. CORKER, Mr. ALEXANDER, Mr. RISCH, Mr. FLAKE, Mrs. CAPITO, Mr. INHOFE, Mr. RUBIO, and Mr. LANKFORD):

S. 1312. A bill to modernize Federal policies regarding the supply and distribution of energy in the United States, and for other purposes; to the Committee on Energy and Natural Resources.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MERKLEY:

S. Res. 178. A resolution supporting the goals and ideals of National Nurses Week from May 6, 2015, through May 12, 2015; to the Committee on Health, Education, Labor, and Pensions.

ADDITIONAL COSPONSORS

S. 36

At the request of Mrs. FEINSTEIN, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 36, a bill to address the continued threat posed by dangerous synthetic drugs by amending the Controlled Substances Act relating to controlled substance analogues.

S. 122

At the request of Mr. MCCAIN, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 122, a bill to amend the Federal Food, Drug, and Cosmetic Act to allow for the personal importation of safe and affordable drugs from approved pharmacies in Canada.

S. 170

At the request of Mr. TESTER, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 170, a bill to amend title 38, United States Code, to increase the maximum age for children eligible for medical care under the CHAMPVA program, and for other purposes.

S. 183

At the request of Mr. BARRASSO, the names of the Senator from Arkansas (Mr. COTTON) and the Senator from Arkansas (Mr. BOOZMAN) were added as cosponsors of S. 183, a bill to repeal the annual fee on health insurance providers enacted by the Patient Protection and Affordable Care Act.

S. 299

At the request of Mr. FLAKE, the names of the Senator from Maine (Mr. KING) and the Senator from Minnesota (Mr. FRANKEN) were added as cosponsors of S. 299, a bill to allow travel between the United States and Cuba.

S. 330

At the request of Mr. HELLER, the names of the Senator from New Hampshire (Ms. AYOTTE), the Senator from Idaho (Mr. CRAPO), the Senator from Rhode Island (Mr. REED), the Senator from Wisconsin (Ms. BALDWIN), the Senator from Maine (Mr. KING) and the Senator from Mississippi (Mr. WICKER) were added as cosponsors of S. 330, a bill to amend the Internal Revenue Code of 1986 to make permanent the special rule for contributions of qualified conservation contributions, and for other purposes.

S. 370

At the request of Mrs. FEINSTEIN, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 370, a bill to require breast density reporting to physicians and patients by facilities that perform mammograms, and for other purposes.

S. 389

At the request of Ms. HIRONO, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 389, a bill to amend section 1111(h)(1)(C)(i) of the Elementary and Secondary Education Act of 1965 to require that annual State report cards reflect the same race groups as the decennial census of population.

S. 488

At the request of Mr. SCHUMER, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 488, a bill to amend title XVIII of the Social Security Act to allow physician assistants, nurse practitioners, and clinical nurse specialists to supervise cardiac, intensive cardiac, and pulmonary rehabilitation programs.

S. 677

At the request of Mrs. BOXER, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 677, a bill to prohibit the application of certain restrictive eligibility requirements to foreign nongovernmental organizations with respect to the provision of assistance under part I of the Foreign Assistance Act of 1961.

S. 713

At the request of Mrs. BOXER, the names of the Senator from Massachusetts (Mr. MARKEY), the Senator from Rhode Island (Mr. WHITEHOUSE) and the Senator from New Jersey (Mr. BOOKER) were added as cosponsors of S. 713, a bill to prevent international violence against women, and for other purposes.

S. 798

At the request of Mr. VITTER, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of S. 798, a bill to provide for notice to, and input by, State insurance commissioners when requiring an insurance company to serve as a source of financial strength or when the Federal Deposit Insurance Corporation places a lien against an insurance company's assets, and for other purposes.

S. 806

At the request of Mr. BOOZMAN, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 806, a bill to amend section 31306 of title 49, United States Code, to recognize hair as an alternative specimen for preemployment and random controlled substances testing of commercial motor vehicle drivers and for other purposes.

S. 824

At the request of Mrs. SHAHEEN, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 824, a bill to reauthorize the Export-Import Bank of the United States, and for other purposes.

S. 860

At the request of Mr. THUNE, the name of the Senator from Arizona (Mr. MCCAIN) was added as a cosponsor of S. 860, a bill to amend the Internal Revenue Code of 1986 to repeal the estate and generation-skipping transfer taxes, and for other purposes.

S. 911

At the request of Mr. CASEY, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 911, a bill to direct the Administrator of the Federal Aviation Administration to issue an order with respect to secondary cockpit barriers, and for other purposes.

S. 1013

At the request of Mr. SCHUMER, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 1013, a bill to amend title XVIII of the Social Security Act to provide for coverage and payment for complex rehabilitation technology items under the Medicare program, and for other purposes.

S. 1049

At the request of Ms. HEITKAMP, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 1049, a bill to allow the financing by United States persons of sales of agricultural commodities to Cuba.

S. 1119

At the request of Mr. PETERS, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 1119, a bill to establish the National Criminal Justice Commission.

S. 1121

At the request of Ms. AYOTTE, the names of the Senator from Idaho (Mr. CRAPO), the Senator from Washington (Ms. CANTWELL) and the Senator from Illinois (Mr. DURBIN) were added as cosponsors of S. 1121, a bill to amend the Horse Protection Act to designate additional unlawful acts under the Act, strengthen penalties for violations of the Act, improve Department of Agriculture enforcement of the Act, and for other purposes.

S. 1133

At the request of Mr. FRANKEN, the name of the Senator from North Dakota (Ms. HEITKAMP) was added as a cosponsor of S. 1133, a bill to amend title 9 of the United States Code with respect to arbitration.

S. 1141

At the request of Ms. COLLINS, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of S. 1141, a bill to amend the Internal Revenue Code of 1986 to provide tax incentives for small businesses.

S. 1170

At the request of Mrs. FEINSTEIN, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 1170, a bill to amend title 39, United States Code, to extend the authority of the United States Postal Service to issue a semipostal to raise funds for breast cancer research, and for other purposes.

S. 1199

At the request of Mrs. MURRAY, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 1199, a bill to authorize Federal agencies to provide alternative fuel to Federal employees on a reimbursable basis, and for other purposes.

S. 1236

At the request of Ms. MURKOWSKI, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 1236, a bill to amend the Federal Power Act to modify certain requirements relating to trial-type hearings with respect to certain license applications before the Federal Energy Regulatory Commission, and for other purposes.

S. 1253

At the request of Mr. BURR, the name of the Senator from Tennessee (Mr. ALEXANDER) was added as a cosponsor of S. 1253, a bill to amend title XVIII of the Social Security Act to provide coverage of certain disposable medical technologies under the Medicare program, and for other purposes.

S. 1282

At the request of Mr. MANCHIN, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 1282, a bill to amend the Energy Policy Act of 2005 to require the Secretary of Energy to consider the objective of improving the conversion, use, and storage of carbon dioxide produced from fossil fuels in carrying out research and development programs under that Act.

S. RES. 143

At the request of Mr. SCHATZ, the names of the Senator from Michigan (Ms. STABENOW) and the Senator from Hawaii (Ms. HIRONO) were added as cosponsors of S. Res. 143, a resolution supporting efforts to ensure that students have access to debt-free higher education.

S. RES. 148

At the request of Mr. KIRK, the names of the Senator from Vermont (Mr. LEAHY) and the Senator from Wisconsin (Ms. BALDWIN) were added as cosponsors of S. Res. 148, a resolution condemning the Government of Iran's state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 174

At the request of Mr. CASSIDY, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. Res. 174, a resolution recognizing May 2015 as ''Jewish American Heritage Month'' and honoring the contributions of Jewish Americans to the United States of America.

S. RES. 177

At the request of Mr. GRASSLEY, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. Res. 177, a resolution designating the week of May 10 through May 16, 2015, as ''National Police Week''.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. WYDEN:

S. 1294. A bill to require the Secretary of Energy and the Secretary of Agriculture to collaborate in promoting the development of efficient, economical, and environmentally sustainable thermally led wood energy systems; to the Committee on Energy and Natural Resources.

Mr. WYDEN. Mr. President, today I am proud to introduce the Bioenergy Act of 2015.

Managed in an environmentally responsible way, woody biomass presents a carbon-neutral alternative to fossil fuels for heating and powering homes, schools and businesses. Much of the woody biomass in the U.S. that could be used for energy production is either waste from the forest products industry, or small trees that contribute to the overcrowding of forests and wildfires. In 2013, wildfires burned 4.3 million acres of American forests and rangeland, and the Federal Government spent $1.7 billion to fight them. Additionally, about 2 billion metric tons, or 30 percent, of U.S. carbon dioxide emissions came from fossil fuel use in space heating, water heating or electricity generation for American homes and businesses. Using woody biomass for heat and power can help fund wildfire risk reduction and forest restoration, all while creating low-carbon energy and a stable source of jobs in rural economies across the country.

Despite this potential, the U.S. Department of Energy, DOE, has not invested in biomass heat, bioheat, and power, biopower, projects and research. This bill introduces modest steps to develop this resource, learn more about its full potential, and improve interagency coordination between DOE and the U.S. Department of Agriculture, USDA, Forest Service on this topic.

Specifically, the bill will establish a competitive cost-share grant program at the Department of Energy to improve technologies for processing woody biomass and bringing down transportation costs, as well as innovative technologies for using biomass for heat and power—from new power plant designs, to neighborhood heating systems called ''district energy'' systems.

The bill also creates a cost-share grant program through the U.S. Forest Service to support proven biomass technologies, like combined heat and power, CHP. To assist with financing, the bill expands a loan program run by the USDA Rural Utilities Service to include bioheat and biopower, and establishes a new loan program for projects that are not located in a rural utility service territory. Finally, the bill would support continued research into the environmental sustainability and economics of using biomass for heat and power, and would establish a collaborative platform for directing this research across the Departments of Energy and Agriculture.

This bill is good for the environment, good for rural jobs, and good for stopping wildfires before they start. I encourage my colleagues to support it.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 1294

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Bioenergy Act of 2015''.

SEC. 2. DEFINITIONS.

In this Act:

(1) BIOHEAT.—The term ''bioheat'' means the use of woody biomass to generate heat.

(2) BIOPOWER.—The term ''biopower'' means the use of woody biomass to generate electricity.

(3) INITIATIVE.—The term ''Initiative'' means the Bioheat and Biopower Initiative established under section 3(a).

(4) SECRETARY.—The term ''Secretary'' means the Secretary of Energy.

(5) STATE WOOD ENERGY TEAM.—The term ''State Wood Energy Team'' means a collaborative group of stakeholders that—

(A) carry out activities within a State to identify sustainable energy applications for woody biomass; and

(B) has been designated by the State and Private Forestry organization of the Forest Service as a State Wood Energy Team.

SEC. 3. BIOHEAT AND BIOPOWER INITIATIVE.

(a) ESTABLISHMENT.—The Secretary, acting jointly with the Secretary of Agriculture, shall establish a collaborative working group, to be known as the ''Bioheat and Biopower Initiative'', to carry out the duties described in subsection (c).

(b) BOARD OF DIRECTORS.—

(1) IN GENERAL.—The Initiative shall be led by a Board of Directors.

(2) MEMBERSHIP.—The Board of Directors shall consist of—

(A) representatives of the Department of Energy and the Department of Agriculture, who shall serve as cochairpersons of the Board;

(B) a senior officer or employee, each of whom shall have a rank that is equivalent to the departmental rank of a representative described in subparagraph (A), of each of—

(i) the Department of the Interior;

(ii) the Environmental Protection Agency;

(iii) the National Science Foundation; and

(iv) the Office of Science and Technology Policy; and

(C) at the election of the Secretary and the Secretary of Agriculture, such other members as may be appointed by the Secretaries, in consultation with the Board.

(3) MEETINGS.—The Board of Directors shall meet not less frequently than once each quarter.

(c) DUTIES.—The Initiative shall—

(1) coordinate research and development activities relating to biopower and bioheat projects—

(A) between the Department of Agriculture and the Department of Energy; and

(B) with other Federal departments and agencies;

(2) provide recommendations to the Department of Agriculture and the Department of Energy concerning the administration of this Act; and

(3) ensure that—

(A) solicitations are open and competitive with respect to applicable annual grant awards; and

(B) objectives and evaluation criteria of solicitations for those awards are clearly stated and minimally prescriptive, with no areas of special interest.

SEC. 4. GRANT PROGRAMS.

(a) DEMONSTRATION GRANTS.—

(1) ESTABLISHMENT.—The Secretary shall establish, within the Bioenergy Technologies Office, a program under which the Secretary shall provide grants to relevant projects to support innovation and market development in bioheat and biopower.

(2) APPLICATIONS.—To be eligible to receive a grant under this subsection, the owner or operator of a relevant project shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require.

(3) ALLOCATION.—Of the amounts made available to carry out this section, the Secretary shall allocate—

(A) $15,000,000 to projects that develop innovative techniques for preprocessing biomass for heat and electricity generation, with the goals of—

(i) lowering the costs of—

(I) distributed preprocessing technologies, including technologies designed to promote densification, torrefaction, and the broader commoditization of bioenergy feedstocks; and

(II) transportation and logistics costs; and

(ii) developing technologies and procedures that maximize environmental integrity, such as reducing greenhouse gas emissions and local air pollutants and bolstering the health of forest ecosystems and watersheds; and

(B) $15,000,000 to innovative bioheat and biopower demonstration projects, including—

(i) district energy projects;

(ii) innovation in transportation and logistics; and

(iii) innovative projects addressing the challenges of retrofitting existing coal-fired electricity generation facilities to use biomass.

(4) REGIONAL DISTRIBUTION.—In selecting projects to receive grants under this subsection, the Secretary shall ensure, to the maximum extent practicable, diverse geographical distribution among the projects.

(5) COST SHARE.—The Federal share of the cost of a project carried out using a grant under this subsection shall be 50 percent.

(6) DUTIES OF RECIPIENTS.—As a condition of receiving a grant under this subsection, the owner or operator of a project shall—

(A) participate in the applicable working group under paragraph (7);

(B) submit to the Secretary a report that includes—

(i) a description of the project and any relevant findings; and

(ii) such other information as the Secretary determines to be necessary to complete the report of the Secretary under paragraph (8); and

(C) carry out such other activities as the Secretary determines to be necessary.

(7) WORKING GROUPS.—The Secretary shall establish 2 working groups to share best practices and collaborate in project implementation, of which—

(A) 1 shall be comprised of representatives of feedstock projects that receive grants under paragraph (3)(A); and

(B) 1 shall comprised of representatives of demand and logistics projects that receive grants under paragraph (3)(B).

(8) REPORTS.—Not later than 5 years after the date of enactment of this Act, the Secretary shall submit to Congress a report describing—

(A) each project for which a grant has been provided under this subsection;

(B) any findings as a result of those projects; and

(C) the state of market and technology development, including market barriers and opportunities.

(b) THERMALLY LED WOOD ENERGY GRANTS.—

(1) ESTABLISHMENT.—The Secretary of Agriculture, acting through the Chief of the Forest Service, shall establish a program under which the Secretary of Agriculture shall provide grants to support commercially demonstrated thermally led wood energy technologies, with priority given to projects proposed by State Wood Energy Teams.

(2) APPLICATIONS.—To be eligible to receive a grant under this subsection, the owner or operator of a relevant project shall submit to the Secretary of Agriculture an application at such time, in such manner, and containing such information as the Secretary of Agriculture may require.

(3) ALLOCATION.—Of the amounts made available to carry out this section, the Secretary of Agriculture shall allocate $10,000,000 for feasibility assessments, engineering designs, and construction of thermally led wood energy systems, including pellet boilers, district energy systems, combined heat and power installations, and other technologies.

(4) REGIONAL DISTRIBUTION.—In selecting projects to receive grants under this subsection, the Secretary of Agriculture shall ensure, to the maximum extent practicable, diverse geographical distribution among the projects.

(5) COST SHARE.—The Federal share of the cost of a project carried out using a grant under this subsection shall be 50 percent.

[(c) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section—]

[(1) $30,000,000 to the Secretary to provide grants under subsection (a); and]

[(2) $10,000,000 to the Secretary of Agriculture to provide grants under subsection (b).]

SEC. 5. LOAN PROGRAMS; STRATEGIC ANALYSIS AND RESEARCH.

(a) LOW-INTEREST LOANS.—

(1) ESTABLISHMENT.—The Secretary of Agriculture shall establish, within the Rural Development Office, a low-interest loan program to support construction of thermally led residential, commercial or institutional, and industrial wood energy systems.

(2) REQUIREMENTS.—The program under this subsection shall be carried out in accordance with such requirements as the Secretary of Agriculture may establish, by regulation, in taking into consideration best practices.

(3) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary of Agriculture to carry out this subsection $50,000,000.

(b) ENERGY EFFICIENCY AND CONSERVATION LOAN PROGRAM.—In addition to loans under subsection (a), thermally led residential, commercial or institutional, and industrial wood energy systems shall be eligible to receive loans under the energy efficiency and conservation loan program of the Department of Agriculture under section 2 of the Rural Electrification Act of 1936 (7 U.S.C. 902).

(c) STRATEGIC ANALYSIS AND RESEARCH.—

(1) IN GENERAL.—The Secretary, acting jointly with the Secretary of Agriculture (acting through the Chief of the Forest Service), shall establish a bioheat and biopower research program—

(A) the costs of which shall be divided equally between the Department of Energy and the Department of Agriculture;

(B) to be overseen by the Board of Directors of the Initiative; and

(C) to carry out projects and activities—

(i)(I) to advance research and analysis on the environmental, social, and economic costs and benefits of the United States biopower and bioheat industries, including associated lifecycle analysis of greenhouse gas emissions and net energy analysis; and

(II) to provide recommendations for policy and investment in those areas;

(ii) to identify and assess, through a joint effort between the Chief of the Forest Service and the regional combined heat and power groups of the Department of Energy, the feasibility of thermally led district wood energy opportunities in all regions of the Forest Service regions, including by conducting broad regional assessments, feasibility studies, and preliminary engineering assessments at individual facilities; and

(iii)(I) to offer to communities technical assistance to explore thermally led wood energy opportunities; and

(II) to provide enhanced services to smaller communities that have limited resources and capacity to pursue new thermally led wood energy opportunities.

(2) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary and the Secretary of Agriculture—

(A) $2,000,000 to carry out paragraph (1)(C)(i);

(B) $1,000,000 to carry out paragraph (1)(C)(ii); and

(C) $1,000,000 to carry out paragraph (1)(C)(iii).

By Mr. REED (for himself, Ms. MURKOWSKI, Mr. UDALL, Mr. DURBIN, Mr. COONS, Ms. WARREN, Mr. SCHATZ, Mr. HEINRICH, Mr. DONNELLY, Ms. AYOTTE, Ms. KLOBUCHAR, Mr. BLUMENTHAL, Ms. STABENOW, Mr. TESTER, Ms. HIRONO, Mr. MERKLEY, Mr. SANDERS, Mr. GRASSLEY, Ms. COLLINS, and Mr. REID):

S. 1299. A bill to revise and extend provisions under the Garrett Lee Smith Memorial Act; to the Committee on Health, Education, Labor, and Pensions.

Mr. REED. Mr. President, I am pleased to be joined by Senators MURKOWSKI, UDALL, DURBIN, COONS, WARREN, SCHATZ, HEINRICH, DONNELLY, AYOTTE, KLOBUCHAR, BLUMENTHAL, STABENOW, TESTER, HIRONO, MERKLEY, SANDERS, GRASSLEY, COLLINS, and REID in the introduction of the Garrett Lee Smith Memorial Act Reauthorization.

This legislation is named for the son of our former colleague, Senator Gordon Smith, who took his own life at the young age of 22. After this tragedy, Senator Smith worked to gain the support of members across the aisle and in both chambers to prevent other children from doing the same with passage of the Garrett Lee Smith Memorial Act in 2004.

Although great strides have been made over the last decade, suicide remains the third-leading cause of death for adolescents and young adults between the ages of 10 and 24. According to the Centers for Disease Control and Prevention, CDC, youth suicide results in approximately 4,600 lives lost each year. Additionally, the CDC reports that 157,000 young adults in this age group are treated for self-inflicted injuries annually, often as the result of a failed suicide attempt.

More work must be done to address the mental and behavioral health of children and young adults before they hurt themselves and others. Parents also need help in identifying early warning signs of mental illness and accessing the appropriate treatment before it is too late.

The Garrett Lee Smith Memorial Act authorizes critical resources for schools—elementary schools through college where children and young adults spend most of their time—to be able to reach at-risk youth. Since 2005, this law has supported 370 youth suicide prevention grants in all 50 States, 46 tribes or tribal organizations, and 175 institutions of higher education.

The bill my colleagues and I are introducing today, with the support of over 40 member organizations of the Mental Health Liaison Group, would increase the authorized grant level to States, tribes, and college campuses for the implementation of proven programs and initiatives designed to address mental illness and reduce youth suicide. It will enable more schools to offer critical services to students and provide greater flexibility in the use of funds, particularly on college campuses. This change to the Campus Suicide Prevention Program comes at a vital time.

Over the last decade, we have seen an increasing trend in the number of students seeking help for mental health issues on college campuses. Of these students seeking services for mental health issues, over 30 percent report that they have seriously considered attempting suicide at some point in their lives. With more students seeking mental health services, we must work to ensure that college and university counseling centers are equipped with the necessary tools to meet this demand.

We can play a role in helping these children and their families. Indeed, passing the Garrett Lee Smith Memorial Act Reauthorization is one way we can better address the mental health needs of this population. I urge our colleagues to work with us to pass this legislation.

By Mrs. FEINSTEIN (for herself, Mr. JOHNSON, Mr. GRASSLEY, Ms. KLOBUCHAR, Mr. MCCONNELL, Mrs. BOXER, and Mr. CORKER):

S. 1300. A bill to amend the section 221 of the Immigration and Nationality Act to provide relief for adoptive families from immigrant visa feeds in certain situations; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, I rise to introduce the Adoptive Family Relief Act, which would provide support and relief to American families seeking to bring their adoptive children from the Democratic Republic of Congo home to the U.S. It would also provide relief to similarly situated adoptive families should barriers arise in other countries in the future. I thank my colleagues, Senators RON JOHNSON, CHUCK GRASSLEY, MITCH MCCONNELL, AMY KLOBUCHAR, BARBARA BOXER, and BOB CORKER for joining me as original cosponsors.

Within the past few years, over 350 American families have successfully adopted children from the Democratic Republic of Congo. However, since September 25, 2013, they have not been able to bring their adoptive children home to the United States because the Democratic Republic of Congo suspended the issuance of ''exit permits'' for these children until its parliament passes new laws regarding international adoption. These exit permits are necessary for adopted children to leave the Democratic Republic of Congo and be united with their American families in the U.S. As the permit suspension drags on, however, American families are repeatedly paying visa renewal and related fees, while also continuing to be separated from their adopted kids.

The Adoptive Families Relief Act would grant flexibility to the United States Department of State to waive immigrant visa renewal fees for adoptive American parents in extraordinary circumstances like this, where the cause of delay is due to factors not in the control of the child or parents. The Department of State is fully supportive of this legislation and is eager to provide some relief to the many families who are affected.

Under current law, adopted children from abroad must secure U.S. immigrant visas in order to travel to the United States to unite with their adoptive parents. However, these visas expire after 6 months. Ordinarily, such visas are used within the allotted 6 months. However, in rare circumstances, such as the suspension of exit permits in the Democratic Republic of Congo, adopted children are prohibited from leaving their country of birth and cannot use their U.S.-issued visas within the prescribed timeframe.

Adoptive parents consequently pay $325 in visa renewal fees every 6 months if they want to preserve the validity of their adopted child's visa to travel to the U.S. To renew the visa, the child must also complete another medical exam, which costs the child's adoptive family approximately $200. Many families from across the country have already paid for at least three visas, which amounts to $975 per child, plus costs for medical exams. Additionally, many families are also paying monthly childcare or foster care fees, and some families have adopted more than one child. So, in addition to the emotional stress of being separated from their adoptive children, American parents face a financial burden while the situation goes unresolved.

This bill would not change any of the substantive requirements for issuance of a renewed visa, such as necessary medical exams and background checks. It simply allows the Department of State to waive the visa renewal fee to alleviate the financial burden imposed on American families to renew their child's visa, and reimburses those who have already renewed their child's visa since the exit permit suspension.

The Department of State does not anticipate this waiver authority to be used broadly based on its past experiences and its other adoption programs abroad. The bill would not be a financial burden on the United States. According to the State Department, once the initial visa, which the parents must pay for, is issued, the subsequent work for consular officers involved with renewing a visa is relatively quick and simple. The work involved to renew the visa therefore does not amount to the full cost of the visa renewal fee, so the State Department maintains it would not impact its consular resources.

This legislation builds on the efforts of other members who have tried to resolve the Democratic Republic of Congo's exit permit suspension in various ways. Last April, 171 Members of Congress sent a letter to Democratic Republic of Congo President Joseph Kabila asking for his intervention. In June of 2014, 167 Members of Congress also sent a letter to President Obama requesting his outreach to President Kabila to resolve this situation. Members of Congress sent a letter to the Democratic Republic of Congo Parliament offering technical assistance on October 28, 2014, and the Senate passed S. Res. 502 in the 113th Congress, concerning the Democratic Republic of Congo's suspension of exit permits for Congolese adopted children. This year, the Senate passed an amendment to promote the return of legally adopted children from the Democratic Republic of Congo. My Senate colleagues and our staff have met with our constituents directly affected by the Democratic Republic of Congo's exit permit suspension, and heard their call for help. Furthermore, I, and other Senators, have also had individual meetings with Congolese Ambassador to the U.S., Faida Mitifu.

However, since the exit permit suspension continues despite these efforts, it is imperative to bring some relief to our American adoptive parents. While we continue to urge the Democratic Republic of Congo to lift its exit permit suspension, I urge my colleagues to pass the Adoptive Family Relief Act to provide some relief to American families caught powerless in this difficult situation. Should other adoptive parents face similar obstacles in the future with their adoption process in other countries, this bill will also serve as a source of relief to them.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 178—SUPPORTING THE GOALS AND IDEALS OF NATIONAL NURSES WEEK FROM MAY 6, 2015, THROUGH MAY 12, 2015

Mr. MERKLEY submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 178

Whereas, since 1991, National Nurses Week is celebrated annually from May 6, also known as National Recognition Day for Nurses, through May 12, the birthday of Florence Nightingale, the founder of modern nursing;

Whereas National Nurses Week is a time of year to reflect on the important contributions that nurses make to provide safe, high-quality health care;

Whereas nurses are known to be patient advocates, acting fearlessly to protect the lives of those under the care of nurses;

Whereas nurses represent the largest single component of the health care profession, with an estimated population of 3,100,000 registered nurses in the United States;

Whereas nurses are leading in the delivery of quality care in a transformed health care system that improves patient outcomes and safety;

Whereas the Future of Nursing report of the Institute of Medicine has called for the nursing profession to meet the call for leadership in a team-based delivery model;

Whereas, when nurse staffing levels increase, the risk of patient complications and lengthy hospital stays decreases, resulting in cost savings;

Whereas nurses are experienced researchers, and the work of nurses encompasses a wide scope of scientific inquiry, including clinical research, health systems and outcomes research, and nursing education research;

Whereas nurses provide culturally and ethnically competent care and are educated to be sensitive to the regional and community customs of persons needing care;

Whereas nurses are well-positioned to provide leadership to eliminate health care disparities that exist in the United States;

Whereas nurses are the cornerstone of the public health infrastructure, promoting healthy lifestyles and educating communities on disease prevention and health promotion;

Whereas nurses are strong allies to Congress as they help inform, educate, and work closely with legislators to improve the education, retention, recruitment, and practice of all nurses and, more importantly, the health and safety of the patients for whom they care;

Whereas increased Federal and State investment is needed to support programs such as the Nursing Workforce Development Programs (authorized under title VIII of the

Public Health Service Act (42 U.S.C. 296 et seq.)), which bolster the nursing workforce at all levels, to increase the number of doctorally prepared faculty members, and to educate more nurse research scientists who can discover new nursing care models to improve the health status of the diverse population of the United States;

Whereas nurses touch the lives of the people of the United States from birth to the end of life; and

Whereas nursing has been voted as the most honest and ethical profession in the United States for the past 13 years: Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals and ideals of National Nurses Week, as founded by the American Nurses Association;

(2) recognizes the significant contributions of nurses to the health care system of the United States; and

(3) encourages the people of the United States to observe National Nurses Week with appropriate recognition, ceremonies, activities, and programs to demonstrate the importance of nurses to the everyday lives of patients.

AMENDMENTS SUBMITTED AND PROPOSED

SA 1221. Mr. HATCH submitted an amendment intended to be proposed by him to the bill H.R. 1314, to amend the Internal Revenue Code of 1986 to provide for a right to an administrative appeal relating to adverse determinations of tax-exempt status of certain organizations; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 1221. Mr. HATCH submitted an amendment intended to be proposed by him to the bill H.R. 1314, to amend the Internal Revenue Code of 1986 to provide for a right to an administrative appeal relating to adverse determinations of tax-exempt status of certain organizations; which was ordered to lie on the table; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Trade Act of 2015''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.

TITLE I—TRADE PROMOTION AUTHORITY

Sec. 101. Short title.
Sec. 102. Trade negotiating objectives.
Sec. 103. Trade agreements authority.
Sec. 104. Congressional oversight, consultations, and access to information.
Sec. 105. Notice, consultations, and reports.
Sec. 106. Implementation of trade agreements.
Sec. 107. Treatment of certain trade agreements for which negotiations have already begun.
Sec. 108. Sovereignty.
Sec. 109. Interests of small businesses.
Sec. 110. Conforming amendments; application of certain provisions.
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TITLE II—EXTENSION OF TRADE ADJUSTMENT ASSISTANCE

Sec. 202. Application of provisions relating to trade adjustment assistance.
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Sec. 207. Extension and modification of Health Coverage Tax Credit.
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Sec. 209. Child tax credit not refundable for taxpayers electing to exclude foreign earned income from tax.
Sec. 210. Time for payment of corporate estimated taxes.
Sec. 211. Coverage and payment for renal dialysis services for individuals with acute kidney injury.
Sec. 212. Modification of the Medicare sequester for fiscal year 2024.

TITLE I—TRADE PROMOTION AUTHORITY

SEC. 101. SHORT TITLE.

This title may be cited as the ''Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

SEC. 102. TRADE NEGOTIATING OBJECTIVES.

(a) OVERALL TRADE NEGOTIATING OBJECTIVES.—The overall trade negotiating objectives of the United States for agreements subject to the provisions of section 103 are—

(1) to obtain more open, equitable, and reciprocal market access;

(2) to obtain the reduction or elimination of barriers and distortions that are directly related to trade and investment and that decrease market opportunities for United States exports or otherwise distort United States trade;

(3) to further strengthen the system of international trade and investment disciplines and procedures, including dispute settlement;

(4) to foster economic growth, raise living standards, enhance the competitiveness of the United States, promote full employment in the United States, and enhance the global economy;

(5) to ensure that trade and environmental policies are mutually supportive and to seek to protect and preserve the environment and enhance the international means of doing so, while optimizing the use of the world's resources;

(6) to promote respect for worker rights and the rights of children consistent with core labor standards of the ILO (as set out in section 111(7)) and an understanding of the relationship between trade and worker rights;

(7) to seek provisions in trade agreements under which parties to those agreements ensure that they do not weaken or reduce the protections afforded in domestic environmental and labor laws as an encouragement for trade;

(8) to ensure that trade agreements afford small businesses equal access to international markets, equitable trade benefits, and expanded export market opportunities, and provide for the reduction or elimination of trade and investment barriers that disproportionately impact small businesses;

(9) to promote universal ratification and full compliance with ILO Convention No. 182 Concerning the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labor;

(10) to ensure that trade agreements reflect and facilitate the increasingly interrelated, multi-sectoral nature of trade and investment activity;

(11) to recognize the growing significance of the Internet as a trading platform in international commerce; and

(12) to take into account other legitimate United States domestic objectives, including, but not limited to, the protection of legitimate health or safety, essential security, and consumer interests and the law and regulations related thereto.

(b) PRINCIPAL TRADE NEGOTIATING OBJECTIVES.—

(1) TRADE IN GOODS.—The principal negotiating objectives of the United States regarding trade in goods are—

(A) to expand competitive market opportunities for exports of goods from the United States and to obtain fairer and more open conditions of trade, including through the utilization of global value chains, by reducing or eliminating tariff and nontariff barriers and policies and practices of foreign governments directly related to trade that decrease market opportunities for United States exports or otherwise distort United States trade; and

(B) to obtain reciprocal tariff and nontariff barrier elimination agreements, including with respect to those tariff categories covered in section 111(b) of the Uruguay Round Agreements Act (19 U.S.C. 3521(b)).

(2) TRADE IN SERVICES.—(A) The principal negotiating objective of the United States regarding trade in services is to expand competitive market opportunities for United States services and to obtain fairer and more open conditions of trade, including through utilization of global value chains, by reducing or eliminating barriers to international trade in services, such as regulatory and other barriers that deny national treatment and market access or unreasonably restrict the establishment or operations of service suppliers.

(B) Recognizing that expansion of trade in services generates benefits for all sectors of the economy and facilitates trade, the objective described in subparagraph (A) should be pursued through all means, including through a plurilateral agreement with those countries willing and able to undertake high standard services commitments for both existing and new services.

(3) TRADE IN AGRICULTURE.—The principal negotiating objective of the United States with respect to agriculture is to obtain competitive opportunities for United States exports of agricultural commodities in foreign markets substantially equivalent to the competitive opportunities afforded foreign exports in United States markets and to achieve fairer and more open conditions of trade in bulk, specialty crop, and value added commodities by—

(A) securing more open and equitable market access through robust rules on sanitary and phytosanitary measures that—

(i) encourage the adoption of international standards and require a science-based justification be provided for a sanitary or phytosanitary measure if the measure is more restrictive than the applicable international standard;

(ii) improve regulatory coherence, promote the use of systems-based approaches, and appropriately recognize the equivalence of health and safety protection systems of exporting countries;

(iii) require that measures are transparently developed and implemented, are based on risk assessments that take into account relevant international guidelines and scientific data, and are not more restrictive on trade than necessary to meet the intended purpose; and

(iv) improve import check processes, including testing methodologies and procedures, and certification requirements,

while recognizing that countries may put in place measures to protect human, animal, or plant life or health in a manner consistent with their international obligations, including the WTO Agreement on the Application

of Sanitary and Phytosanitary Measures (referred to in section 101(d)(3) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(3)));

(B) reducing or eliminating, by a date certain, tariffs or other charges that decrease market opportunities for United States exports—

(i) giving priority to those products that are subject to significantly higher tariffs or subsidy regimes of major producing countries; and

(ii) providing reasonable adjustment periods for United States import sensitive products, in close consultation with Congress on such products before initiating tariff reduction negotiations;

(C) reducing tariffs to levels that are the same as or lower than those in the United States;

(D) reducing or eliminating subsidies that decrease market opportunities for United States exports or unfairly distort agriculture markets to the detriment of the United States;

(E) allowing the preservation of programs that support family farms and rural communities but do not distort trade;

(F) developing disciplines for domestic support programs, so that production that is in excess of domestic food security needs is sold at world prices;

(G) eliminating government policies that create price depressing surpluses;

(H) eliminating state trading enterprises whenever possible;

(I) developing, strengthening, and clarifying rules to eliminate practices that unfairly decrease United States market access opportunities or distort agricultural markets to the detriment of the United States, and ensuring that such rules are subject to efficient, timely, and effective dispute settlement, including—

(i) unfair or trade distorting activities of state trading enterprises and other administrative mechanisms, with emphasis on requiring price transparency in the operation of state trading enterprises and such other mechanisms in order to end cross subsidization, price discrimination, and price undercutting;

(ii) unjustified trade restrictions or commercial requirements, such as labeling, that affect new technologies, including biotechnology;

(iii) unjustified sanitary or phytosanitary restrictions, including restrictions not based on scientific principles in contravention of obligations in the Uruguay Round Agreements or bilateral or regional trade agreements;

(iv) other unjustified technical barriers to trade; and

(v) restrictive rules in the administration of tariff rate quotas;

(J) eliminating practices that adversely affect trade in perishable or cyclical products, while improving import relief mechanisms to recognize the unique characteristics of perishable and cyclical agriculture;

(K) ensuring that import relief mechanisms for perishable and cyclical agriculture are as accessible and timely to growers in the United States as those mechanisms that are used by other countries;

(L) taking into account whether a party to the negotiations has failed to adhere to the provisions of already existing trade agreements with the United States or has circumvented obligations under those agreements;

(M) taking into account whether a product is subject to market distortions by reason of a failure of a major producing country to adhere to the provisions of already existing trade agreements with the United States or by the circumvention by that country of its obligations under those agreements;

(N) otherwise ensuring that countries that accede to the World Trade Organization have made meaningful market liberalization commitments in agriculture;

(O) taking into account the impact that agreements covering agriculture to which the United States is a party have on the United States agricultural industry;

(P) maintaining bona fide food assistance programs, market development programs, and export credit programs;

(Q) seeking to secure the broadest market access possible in multilateral, regional, and bilateral negotiations, recognizing the effect that simultaneous sets of negotiations may have on United States import sensitive commodities (including those subject to tariff rate quotas);

(R) seeking to develop an international consensus on the treatment of seasonal or perishable agricultural products in investigations relating to dumping and safeguards and in any other relevant area;

(S) seeking to establish the common base year for calculating the Aggregated Measurement of Support (as defined in the Agreement on Agriculture) as the end of each country's Uruguay Round implementation period, as reported in each country's Uruguay Round market access schedule;

(T) ensuring transparency in the administration of tariff rate quotas through multilateral, plurilateral, and bilateral negotiations; and

(U) eliminating and preventing the undermining of market access for United States products through improper use of a country's system for protecting or recognizing geographical indications, including failing to ensure transparency and procedural fairness and protecting generic terms.

(4) FOREIGN INVESTMENT.—Recognizing that United States law on the whole provides a high level of protection for investment, consistent with or greater than the level required by international law, the principal negotiating objectives of the United States regarding foreign investment are to reduce or eliminate artificial or trade distorting barriers to foreign investment, while ensuring that foreign investors in the United States are not accorded greater substantive rights with respect to investment protections than United States investors in the United States, and to secure for investors important rights comparable to those that would be available under United States legal principles and practice, by—

(A) reducing or eliminating exceptions to the principle of national treatment;

(B) freeing the transfer of funds relating to investments;

(C) reducing or eliminating performance requirements, forced technology transfers, and other unreasonable barriers to the establishment and operation of investments;

(D) seeking to establish standards for expropriation and compensation for expropriation, consistent with United States legal principles and practice;

(E) seeking to establish standards for fair and equitable treatment, consistent with United States legal principles and practice, including the principle of due process;

(F) providing meaningful procedures for resolving investment disputes;

(G) seeking to improve mechanisms used to resolve disputes between an investor and a government through—

(i) mechanisms to eliminate frivolous claims and to deter the filing of frivolous claims;

(ii) procedures to ensure the efficient selection of arbitrators and the expeditious disposition of claims;

(iii) procedures to enhance opportunities for public input into the formulation of government positions; and

(iv) providing for an appellate body or similar mechanism to provide coherence to the interpretations of investment provisions in trade agreements; and

(H) ensuring the fullest measure of transparency in the dispute settlement mechanism, to the extent consistent with the need to protect information that is classified or business confidential, by—

(i) ensuring that all requests for dispute settlement are promptly made public;

(ii) ensuring that—

(I) all proceedings, submissions, findings, and decisions are promptly made public; and

(II) all hearings are open to the public; and

(iii) establishing a mechanism for acceptance of amicus curiae submissions from businesses, unions, and nongovernmental organizations.

(5) INTELLECTUAL PROPERTY.—The principal negotiating objectives of the United States regarding trade-related intellectual property are—

(A) to further promote adequate and effective protection of intellectual property rights, including through—

(i)(I) ensuring accelerated and full implementation of the Agreement on Trade-Related Aspects of Intellectual Property Rights referred to in section 101(d)(15) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(15)), particularly with respect to meeting enforcement obligations under that agreement; and

(II) ensuring that the provisions of any trade agreement governing intellectual property rights that is entered into by the United States reflect a standard of protection similar to that found in United States law;

(ii) providing strong protection for new and emerging technologies and new methods of transmitting and distributing products embodying intellectual property, including in a manner that facilitates legitimate digital trade;

(iii) preventing or eliminating discrimination with respect to matters affecting the availability, acquisition, scope, maintenance, use, and enforcement of intellectual property rights;

(iv) ensuring that standards of protection and enforcement keep pace with technological developments, and in particular ensuring that rightholders have the legal and technological means to control the use of their works through the Internet and other global communication media, and to prevent the unauthorized use of their works;

(v) providing strong enforcement of intellectual property rights, including through accessible, expeditious, and effective civil, administrative, and criminal enforcement mechanisms; and

(vi) preventing or eliminating government involvement in the violation of intellectual property rights, including cyber theft and piracy;

(B) to secure fair, equitable, and nondiscriminatory market access opportunities for United States persons that rely upon intellectual property protection; and

(C) to respect the Declaration on the TRIPS Agreement and Public Health, adopted by the World Trade Organization at the Fourth Ministerial Conference at Doha, Qatar on November 14, 2001, and to ensure that trade agreements foster innovation and promote access to medicines.

(6) DIGITAL TRADE IN GOODS AND SERVICES AND CROSS-BORDER DATA FLOWS.—The principal negotiating objectives of the United States with respect to digital trade in goods and services, as well as cross-border data flows, are—

(A) to ensure that current obligations, rules, disciplines, and commitments under the World Trade Organization and bilateral

and regional trade agreements apply to digital trade in goods and services and to cross-border data flows;

(B) to ensure that—

(i) electronically delivered goods and services receive no less favorable treatment under trade rules and commitments than like products delivered in physical form; and

(ii) the classification of such goods and services ensures the most liberal trade treatment possible, fully encompassing both existing and new trade;

(C) to ensure that governments refrain from implementing trade-related measures that impede digital trade in goods and services, restrict cross-border data flows, or require local storage or processing of data;

(D) with respect to subparagraphs (A) through (C), where legitimate policy objectives require domestic regulations that affect digital trade in goods and services or cross-border data flows, to obtain commitments that any such regulations are the least restrictive on trade, nondiscriminatory, and transparent, and promote an open market environment; and

(E) to extend the moratorium of the World Trade Organization on duties on electronic transmissions.

(7) REGULATORY PRACTICES.—The principal negotiating objectives of the United States regarding the use of government regulation or other practices to reduce market access for United States goods, services, and investments are—

(A) to achieve increased transparency and opportunity for the participation of affected parties in the development of regulations;

(B) to require that proposed regulations be based on sound science, cost benefit analysis, risk assessment, or other objective evidence;

(C) to establish consultative mechanisms and seek other commitments, as appropriate, to improve regulatory practices and promote increased regulatory coherence, including through—

(i) transparency in developing guidelines, rules, regulations, and laws for government procurement and other regulatory regimes;

(ii) the elimination of redundancies in testing and certification;

(iii) early consultations on significant regulations;

(iv) the use of impact assessments;

(v) the periodic review of existing regulatory measures; and

(vi) the application of good regulatory practices;

(D) to seek greater openness, transparency, and convergence of standards development processes, and enhance cooperation on standards issues globally;

(E) to promote regulatory compatibility through harmonization, equivalence, or mutual recognition of different regulations and standards and to encourage the use of international and interoperable standards, as appropriate;

(F) to achieve the elimination of government measures such as price controls and reference pricing which deny full market access for United States products;

(G) to ensure that government regulatory reimbursement regimes are transparent, provide procedural fairness, are nondiscriminatory, and provide full market access for United States products; and

(H) to ensure that foreign governments—

(i) demonstrate that the collection of undisclosed proprietary information is limited to that necessary to satisfy a legitimate and justifiable regulatory interest; and

(ii) protect such information against disclosure, except in exceptional circumstances to protect the public, or where such information is effectively protected against unfair competition.

(8) STATE-OWNED AND STATE-CONTROLLED ENTERPRISES.—The principal negotiating objective of the United States regarding competition by state-owned and state-controlled enterprises is to seek commitments that—

(A) eliminate or prevent trade distortions and unfair competition favoring state-owned and state-controlled enterprises to the extent of their engagement in commercial activity, and

(B) ensure that such engagement is based solely on commercial considerations,

in particular through disciplines that eliminate or prevent discrimination and market-distorting subsidies and that promote transparency.

(9) LOCALIZATION BARRIERS TO TRADE.—The principal negotiating objective of the United States with respect to localization barriers is to eliminate and prevent measures that require United States producers and service providers to locate facilities, intellectual property, or other assets in a country as a market access or investment condition, including indigenous innovation measures.

(10) LABOR AND THE ENVIRONMENT.—The principal negotiating objectives of the United States with respect to labor and the environment are—

(A) to ensure that a party to a trade agreement with the United States—

(i) adopts and maintains measures implementing internationally recognized core labor standards (as defined in section 111(17)) and its obligations under common multilateral environmental agreements (as defined in section 111(6)),

(ii) does not waive or otherwise derogate from, or offer to waive or otherwise derogate from—

(I) its statutes or regulations implementing internationally recognized core labor standards (as defined in section 111(17)), in a manner affecting trade or investment between the United States and that party, where the waiver or derogation would be inconsistent with one or more such standards, or

(II) its environmental laws in a manner that weakens or reduces the protections afforded in those laws and in a manner affecting trade or investment between the United States and that party, except as provided in its law and provided not inconsistent with its obligations under common multilateral environmental agreements (as defined in section 111(6)) or other provisions of the trade agreement specifically agreed upon, and

(iii) does not fail to effectively enforce its environmental or labor laws, through a sustained or recurring course of action or inaction,

in a manner affecting trade or investment between the United States and that party after entry into force of a trade agreement between those countries;

(B) to recognize that—

(i) with respect to environment, parties to a trade agreement retain the right to exercise prosecutorial discretion and to make decisions regarding the allocation of enforcement resources with respect to other environmental laws determined to have higher priorities, and a party is effectively enforcing its laws if a course of action or inaction reflects a reasonable, bona fide exercise of such discretion, or results from a reasonable, bona fide decision regarding the allocation of resources; and

(ii) with respect to labor, decisions regarding the distribution of enforcement resources are not a reason for not complying with a party's labor obligations; a party to a trade agreement retains the right to reasonable exercise of discretion and to make bona fide decisions regarding the allocation of resources between labor enforcement activities among core labor standards, provided the exercise of such discretion and such decisions are not inconsistent with its obligations;

(C) to strengthen the capacity of United States trading partners to promote respect for core labor standards (as defined in section 111(7));

(D) to strengthen the capacity of United States trading partners to protect the environment through the promotion of sustainable development;

(E) to reduce or eliminate government practices or policies that unduly threaten sustainable development;

(F) to seek market access, through the elimination of tariffs and nontariff barriers, for United States environmental technologies, goods, and services;

(G) to ensure that labor, environmental, health, or safety policies and practices of the parties to trade agreements with the United States do not arbitrarily or unjustifiably discriminate against United States exports or serve as disguised barriers to trade;

(H) to ensure that enforceable labor and environment obligations are subject to the same dispute settlement and remedies as other enforceable obligations under the agreement; and

(I) to ensure that a trade agreement is not construed to empower a party's authorities to undertake labor or environmental law enforcement activities in the territory of the United States.

(11) CURRENCY.—The principal negotiating objective of the United States with respect to currency practices is that parties to a trade agreement with the United States avoid manipulating exchange rates in order to prevent effective balance of payments adjustment or to gain an unfair competitive advantage over other parties to the agreement, such as through cooperative mechanisms, enforceable rules, reporting, monitoring, transparency, or other means, as appropriate.

(12) WTO AND MULTILATERAL TRADE AGREEMENTS.—Recognizing that the World Trade Organization is the foundation of the global trading system, the principal negotiating objectives of the United States regarding the World Trade Organization, the Uruguay Round Agreements, and other multilateral and plurilateral trade agreements are—

(A) to achieve full implementation and extend the coverage of the World Trade Organization and multilateral and plurilateral agreements to products, sectors, and conditions of trade not adequately covered;

(B) to expand country participation in and enhancement of the Information Technology Agreement, the Government Procurement Agreement, and other plurilateral trade agreements of the World Trade Organization;

(C) to expand competitive market opportunities for United States exports and to obtain fairer and more open conditions of trade, including through utilization of global value chains, through the negotiation of new WTO multilateral and plurilateral trade agreements, such as an agreement on trade facilitation;

(D) to ensure that regional trade agreements to which the United States is not a party fully achieve the high standards of, and comply with, WTO disciplines, including Article XXIV of GATT 1994, Article V and V bis of the General Agreement on Trade in Services, and the Enabling Clause, including through meaningful WTO review of such regional trade agreements;

(E) to enhance compliance by WTO members with their obligations as WTO members through active participation in the bodies of the World Trade Organization by the United States and all other WTO members, including in the trade policy review mechanism and the committee system of the World

Trade Organization, and by working to increase the effectiveness of such bodies; and

(F) to encourage greater cooperation between the World Trade Organization and other international organizations.

(13) TRADE INSTITUTION TRANSPARENCY.—The principal negotiating objective of the United States with respect to transparency is to obtain wider and broader application of the principle of transparency in the World Trade Organization, entities established under bilateral and regional trade agreements, and other international trade fora through seeking—

(A) timely public access to information regarding trade issues and the activities of such institutions;

(B) openness by ensuring public access to appropriate meetings, proceedings, and submissions, including with regard to trade and investment dispute settlement; and

(C) public access to all notifications and supporting documentation submitted by WTO members.

(14) ANTI-CORRUPTION.—The principal negotiating objectives of the United States with respect to the use of money or other things of value to influence acts, decisions, or omissions of foreign governments or officials or to secure any improper advantage in a manner affecting trade are—

(A) to obtain high standards and effective domestic enforcement mechanisms applicable to persons from all countries participating in the applicable trade agreement that prohibit such attempts to influence acts, decisions, or omissions of foreign governments or officials or to secure any such improper advantage;

(B) to ensure that such standards level the playing field for United States persons in international trade and investment; and

(C) to seek commitments to work jointly to encourage and support anti-corruption and anti-bribery initiatives in international trade fora, including through the Convention on Combating Bribery of Foreign Public Officials in International Business Transactions of the Organization for Economic Cooperation and Development, done at Paris December 17, 1997 (commonly known as the ''OECD Anti-Bribery Convention'').

(15) DISPUTE SETTLEMENT AND ENFORCEMENT.—The principal negotiating objectives of the United States with respect to dispute settlement and enforcement of trade agreements are—

(A) to seek provisions in trade agreements providing for resolution of disputes between governments under those trade agreements in an effective, timely, transparent, equitable, and reasoned manner, requiring determinations based on facts and the principles of the agreements, with the goal of increasing compliance with the agreements;

(B) to seek to strengthen the capacity of the Trade Policy Review Mechanism of the World Trade Organization to review compliance with commitments;

(C) to seek adherence by panels convened under the Dispute Settlement Understanding and by the Appellate Body to—

(i) the mandate of those panels and the Appellate Body to apply the WTO Agreement as written, without adding to or diminishing rights and obligations under the Agreement; and

(ii) the standard of review applicable under the Uruguay Round Agreement involved in the dispute, including greater deference, where appropriate, to the fact finding and technical expertise of national investigating authorities;

(D) to seek provisions encouraging the early identification and settlement of disputes through consultation;

(E) to seek provisions to encourage the provision of trade-expanding compensation if a party to a dispute under the agreement does not come into compliance with its obligations under the agreement;

(F) to seek provisions to impose a penalty upon a party to a dispute under the agreement that—

(i) encourages compliance with the obligations of the agreement;

(ii) is appropriate to the parties, nature, subject matter, and scope of the violation; and

(iii) has the aim of not adversely affecting parties or interests not party to the dispute while maintaining the effectiveness of the enforcement mechanism; and

(G) to seek provisions that treat United States principal negotiating objectives equally with respect to—

(i) the ability to resort to dispute settlement under the applicable agreement;

(ii) the availability of equivalent dispute settlement procedures; and

(iii) the availability of equivalent remedies.

(16) TRADE REMEDY LAWS.—The principal negotiating objectives of the United States with respect to trade remedy laws are—

(A) to preserve the ability of the United States to enforce rigorously its trade laws, including the antidumping, countervailing duty, and safeguard laws, and avoid agreements that lessen the effectiveness of domestic and international disciplines on unfair trade, especially dumping and subsidies, or that lessen the effectiveness of domestic and international safeguard provisions, in order to ensure that United States workers, agricultural producers, and firms can compete fully on fair terms and enjoy the benefits of reciprocal trade concessions; and

(B) to address and remedy market distortions that lead to dumping and subsidization, including overcapacity, cartelization, and market access barriers.

(17) BORDER TAXES.—The principal negotiating objective of the United States regarding border taxes is to obtain a revision of the rules of the World Trade Organization with respect to the treatment of border adjustments for internal taxes to redress the disadvantage to countries relying primarily on direct taxes for revenue rather than indirect taxes.

(18) TEXTILE NEGOTIATIONS.—The principal negotiating objectives of the United States with respect to trade in textiles and apparel articles are to obtain competitive opportunities for United States exports of textiles and apparel in foreign markets substantially equivalent to the competitive opportunities afforded foreign exports in United States markets and to achieve fairer and more open conditions of trade in textiles and apparel.

(19) COMMERCIAL PARTNERSHIPS.—

(A) IN GENERAL.—With respect to an agreement that is proposed to be entered into with the Transatlantic Trade and Investment Partnership countries and to which section 103(b) will apply, the principal negotiating objectives of the United States regarding commercial partnerships are the following:

(i) To discourage actions by potential trading partners that directly or indirectly prejudice or otherwise discourage commercial activity solely between the United States and Israel.

(ii) To discourage politically motivated actions to boycott, divest from, or sanction Israel and to seek the elimination of politically motivated nontariff barriers on Israeli goods, services, or other commerce imposed on the State of Israel.

(iii) To seek the elimination of state-sponsored unsanctioned foreign boycotts against Israel or compliance with the Arab League Boycott of Israel by prospective trading partners.

(B) DEFINITION.—In this paragraph, the term ''actions to boycott, divest from, or sanction Israel'' means actions by states, non-member states of the United Nations, international organizations, or affiliated agencies of international organizations that are politically motivated and are intended to penalize or otherwise limit commercial relations specifically with Israel or persons doing business in Israel or in Israeli-controlled territories.

(20) GOOD GOVERNANCE, TRANSPARENCY, THE EFFECTIVE OPERATION OF LEGAL REGIMES, AND THE RULE OF LAW OF TRADING PARTNERS.—The principal negotiating objectives of the United States with respect to ensuring implementation of trade commitments and obligations by strengthening good governance, transparency, the effective operation of legal regimes and the rule of law of trading partners of the United States is through capacity building and other appropriate means, which are important parts of the broader effort to create more open democratic societies and to promote respect for internationally recognized human rights.

(c) CAPACITY BUILDING AND OTHER PRIORITIES.—In order to address and maintain United States competitiveness in the global economy, the President shall—

(1) direct the heads of relevant Federal agencies—

(A) to work to strengthen the capacity of United States trading partners to carry out obligations under trade agreements by consulting with any country seeking a trade agreement with the United States concerning that country's laws relating to customs and trade facilitation, sanitary and phytosanitary measures, technical barriers to trade, intellectual property rights, labor, and the environment; and

(B) to provide technical assistance to that country if needed;

(2) seek to establish consultative mechanisms among parties to trade agreements to strengthen the capacity of United States trading partners to develop and implement standards for the protection of the environment and human health based on sound science;

(3) promote consideration of multilateral environmental agreements and consult with parties to such agreements regarding the consistency of any such agreement that includes trade measures with existing environmental exceptions under Article XX of GATT 1994; and

(4) submit to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate an annual report on capacity-building activities undertaken in connection with trade agreements negotiated or being negotiated pursuant to this title.

SEC. 103. TRADE AGREEMENTS AUTHORITY.

(a) AGREEMENTS REGARDING TARIFF BARRIERS.—

(1) IN GENERAL.—Whenever the President determines that one or more existing duties or other import restrictions of any foreign country or the United States are unduly burdening and restricting the foreign trade of the United States and that the purposes, policies, priorities, and objectives of this title will be promoted thereby, the President—

(A) may enter into trade agreements with foreign countries before—

(i) July 1, 2018; or

(ii) July 1, 2021, if trade authorities procedures are extended under subsection (c); and

(B) may, subject to paragraphs (2) and (3), proclaim—

(i) such modification or continuance of any existing duty,

(ii) such continuance of existing duty free or excise treatment, or

(iii) such additional duties,
as the President determines to be required or appropriate to carry out any such trade agreement.

Substantial modifications to, or substantial additional provisions of, a trade agreement entered into after July 1, 2018, or July 1, 2021, if trade authorities procedures are extended under subsection (c), shall not be eligible for approval under this title.

(2) NOTIFICATION.—The President shall notify Congress of the President's intention to enter into an agreement under this subsection.

(3) LIMITATIONS.—No proclamation may be made under paragraph (1) that—

(A) reduces any rate of duty (other than a rate of duty that does not exceed 5 percent ad valorem on the date of the enactment of this Act) to a rate of duty which is less than 50 percent of the rate of such duty that applies on such date of enactment;

(B) reduces the rate of duty below that applicable under the Uruguay Round Agreements or a successor agreement, on any import sensitive agricultural product; or

(C) increases any rate of duty above the rate that applied on the date of the enactment of this Act.

(4) AGGREGATE REDUCTION; EXEMPTION FROM STAGING.—

(A) AGGREGATE REDUCTION.—Except as provided in subparagraph (B), the aggregate reduction in the rate of duty on any article which is in effect on any day pursuant to a trade agreement entered into under paragraph (1) shall not exceed the aggregate reduction which would have been in effect on such day if—

(i) a reduction of 3 percent ad valorem or a reduction of 1/10 of the total reduction, whichever is greater, had taken effect on the effective date of the first reduction proclaimed under paragraph (1) to carry out such agreement with respect to such article; and

(ii) a reduction equal to the amount applicable under clause (i) had taken effect at 1-year intervals after the effective date of such first reduction.

(B) EXEMPTION FROM STAGING.—No staging is required under subparagraph (A) with respect to a duty reduction that is proclaimed under paragraph (1) for an article of a kind that is not produced in the United States. The United States International Trade Commission shall advise the President of the identity of articles that may be exempted from staging under this subparagraph.

(5) ROUNDING.—If the President determines that such action will simplify the computation of reductions under paragraph (4), the President may round an annual reduction by an amount equal to the lesser of—

(A) the difference between the reduction without regard to this paragraph and the next lower whole number; or

(B) ½ of 1 percent ad valorem.

(6) OTHER LIMITATIONS.—A rate of duty reduction that may not be proclaimed by reason of paragraph (3) may take effect only if a provision authorizing such reduction is included within an implementing bill provided for under section 106 and that bill is enacted into law.

(7) OTHER TARIFF MODIFICATIONS.—Notwithstanding paragraphs (1)(B), (3)(A), (3)(C), and (4) through (6), and subject to the consultation and layover requirements of section 115 of the Uruguay Round Agreements Act (19 U.S.C. 3524), the President may proclaim the modification of any duty or staged rate reduction of any duty set forth in Schedule XX, as defined in section 2(5) of that Act (19 U.S.C. 3501(5)), if the United States agrees to such modification or staged rate reduction in a negotiation for the reciprocal elimination or harmonization of duties under the auspices of the World Trade Organization.

(8) AUTHORITY UNDER URUGUAY ROUND AGREEMENTS ACT NOT AFFECTED.—Nothing in this subsection shall limit the authority provided to the President under section 111(b) of the Uruguay Round Agreements Act (19 U.S.C. 3521(b)).

(b) AGREEMENTS REGARDING TARIFF AND NONTARIFF BARRIERS.—

(1) IN GENERAL.—(A) Whenever the President determines that—

(i) 1 or more existing duties or any other import restriction of any foreign country or the United States or any other barrier to, or other distortion of, international trade unduly burdens or restricts the foreign trade of the United States or adversely affects the United States economy, or

(ii) the imposition of any such barrier or distortion is likely to result in such a burden, restriction, or effect,
and that the purposes, policies, priorities, and objectives of this title will be promoted thereby, the President may enter into a trade agreement described in subparagraph (B) during the period described in subparagraph (C).

(B) The President may enter into a trade agreement under subparagraph (A) with foreign countries providing for—

(i) the reduction or elimination of a duty, restriction, barrier, or other distortion described in subparagraph (A); or

(ii) the prohibition of, or limitation on the imposition of, such barrier or other distortion.

(C) The President may enter into a trade agreement under this paragraph before—

(i) July 1, 2018; or

(ii) July 1, 2021, if trade authorities procedures are extended under subsection (c).

Substantial modifications to, or substantial additional provisions of, a trade agreement entered into after July 1, 2018, or July 1, 2021, if trade authorities procedures are extended under subsection (c), shall not be eligible for approval under this title.

(2) CONDITIONS.—A trade agreement may be entered into under this subsection only if such agreement makes progress in meeting the applicable objectives described in subsections (a) and (b) of section 102 and the President satisfies the conditions set forth in sections 104 and 105.

(3) BILLS QUALIFYING FOR TRADE AUTHORITIES PROCEDURES.—(A) The provisions of section 151 of the Trade Act of 1974 (in this title referred to as ''trade authorities procedures'') apply to a bill of either House of Congress which contains provisions described in subparagraph (B) to the same extent as such section 151 applies to implementing bills under that section. A bill to which this paragraph applies shall hereafter in this title be referred to as an ''implementing bill''.

(B) The provisions referred to in subparagraph (A) are—

(i) a provision approving a trade agreement entered into under this subsection and approving the statement of administrative action, if any, proposed to implement such trade agreement; and

(ii) if changes in existing laws or new statutory authority are required to implement such trade agreement or agreements, only such provisions as are strictly necessary or appropriate to implement such trade agreement or agreements, either repealing or amending existing laws or providing new statutory authority.

(c) EXTENSION DISAPPROVAL PROCESS FOR CONGRESSIONAL TRADE AUTHORITIES PROCEDURES.—

(1) IN GENERAL.—Except as provided in section 106(b)—

(A) the trade authorities procedures apply to implementing bills submitted with respect to trade agreements entered into under subsection (b) before July 1, 2018; and

(B) the trade authorities procedures shall be extended to implementing bills submitted with respect to trade agreements entered into under subsection (b) after June 30, 2018, and before July 1, 2021, if (and only if)—

(i) the President requests such extension under paragraph (2); and

(ii) neither House of Congress adopts an extension disapproval resolution under paragraph (5) before July 1, 2018.

(2) REPORT TO CONGRESS BY THE PRESIDENT.—If the President is of the opinion that the trade authorities procedures should be extended to implementing bills described in paragraph (1)(B), the President shall submit to Congress, not later than April 1, 2018, a written report that contains a request for such extension, together with—

(A) a description of all trade agreements that have been negotiated under subsection (b) and the anticipated schedule for submitting such agreements to Congress for approval;

(B) a description of the progress that has been made in negotiations to achieve the purposes, policies, priorities, and objectives of this title, and a statement that such progress justifies the continuation of negotiations; and

(C) a statement of the reasons why the extension is needed to complete the negotiations.

(3) OTHER REPORTS TO CONGRESS.—

(A) REPORT BY THE ADVISORY COMMITTEE.—The President shall promptly inform the Advisory Committee for Trade Policy and Negotiations established under section 135 of the Trade Act of 1974 (19 U.S.C. 2155) of the decision of the President to submit a report to Congress under paragraph (2). The Advisory Committee shall submit to Congress as soon as practicable, but not later than June 1, 2018, a written report that contains—

(i) its views regarding the progress that has been made in negotiations to achieve the purposes, policies, priorities, and objectives of this title; and

(ii) a statement of its views, and the reasons therefor, regarding whether the extension requested under paragraph (2) should be approved or disapproved.

(B) REPORT BY INTERNATIONAL TRADE COMMISSION.—The President shall promptly inform the United States International Trade Commission of the decision of the President to submit a report to Congress under paragraph (2). The International Trade Commission shall submit to Congress as soon as practicable, but not later than June 1, 2018, a written report that contains a review and analysis of the economic impact on the United States of all trade agreements implemented between the date of the enactment of this Act and the date on which the President decides to seek an extension requested under paragraph (2).

(4) STATUS OF REPORTS.—The reports submitted to Congress under paragraphs (2) and (3), or any portion of such reports, may be classified to the extent the President determines appropriate.

(5) EXTENSION DISAPPROVAL RESOLUTIONS.—(A) For purposes of paragraph (1), the term ''extension disapproval resolution'' means a resolution of either House of Congress, the sole matter after the resolving clause of which is as follows: ''That the _____ disapproves the request of the President for the extension, under section 103(c)(1)(B)(i) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015, of the trade authorities procedures under that Act to any implementing bill submitted with respect to any trade agreement entered into under section 103(b) of that Act after June 30, 2018.'',

with the blank space being filled with the name of the resolving House of Congress.

(B) Extension disapproval resolutions—

(i) may be introduced in either House of Congress by any member of such House; and

(ii) shall be referred, in the House of Representatives, to the Committee on Ways and Means and, in addition, to the Committee on Rules.

(C) The provisions of subsections (d) and (e) of section 152 of the Trade Act of 1974 (19 U.S.C. 2192) (relating to the floor consideration of certain resolutions in the House and Senate) apply to extension disapproval resolutions.

(D) It is not in order for—

(i) the House of Representatives to consider any extension disapproval resolution not reported by the Committee on Ways and Means and, in addition, by the Committee on Rules;

(ii) the Senate to consider any extension disapproval resolution not reported by the Committee on Finance; or

(iii) either House of Congress to consider an extension disapproval resolution after June 30, 2018.

(d) COMMENCEMENT OF NEGOTIATIONS.—In order to contribute to the continued economic expansion of the United States, the President shall commence negotiations covering tariff and nontariff barriers affecting any industry, product, or service sector, and expand existing sectoral agreements to countries that are not parties to those agreements, in cases where the President determines that such negotiations are feasible and timely and would benefit the United States. Such sectors include agriculture, commercial services, intellectual property rights, industrial and capital goods, government procurement, information technology products, environmental technology and services, medical equipment and services, civil aircraft, and infrastructure products. In so doing, the President shall take into account all of the negotiating objectives set forth in section 102.

SEC. 104. CONGRESSIONAL OVERSIGHT, CONSULTATIONS, AND ACCESS TO INFORMATION.

(a) CONSULTATIONS WITH MEMBERS OF CONGRESS.—

(1) CONSULTATIONS DURING NEGOTIATIONS.—In the course of negotiations conducted under this title, the United States Trade Representative shall—

(A) meet upon request with any Member of Congress regarding negotiating objectives, the status of negotiations in progress, and the nature of any changes in the laws of the United States or the administration of those laws that may be recommended to Congress to carry out any trade agreement or any requirement of, amendment to, or recommendation under, that agreement;

(B) upon request of any Member of Congress, provide access to pertinent documents relating to the negotiations, including classified materials;

(C) consult closely and on a timely basis with, and keep fully apprised of the negotiations, the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate;

(D) consult closely and on a timely basis with, and keep fully apprised of the negotiations, the House Advisory Group on Negotiations and the Senate Advisory Group on Negotiations convened under subsection (c) and all committees of the House of Representatives and the Senate with jurisdiction over laws that could be affected by a trade agreement resulting from the negotiations; and

(E) with regard to any negotiations and agreement relating to agricultural trade, also consult closely and on a timely basis (including immediately before initialing an agreement) with, and keep fully apprised of the negotiations, the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate.

(2) CONSULTATIONS PRIOR TO ENTRY INTO FORCE.—Prior to exchanging notes providing for the entry into force of a trade agreement, the United States Trade Representative shall consult closely and on a timely basis with Members of Congress and committees as specified in paragraph (1), and keep them fully apprised of the measures a trading partner has taken to comply with those provisions of the agreement that are to take effect on the date that the agreement enters into force.

(3) ENHANCED COORDINATION WITH CONGRESS.—

(A) WRITTEN GUIDELINES.—The United States Trade Representative, in consultation with the chairmen and the ranking members of the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate, respectively—

(i) shall, not later than 120 days after the date of the enactment of this Act, develop written guidelines on enhanced coordination with Congress, including coordination with designated congressional advisers under subsection (b), regarding negotiations conducted under this title; and

(ii) may make such revisions to the guidelines as may be necessary from time to time.

(B) CONTENT OF GUIDELINES.—The guidelines developed under subparagraph (A) shall enhance coordination with Congress through procedures to ensure—

(i) timely briefings upon request of any Member of Congress regarding negotiating objectives, the status of negotiations in progress conducted under this title, and the nature of any changes in the laws of the United States or the administration of those laws that may be recommended to Congress to carry out any trade agreement or any requirement of, amendment to, or recommendation under, that agreement; and

(ii) the sharing of detailed and timely information with Members of Congress, and their staff with proper security clearances as appropriate, regarding those negotiations and pertinent documents related to those negotiations (including classified information), and with committee staff with proper security clearances as would be appropriate in the light of the responsibilities of that committee over the trade agreements programs affected by those negotiations.

(C) DISSEMINATION.—The United States Trade Representative shall disseminate the guidelines developed under subparagraph (A) to all Federal agencies that could have jurisdiction over laws affected by trade negotiations.

(b) DESIGNATED CONGRESSIONAL ADVISERS.—

(1) DESIGNATION.—

(A) HOUSE OF REPRESENTATIVES.—In each Congress, any Member of the House of Representatives may be designated as a congressional adviser on trade policy and negotiations by the Speaker of the House of Representatives, after consulting with the chairman and ranking member of the Committee on Ways and Means and the chairman and ranking member of the committee from which the Member will be selected.

(B) SENATE.—In each Congress, any Member of the Senate may be designated as a congressional adviser on trade policy and negotiations by the President pro tempore of the Senate, after consultation with the chairman and ranking member of the Committee on Finance and the chairman and ranking member of the committee from which the Member will be selected.

(2) CONSULTATIONS WITH DESIGNATED CONGRESSIONAL ADVISERS.—In the course of negotiations conducted under this title, the United States Trade Representative shall consult closely and on a timely basis (including immediately before initialing an agreement) with, and keep fully apprised of the negotiations, the congressional advisers for trade policy and negotiations designated under paragraph (1).

(3) ACCREDITATION.—Each Member of Congress designated as a congressional adviser under paragraph (1) shall be accredited by the United States Trade Representative on behalf of the President as an official adviser to the United States delegations to international conferences, meetings, and negotiating sessions relating to trade agreements.

(c) CONGRESSIONAL ADVISORY GROUPS ON NEGOTIATIONS.—

(1) IN GENERAL.—By not later than 60 days after the date of the enactment of this Act, and not later than 30 days after the convening of each Congress, the chairman of the Committee on Ways and Means of the House of Representatives shall convene the House Advisory Group on Negotiations and the chairman of the Committee on Finance of the Senate shall convene the Senate Advisory Group on Negotiations (in this subsection referred to collectively as the ''congressional advisory groups'').

(2) MEMBERS AND FUNCTIONS.—

(A) MEMBERSHIP OF THE HOUSE ADVISORY GROUP ON NEGOTIATIONS.—In each Congress, the House Advisory Group on Negotiations shall be comprised of the following Members of the House of Representatives:

(i) The chairman and ranking member of the Committee on Ways and Means, and 3 additional members of such Committee (not more than 2 of whom are members of the same political party).

(ii) The chairman and ranking member, or their designees, of the committees of the House of Representatives that would have, under the Rules of the House of Representatives, jurisdiction over provisions of law affected by a trade agreement negotiation conducted at any time during that Congress and to which this title would apply.

(B) MEMBERSHIP OF THE SENATE ADVISORY GROUP ON NEGOTIATIONS.—In each Congress, the Senate Advisory Group on Negotiations shall be comprised of the following Members of the Senate:

(i) The chairman and ranking member of the Committee on Finance and 3 additional members of such Committee (not more than 2 of whom are members of the same political party).

(ii) The chairman and ranking member, or their designees, of the committees of the Senate that would have, under the Rules of the Senate, jurisdiction over provisions of law affected by a trade agreement negotiation conducted at any time during that Congress and to which this title would apply.

(C) ACCREDITATION.—Each member of the congressional advisory groups described in subparagraphs (A)(i) and (B)(i) shall be accredited by the United States Trade Representative on behalf of the President as an official adviser to the United States delegation in negotiations for any trade agreement to which this title applies. Each member of the congressional advisory groups described in subparagraphs (A)(ii) and (B)(ii) shall be accredited by the United States Trade Representative on behalf of the President as an official adviser to the United States delegation in the negotiations by reason of which the member is in one of the congressional advisory groups.

(D) CONSULTATION AND ADVICE.—The congressional advisory groups shall consult with

and provide advice to the Trade Representative regarding the formulation of specific objectives, negotiating strategies and positions, the development of the applicable trade agreement, and compliance and enforcement of the negotiated commitments under the trade agreement.

(E) CHAIR.—The House Advisory Group on Negotiations shall be chaired by the Chairman of the Committee on Ways and Means of the House of Representatives and the Senate Advisory Group on Negotiations shall be chaired by the Chairman of the Committee on Finance of the Senate.

(F) COORDINATION WITH OTHER COMMITTEES.—Members of any committee represented on one of the congressional advisory groups may submit comments to the member of the appropriate congressional advisory group from that committee regarding any matter related to a negotiation for any trade agreement to which this title applies.

(3) GUIDELINES.—

(A) PURPOSE AND REVISION.—The United States Trade Representative, in consultation with the chairmen and the ranking members of the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate, respectively—

(i) shall, not later than 120 days after the date of the enactment of this Act, develop written guidelines to facilitate the useful and timely exchange of information between the Trade Representative and the congressional advisory groups; and

(ii) may make such revisions to the guidelines as may be necessary from time to time.

(B) CONTENT.—The guidelines developed under subparagraph (A) shall provide for, among other things—

(i) detailed briefings on a fixed timetable to be specified in the guidelines of the congressional advisory groups regarding negotiating objectives and positions and the status of the applicable negotiations, beginning as soon as practicable after the congressional advisory groups are convened, with more frequent briefings as trade negotiations enter the final stage;

(ii) access by members of the congressional advisory groups, and staff with proper security clearances, to pertinent documents relating to the negotiations, including classified materials;

(iii) the closest practicable coordination between the Trade Representative and the congressional advisory groups at all critical periods during the negotiations, including at negotiation sites;

(iv) after the applicable trade agreement is concluded, consultation regarding ongoing compliance and enforcement of negotiated commitments under the trade agreement; and

(v) the timeframe for submitting the report required under section 105(d)(3).

(4) REQUEST FOR MEETING.—Upon the request of a majority of either of the congressional advisory groups, the President shall meet with that congressional advisory group before initiating negotiations with respect to a trade agreement, or at any other time concerning the negotiations.

(d) CONSULTATIONS WITH THE PUBLIC.—

(1) GUIDELINES FOR PUBLIC ENGAGEMENT.—The United States Trade Representative, in consultation with the chairmen and the ranking members of the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate, respectively—

(A) shall, not later than 120 days after the date of the enactment of this Act, develop written guidelines on public access to information regarding negotiations conducted under this title; and

(B) may make such revisions to the guidelines as may be necessary from time to time.

(2) PURPOSES.—The guidelines developed under paragraph (1) shall—

(A) facilitate transparency;

(B) encourage public participation; and

(C) promote collaboration in the negotiation process.

(3) CONTENT.—The guidelines developed under paragraph (1) shall include procedures that—

(A) provide for rapid disclosure of information in forms that the public can readily find and use; and

(B) provide frequent opportunities for public input through Federal Register requests for comment and other means.

(4) DISSEMINATION.—The United States Trade Representative shall disseminate the guidelines developed under paragraph (1) to all Federal agencies that could have jurisdiction over laws affected by trade negotiations.

(e) CONSULTATIONS WITH ADVISORY COMMITTEES.—

(1) GUIDELINES FOR ENGAGEMENT WITH ADVISORY COMMITTEES.—The United States Trade Representative, in consultation with the chairmen and the ranking members of the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate, respectively—

(A) shall, not later than 120 days after the date of the enactment of this Act, develop written guidelines on enhanced coordination with advisory committees established pursuant to section 135 of the Trade Act of 1974 (19 U.S.C. 2155) regarding negotiations conducted under this title; and

(B) may make such revisions to the guidelines as may be necessary from time to time.

(2) CONTENT.—The guidelines developed under paragraph (1) shall enhance coordination with advisory committees described in that paragraph through procedures to ensure—

(A) timely briefings of advisory committees and regular opportunities for advisory committees to provide input throughout the negotiation process on matters relevant to the sectors or functional areas represented by those committees; and

(B) the sharing of detailed and timely information with each member of an advisory committee regarding negotiations and pertinent documents related to the negotiation (including classified information) on matters relevant to the sectors or functional areas the member represents, and with a designee with proper security clearances of each such member as appropriate.

(3) DISSEMINATION.—The United States Trade Representative shall disseminate the guidelines developed under paragraph (1) to all Federal agencies that could have jurisdiction over laws affected by trade negotiations.

(f) ESTABLISHMENT OF POSITION OF CHIEF TRANSPARENCY OFFICER IN THE OFFICE OF THE UNITED STATES TRADE REPRESENTATIVE.—Section 141(b) of the Trade Act of 1974 (19 U.S.C. 2171(b)) is amended—

(1) by redesignating paragraph (3) as paragraph (4); and

(2) by inserting after paragraph (2) the following:

''(3) There shall be in the Office one Chief Transparency Officer. The Chief Transparency Officer shall consult with Congress on transparency policy, coordinate transparency in trade negotiations, engage and assist the public, and advise the United States Trade Representative on transparency policy.''.

SEC. 105. NOTICE, CONSULTATIONS, AND REPORTS.

(a) NOTICE, CONSULTATIONS, AND REPORTS BEFORE NEGOTIATION.—

(1) NOTICE.—The President, with respect to any agreement that is subject to the provisions of section 103(b), shall—

(A) provide, at least 90 calendar days before initiating negotiations with a country, written notice to Congress of the President's intention to enter into the negotiations with that country and set forth in the notice the date on which the President intends to initiate those negotiations, the specific United States objectives for the negotiations with that country, and whether the President intends to seek an agreement, or changes to an existing agreement;

(B) before and after submission of the notice, consult regarding the negotiations with the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate, such other committees of the House and Senate as the President deems appropriate, and the House Advisory Group on Negotiations and the Senate Advisory Group on Negotiations convened under section 104(c);

(C) upon the request of a majority of the members of either the House Advisory Group on Negotiations or the Senate Advisory Group on Negotiations convened under section 104(c), meet with the requesting congressional advisory group before initiating the negotiations or at any other time concerning the negotiations; and

(D) after consulting with the Committee on Ways and Means and the Committee on Finance, and at least 30 calendar days before initiating negotiations with a country, publish on a publicly available Internet website of the Office of the United States Trade Representative, and regularly update thereafter, a detailed and comprehensive summary of the specific objectives with respect to the negotiations, and a description of how the agreement, if successfully concluded, will further those objectives and benefit the United States.

(2) NEGOTIATIONS REGARDING AGRICULTURE.—

(A) ASSESSMENT AND CONSULTATIONS FOLLOWING ASSESSMENT.—Before initiating or continuing negotiations the subject matter of which is directly related to the subject matter under section 102(b)(3)(B) with any country, the President shall—

(i) assess whether United States tariffs on agricultural products that were bound under the Uruguay Round Agreements are lower than the tariffs bound by that country;

(ii) consider whether the tariff levels bound and applied throughout the world with respect to imports from the United States are higher than United States tariffs and whether the negotiation provides an opportunity to address any such disparity; and

(iii) consult with the Committee on Ways and Means and the Committee on Agriculture of the House of Representatives and the Committee on Finance and the Committee on Agriculture, Nutrition, and Forestry of the Senate concerning the results of the assessment, whether it is appropriate for the United States to agree to further tariff reductions based on the conclusions reached in the assessment, and how all applicable negotiating objectives will be met.

(B) SPECIAL CONSULTATIONS ON IMPORT SENSITIVE PRODUCTS.—(i) Before initiating negotiations with regard to agriculture and, with respect to agreements described in paragraphs (2) and (3) of section 107(a), as soon as practicable after the date of the enactment of this Act, the United States Trade Representative shall—

(I) identify those agricultural products subject to tariff rate quotas on the date of enactment of this Act, and agricultural products subject to tariff reductions by the United States as a result of the Uruguay Round Agreements, for which the rate of

duty was reduced on January 1, 1995, to a rate which was not less than 97.5 percent of the rate of duty that applied to such article on December 31, 1994;

(II) consult with the Committee on Ways and Means and the Committee on Agriculture of the House of Representatives and the Committee on Finance and the Committee on Agriculture, Nutrition, and Forestry of the Senate concerning—

(aa) whether any further tariff reductions on the products identified under subclause (I) should be appropriate, taking into account the impact of any such tariff reduction on the United States industry producing the product concerned;

(bb) whether the products so identified face unjustified sanitary or phytosanitary restrictions, including those not based on scientific principles in contravention of the Uruguay Round Agreements; and

(cc) whether the countries participating in the negotiations maintain export subsidies or other programs, policies, or practices that distort world trade in such products and the impact of such programs, policies, and practices on United States producers of the products;

(III) request that the International Trade Commission prepare an assessment of the probable economic effects of any such tariff reduction on the United States industry producing the product concerned and on the United States economy as a whole; and

(IV) upon complying with subclauses (I), (II), and (III), notify the Committee on Ways and Means and the Committee on Agriculture of the House of Representatives and the Committee on Finance and the Committee on Agriculture, Nutrition, and Forestry of the Senate of those products identified under subclause (I) for which the Trade Representative intends to seek tariff liberalization in the negotiations and the reasons for seeking such tariff liberalization.

(ii) If, after negotiations described in clause (i) are commenced—

(I) the United States Trade Representative identifies any additional agricultural product described in clause (i)(I) for tariff reductions which were not the subject of a notification under clause (i)(IV), or

(II) any additional agricultural product described in clause (i)(I) is the subject of a request for tariff reductions by a party to the negotiations,

the Trade Representative shall, as soon as practicable, notify the committees referred to in clause (i)(IV) of those products and the reasons for seeking such tariff reductions.

(3) NEGOTIATIONS REGARDING THE FISHING INDUSTRY.—Before initiating, or continuing, negotiations that directly relate to fish or shellfish trade with any country, the President shall consult with the Committee on Ways and Means and the Committee on Natural Resources of the House of Representatives, and the Committee on Finance and the Committee on Commerce, Science, and Transportation of the Senate, and shall keep the Committees apprised of the negotiations on an ongoing and timely basis.

(4) NEGOTIATIONS REGARDING TEXTILES.—Before initiating or continuing negotiations the subject matter of which is directly related to textiles and apparel products with any country, the President shall—

(A) assess whether United States tariffs on textile and apparel products that were bound under the Uruguay Round Agreements are lower than the tariffs bound by that country and whether the negotiation provides an opportunity to address any such disparity; and

(B) consult with the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate concerning the results of the assessment, whether it is appropriate for the United States to agree to further tariff reductions based on the conclusions reached in the assessment, and how all applicable negotiating objectives will be met.

(5) ADHERENCE TO EXISTING INTERNATIONAL TRADE AND INVESTMENT AGREEMENT OBLIGATIONS.—In determining whether to enter into negotiations with a particular country, the President shall take into account the extent to which that country has implemented, or has accelerated the implementation of, its international trade and investment commitments to the United States, including pursuant to the WTO Agreement.

(b) CONSULTATION WITH CONGRESS BEFORE ENTRY INTO AGREEMENT.—

(1) CONSULTATION.—Before entering into any trade agreement under section 103(b), the President shall consult with—

(A) the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate;

(B) each other committee of the House and the Senate, and each joint committee of Congress, which has jurisdiction over legislation involving subject matters which would be affected by the trade agreement; and

(C) the House Advisory Group on Negotiations and the Senate Advisory Group on Negotiations convened under section 104(c).

(2) SCOPE.—The consultation described in paragraph (1) shall include consultation with respect to—

(A) the nature of the agreement;

(B) how and to what extent the agreement will achieve the applicable purposes, policies, priorities, and objectives of this title; and

(C) the implementation of the agreement under section 106, including the general effect of the agreement on existing laws.

(3) REPORT REGARDING UNITED STATES TRADE REMEDY LAWS.—

(A) CHANGES IN CERTAIN TRADE LAWS.—The President, not less than 180 calendar days before the day on which the President enters into a trade agreement under section 103(b), shall report to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate—

(i) the range of proposals advanced in the negotiations with respect to that agreement, that may be in the final agreement, and that could require amendments to title VII of the Tariff Act of 1930 (19 U.S.C. 1671 et seq.) or to chapter 1 of title II of the Trade Act of 1974 (19 U.S.C. 2251 et seq.); and

(ii) how these proposals relate to the objectives described in section 102(b)(16).

(B) RESOLUTIONS.—(i) At any time after the transmission of the report under subparagraph (A), if a resolution is introduced with respect to that report in either House of Congress, the procedures set forth in clauses (iii) through (vii) shall apply to that resolution if—

(I) no other resolution with respect to that report has previously been reported in that House of Congress by the Committee on Ways and Means or the Committee on Finance, as the case may be, pursuant to those procedures; and

(II) no procedural disapproval resolution under section 106(b) introduced with respect to a trade agreement entered into pursuant to the negotiations to which the report under subparagraph (A) relates has previously been reported in that House of Congress by the Committee on Ways and Means or the Committee on Finance, as the case may be.

(ii) For purposes of this subparagraph, the term ''resolution'' means only a resolution of either House of Congress, the matter after the resolving clause of which is as follows: ''That the _____ finds that the proposed changes to United States trade remedy laws contained in the report of the President transmitted to Congress on _____ under section 105(b)(3) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015 with respect to _____, are inconsistent with the negotiating objectives described in section 102(b)(16) of that Act.'', with the first blank space being filled with the name of the resolving House of Congress, the second blank space being filled with the appropriate date of the report, and the third blank space being filled with the name of the country or countries involved.

(iii) Resolutions in the House of Representatives—

(I) may be introduced by any Member of the House;

(II) shall be referred to the Committee on Ways and Means and, in addition, to the Committee on Rules; and

(III) may not be amended by either Committee.

(iv) Resolutions in the Senate—

(I) may be introduced by any Member of the Senate;

(II) shall be referred to the Committee on Finance; and

(III) may not be amended.

(v) It is not in order for the House of Representatives to consider any resolution that is not reported by the Committee on Ways and Means and, in addition, by the Committee on Rules.

(vi) It is not in order for the Senate to consider any resolution that is not reported by the Committee on Finance.

(vii) The provisions of subsections (d) and (e) of section 152 of the Trade Act of 1974 (19 U.S.C. 2192) (relating to floor consideration of certain resolutions in the House and Senate) shall apply to resolutions.

(4) ADVISORY COMMITTEE REPORTS.—The report required under section 135(e)(1) of the Trade Act of 1974 (19 U.S.C. 2155(e)(1)) regarding any trade agreement entered into under subsection (a) or (b) of section 103 shall be provided to the President, Congress, and the United States Trade Representative not later than 30 days after the date on which the President notifies Congress under section 103(a)(2) or 106(a)(1)(A) of the intention of the President to enter into the agreement.

(c) INTERNATIONAL TRADE COMMISSION ASSESSMENT.—

(1) SUBMISSION OF INFORMATION TO COMMISSION.—The President, not later than 90 calendar days before the day on which the President enters into a trade agreement under section 103(b), shall provide the International Trade Commission (referred to in this subsection as the ''Commission'') with the details of the agreement as it exists at that time and request the Commission to prepare and submit an assessment of the agreement as described in paragraph (2). Between the time the President makes the request under this paragraph and the time the Commission submits the assessment, the President shall keep the Commission current with respect to the details of the agreement.

(2) ASSESSMENT.—Not later than 105 calendar days after the President enters into a trade agreement under section 103(b), the Commission shall submit to the President and Congress a report assessing the likely impact of the agreement on the United States economy as a whole and on specific industry sectors, including the impact the agreement will have on the gross domestic product, exports and imports, aggregate employment and employment opportunities, the production, employment, and competitive position of industries likely to be significantly affected by the agreement, and the interests of United States consumers.

(3) REVIEW OF EMPIRICAL LITERATURE.—In preparing the assessment under paragraph (2), the Commission shall review available

economic assessments regarding the agreement, including literature regarding any substantially equivalent proposed agreement, and shall provide in its assessment a description of the analyses used and conclusions drawn in such literature, and a discussion of areas of consensus and divergence between the various analyses and conclusions, including those of the Commission regarding the agreement.

(4) PUBLIC AVAILABILITY.—The President shall make each assessment under paragraph (2) available to the public.

(d) REPORTS SUBMITTED TO COMMITTEES WITH AGREEMENT.—

(1) ENVIRONMENTAL REVIEWS AND REPORTS.—The President shall—

(A) conduct environmental reviews of future trade and investment agreements, consistent with Executive Order 13141 (64 Fed. Reg. 63169), dated November 16, 1999, and its relevant guidelines; and

(B) submit a report on those reviews and on the content and operation of consultative mechanisms established pursuant to section 102(c) to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate at the time the President submits to Congress a copy of the final legal text of an agreement pursuant to section 106(a)(1)(E).

(2) EMPLOYMENT IMPACT REVIEWS AND REPORTS.—The President shall—

(A) review the impact of future trade agreements on United States employment, including labor markets, modeled after Executive Order 13141 (64 Fed. Reg. 63169) to the extent appropriate in establishing procedures and criteria; and

(B) submit a report on such reviews to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate at the time the President submits to Congress a copy of the final legal text of an agreement pursuant to section 106(a)(1)(E).

(3) REPORT ON LABOR RIGHTS.—The President shall submit to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate, on a timeframe determined in accordance with section 104(c)(3)(B)(v)—

(A) a meaningful labor rights report of the country, or countries, with respect to which the President is negotiating; and

(B) a description of any provisions that would require changes to the labor laws and labor practices of the United States.

(4) PUBLIC AVAILABILITY.—The President shall make all reports required under this subsection available to the public.

(e) IMPLEMENTATION AND ENFORCEMENT PLAN.—

(1) IN GENERAL.—At the time the President submits to Congress a copy of the final legal text of an agreement pursuant to section 106(a)(1)(E), the President shall also submit to Congress a plan for implementing and enforcing the agreement.

(2) ELEMENTS.—The implementation and enforcement plan required by paragraph (1) shall include the following:

(A) BORDER PERSONNEL REQUIREMENTS.—A description of additional personnel required at border entry points, including a list of additional customs and agricultural inspectors.

(B) AGENCY STAFFING REQUIREMENTS.—A description of additional personnel required by Federal agencies responsible for monitoring and implementing the trade agreement, including personnel required by the Office of the United States Trade Representative, the Department of Commerce, the Department of Agriculture (including additional personnel required to implement sanitary and phytosanitary measures in order to obtain market access for United States exports), the Department of Homeland Security, the Department of the Treasury, and such other agencies as may be necessary.

(C) CUSTOMS INFRASTRUCTURE REQUIREMENTS.—A description of the additional equipment and facilities needed by U.S. Customs and Border Protection.

(D) IMPACT ON STATE AND LOCAL GOVERNMENTS.—A description of the impact the trade agreement will have on State and local governments as a result of increases in trade.

(E) COST ANALYSIS.—An analysis of the costs associated with each of the items listed in subparagraphs (A) through (D).

(3) BUDGET SUBMISSION.—The President shall include a request for the resources necessary to support the plan required by paragraph (1) in the first budget of the President submitted to Congress under section 1105(a) of title 31, United States Code, after the date of the submission of the plan.

(4) PUBLIC AVAILABILITY.—The President shall make the plan required under this subsection available to the public.

(f) OTHER REPORTS.—

(1) REPORT ON PENALTIES.—Not later than one year after the imposition by the United States of a penalty or remedy permitted by a trade agreement to which this title applies, the President shall submit to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate a report on the effectiveness of the penalty or remedy applied under United States law in enforcing United States rights under the trade agreement, which shall address whether the penalty or remedy was effective in changing the behavior of the targeted party and whether the penalty or remedy had any adverse impact on parties or interests not party to the dispute.

(2) REPORT ON IMPACT OF TRADE PROMOTION AUTHORITY.—Not later than one year after the date of the enactment of this Act, and not later than 5 years thereafter, the United States International Trade Commission shall submit to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate a report on the economic impact on the United States of all trade agreements with respect to which Congress has enacted an implementing bill under trade authorities procedures since January 1, 1984.

(3) ENFORCEMENT CONSULTATIONS AND REPORTS.—(A) The United States Trade Representative shall consult with the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate after acceptance of a petition for review or taking an enforcement action in regard to an obligation under a trade agreement, including a labor or environmental obligation. During such consultations, the United States Trade Representative shall describe the matter, including the basis for such action and the application of any relevant legal obligations.

(B) As part of the report required pursuant to section 163 of the Trade Act of 1974 (19 U.S.C. 2213), the President shall report annually to Congress on enforcement actions taken pursuant to a trade agreement to which the United States is a party, as well as on any public reports issued by Federal agencies on enforcement matters relating to a trade agreement.

(g) ADDITIONAL COORDINATION WITH MEMBERS.—Any Member of the House of Representatives may submit to the Committee on Ways and Means of the House of Representatives and any Member of the Senate may submit to the Committee on Finance of the Senate the views of that Member on any matter relevant to a proposed trade agreement, and the relevant Committee shall receive those views for consideration.

SEC. 106. IMPLEMENTATION OF TRADE AGREEMENTS.

(a) IN GENERAL.—

(1) NOTIFICATION AND SUBMISSION.—Any agreement entered into under section 103(b) shall enter into force with respect to the United States if (and only if)—

(A) the President, at least 90 calendar days before the day on which the President enters into the trade agreement, notifies the House of Representatives and the Senate of the President's intention to enter into the agreement, and promptly thereafter publishes notice of such intention in the Federal Register;

(B) the President, at least 60 days before the day on which the President enters into the agreement, publishes the text of the agreement on a publicly available Internet website of the Office of the United States Trade Representative;

(C) within 60 days after entering into the agreement, the President submits to Congress a description of those changes to existing laws that the President considers would be required in order to bring the United States into compliance with the agreement;

(D) the President, at least 30 days before submitting to Congress the materials under subparagraph (E), submits to Congress—

(i) a draft statement of any administrative action proposed to implement the agreement; and

(ii) a copy of the final legal text of the agreement;

(E) after entering into the agreement, the President submits to Congress, on a day on which both Houses of Congress are in session, a copy of the final legal text of the agreement, together with—

(i) a draft of an implementing bill described in section 103(b)(3);

(ii) a statement of any administrative action proposed to implement the trade agreement; and

(iii) the supporting information described in paragraph (2)(A);

(F) the implementing bill is enacted into law; and

(G) the President, not later than 30 days before the date on which the agreement enters into force with respect to a party to the agreement, submits written notice to Congress that the President has determined that the party has taken measures necessary to comply with those provisions of the agreement that are to take effect on the date on which the agreement enters into force.

(2) SUPPORTING INFORMATION.—

(A) IN GENERAL.—The supporting information required under paragraph (1)(E)(iii) consists of—

(i) an explanation as to how the implementing bill and proposed administrative action will change or affect existing law; and

(ii) a statement—

(I) asserting that the agreement makes progress in achieving the applicable purposes, policies, priorities, and objectives of this title; and

(II) setting forth the reasons of the President regarding—

(aa) how and to what extent the agreement makes progress in achieving the applicable purposes, policies, and objectives referred to in subclause (I);

(bb) whether and how the agreement changes provisions of an agreement previously negotiated;

(cc) how the agreement serves the interests of United States commerce; and

(dd) how the implementing bill meets the standards set forth in section 103(b)(3).

(B) PUBLIC AVAILABILITY.—The President shall make the supporting information described in subparagraph (A) available to the public.

(3) RECIPROCAL BENEFITS.—In order to ensure that a foreign country that is not a party to a trade agreement entered into under section 103(b) does not receive benefits under the agreement unless the country is also subject to the obligations under the agreement, the implementing bill submitted with respect to the agreement shall provide that the benefits and obligations under the agreement apply only to the parties to the agreement, if such application is consistent with the terms of the agreement. The implementing bill may also provide that the benefits and obligations under the agreement do not apply uniformly to all parties to the agreement, if such application is consistent with the terms of the agreement.

(4) DISCLOSURE OF COMMITMENTS.—Any agreement or other understanding with a foreign government or governments (whether oral or in writing) that—

(A) relates to a trade agreement with respect to which Congress enacts an implementing bill under trade authorities procedures; and

(B) is not disclosed to Congress before an implementing bill with respect to that agreement is introduced in either House of Congress,

shall not be considered to be part of the agreement approved by Congress and shall have no force and effect under United States law or in any dispute settlement body.

(b) LIMITATIONS ON TRADE AUTHORITIES PROCEDURES.—

(1) FOR LACK OF NOTICE OR CONSULTATIONS.—

(A) IN GENERAL.—The trade authorities procedures shall not apply to any implementing bill submitted with respect to a trade agreement or trade agreements entered into under section 103(b) if during the 60-day period beginning on the date that one House of Congress agrees to a procedural disapproval resolution for lack of notice or consultations with respect to such trade agreement or agreements, the other House separately agrees to a procedural disapproval resolution with respect to such trade agreement or agreements.

(B) PROCEDURAL DISAPPROVAL RESOLUTION.—(i) For purposes of this paragraph, the term ''procedural disapproval resolution'' means a resolution of either House of Congress, the sole matter after the resolving clause of which is as follows: ''That the President has failed or refused to notify or consult in accordance with the Bipartisan Congressional Trade Priorities and Accountability Act of 2015 on negotiations with respect to _____ and, therefore, the trade authorities procedures under that Act shall not apply to any implementing bill submitted with respect to such trade agreement or agreements.'', with the blank space being filled with a description of the trade agreement or agreements with respect to which the President is considered to have failed or refused to notify or consult.

(ii) For purposes of clause (i) and paragraphs (3)(C) and (4)(C), the President has ''failed or refused to notify or consult in accordance with the Bipartisan Congressional Trade Priorities and Accountability Act of 2015'' on negotiations with respect to a trade agreement or trade agreements if—

(I) the President has failed or refused to consult (as the case may be) in accordance with sections 104 and 105 and this section with respect to the negotiations, agreement, or agreements;

(II) guidelines under section 104 have not been developed or met with respect to the negotiations, agreement, or agreements;

(III) the President has not met with the House Advisory Group on Negotiations or the Senate Advisory Group on Negotiations pursuant to a request made under section 104(c)(4) with respect to the negotiations, agreement, or agreements; or

(IV) the agreement or agreements fail to make progress in achieving the purposes, policies, priorities, and objectives of this title.

(2) PROCEDURES FOR CONSIDERING RESOLUTIONS.—(A) Procedural disapproval resolutions—

(i) in the House of Representatives—

(I) may be introduced by any Member of the House;

(II) shall be referred to the Committee on Ways and Means and, in addition, to the Committee on Rules; and

(III) may not be amended by either Committee; and

(ii) in the Senate—

(I) may be introduced by any Member of the Senate;

(II) shall be referred to the Committee on Finance; and

(III) may not be amended.

(B) The provisions of subsections (d) and (e) of section 152 of the Trade Act of 1974 (19 U.S.C. 2192) (relating to the floor consideration of certain resolutions in the House and Senate) apply to a procedural disapproval resolution introduced with respect to a trade agreement if no other procedural disapproval resolution with respect to that trade agreement has previously been reported in that House of Congress by the Committee on Ways and Means or the Committee on Finance, as the case may be, and if no resolution described in clause (ii) of section 105(b)(3)(B) with respect to that trade agreement has been reported in that House of Congress by the Committee on Ways and Means or the Committee on Finance, as the case may be, pursuant to the procedures set forth in clauses (iii) through (vii) of such section.

(C) It is not in order for the House of Representatives to consider any procedural disapproval resolution not reported by the Committee on Ways and Means and, in addition, by the Committee on Rules.

(D) It is not in order for the Senate to consider any procedural disapproval resolution not reported by the Committee on Finance.

(3) CONSIDERATION IN SENATE OF CONSULTATION AND COMPLIANCE RESOLUTION TO REMOVE TRADE AUTHORITIES PROCEDURES.—

(A) REPORTING OF RESOLUTION.—If, when the Committee on Finance of the Senate meets on whether to report an implementing bill with respect to a trade agreement or agreements entered into under section 103(b), the committee fails to favorably report the bill, the committee shall report a resolution described in subparagraph (C).

(B) APPLICABILITY OF TRADE AUTHORITIES PROCEDURES.—The trade authorities procedures shall not apply in the Senate to any implementing bill submitted with respect to a trade agreement or agreements described in subparagraph (A) if the Committee on Finance reports a resolution described in subparagraph (C) and such resolution is agreed to by the Senate.

(C) RESOLUTION DESCRIBED.—A resolution described in this subparagraph is a resolution of the Senate originating from the Committee on Finance the sole matter after the resolving clause of which is as follows: ''That the President has failed or refused to notify or consult in accordance with the Bipartisan Congressional Trade Priorities and Accountability Act of 2015 on negotiations with respect to _____ and, therefore, the trade authorities procedures under that Act shall not apply in the Senate to any implementing bill submitted with respect to such trade agreement or agreements.'', with the blank space being filled with a description of the trade agreement or agreements described in subparagraph (A).

(D) PROCEDURES.—If the Senate does not agree to a motion to invoke cloture on the motion to proceed to a resolution described in subparagraph (C), the resolution shall be committed to the Committee on Finance.

(4) CONSIDERATION IN THE HOUSE OF REPRESENTATIVES OF A CONSULTATION AND COMPLIANCE RESOLUTION.—

(A) QUALIFICATIONS FOR REPORTING RESOLUTION.—If—

(i) the Committee on Ways and Means of the House of Representatives reports an implementing bill with respect to a trade agreement or agreements entered into under section 103(b) with other than a favorable recommendation; and

(ii) a Member of the House of Representatives has introduced a consultation and compliance resolution on the legislative day following the filing of a report to accompany the implementing bill with other than a favorable recommendation,

then the Committee on Ways and Means shall consider a consultation and compliance resolution pursuant to subparagraph (B).

(B) COMMITTEE CONSIDERATION OF A QUALIFYING RESOLUTION.—(i) Not later than the fourth legislative day after the date of introduction of the resolution, the Committee on Ways and Means shall meet to consider a resolution meeting the qualifications set forth in subparagraph (A).

(ii) After consideration of one such resolution by the Committee on Ways and Means, this subparagraph shall not apply to any other such resolution.

(iii) If the Committee on Ways and Means has not reported the resolution by the sixth legislative day after the date of its introduction, that committee shall be discharged from further consideration of the resolution.

(C) CONSULTATION AND COMPLIANCE RESOLUTION DESCRIBED.—A consultation and compliance resolution—

(i) is a resolution of the House of Representatives, the sole matter after the resolving clause of which is as follows: ''That the President has failed or refused to notify or consult in accordance with the Bipartisan Congressional Trade Priorities and Accountability Act of 2015 on negotiations with respect to _____ and, therefore, the trade authorities procedures under that Act shall not apply in the House of Representatives to any implementing bill submitted with respect to such trade agreement or agreements.'', with the blank space being filled with a description of the trade agreement or agreements described in subparagraph (A); and

(ii) shall be referred to the Committee on Ways and Means.

(D) APPLICABILITY OF TRADE AUTHORITIES PROCEDURES.—The trade authorities procedures shall not apply in the House of Representatives to any implementing bill submitted with respect to a trade agreement or agreements which are the object of a consultation and compliance resolution if such resolution is adopted by the House.

(5) FOR FAILURE TO MEET OTHER REQUIREMENTS.—Not later than December 15, 2015, the Secretary of Commerce, in consultation with the Secretary of State, the Secretary of the Treasury, the Attorney General, and the United States Trade Representative, shall transmit to Congress a report setting forth the strategy of the executive branch to address concerns of Congress regarding whether dispute settlement panels and the Appellate Body of the World Trade Organization have added to obligations, or diminished rights, of the United States, as described in section 102(b)(15)(C). Trade authorities procedures shall not apply to any implementing bill with respect to an agreement negotiated under the auspices of the World Trade Organization unless the Secretary of Commerce

has issued such report by the deadline specified in this paragraph.

(6) LIMITATIONS ON PROCEDURES WITH RESPECT TO AGREEMENTS WITH COUNTRIES NOT IN COMPLIANCE WITH TRAFFICKING VICTIMS PROTECTION ACT OF 2000.—

(A) IN GENERAL.—The trade authorities procedures shall not apply to any implementing bill submitted with respect to a trade agreement or trade agreements entered into under section 103(b) with a country to which the minimum standards for the elimination of trafficking are applicable and the government of which does not fully comply with such standards and is not making significant efforts to bring the country into compliance (commonly referred to as a ''tier 3'' country), as determined in the most recent annual report on trafficking in persons submitted under section 110(b)(1) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)(1)).

(B) MINIMUM STANDARDS FOR THE ELIMINATION OF TRAFFICKING DEFINED.—In this paragraph, the term ''minimum standards for the elimination of trafficking'' means the standards set forth in section 108 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7106).

(c) RULES OF HOUSE OF REPRESENTATIVES AND SENATE.—Subsection (b) of this section, section 103(c), and section 105(b)(3) are enacted by Congress—

(1) as an exercise of the rulemaking power of the House of Representatives and the Senate, respectively, and as such are deemed a part of the rules of each House, respectively, and such procedures supersede other rules only to the extent that they are inconsistent with such other rules; and

(2) with the full recognition of the constitutional right of either House to change the rules (so far as relating to the procedures of that House) at any time, in the same manner, and to the same extent as any other rule of that House.

SEC. 107. TREATMENT OF CERTAIN TRADE AGREEMENTS FOR WHICH NEGOTIATIONS HAVE ALREADY BEGUN.

(a) CERTAIN AGREEMENTS.—Notwithstanding the prenegotiation notification and consultation requirement described in section 105(a), if an agreement to which section 103(b) applies—

(1) is entered into under the auspices of the World Trade Organization,

(2) is entered into with the Trans-Pacific Partnership countries with respect to which notifications have been made in a manner consistent with section 105(a)(1)(A) as of the date of the enactment of this Act,

(3) is entered into with the European Union,

(4) is an agreement with respect to international trade in services entered into with WTO members with respect to which a notification has been made in a manner consistent with section 105(a)(1)(A) as of the date of the enactment of this Act, or

(5) is an agreement with respect to environmental goods entered into with WTO members with respect to which a notification has been made in a manner consistent with section 105(a)(1)(A) as of the date of the enactment of this Act,

and results from negotiations that were commenced before the date of the enactment of this Act, subsection (b) shall apply.

(b) TREATMENT OF AGREEMENTS.—In the case of any agreement to which subsection (a) applies, the applicability of the trade authorities procedures to implementing bills shall be determined without regard to the requirements of section 105(a) (relating only to notice prior to initiating negotiations), and any resolution under paragraph (1)(B), (3)(C), or (4)(C) of section 106(b) shall not be in order on the basis of a failure or refusal to comply with the provisions of section 105(a), if (and only if) the President, as soon as feasible after the date of the enactment of this Act—

(1) notifies Congress of the negotiations described in subsection (a), the specific United States objectives in the negotiations, and whether the President is seeking a new agreement or changes to an existing agreement; and

(2) before and after submission of the notice, consults regarding the negotiations with the committees referred to in section 105(a)(1)(B) and the House and Senate Advisory Groups on Negotiations convened under section 104(c).

SEC. 108. SOVEREIGNTY.

(a) UNITED STATES LAW TO PREVAIL IN EVENT OF CONFLICT.—No provision of any trade agreement entered into under section 103(b), nor the application of any such provision to any person or circumstance, that is inconsistent with any law of the United States, any State of the United States, or any locality of the United States shall have effect.

(b) AMENDMENTS OR MODIFICATIONS OF UNITED STATES LAW.—No provision of any trade agreement entered into under section 103(b) shall prevent the United States, any State of the United States, or any locality of the United States from amending or modifying any law of the United States, that State, or that locality (as the case may be).

(c) DISPUTE SETTLEMENT REPORTS.—Reports, including findings and recommendations, issued by dispute settlement panels convened pursuant to any trade agreement entered into under section 103(b) shall have no binding effect on the law of the United States, the Government of the United States, or the law or government of any State or locality of the United States.

SEC. 109. INTERESTS OF SMALL BUSINESSES.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) the United States Trade Representative should facilitate participation by small businesses in the trade negotiation process; and

(2) the functions of the Office of the United States Trade Representative relating to small businesses should continue to be reflected in the title of the Assistant United States Trade Representative assigned the responsibility for small businesses.

(b) CONSIDERATION OF SMALL BUSINESS INTERESTS.—The Assistant United States Trade Representative for Small Business, Market Access, and Industrial Competitiveness shall be responsible for ensuring that the interests of small businesses are considered in all trade negotiations in accordance with the objective described in section 102(a)(8).

SEC. 110. CONFORMING AMENDMENTS; APPLICATION OF CERTAIN PROVISIONS.

(a) CONFORMING AMENDMENTS.—

(1) ADVICE FROM UNITED STATES INTERNATIONAL TRADE COMMISSION.—Section 131 of the Trade Act of 1974 (19 U.S.C. 2151) is amended—

(A) in subsection (a)—

(i) in paragraph (1), by striking ''section 2103(a) or (b) of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''subsection (a) or (b) of section 103 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''; and

(ii) in paragraph (2), by striking ''section 2103(b) of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 103(b) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015'';

(B) in subsection (b), by striking ''section 2103(a)(3)(A) of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 103(a)(4)(A) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''; and

(C) in subsection (c), by striking ''section 2103 of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 103(a) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

(2) HEARINGS.—Section 132 of the Trade Act of 1974 (19 U.S.C. 2152) is amended by striking ''section 2103 of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 103 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

(3) PUBLIC HEARINGS.—Section 133(a) of the Trade Act of 1974 (19 U.S.C. 2153(a)) is amended by striking ''section 2103 of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 103 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

(4) PREREQUISITES FOR OFFERS.—Section 134 of the Trade Act of 1974 (19 U.S.C. 2154) is amended by striking ''section 2103 of the Bipartisan Trade Promotion Authority Act of 2002'' each place it appears and inserting ''section 103 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

(5) INFORMATION AND ADVICE FROM PRIVATE AND PUBLIC SECTORS.—Section 135 of the Trade Act of 1974 (19 U.S.C. 2155) is amended—

(A) in subsection (a)(1)(A), by striking ''section 2103 of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 103 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''; and

(B) in subsection (e)—

(i) in paragraph (1)—

(I) by striking ''section 2103 of the Bipartisan Trade Promotion Authority Act of 2002'' each place it appears and inserting ''section 103 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''; and

(II) by striking ''not later than the date on which the President notifies the Congress under section 2105(a)(1)(A) of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''not later than the date that is 30 days after the date on which the President notifies Congress under section 106(a)(1)(A) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''; and

(ii) in paragraph (2), by striking ''section 2102 of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 102 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

(6) PROCEDURES RELATING TO IMPLEMENTING BILLS.—Section 151 of the Trade Act of 1974 (19 U.S.C. 2191) is amended—

(A) in subsection (b)(1), in the matter preceding subparagraph (A), by striking ''section 2105(a)(1) of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 106(a)(1) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''; and

(B) in subsection (c)(1), by striking ''section 2105(a)(1) of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 106(a)(1) of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

(7) TRANSMISSION OF AGREEMENTS TO CONGRESS.—Section 162(a) of the Trade Act of 1974 (19 U.S.C. 2212(a)) is amended by striking ''section 2103 of the Bipartisan Trade Promotion Authority Act of 2002'' and inserting ''section 103 of the Bipartisan Congressional Trade Priorities and Accountability Act of 2015''.

(b) APPLICATION OF CERTAIN PROVISIONS.—For purposes of applying sections 125, 126,

and 127 of the Trade Act of 1974 (19 U.S.C. 2135, 2136, and 2137)—

(1) any trade agreement entered into under section 103 shall be treated as an agreement entered into under section 101 or 102 of the Trade Act of 1974 (19 U.S.C. 2111 or 2112), as appropriate; and

(2) any proclamation or Executive order issued pursuant to a trade agreement entered into under section 103 shall be treated as a proclamation or Executive order issued pursuant to a trade agreement entered into under section 102 of the Trade Act of 1974 (19 U.S.C. 2112).

SEC. 111. DEFINITIONS.

In this title:

(1) AGREEMENT ON AGRICULTURE.—The term ''Agreement on Agriculture'' means the agreement referred to in section 101(d)(2) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(2)).

(2) AGREEMENT ON SAFEGUARDS.—The term ''Agreement on Safeguards'' means the agreement referred to in section 101(d)(13) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(13)).

(3) AGREEMENT ON SUBSIDIES AND COUNTERVAILING MEASURES.—The term ''Agreement on Subsidies and Countervailing Measures'' means the agreement referred to in section 101(d)(12) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(12)).

(4) ANTIDUMPING AGREEMENT.—The term ''Antidumping Agreement'' means the Agreement on Implementation of Article VI of the General Agreement on Tariffs and Trade 1994 referred to in section 101(d)(7) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(7)).

(5) APPELLATE BODY.—The term ''Appellate Body'' means the Appellate Body established under Article 17.1 of the Dispute Settlement Understanding.

(6) COMMON MULTILATERAL ENVIRONMENTAL AGREEMENT.—

(A) IN GENERAL.—The term ''common multilateral environmental agreement'' means any agreement specified in subparagraph (B) or included under subparagraph (C) to which both the United States and one or more other parties to the negotiations are full parties, including any current or future mutually agreed upon protocols, amendments, annexes, or adjustments to such an agreement.

(B) AGREEMENTS SPECIFIED.—The agreements specified in this subparagraph are the following:

(i) The Convention on International Trade in Endangered Species of Wild Fauna and Flora, done at Washington March 3, 1973 (27 UST 1087; TIAS 8249).

(ii) The Montreal Protocol on Substances that Deplete the Ozone Layer, done at Montreal September 16, 1987.

(iii) The Protocol of 1978 Relating to the International Convention for the Prevention of Pollution from Ships, 1973, done at London February 17, 1978.

(iv) The Convention on Wetlands of International Importance Especially as Waterfowl Habitat, done at Ramsar February 2, 1971 (TIAS 11084).

(v) The Convention on the Conservation of Antarctic Marine Living Resources, done at Canberra May 20, 1980 (33 UST 3476).

(vi) The International Convention for the Regulation of Whaling, done at Washington December 2, 1946 (62 Stat. 1716).

(vii) The Convention for the Establishment of an Inter-American Tropical Tuna Commission, done at Washington May 31, 1949 (1 UST 230).

(C) ADDITIONAL AGREEMENTS.—Both the United States and one or more other parties to the negotiations may agree to include any other multilateral environmental or conservation agreement to which they are full parties as a common multilateral environmental agreement under this paragraph.

(7) CORE LABOR STANDARDS.—The term ''core labor standards'' means—

(A) freedom of association;

(B) the effective recognition of the right to collective bargaining;

(C) the elimination of all forms of forced or compulsory labor;

(D) the effective abolition of child labor and a prohibition on the worst forms of child labor; and

(E) the elimination of discrimination in respect of employment and occupation.

(8) DISPUTE SETTLEMENT UNDERSTANDING.—The term ''Dispute Settlement Understanding'' means the Understanding on Rules and Procedures Governing the Settlement of Disputes referred to in section 101(d)(16) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(16)).

(9) ENABLING CLAUSE.—The term ''Enabling Clause'' means the Decision on Differential and More Favourable Treatment, Reciprocity and Fuller Participation of Developing Countries (L/4903), adopted November 28, 1979, under GATT 1947 (as defined in section 2 of the Uruguay Round Agreements Act (19 U.S.C. 3501)).

(10) ENVIRONMENTAL LAWS.—The term ''environmental laws'', with respect to the laws of the United States, means environmental statutes and regulations enforceable by action of the Federal Government.

(11) GATT 1994.—The term ''GATT 1994'' has the meaning given that term in section 2 of the Uruguay Round Agreements Act (19 U.S.C. 3501).

(12) GENERAL AGREEMENT ON TRADE IN SERVICES.—The term ''General Agreement on Trade in Services'' means the General Agreement on Trade in Services (referred to in section 101(d)(14) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(14))).

(13) GOVERNMENT PROCUREMENT AGREEMENT.—The term ''Government Procurement Agreement'' means the Agreement on Government Procurement referred to in section 101(d)(17) of the Uruguay Round Agreements Act (19 U.S.C. 3511(d)(17)).

(14) ILO.—The term ''ILO'' means the International Labor Organization.

(15) IMPORT SENSITIVE AGRICULTURAL PRODUCT.—The term ''import sensitive agricultural product'' means an agricultural product—

(A) with respect to which, as a result of the Uruguay Round Agreements, the rate of duty was the subject of tariff reductions by the United States and, pursuant to such Agreements, was reduced on January 1, 1995, to a rate that was not less than 97.5 percent of the rate of duty that applied to such article on December 31, 1994; or

(B) which was subject to a tariff rate quota on the date of the enactment of this Act.

(16) INFORMATION TECHNOLOGY AGREEMENT.—The term ''Information Technology Agreement'' means the Ministerial Declaration on Trade in Information Technology Products of the World Trade Organization, agreed to at Singapore December 13, 1996.

(17) INTERNATIONALLY RECOGNIZED CORE LABOR STANDARDS.—The term ''internationally recognized core labor standards'' means the core labor standards only as stated in the ILO Declaration on Fundamental Principles and Rights at Work and its Follow-Up (1998).

(18) LABOR LAWS.—The term ''labor laws'' means the statutes and regulations, or provisions thereof, of a party to the negotiations that are directly related to core labor standards as well as other labor protections for children and minors and acceptable conditions of work with respect to minimum wages, hours of work, and occupational safety and health, and for the United States, includes Federal statutes and regulations addressing those standards, protections, or conditions, but does not include State or local labor laws.

(19) UNITED STATES PERSON.—The term ''United States person'' means—

(A) a United States citizen;

(B) a partnership, corporation, or other legal entity that is organized under the laws of the United States; and

(C) a partnership, corporation, or other legal entity that is organized under the laws of a foreign country and is controlled by entities described in subparagraph (B) or United States citizens, or both.

(20) URUGUAY ROUND AGREEMENTS.—The term ''Uruguay Round Agreements'' has the meaning given that term in section 2(7) of the Uruguay Round Agreements Act (19 U.S.C. 3501(7)).

(21) WORLD TRADE ORGANIZATION; WTO.—The terms ''World Trade Organization'' and ''WTO'' mean the organization established pursuant to the WTO Agreement.

(22) WTO AGREEMENT.—The term ''WTO Agreement'' means the Agreement Establishing the World Trade Organization entered into on April 15, 1994.

(23) WTO MEMBER.—The term ''WTO member'' has the meaning given that term in section 2(10) of the Uruguay Round Agreements Act (19 U.S.C. 3501(10)).

TITLE II—EXTENSION OF TRADE ADJUSTMENT ASSISTANCE

SEC. 201. SHORT TITLE.

This title may be cited as the ''Trade Adjustment Assistance Reauthorization Act of 2015''.

SEC. 202. APPLICATION OF PROVISIONS RELATING TO TRADE ADJUSTMENT ASSISTANCE.

(a) REPEAL OF SNAPBACK.—Section 233 of the Trade Adjustment Assistance Extension Act of 2011 (Public Law 112–40; 125 Stat. 416) is repealed.

(b) APPLICABILITY OF CERTAIN PROVISIONS.—Except as otherwise provided in this title, the provisions of chapters 2 through 6 of title II of the Trade Act of 1974, as in effect on December 31, 2013, and as amended by this title, shall—

(1) take effect on the date of the enactment of this Act; and

(2) apply to petitions for certification filed under chapter 2, 3, or 6 of title II of the Trade Act of 1974 on or after such date of enactment.

(c) REFERENCES.—Except as otherwise provided in this title, whenever in this title an amendment or repeal is expressed in terms of an amendment to, or repeal of, a provision of chapters 2 through 6 of title II of the Trade Act of 1974, the reference shall be considered to be made to a provision of any such chapter, as in effect on December 31, 2013.

SEC. 203. EXTENSION OF TRADE ADJUSTMENT ASSISTANCE PROGRAM.

(a) EXTENSION OF TERMINATION PROVISIONS.—Section 285 of the Trade Act of 1974 (19 U.S.C. 2271 note) is amended by striking ''December 31, 2013'' each place it appears and inserting ''June 30, 2021''.

(b) TRAINING FUNDS.—Section 236(a)(2)(A) of the Trade Act of 1974 (19 U.S.C. 2296(a)(2)(A)) is amended by striking ''shall not exceed'' and all that follows and inserting ''shall not exceed $450,000,000 for each of fiscal years 2015 through 2021.''.

(c) REEMPLOYMENT TRADE ADJUSTMENT ASSISTANCE.—Section 246(b)(1) of the Trade Act of 1974 (19 U.S.C. 2318(b)(1)) is amended by striking ''December 31, 2013'' and inserting ''June 30, 2021''.

(d) AUTHORIZATIONS OF APPROPRIATIONS.—

(1) TRADE ADJUSTMENT ASSISTANCE FOR WORKERS.—Section 245(a) of the Trade Act of 1974 (19 U.S.C. 2317(a)) is amended by striking ''December 31, 2013'' and inserting ''June 30, 2021''.

(2) TRADE ADJUSTMENT ASSISTANCE FOR FIRMS.—Section 255(a) of the Trade Act of 1974 (19 U.S.C. 2345(a)) is amended by striking ''fiscal years 2012 and 2013'' and all that follows through ''December 31, 2013'' and inserting ''fiscal years 2015 through 2021''.

(3) TRADE ADJUSTMENT ASSISTANCE FOR FARMERS.—Section 298(a) of the Trade Act of 1974 (19 U.S.C. 2401g(a)) is amended by striking ''fiscal years 2012 and 2013'' and all that follows through ''December 31, 2013'' and inserting ''fiscal years 2015 through 2021''.

SEC. 204. PERFORMANCE MEASUREMENT AND REPORTING.

(a) PERFORMANCE MEASURES.—Section 239(j) of the Trade Act of 1974 (19 U.S.C. 2311(j)) is amended—

(1) in the subsection heading, by striking ''DATA REPORTING'' and inserting ''PERFORMANCE MEASURES'';

(2) in paragraph (1)—

(A) in the matter preceding subparagraph (A)—

(i) by striking ''a quarterly'' and inserting ''an annual''; and

(ii) by striking ''data'' and inserting ''measures'';

(B) in subparagraph (A), by striking ''core'' and inserting ''primary''; and

(C) in subparagraph (C), by inserting ''that promote efficiency and effectiveness'' after ''assistance program'';

(3) in paragraph (2)—

(A) in the paragraph heading, by striking ''CORE INDICATORS DESCRIBED'' and inserting ''INDICATORS OF PERFORMANCE''; and

(B) by striking subparagraph (A) and inserting the following:

''(A) PRIMARY INDICATORS OF PERFORMANCE DESCRIBED.—

''(i) IN GENERAL.—The primary indicators of performance referred to in paragraph (1)(A) shall consist of—

''(I) the percentage and number of workers who received benefits under the trade adjustment assistance program who are in unsubsidized employment during the second calendar quarter after exit from the program;

''(II) the percentage and number of workers who received benefits under the trade adjustment assistance program and who are in unsubsidized employment during the fourth calendar quarter after exit from the program;

''(III) the median earnings of workers described in subclause (I);

''(IV) the percentage and number of workers who received benefits under the trade adjustment assistance program who, subject to clause (ii), obtain a recognized postsecondary credential or a secondary school diploma or its recognized equivalent, during participation in the program or within one year after exit from the program; and

''(V) the percentage and number of workers who received benefits under the trade adjustment assistance program who, during a year while receiving such benefits, are in an education or training program that leads to a recognized postsecondary credential or employment and who are achieving measurable gains in skills toward such a credential or employment.

''(ii) INDICATOR RELATING TO CREDENTIAL.—For purposes of clause (i)(IV), a worker who received benefits under the trade adjustment assistance program who obtained a secondary school diploma or its recognized equivalent shall be included in the percentage counted for purposes of that clause only if the worker, in addition to obtaining such a diploma or its recognized equivalent, has obtained or retained employment or is in an education or training program leading to a recognized postsecondary credential within one year after exit from the program.'';

(4) in paragraph (3)—

(A) in the paragraph heading, by striking ''DATA'' and inserting ''MEASURES'';

(B) by striking ''quarterly'' and inserting ''annual''; and

(C) by striking ''data'' and inserting ''measures''; and

(5) by adding at the end the following:

''(4) ACCESSIBILITY OF STATE PERFORMANCE REPORTS.—The Secretary shall, on an annual basis, make available (including by electronic means), in an easily understandable format, the reports of cooperating States or cooperating State agencies required by paragraph (1) and the information contained in those reports.''.

(b) COLLECTION AND PUBLICATION OF DATA.—Section 249B of the Trade Act of 1974 (19 U.S.C. 2323) is amended—

(1) in subsection (b)—

(A) in paragraph (3)—

(i) in subparagraph (A), by striking ''enrolled in'' and inserting ''who received'';

(ii) in subparagraph (B)—

(I) by striking ''complete'' and inserting ''exited''; and

(II) by striking ''who were enrolled in'' and inserting '', including who received'';

(iii) in subparagraph (E), by striking ''complete'' and inserting ''exited'';

(iv) in subparagraph (F), by striking ''complete'' and inserting ''exit''; and

(v) by adding at the end the following:

''(G) The average cost per worker of receiving training approved under section 236.

''(H) The percentage of workers who received training approved under section 236 and obtained unsubsidized employment in a field related to that training.''; and

(B) in paragraph (4)—

(i) in subparagraphs (A) and (B), by striking ''quarterly'' each place it appears and inserting ''annual''; and

(ii) by striking subparagraph (C) and inserting the following:

''(C) The median earnings of workers described in section 239(j)(2)(A)(i)(III) during the second calendar quarter after exit from the program, expressed as a percentage of the median earnings of such workers before the calendar quarter in which such workers began receiving benefits under this chapter.''; and

(2) in subsection (e)—

(A) in paragraph (1)—

(i) by redesignating subparagraphs (B) and (C) as subparagraphs (C) and (D), respectively; and

(ii) by inserting after subparagraph (A) the following:

''(B) the reports required under section 239(j);''; and

(B) in paragraph (2), by striking ''a quarterly'' and inserting ''an annual''.

(c) RECOGNIZED POSTSECONDARY CREDENTIAL DEFINED.—Section 247 of the Trade Act of 1974 (19 U.S.C. 2319) is amended by adding at the end the following:

''(19) The term 'recognized postsecondary credential' means a credential consisting of an industry-recognized certificate or certification, a certificate of completion of an apprenticeship, a license recognized by a State or the Federal Government, or an associate or baccalaureate degree.''.

SEC. 205. APPLICABILITY OF TRADE ADJUSTMENT ASSISTANCE PROVISIONS.

(a) TRADE ADJUSTMENT ASSISTANCE FOR WORKERS.—

(1) PETITIONS FILED ON OR AFTER JANUARY 1, 2014, AND BEFORE DATE OF ENACTMENT.—

(A) CERTIFICATIONS OF WORKERS NOT CERTIFIED BEFORE DATE OF ENACTMENT.—

(i) CRITERIA IF A DETERMINATION HAS NOT BEEN MADE.—If, as of the date of the enactment of this Act, the Secretary of Labor has not made a determination with respect to whether to certify a group of workers as eligible to apply for adjustment assistance under section 222 of the Trade Act of 1974 pursuant to a petition described in clause (iii), the Secretary shall make that determination based on the requirements of section 222 of the Trade Act of 1974, as in effect on such date of enactment.

(ii) RECONSIDERATION OF DENIALS OF CERTIFICATIONS.—If, before the date of the enactment of this Act, the Secretary made a determination not to certify a group of workers as eligible to apply for adjustment assistance under section 222 of the Trade Act of 1974 pursuant to a petition described in clause (iii), the Secretary shall—

(I) reconsider that determination; and

(II) if the group of workers meets the requirements of section 222 of the Trade Act of 1974, as in effect on such date of enactment, certify the group of workers as eligible to apply for adjustment assistance.

(iii) PETITION DESCRIBED.—A petition described in this clause is a petition for a certification of eligibility for a group of workers filed under section 221 of the Trade Act of 1974 on or after January 1, 2014, and before the date of the enactment of this Act.

(B) ELIGIBILITY FOR BENEFITS.—

(i) IN GENERAL.—Except as provided in clause (ii), a worker certified as eligible to apply for adjustment assistance under section 222 of the Trade Act of 1974 pursuant to a petition described in subparagraph (A)(iii) shall be eligible, on and after the date that is 90 days after the date of the enactment of this Act, to receive benefits only under the provisions of chapter 2 of title II of the Trade Act of 1974, as in effect on such date of enactment.

(ii) COMPUTATION OF MAXIMUM BENEFITS.—Benefits received by a worker described in clause (i) under chapter 2 of title II of the Trade Act of 1974 before the date of the enactment of this Act shall be included in any determination of the maximum benefits for which the worker is eligible under the provisions of chapter 2 of title II of the Trade Act of 1974, as in effect on the date of the enactment of this Act.

(2) PETITIONS FILED BEFORE JANUARY 1, 2014.—A worker certified as eligible to apply for adjustment assistance pursuant to a petition filed under section 221 of the Trade Act of 1974 on or before December 31, 2013, shall continue to be eligible to apply for and receive benefits under the provisions of chapter 2 of title II of such Act, as in effect on December 31, 2013.

(3) QUALIFYING SEPARATIONS WITH RESPECT TO PETITIONS FILED WITHIN 90 DAYS OF DATE OF ENACTMENT.—Section 223(b) of the Trade Act of 1974, as in effect on the date of the enactment of this Act, shall be applied and administered by substituting ''before January 1, 2014'' for ''more than one year before the date of the petition on which such certification was granted'' for purposes of determining whether a worker is eligible to apply for adjustment assistance pursuant to a petition filed under section 221 of the Trade Act of 1974 on or after the date of the enactment of this Act and on or before the date that is 90 days after such date of enactment.

(b) TRADE ADJUSTMENT ASSISTANCE FOR FIRMS.—

(1) CERTIFICATION OF FIRMS NOT CERTIFIED BEFORE DATE OF ENACTMENT.—

(A) CRITERIA IF A DETERMINATION HAS NOT BEEN MADE.—If, as of the date of the enactment of this Act, the Secretary of Commerce has not made a determination with respect to whether to certify a firm as eligible to apply for adjustment assistance under section 251 of the Trade Act of 1974 pursuant to a petition described in subparagraph (C), the Secretary shall make that determination based on the requirements of section 251 of the Trade Act of 1974, as in effect on such date of enactment.

(B) RECONSIDERATION OF DENIAL OF CERTAIN PETITIONS.—If, before the date of the enactment of this Act, the Secretary made a determination not to certify a firm as eligible to apply for adjustment assistance under section 251 of the Trade Act of 1974 pursuant to a petition described in subparagraph (C), the Secretary shall—

(i) reconsider that determination; and

(ii) if the firm meets the requirements of section 251 of the Trade Act of 1974, as in effect on such date of enactment, certify the firm as eligible to apply for adjustment assistance.

(C) PETITION DESCRIBED.—A petition described in this subparagraph is a petition for a certification of eligibility filed by a firm or its representative under section 251 of the Trade Act of 1974 on or after January 1, 2014, and before the date of the enactment of this Act.

(2) CERTIFICATION OF FIRMS THAT DID NOT SUBMIT PETITIONS BETWEEN JANUARY 1, 2014, AND DATE OF ENACTMENT.—

(A) IN GENERAL.—The Secretary of Commerce shall certify a firm described in subparagraph (B) as eligible to apply for adjustment assistance under section 251 of the Trade Act of 1974, as in effect on the date of the enactment of this Act, if the firm or its representative files a petition for a certification of eligibility under section 251 of the Trade Act of 1974 not later than 90 days after such date of enactment.

(B) FIRM DESCRIBED.—A firm described in this subparagraph is a firm that the Secretary determines would have been certified as eligible to apply for adjustment assistance if—

(i) the firm or its representative had filed a petition for a certification of eligibility under section 251 of the Trade Act of 1974 on a date during the period beginning on January 1, 2014, and ending on the day before the date of the enactment of this Act; and

(ii) the provisions of chapter 3 of title II of the Trade Act of 1974, as in effect on such date of enactment, had been in effect on that date during the period described in clause (i).

SEC. 206. SUNSET PROVISIONS.

(a) APPLICATION OF PRIOR LAW.—Subject to subsection (b), beginning on July 1, 2021, the provisions of chapters 2, 3, 5, and 6 of title II of the Trade Act of 1974 (19 U.S.C. 2271 et seq.), as in effect on January 1, 2014, shall be in effect and apply, except that in applying and administering such chapters—

(1) paragraph (1) of section 231(c) of that Act shall be applied and administered as if subparagraphs (A), (B), and (C) of that paragraph were not in effect;

(2) section 233 of that Act shall be applied and administered—

(A) in subsection (a)—

(i) in paragraph (2), by substituting ''104-week period'' for ''104-week period'' and all that follows through ''130-week period)''; and

(ii) in paragraph (3)—

(I) in the matter preceding subparagraph (A), by substituting ''65'' for ''52''; and

(II) by substituting ''78-week period'' for ''52-week period'' each place it appears; and

(B) by applying and administering subsection (g) as if it read as follows:

''(g) PAYMENT OF TRADE READJUSTMENT ALLOWANCES TO COMPLETE TRAINING.—Notwithstanding any other provision of this section, in order to assist an adversely affected worker to complete training approved for the worker under section 236 that leads to the completion of a degree or industry-recognized credential, payments may be made as trade readjustment allowances for not more than 13 weeks within such period of eligibility as the Secretary may prescribe to account for a break in training or for justifiable cause that follows the last week for which the worker is otherwise entitled to a trade readjustment allowance under this chapter if—

''(1) payment of the trade readjustment allowance for not more than 13 weeks is necessary for the worker to complete the training;

''(2) the worker participates in training in each such week; and

''(3) the worker—

''(A) has substantially met the performance benchmarks established as part of the training approved for the worker;

''(B) is expected to continue to make progress toward the completion of the training; and

''(C) will complete the training during that period of eligibility.'';

(3) section 245(a) of that Act shall be applied and administered by substituting ''June 30, 2022'' for ''December 31, 2007'';

(4) section 246(b)(1) of that Act shall be applied and administered by substituting ''June 30, 2022'' for ''the date that is 5 years'' and all that follows through ''State'';

(5) section 256(b) of that Act shall be applied and administered by substituting ''the 1-year period beginning on July 1, 2021'' for ''each of fiscal years 2003 through 2007, and $4,000,000 for the 3-month period beginning on October 1, 2007'';

(6) section 298(a) of that Act shall be applied and administered by substituting ''the 1-year period beginning on July 1, 2021'' for ''each of the fiscal years'' and all that follows through ''October 1, 2007''; and

(7) section 285 of that Act shall be applied and administered—

(A) in subsection (a), by substituting ''June 30, 2022'' for ''December 31, 2007'' each place it appears; and

(B) by applying and administering subsection (b) as if it read as follows:

''(b) OTHER ASSISTANCE.—

''(1) ASSISTANCE FOR FIRMS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), assistance may not be provided under chapter 3 after June 30, 2022.

''(B) EXCEPTION.—Notwithstanding subparagraph (A), any assistance approved under chapter 3 pursuant to a petition filed under section 251 on or before June 30, 2022, may be provided—

''(i) to the extent funds are available pursuant to such chapter for such purpose; and

''(ii) to the extent the recipient of the assistance is otherwise eligible to receive such assistance.

''(2) FARMERS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), assistance may not be provided under chapter 6 after June 30, 2022.

''(B) EXCEPTION.—Notwithstanding subparagraph (A), any assistance approved under chapter 6 on or before June 30, 2022, may be provided—

''(i) to the extent funds are available pursuant to such chapter for such purpose; and

''(ii) to the extent the recipient of the assistance is otherwise eligible to receive such assistance.''.

(b) EXCEPTIONS.—The provisions of chapters 2, 3, 5, and 6 of title II of the Trade Act of 1974, as in effect on the date of the enactment of this Act, shall continue to apply on and after July 1, 2021, with respect to—

(1) workers certified as eligible for trade adjustment assistance benefits under chapter 2 of title II of that Act pursuant to petitions filed under section 221 of that Act before July 1, 2021;

(2) firms certified as eligible for technical assistance or grants under chapter 3 of title II of that Act pursuant to petitions filed under section 251 of that Act before July 1, 2021; and

(3) agricultural commodity producers certified as eligible for technical or financial assistance under chapter 6 of title II of that Act pursuant to petitions filed under section 292 of that Act before July 1, 2021.

SEC. 207. EXTENSION AND MODIFICATION OF HEALTH COVERAGE TAX CREDIT.

(a) EXTENSION.—Subparagraph (B) of section 35(b)(1) of the Internal Revenue Code of 1986 is amended by striking ''before January 1, 2014'' and inserting ''before January 1, 2020''.

(b) COORDINATION WITH CREDIT FOR COVERAGE UNDER A QUALIFIED HEALTH PLAN.—Subsection (g) of section 35 of the Internal Revenue Code of 1986 is amended—

(1) by redesignating paragraph (11) as paragraph (13), and

(2) by inserting after paragraph (10) the following new paragraphs:

''(11) ELECTION.—

''(A) IN GENERAL.—This section shall not apply to any taxpayer for any eligible coverage month unless such taxpayer elects the application of this section for such month.

''(B) TIMING AND APPLICABILITY OF ELECTION.—Except as the Secretary may provide—

''(i) an election to have this section apply for any eligible coverage month in a taxable year shall be made not later than the due date (including extensions) for the return of tax for the taxable year, and

''(ii) any election for this section to apply for an eligible coverage month shall apply for all subsequent eligible coverage months in the taxable year and, once made, shall be irrevocable with respect to such months.

''(12) COORDINATION WITH PREMIUM TAX CREDIT.—

''(A) IN GENERAL.—An eligible coverage month to which the election under paragraph (11) applies shall not be treated as a coverage month (as defined in section 36B(c)(2)) for purposes of section 36B with respect to the taxpayer.

''(B) COORDINATION WITH ADVANCE PAYMENTS OF PREMIUM TAX CREDIT.—In the case of a taxpayer who makes the election under paragraph (11) with respect to any eligible coverage month in a taxable year or on behalf of whom any advance payment is made under section 7527 with respect to any month in such taxable year—

''(i) the tax imposed by this chapter for the taxable year shall be increased by the excess, if any, of—

''(I) the sum of any advance payments made on behalf of the taxpayer under section 1412 of the Patient Protection and Affordable Care Act and section 7527 for months during such taxable year, over

''(II) the sum of the credits allowed under this section (determined without regard to paragraph (1)) and section 36B (determined without regard to subsection (f)(1) thereof) for such taxable year, and

''(ii) section 36B(f)(2) shall not apply with respect to such taxpayer for such taxable year, except that if such taxpayer received any advance payments under section 7527 for any month in such taxable year and is later allowed a credit under section 36B for such taxable year, then section 36B(f)(2)(B) shall be applied by substituting the amount determined under clause (i) for the amount determined under section 36B(f)(2)(A).''.

(c) EXTENSION OF ADVANCE PAYMENT PROGRAM.—

(1) IN GENERAL.—Subsection (a) of section 7527 of the Internal Revenue Code of 1986 is amended by striking ''August 1, 2003'' and inserting ''the date that is 1 year after the date of the enactment of the Trade Adjustment Assistance Reauthorization Act of 2015''.

(2) CONFORMING AMENDMENT.—Paragraph (1) of section 7527(e) of such Code is amended by striking ''occurring'' and all that follows and inserting ''occurring—

''(A) after the date that is 1 year after the date of the enactment of the Trade Adjustment Assistance Reauthorization Act of 2015, and

''(B) prior to the first month for which an advance payment is made on behalf of such individual under subsection (a).''.

(d) INDIVIDUAL INSURANCE TREATED AS QUALIFIED HEALTH INSURANCE WITHOUT REGARD TO ENROLLMENT DATE.—

(1) IN GENERAL.—Subparagraph (J) of section 35(e)(1) of the Internal Revenue Code of 1986 is amended by striking ''insurance if the eligible individual'' and all that follows through ''For purposes of'' and inserting ''insurance. For purposes of''.

(2) SPECIAL RULE.—Subparagraph (J) of section 35(e)(1) of such Code, as amended by paragraph (1), is amended by striking ''insurance.'' and inserting ''insurance (other than coverage enrolled in through an Exchange established under the Patient Protection and Affordable Care Act).''.

(e) CONFORMING AMENDMENT.—Subsection (m) of section 6501 of the Internal Revenue Code of 1986 is amended by inserting '', 35(g)(11)'' after ''30D(e)(4)''.

(f) EFFECTIVE DATE.—

(1) IN GENERAL.—Except as provided in paragraph (2), the amendments made by this section shall apply to coverage months in taxable years beginning after December 31, 2013.

(2) PLANS AVAILABLE ON INDIVIDUAL MARKET FOR USE OF TAX CREDIT.—The amendment made by subsection (d)(2) shall apply to coverage months in taxable years beginning after December 31, 2015.

(3) TRANSITION RULE.—Notwithstanding section 35(g)(11)(B)(i) of the Internal Revenue Code of 1986 (as added by this title), an election to apply section 35 of such Code to an eligible coverage month (as defined in section 35(b) of such Code) (and not to claim the credit under section 36B of such Code with respect to such month) in a taxable year beginning after December 31, 2013, and before the date of the enactment of this Act—

(A) may be made at any time on or after such date of enactment and before the expiration of the 3-year period of limitation prescribed in section 6511(a) with respect to such taxable year; and

(B) may be made on an amended return.

(g) AGENCY OUTREACH.—As soon as possible after the date of the enactment of this Act, the Secretaries of the Treasury, Health and Human Services, and Labor (or such Secretaries' delegates) and the Director of the Pension Benefit Guaranty Corporation (or the Director's delegate) shall carry out programs of public outreach, including on the Internet, to inform potential eligible individuals (as defined in section 35(c)(1) of the Internal Revenue Code of 1986) of the extension of the credit under section 35 of the Internal Revenue Code of 1986 and the availability of the election to claim such credit retroactively for coverage months beginning after December 31, 2013.

SEC. 208. CUSTOMS USER FEES.

(a) IN GENERAL.—Section 13031(j)(3) of the Consolidated Omnibus Budget Reconciliation Act of 1985 (19 U.S.C. 58c(j)(3)) is amended—

(1) in subparagraph (B)(i), by striking ''September 30, 2024'' and inserting ''September 30, 2025''; and

(2) by adding at the end the following:

''(D) Fees may be charged under paragraphs (9) and (10) of subsection (a) during the period beginning on July 29, 2025, and ending on September 30, 2025.''.

(b) RATE FOR MERCHANDISE PROCESSING FEES.—Section 503 of the United States–Korea Free Trade Agreement Implementation Act (Public Law 112–41; 125 Stat. 460) is amended by adding at the end the following:

''(c) FURTHER ADDITIONAL PERIOD.—For the period beginning on July 15, 2025, and ending on September 30, 2025, section 13031(a)(9) of the Consolidated Omnibus Budget Reconciliation Act of 1985 (19 U.S.C. 58c(a)(9)) shall be applied and administered—

''(1) in subparagraph (A), by substituting '0.3464' for '0.21'; and

''(2) in subparagraph (B)(i), by substituting '0.3464' for '0.21'.''.

SEC. 209. CHILD TAX CREDIT NOT REFUNDABLE FOR TAXPAYERS ELECTING TO EXCLUDE FOREIGN EARNED INCOME FROM TAX.

(a) IN GENERAL.—Section 24(d) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(5) EXCEPTION FOR TAXPAYERS EXCLUDING FOREIGN EARNED INCOME.—Paragraph (1) shall not apply to any taxpayer for any taxable year if such taxpayer elects to exclude any amount from gross income under section 911 for such taxable year.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2014.

SEC. 210. TIME FOR PAYMENT OF CORPORATE ESTIMATED TAXES.

Notwithstanding section 6655 of the Internal Revenue Code of 1986, in the case of a corporation with assets of not less than $1,000,000,000 (determined as of the end of the preceding taxable year)—

(1) the amount of any required installment of corporate estimated tax which is otherwise due in July, August, or September of 2020 shall be increased by 2.75 percent of such amount (determined without regard to any increase in such amount not contained in such Code); and

(2) the amount of the next required installment after an installment referred to in paragraph (1) shall be appropriately reduced to reflect the amount of the increase by reason of such paragraph.

SEC. 211. COVERAGE AND PAYMENT FOR RENAL DIALYSIS SERVICES FOR INDIVIDUALS WITH ACUTE KIDNEY INJURY.

(a) COVERAGE.—Section 1861(s)(2)(F) of the Social Security Act (42 U.S.C. 1395x(s)(2)(F)) is amended by inserting before the semicolon the following: '', including such renal dialysis services furnished on or after January 1, 2017, by a renal dialysis facility or provider of services paid under section 1881(b)(14) to an individual with acute kidney injury (as defined in section 1834(r)(2))''.

(b) PAYMENT.—Section 1834 of the Social Security Act (42 U.S.C. 1395m) is amended by adding at the end the following new subsection:

''(r) PAYMENT FOR RENAL DIALYSIS SERVICES FOR INDIVIDUALS WITH ACUTE KIDNEY INJURY.—

''(1) PAYMENT RATE.—In the case of renal dialysis services (as defined in subparagraph (B) of section 1881(b)(14)) furnished under this part by a renal dialysis facility or provider of services paid under such section during a year (beginning with 2017) to an individual with acute kidney injury (as defined in paragraph (2)), the amount of payment under this part for such services shall be the base rate for renal dialysis services determined for such year under such section, as adjusted by any applicable geographic adjustment factor applied under subparagraph (D)(iv)(II) of such section and may be adjusted by the Secretary (on a budget neutral basis for payments under this paragraph) by any other adjustment factor under subparagraph (D) of such section.

''(2) INDIVIDUAL WITH ACUTE KIDNEY INJURY DEFINED.—In this subsection, the term 'individual with acute kidney injury' means an individual who has acute loss of renal function and does not receive renal dialysis services for which payment is made under section 1881(b)(14).''.

SEC. 212. MODIFICATION OF THE MEDICARE SEQUESTER FOR FISCAL YEAR 2024.

Section 251A(6)(D)(ii) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 901a(6)(D)(ii)) is amended by striking ''0.0 percent'' and inserting ''0.25 percent''.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on May 12, 2015, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on May 12, 2015, at 2:15 p.m., to hold a hearing entitled ''The Civil Nuclear Agreement with China: Balancing the Potential Risks and Rewards.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON VETERANS' AFFAIRS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Veterans' Affairs be authorized to meet during the session of the Senate on May 12, 2015, at 2:30 p.m. in room SR–418, of the Russell Senate Office Building, to conduct a hearing entitled ''Exploring the Implementation and Future of the Veterans Choice Program.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. THUNE. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on May 12, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON EMERGING THREATS AND CAPABILITIES

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Emerging Threats and Capabilities of the Committee on Armed Services be authorized to meet during the session of the Senate on May 12, 2015, at 3:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON PERSONNEL

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Personnel of the Committee on Armed Services be authorized to meet during the session of the Senate on May 12, 2015, at 5:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON READINESS AND MANAGEMENT SUPPORT

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Readiness and Management Support of the Committee on

Armed Services be authorized to meet during the session of the Senate on May 12, 2015, at 2 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON SEAPOWER

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Seapower of the Committee on Armed Services be authorized to meet during the session of the Senate on May 12, 2105, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON STRATEGIC FORCES

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Strategic Forces of the Committee on Armed Services be authorized to meet during the session of the Senate on May 12, 2015, at 11 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

RAUL HECTOR CASTRO PORT OF ENTRY

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Environment and Public Works be discharged from further consideration of H.R. 1075 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER (Mr. GARDNER). Without objection, it is so ordered.

The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (H.R. 1075) to designate the United States Customs and Border Protection Port of Entry located at First Street and Pan American Avenue in Douglas, Arizona, as the ''Raul Hector Castro Port of Entry.''

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. I ask unanimous consent that the bill be read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 1075) was ordered to a third reading, was read the third time, and passed.

ORDERS FOR WEDNESDAY, MAY 13, 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 tomorrow morning, Wednesday, May 13; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate be in a period of morning business for 1 hour, with Senators permitted to speak therein for up to 10 minutes each, and that the time be equally divided, with the majority controlling the first half and the Democrats controlling the second half; finally, that following morning business, the Senate then resume consideration of the motion to proceed to H.R. 1314.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. MCCONNELL. If there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 5:44 p.m., adjourned until Wednesday, May 13, 2015, at 9:30 a.m.

EXTENSIONS OF REMARKS

HONORING COLONEL CHARLES E. POWELL

HON. K. MICHAEL CONAWAY
OF TEXAS
IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. CONAWAY. Mr. Speaker, I rise today to recognize a dear friend and constituent, Colonel Charles E. Powell. Charles is being honored this week by the Texas Southwest Council of the Boy Scouts as their Distinguished Citizen of the Year.

Charles was born in Nashville, Arkansas on May 7, 1931. After finishing high school, Charles was accepted into the United States Naval Academy in July of 1950 and graduated with distinction on June 4, 1954. That day, he commissioned into the United States Air Force.

Shortly after his commission, Charles became an Air Force pilot and logged over 7000 flying hours. During the Vietnam War, he logged over 700 combat flying hours as a Rescue C–130 commander and is credited with fourteen combat saves. After the war, Charles served in many different leadership roles throughout the Air Force. In 1980, he was tasked to be the base commander of Goodfellow Air Force Base in San Angelo, TX. At the time, Goodfellow was scheduled to be closed and it was Charles' job to prevent the base from being closed. He began working with local community leaders and assisted in shaping a new military mission for Goodfellow Air Force Base. Today, Charles' impacts can still be felt at Goodfellow Air Force Base, as it serves as a training school for thousands of service members from across all branches to train in cryptology, intelligence, and firefighting. Charles' dedication and leadership helped save a community that many veterans have come to love and adopt as their own home.

After his decorated military career, Charles continued to serve San Angelo as a leader. Charles went on to serve as vice president of the Southwest Bank, known today as First Financial Bank. In addition to serving as VP of the Southwest Bank, Charles created and directed the SWB Investment Center Inc. He served as the Chairman, President, and CEO of the Center until he retired in 1995. From there, Charles served on a variety of community service based boards such as the San Angelo Chamber of Commerce, the United Way of Tom Green County and Texas, the Fort Conch Historical Society, the San Angelo City Council, among many more.

Throughout the years, Charles has been supported by his loving wife Joanne. Joanne has assisted my constituents in my San Angelo office during my entire tenure. Joanne is also an instrumental figure in assisting with our annual military service academy nominations, which is a year round process for her. With Joanne's assistance, many of the young men and women in our district go on to serve our nation and attend one of our distinguished service academies. Charles and Joanne's support and dedication to this effort have made them very special pieces to my team. I am truly grateful for all of their hard work and dedication to the San Angelo community and to Texas' 11th district.

By serving his country and his community, Charles has upheld the Scout Oath: 'To do my duty to God and my country and to obey the Scout Law; To help other people at all times; To keep myself physically strong, mentally awake and morally straight.' His service has set an example for many generations of Boy Scouts. I am honored to have the opportunity to celebrate the achievements of Colonel Powell with the Texas Southwest Council of the Boy Scouts. Again, I offer my congratulations to Charles for being this year's Texas Southwest Council of the Boy Scouts' Distinguished Citizen.

HONORING BOB CARR AND THE GIVE SOMETHING BACK FOUNDATION

HON. DANIEL LIPINSKI
OF ILLINOIS
IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. LIPINSKI. Mr. Speaker, I rise today to honor Bob Carr, founder of the Give Something Back Foundation.

Bob Carr is a true American success story. Mr. Carr grew up in the countryside near Lockport, Illinois. The son of a waitress who worked nights to support the family, Mr. Carr graduated from the University of Illinois with a bachelor's degree in mathematics and a master's degree in computer science. He now is the President and CEO for Heartland Payment Systems, the fifth largest payment processor in the United States. Mr. Carr has received numerous industry accolades including being named Entrepreneur of the Year twice by Ernst and Young and receiving the first Lifetime Achievement Award from the bankcard industry.

In 2003, Bob Carr founded the Give Something Back Foundation to help financially disadvantaged, academically-oriented students at Lockport Township High School earn a college degree. In addition to awarding scholarships, the foundation also provides students with a mentor and offers guidance to prepare them for college. Since its founding, the Give Something Back Foundation has assisted 54 college graduates and has expanded to include 21 high schools throughout Will County.

Mr. Speaker, I ask my colleagues to join me in recognizing the great service that Bob Carr and the Give Something Back Foundation have given to the students of Will County, Illinois.

HONORING DR. YOEL AND MRS. EVA HALLER

HON. LOIS CAPPS
OF CALIFORNIA
IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mrs. CAPPS. Mr. Speaker, today I rise to recognize the life and accomplishments of Yoel and Eva Haller on the occasion of their combined ''170th Birthday.'' Dr. and Mrs. Haller are truly remarkable constituents of California's 24th congressional district, and have touched the lives of countless others through their lifelong efforts in activism, medicine and philanthropy.

Eva was born in Budapest, Hungary in 1930. During World War II, she helped create anti-Hitler leaflets before going into hiding during the German occupation of Budapest. Later, after moving to the United States, Eva and her late husband Murray Roman cofounded the Campaign Communications Institute of America. More recently, Eva has passionately devoted her time, skills and resources to a number of causes. She has served on the boards of dozens of non-profit foundations and institutes, including Free the Children USA, the Women's Leadership Board at the Kennedy School of Government at Harvard University, and the Jane Goodall Institute. She has also been honored with various recognitions and awards from Glasgow Caledonian University, the Forbes Women's Summit and the United Nations Population Fund, among many others.

Yoel has dedicated his career to caring for others as a practicing Obstetrician/Gynecologist and later as a professor of OB–GYN medicine at the University of California, San Francisco Medical School. Dr. Haller also served as the Medical Director of Planned Parenthood San Francisco-Alameda Counties. In retirement, Yoel has joined his wife in advocating for numerous organizations and causes.

Dr. and Mrs. Haller were married in 1987 and have spent their lives together advocating for those less fortunate and the betterment of our community. The Hallers' generous philanthropy has benefitted not only the Santa Barbara community, but organizations and individuals around the world. We are grateful for their tireless dedication to improving the lives of others and making the world a better place. Today, as this exceptional couple celebrates their 85th birthdays, I wish them health and happiness in the years to come.

KENTUCKY RIVER COAL CORPORATION'S 100TH ANNIVERSARY

HON. HAROLD ROGERS
OF KENTUCKY
IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. ROGERS of Kentucky. Mr. Speaker, I rise today in celebration of the 100th Anniversary of the Kentucky River Coal Corporation,

marking a major milestone in its long and important history in the Commonwealth of Kentucky.

Kentucky River Coal Corporation was formed in April 1915, creating a land company with a large ownership of land, timber, coal, oil and gas and other minerals in eastern Kentucky. Congregating larger boundaries of mineral properties made possible the arduous construction and development of the first railroad into eastern Kentucky and resulted in mineral extraction entities employing thousands of people in the region.

As with most American companies and people, Kentucky River Coal Corporation struggled through the Great Depression, but stood strong through the First and Second World Wars, providing the natural resource base that literally helped power America. Timber from its properties was used in the early manufacturing of automobile parts, like wooden spokes, as well as for housing across the country. With the discovery of oil and natural gas, Kentucky River Coal Corporation's lands again produced important resources to power the nation.

Through the decades since its formation, Kentucky River Coal Corporation has been a model corporate citizen in Kentucky, paying millions of dollars in taxes, and donating to various worthwhile causes. Through its charitable outreach, Kentucky River Coal Corporation has consistently funded important educational programs, established scholarships for students, and made donations to many institutions of higher learning across the state. The company has played an instrumental role in supporting local volunteer fire departments, helping them meet regulatory standards with training and equipment. In effort to support tourism in our region, the company partnered with the Kentucky Department of Fish and Wildlife to return the majestic Elk to eastern Kentucky, where the herd now thrives, providing a model for successful reintroduction of wildlife.

Additionally, Kentucky River Coal Corporation joined with Operation UNITE to provide over $500,000 in much-needed funding to assist with substance abuse treatment and rehabilitation. Hundreds of families across the region, devastated by a loved one suffering from addiction, have expressed gratitude for the opportunity for treatment that they otherwise could not afford.

Over its 100 year history, Kentucky River Coal Corporation's lessees have produced over 580 million tons of high quality central Appalachian coal used for decades in electrical generation and manufacturing across the nation. About one out of every 130 tons of coal produced in the United States over the past 100 years came from Kentucky River Coal Corporation. Over its history, the company has returned millions of dollars in taxes to governments, paid salaries to employees, provided contributions to various charitable and educational institutions, and paid distributions to the shareholders located throughout the United States, generating untold economic benefits to communities and shareholders across the country.

Mr. Speaker, I ask my colleagues to join me in celebrating this great milestone for the Kentucky River Coal Corporation. I believe this company is poised for continued growth and success in the natural resources sector, providing energy for a strong America.

HONORING MARTHA PERINE BEARD

HON. STEPHEN LEE FINCHER

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. FINCHER. Mr. Speaker, it is a privilege to rise today to honor and thank Mrs. Martha Beard for an outstanding forty-four year career of serving the public and to wish her well on retiring as Memphis Regional Executive of the Federal Reserve Bank of St. Louis on May 8th, 2015.

Originally from Mobile, Alabama, Mrs. Beard received a Bachelor of Arts from Clark Atlanta University and a Master's in economics from Washington University in St. Louis, Missouri. After, Mrs. Beard joined the St. Louis Federal Reserve Bank as a management trainee and served in many different positions before being transferred to the Memphis Branch in 1997. As the Regional Executive, Mrs. Beard was responsible for conducting regional economic research, gauging monetary policy input for banking and business leaders, and hosting community seminars that provided education and materials covering the Memphis zone. The zone included western Tennessee, northern Mississippi, and eastern Arkansas.

During her tenure in Memphis, Mrs. Beard was extremely active in the community. She served on the boards of Memphis Tomorrow, the Greater Memphis Chamber, United Way, St. Jude Children's Hospital, Baptist Health Care, and Mid-South Minority Business Council. She has been profiled by many of the area's publications and received numerous awards for her work from organizations like Leadership Memphis, the FBI, and the United Way.

On behalf of Tennessee's 8th Congressional District, I would like to congratulate and wish the best of luck for all future endeavors to the family and friends of Martha Perine Beard.

IN RECOGNITION OF THE 50TH ANNIVERSARY OF THE ESTABLISHMENT OF LUZERNE COUNTY HEAD START

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. BARLETTA. Mr. Speaker, it is my honor to help commemorate the 50th Anniversary of the establishment of Luzerne County Head Start, which provides my constituents with valuable services in early childhood education and family development. The organization plays a vital role within our community, and I am thankful for its work.

Luzerne County Head Start has offered crucial aid to children and families since its inception in 1965. The program has worked tirelessly to provide 1,162 children in Luzerne and Wyoming Counties with an environment that is favorable to early academic development. Last month, I enjoyed spending time at the Hazleton Head Start Center, and was impressed with the students and faculty I met. The three and four year olds were excited to read and engage in their class science project. They are learning the skills that will help them to succeed in kindergarten. Additionally, Head Start strives to encourage similar standards in healthy physical development. Members of the Head Start faculty educate their students about comprehensive health and nutrition, supplying them with information that will increase their well-being.

In addition to placing an emphasis on early childhood development, Luzerne County Head Start also focuses on strengthening families. In order to assist them in achieving greater self-sufficiency, the organization provides families with a wide array of services, including housing, employment, and education. Notably, Head Start offers support to parents interested in attaining a high school General Equivalency Diploma as well as other education and employment opportunities, all of which go a long way in ensuring brighter futures for parents and their children.

Mr. Speaker, it is my pleasure to honor Luzerne County Head Start as it celebrates its 50th Anniversary, and I commend the work that its faculty undertakes in order to serve the children and families of Luzerne and Wyoming Counties.

RECOGNIZING MARTIN DOSTER FOR RETIREMENT AFTER 33 YEARS OF PUBLIC SERVICE

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. HIGGINS. Mr. Speaker, I stand before you today to recognize and congratulate Mr. Martin Doster on his retirement after serving 33 years with the New York State Department of Environmental Conservation. Mr. Doster has been a vital member of the New York State Department of Environmental Conservation since 1982 and has dedicated his career to conserve, improve, and protect New York's natural resources and environment.

Mr. Doster has served as the Western New York Regional Remediation Engineer for the Division of Environmental Remediation since 1989 and formerly was an engineer with the division of water beginning in 1982. During his tenure Mr. Doster oversaw the New York State Superfund Emergency Response Program where he was responsible for managing and coordinating efforts to remediate property impacted by hazardous waste. He has been responsible for the design and construction of many significant projects in Western New York, such as the Buffalo River Restoration Project and the Buffalo Color Remediation. Mr. Doster has also protected Western New York's Environment by implementing and enforcing the Clean Water Act, The Resource Conservation and Recovery Act and the Toxic Substances Control Act.

Mr. Doster's service to the Western New York community does not stop with his work at the New York State Department of Environmental Conservation. Mr. Doster has helped educate future Civil and Environmental Engineers at University at Buffalo through graduate level courses and lectures. He has served as a leader in his community as a Past President and Chairman of the First Trinity Lutheran Church. Mr. Doster has the utmost pride in his community; this is demonstrated by his volunteer service to the American Red Cross as a

local team supervisor, service as a Boy Scout Troop Leader and devoting 8 years as as a DEC Team Leader for Brush Up Buffalo.

Mr. Speaker, thank you for allowing me a few moments to honor and recognize Mr. Martin Doster. I ask that my colleagues join me in congratulating Mr. Doster on an accomplished career, and to commend him for the exemplary work he has done to enrich the communities and protect the environment of Western New York.

NATIONAL SYRINGOMYELIA AWARENESS MONTH

HON. ROGER WILLIAMS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. WILLIAMS. Mr. Speaker, I rise today to recognize May as National Syringomyelia Awareness Month, with the hope that increased awareness of this disorder will bring a cure.

Syringomyelia, often referred to as SM, is a progressive disease of the spinal cord and has no known cure. Over 40,000 Americans are affected by SM and those individuals can suffer from chronic pain and even paralysis. It is imperative that we educate the public and provide resources to the medical community in order to find a cure for this disease.

Mr. Speaker, I ask all my colleagues to join me not just today but every day in helping to raise awareness to Syringomyelia.

INTRODUCING THE ENDING CORPORAL PUNISHMENT IN SCHOOLS ACT OF 2015

HON. ALCEE L. HASTINGS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. HASTINGS. Mr. Speaker, I rise today to introduce a bill to end the use of corporal punishment in our nation's schools.

Corporal punishment is a form of physical punishment where someone deliberately inflicts pain on another individual in order to punish them. In schools, it includes the spanking or paddling of children by school officials.

While corporal punishment in schools has its place in our nation's history, it must be banned immediately. Not only is there no conclusive evidence that it is actually beneficial in modifying disruptive behavior, but it is disproportionately used as a form of punishment for African American students and children with disabilities. These punishments can result in physical as well as emotional harm to children.

Schools are supposed to be safe places where students are protected from harm. They are intended to nurture children as they grow and develop. However, 19 states still allow corporal punishments in school. Last year, the Children's Defense Fund (CDF) reported that, on average, 838 children were hit each day in public school, based on a 180-day school year. This equates to just over 150,500 instances of corporal punishment per year. This statistic is astonishing considering the fact that 31 states have already banned corporal punishment in schools.

This bill would prohibit any educational institution from receiving federal funding that allows school personnel to inflict corporal punishment on students and creates grants to encourage climate and culture improvements in schools which promote positive behaviors.

Mr. Speaker, corporal punishment is not proven as an effective means of disciplining children or modifying disruptive behavior. School should be a safe space for children to learn, grow, and develop, not live in fear of those who have been charged with their academics. I urge my colleagues to support this important bill.

UNVEILING THE SOUTHBURY SENIOR CENTER WALL OF HONOR

HON. ELIZABETH H. ESTY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Ms. ESTY. Mr. Speaker, I rise today to celebrate the unveiling of the Wall of Honor at the Southbury Senior Center.

Today, we recognize the senior citizens from Southbury who proudly served our country in uniform. These men and women answered the call of duty to protect our nation and defend its ideals. They served during war and during peace, at home and abroad. No matter their deployment or their mission, each of our veterans deserves the recognition and accolades they will receive during today's ceremony.

While we can never fully repay our veterans for their service and sacrifice, I believe it is important to take every opportunity to thank and honor them. I hope when the wall is revealed, each veteran will feel the appreciation and gratitude of our community and the entire nation.

I would like to thank Wayne Rioux, Amanda Hadgraft, the staff and volunteers at Southbury Senior Center for creating this memorial to recognize these local American heroes.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,152,487,619,906.99. We've added $7,525,610,570,993.91 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

HONORING THE LUFKIN HIGH SCHOOL PANTHERS, 2015 CLASS 5A STATE SOCCER CHAMPIONS

HON. LOUIE GOHMERT

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. GOHMERT. Mr. Speaker, state championship titles are always an extraordinarily exciting accomplishment for athletes. But when that state championship is unprecedented, it takes on a new dimension.

It is truly an honor to acknowledge the outstanding achievement of the history-making Lufkin High School Panthers soccer team. The Panthers completed their most impressive season yet by claiming the title of 2015 Class 5A State Soccer Champions, a victory which is also the first state soccer title claimed by a northeast Texas school of its size.

After an unsteady start to their season with two back to back losses, the Panthers immediately recognized the challenging road ominously lying ahead of them. With renewed focus and zeal, the Panthers recovered from those losses and overcame stiff competition from their fellow east Texans to become the district champions. Due to their hard work and dedication, the Panthers then entered the playoffs with an exceptional win-streak of nineteen matches.

Lufkin's first playoff match was to be a challenge for the team when the game lasted for nearly an hour before a goal was scored. The Panthers battled on to keep the score at 1–0, winning the game and advancing to the next round of the playoffs. Five hard-fought victories followed, and the Panthers then advanced to the championship game against Georgetown's undefeated East View High School. Even though the championship was played on East View's home field, the Panthers were undeterred due to the fact that they had never lost a game away from home. Dedicated fans from the ''Panther Nation'' arrived in exuberant force, driving the long distance to cheer on their home team.

The team's skill and fans' encouragement were the necessary ingredients in the final match. Time and again the Panthers' defense was tested, and their offense was held back. This did not last, however, and the Panthers were finally able to overcome East View's defenses and score. When the game was over, the score stood as testament to the Panthers' dogged determination coupled with their tantalizing talent. The final score was Lufkin 3 and East View 1. The Lufkin Panthers had won the state championship.

Congratulations should be extended to team members Terry Mark, Sammy Villegas, Rodrigo Vargas, Cristian Julian, Cesar Camacho, Jesus Cisneros, Bradley Slusher, Alexis Roque, Omar Zamarripa, Javy Montes, Kacy Bennett, Javier Patlan, Chris Marquez, Dorian Bravo, Cristhian Pineda, Luis Lopez, Jake Williams, Joel Rodriguez, Gustavo Garcia, Ivan Hernadez, Omar Roque, and Miguel Gonzales.

The staff and faculty who led and inspired the Panthers to victory consists of Lufkin High School Principal Mark Smith, Lufkin ISD Superintendent Dr. LaTonya Goffney, Head Coach Russell Shaw, Assistant Coach David McPherson, Assistant Coach Eliazar Caldera, Trainer Forestt Bridges, Trainer Sarah Hartman, Student Trainer Edgar Medellin, Student

Manager Coltone Radke, and Student Manager Jessie Santoyo.

It is a privilege to highlight this landmark achievement of East Texas' own Lufkin High School Panthers soccer team. The Panthers not only made history by capturing the title of 2015 Class 5A State Soccer Champions, but they brought Panther pride to their team, their school, the Lufkin community, the First Congressional District of Texas, and the entire State of Texas. The Lufkin Panthers' story of commitment and success is now recorded in the United States CONGRESSIONAL RECORD, which will endure as long as there is a United States of America.

HONORING THE CENTER FOR VICTIMS OF TORTURE'S 30TH ANNIVERSARY

HON. BETTY McCOLLUM

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Ms. MCCOLLUM. Mr. Speaker, I rise today to recognize the Center for Victims of Torture (CVT), torture survivors and CVT staff and volunteers on the occasion of the organization's 30th anniversary. Since its inception in 1985, CVT has become a global leader in treating victims of torture here in the U.S. and around the world. CVT has provided life-saving mental health services and rehabilitative treatment to thousands of torture survivors from the Bosnian War in Sarajevo in Eastern Europe to the Continent of Africa from Liberia to Sierra Leone.

CVT represents the best of the United States to our planet's most vulnerable citizens, and is one of only three healing treatment centers in the world. The professionals who care for torture survivors represent hope and dignity for thousands of people from more than 60 countries around the globe.

In 1985, CVT set forth on a mission to extend interdisciplinary care to torture survivors in Minnesota, and over the years expanded those services to countries around the world, with healing centers today in Ethiopia, Jordan, Kenya and Uganda. The work has grown to include training professionals in the United States and international locations in the specialized rehabilitation skills needed for people suffering the post-traumatic effects of torture, and also to advocating for human rights and put an end to torture practices.

For the past three decades, CVT has helped more than 30,000 survivors reclaim their lives. Through combined direct services, capacity building and policy advocacy work, CVT has touched the lives of more than 50,000 survivors and approximately 100,000 of their family members.

CVT was instrumental in helping Congress to pass the original Torture Victims Relief Act in 1998, which authorizes federal funding for torture survivor rehabilitation programs in the U.S. and abroad.

Mr. Speaker, on May 14, 2015, the Center for Victims of Torture commemorates 30 years of helping torture survivors rebuild their lives and restore their hope. It is a great honor to work with CVT and its dedicated staff and volunteers. Please join me in paying tribute to the Center for Victims of Torture and its distinguished commitment to providing healing and hope to those who most need it.

CELEBRATING THE CAREER OF HARKER HEIGHTS COUNCILMAN SAM MURPHY

HON. JOHN R. CARTER

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. CARTER of Texas. Mr. Speaker, I rise today to celebrate the career of Harker Heights Councilman Sam Murphy who will retire on May 12, 2015. Sam's extraordinary commitment to community service reflects the best values of Central Texas.

Sam thrived in a 22-year career in the U.S. Army where he took on assignments in the United States, Europe, Korea, and Vietnam. During his prestigious military career, he graduated from Airborne and Ranger schools, had a teaching assignment in the Gunnery Department of the U.S. Army Field Artillery School, graduated from the U.S. Marine Corps Command and Staff College, and had an assignment at the U.S Air Force Academy as the Air Officer Commanding of Cadet Squadron 29. He retired from the Army at Fort Hood, Texas on October 1, 1989.

Sam continued his public service by joining the office of former Representative Chet Edwards. He proved to be a leader and voice of the people as he represented servicemen and veterans in then District 11. During his time as Rep. Edwards' liaison to military and veteran communities, Sam's personal military history proved to be an invaluable asset when serving those who have sacrificed so much to preserve our freedoms. Sam retired on March 31, 2007 after working for U.S. Rep. Edwards for 16 years.

With his established community service and his proven leadership skills, Sam successfully ran for Harker Heights City Council. He continued to serve and better his community every day. Throughout his time on the Council, Sam made a positive impact on his beloved hometown and for that we are forever grateful.

Sam's service doesn't stop when the work day is over. He is active in local community affairs including serving as Vice Chairman of the Board of Directors of Heart O' Texas Federal Credit Union, teaching federal and state government at Central Texas College's Fort Hood Campus, co-founding the Harker Heights Economic Development Corporation and co-founding the Leadership Belton program. His military background and experience prepared him for being president of the Central Texas—Fort Hood Chapter of the Association of the United States Army.

Retirement is to be celebrated and enjoyed. It is not the end of a career, but rather the beginning of a new adventure. I commend Sam Murphy for his hard work and dedication to his community. I wish Sam, his wife Peggy, and their children and grandchildren only the best in the years ahead.

CELEBRATING THE 25TH ANNIVERSARY OF THE CARROLLTON-FARMERS BRANCH CYCLONES SPECIAL OLYMPICS TEAM

HON. KENNY MARCHANT

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. MARCHANT. Mr. Speaker, I am honored to recognize the 25th Anniversary of the Carrollton-Farmers Branch Cyclones Special Olympics Team founded in 1990 by Julia Scott and Patrick Noonan. The non-profit organization will be celebrating this landmark achievement at a special May 15, 2015 appreciation dinner to honor the founders.

The Cyclones are a chartered Special Olympics Texas team serving the needs of adults and children with intellectual disabilities. The organization provides them with year-round sports training and athletic competition in a wide variety of sports. Some of the sporting events that the Cyclones participate in include bowling, basketball, aquatics, track & field, bocce ball, and flag football.

Since the founding of the Cyclones in 1990, the organization has functioned as an all-volunteer group committed to providing services to hundreds of athletes with intellectual disabilities. Additionally, the non-profit organization regularly raises all the funds needed to support the training, travel, and competition costs of their athletes through a bowling event and a gala.

The Cyclones have been tremendously successful in their endeavors, with Carrollton-Farmers Branch athletes competing with success at both regional and state levels.

Mr. Speaker, on behalf of the 24th Congressional District of Texas, I ask all my distinguished colleagues to join me in congratulating the Carrollton-Farmers Branch Cyclones Special Olympics Team on their successes and in celebrating their 25th Anniversary.

TRIBUTE TO JESSICA MARSHALL

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to congratulate and recognize Jessica Marshall upon winning the Congressional Art Competition in the 3rd District of Iowa. Jessica, a junior at Griswold High School, is the daughter of Michael and Tracy Marshall of Lewis, Iowa.

The Congressional Art Competition, ''An Artistic Discovery,'' is open to high school students nationwide. Since 1982, the competition has been an opportunity for Members of Congress to encourage and recognize the artistic talents of their young constituents. One winner is selected by a panel of 16 judges, one from each county in Iowa's 3rd District.

Jessica's piece, ''Word Art: The Young Child,'' was named the winner out of over 75 entries. It is a unique and moving graphite pencil drawing of a young boy drawn entirely of words. Jessica's creativity and dedication to her craft is admirable. The example set by this young woman demonstrates the rewards of harnessing one's talents and sharing them

with the world. "Word Art: The Young Child" will be displayed in the halls of the Capitol for all to admire and enjoy.

I commend Jessica for her artistic talents and I know that my colleagues in the United States Congress will join me in congratulating her for being chosen as the winner of the Congressional Art Competition in the 3rd District of Iowa. It is an honor to serve Iowans like Jessica and her parents, and I wish her the best of luck in her future academic and artistic endeavors.

RECOGNIZING CINDY BERANEK

HON. SEAN P. DUFFY

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. DUFFY. Mr. Speaker, it is my honor to recognize Ms. Cindy Beranek on her outstanding teaching career. For more than thirty-two years, Ms. Beranek engaged the imaginations of her art students at Stratford Senior High School.

Her passion for art and teaching was evident in her students' artwork. Stratford High School is always well represented in the annual Congressional Art Competition, often earning top honors, and, in the case of the 2015 competition, they took home all four awards, including the grand prize.

Mr. Speaker, we recognize the powerful role that teachers play in molding our children's minds, but it is a rare teacher who also shapes their hearts. Ms. Beranek leaves a legacy of devoted service to the Stratford community, but takes with her the thanks and appreciation of a countless many students who will always treasure their time in her classroom.

HONORING THE LIFE OF HAROLD CUMMINGS

HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. COURTNEY. Mr. Speaker, I rise today in sadness to honor the life of a friend, neighbor, and local stalwart from the Town of Vernon, Harold "Hal" Cummings, who passed away this month.

Most recently, Hal served as town attorney in Vernon, but he held a number of local positions over the years including the Conservation Commission, the Planning and Zoning Commission, and the Board of Education. He was also involved in his local church and Rotary Club and was a founding member of the local Chamber of Commerce. This list of accomplishments demonstrates that Hal held the well-being of Vernon, Connecticut close to his heart. Hal, his wife Isabel and their children Jay, Joel, and Justin fostered a commitment to community that runs deep through their family and is felt profoundly by Vernon residents. Hal's passing is a loss for our town and the many local employees and advocates who relied on his experience and advice.

While Harold had long served as the town's top Republican as the Chairman of the Republican Town Committee, he and I shared a mutual respect and friendship that transcended party affiliation. My respect for Harold stemmed from his unwavering and long-standing commitment to the betterment of our community, and from the many times we worked together to make progress in the town of Vernon.

Hal's record of military service, as well as that of his son Joel, was a source of great pride for him. After I was elected to Congress, he always made positive, informed comments on military policy, the stresses of active duty service, and the need to help America's veterans. Hal was a staunch supporter of the New England Civil War museum, one of Vernon's most treasured destinations—yet another example of his widespread involvement in our community.

Harold was known throughout Vernon for his positivity, and his hard work to keep our town running smoothly. I ask my colleagues to join me in remembering the life and achievements of Harold Cummings, and expressing our deepest condolences to his friends and family.

REINTRODUCING THE WILDLIFE VETERINARIANS EMPLOYMENT AND TRAINING ACT OF 2015

HON. ALCEE L. HASTINGS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. HASTINGS. Mr. Speaker, I rise today to reintroduce the Wildlife Veterinarians Employment and Training Act of 2015. This legislation will promote robust public health policy, promote needed job growth, and create more affordable opportunities for individuals who are interested in becoming wildlife and zoological veterinarians.

As you know, wildlife and zoo veterinarians are the primary source of essential health care and management that is required for animals in both their natural habitat and in captivity. These physicians preserve natural resources and the lives of animals while subsequently helping to protect human health by preventing, detecting and responding to exotic and dangerous diseases.

As global interaction between humans, livestock and wildlife have intensified over the decades, the threat posed by emerging infectious diseases to humans and wildlife continues to increase. Controlling pandemic and large-scale outbreaks of disease has become more challenging over the years, yet there has never been a time where this is a more pertinent issue. We must take preventative measures to ensure the well-being of both animals and humans. However, the United States faces a shortage of positions for wildlife and zoo veterinarians to ensure our safety from this threat.

Following their graduation, professionals that practice wildlife and zoological veterinary medicine move on to earn relatively low salaries, compared to their companions in animal medicine. Studies have also shown that on average, veterinarian graduates owe roughly $130,000 in student loans. The expectation of a low salary, combined with enormous educational debt, amidst insufficient employment opportunities, discourages these students from pursuing these vitally important careers. Moreover, due to the severe lack of practical training and formal educational programs specializing in wildlife and zoological veterinary medicine, many that do graduate are unable to make significant contributions to the field immediately.

My bill directly addresses these issues which prevent and dissuade veterinarians from practicing wildlife and zoological medicine. It will also contribute to the national job creation effort by funding new positions for wildlife and zoo veterinarians to enter upon graduation. The bill will limit the amount of educational debt for students while providing incentives to practice wildlife and zoo veterinary medicine through the establishment of scholarships and loan repayment programs. Lastly, my legislation will advance education by helping schools develop pilot curricula around wildlife and zoo veterinary medicine by expanding the number of practical training programs available to students.

Mr. Speaker, as you know, wild animals play a very critical role in our natural resources and contribute to maintaining a balanced ecosystem. The number of endangered species has only increased. Invasive non-native species and infectious disease threaten our public health. Therefore, wildlife and zoological veterinarians must be prioritized and given the resources and recognition necessary to protect both animal and human lives.

I urge my colleagues to extend a helping hand to America's veterinarians by supporting this important piece of legislation.

CELEBRATING THE 175TH ANNIVERSARY OF ST. MARY'S COLLEGE OF MARYLAND

HON. STENY H. HOYER

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. HOYER. Mr. Speaker, on May 16, 2015, students, faculty, and staff will gather in historic St. Mary's City, Maryland, to celebrate the St. Mary's College of Maryland Class of 2015 Commencement. They—along with many others across Maryland and our country—will also be marking the 175th anniversary of the College's founding.

Since its humble beginnings in 1840 as a public, nonsectarian boarding school for girls at the elementary through secondary levels, St. Mary's College of Maryland has been a center of learning and educational empowerment. Set along the St. Mary's River, where Leonard Calvert and the first English settlers disembarked from the *Ark* and *Dove* in 1634 to found the colony of Maryland, it expanded in the early twentieth century to become the State's first junior college and became co-educational. In the 1960's, the school transitioned into a four-year college and granted its first undergraduate degrees in 1971. Recognizing its tradition of excellence in liberal arts education, its high standards, and its unique history, the Maryland General Assembly formalized St. Mary's College of Maryland as a public honors college in 1992. Today, it continues to graduate some of Maryland's best and brightest students from thirty-one academic programs.

I am proud to represent the students, faculty, and staff of St. Mary's College of Maryland in Congress as well as to have served as

a member of its Board of Trustees since 1995. Alumni of the College run businesses, contribute to the arts and athletics, conduct research in marine biology and the environment, report the news through national outlets, and serve in government—including in my Congressional office. They are continuing their alma mater's tradition of preparing graduates to make a difference wherever they live and work throughout Maryland and across our country.

I hope my colleagues will join me in congratulating the entire St. Mary's College of Maryland community, led by its dynamic new President, Tuajuanda Jordan, on reaching its 175th year of serving as a living memorial to those first Maryland colonists' commitment to religious freedom, tolerance, and opportunity.

RECOGNIZING ST. CLOUD AREA CHAMBER BUSINESS AWARDS RECIPIENTS

HON. TOM EMMER

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. EMMER of Minnesota. Mr. Speaker, I rise today in recognition of the recipients of the St. Cloud Area Chamber of Commerce Small Business Owner of the Year, St. Cloud Area Family Owned Business of the Year, and the St. Cloud Area Emerging Entrepreneur.

Larry Logeman is the 2015 St. Cloud Area Small Business Owner of the Year. Larry is quite literally a man with a plan. Though he did not grow up with the dream of one day owning a business, he wrote a plan to become a business owner and set a personal deadline of 5–7 years. Nearing the end of his timeframe, he bought Executive Express. Larry's customer-focused business model has served him well. What began as a modest shuttle service between central Minnesota and the Minneapolis-St. Paul International Airport grew into a business with 85 employees, 31 vehicles, and a projected revenue stream of $3 million in 2015.

Viking Coca-Cola, owned by Michael Faber, is the St. Cloud Area Family Owned Business of the Year. After Joe Faber, one of the founders and owners of the company, passed away in the 1990s, his son Michael moved back to Minnesota to join the management team. Keeping it in the family proved fruitful for the business. With Michael's help, Viking Coca-Cola capitalized on its existing success by expanding to canning and adding new products where consumer needs arose. The company now boasts nearly 500 employees and has a multi-state distribution operation. To top it all off, Michael and the company are active members in the community, helping local organizations and participating in charitable events.

Luke Riordan, owner of DAYTA Marketing, is the St. Cloud Area Emerging Entrepreneur. DAYTA's success is attributed to its focus on a specific subsect of the digital communications field—people and businesses who need help with social media but at an affordable price. Luke and his team work closely with their clients towards a noticeable online presence for their businesses. Luke's ambition matches the digital marketing industry—it's not slowing down. His company's doors opened in early 2012, and in the last three years they've expanded into larger office space four times and now have 25 employees.

I know I speak for the entire 6th District when I say I am so proud of these individuals' hard work and the example they set for those around them. Small businesses—and their owners—truly are the lifeblood of our beloved nation. The St. Cloud Area Chamber of Commerce picked an excellent group to highlight this year.

Mr. Speaker, I ask this body join me in honoring Larry Logeman, Viking Coca-Cola, and Luke Riordan for their invaluable contributions to St. Cloud and the surrounding area, and the State of Minnesota.

IN RECOGNITION OF THE 50TH ANNIVERSARY OF KAISER PERMANENTE'S SACRAMENTO MEDICAL CENTER

HON. DORIS O. MATSUI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Ms. MATSUI. Mr. Speaker, I rise today to recognize Kaiser Permanente's Sacramento Medical Center as the Center celebrates its 50th anniversary. For half a century, Kaiser's Sacramento Medical Center has provided high quality care to residents of the Greater Sacramento area. As members, physicians, and staff gather to celebrate the Center's 50th anniversary, I ask my colleagues to join me in honoring the Kaiser Permanente Sacramento Medical Center and its indispensable place in the Sacramento health care community.

Kaiser Permanente was founded 70 years ago in Oakland, by Henry J. Kaiser, a business leader who believed in providing affordable, quality health care. Today, Kaiser Permanente is the nation's oldest and largest health care system.

On May 1, 1965, Kaiser Permanente began providing health care for the first time in the Sacramento region with the purchase of the 64-bed Arden Community Hospital on Morse Avenue. The hospital opened with 13 physicians serving 12,000 members. Since then, Kaiser Permanente has grown into a leading health care provider and one of the largest private employers in the region with more than 737,200 members, 1,530 physicians, and 11,780 staff.

The Sacramento Medical Center has been integral to Kaiser Permanente's success in the region, earning numerous honors over the years, including Top Hospital from The Leapfrog Group, Top Performer from The Joint Commission, and Best Hospital by U.S. News & World Report. As the population of the region has grown, the Sacramento Medical Center has grown to meet its needs. The Center now has 287 beds and one of the busiest emergency rooms in the region. The Center is home to the Comprehensive Community Cancer Center, an Advanced Neuroscience Center, and a certified Primary Stroke Center.

In addition, Kaiser Permanente has helped improve the health of the region through its involvement in community programs, including support of the local nonprofit clinics, Sheriff's Community Impact Program, Arden Manor Recreation and Park District, Mutual Assistance Network, and the San Juan Unified School District.

Mr. Speaker, as the physicians, staff, and members of the Kaiser Permanente Sacramento Medical Center come together to celebrate the Center's 50th anniversary, I ask all my colleagues to join me in honoring their excellent work in the Sacramento Region. I am confident that the Sacramento Medical Center will continue to be a leader and a model for quality health care for many years to come.

HONORING KEVIN JONES

HON. SCOTT R. TIPTON

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. TIPTON. Mr. Speaker, I rise today in honor of Kevin Jones, a dedicated educator and principal of Center High School in Center, Colorado. In recognition of his continued excellence, the Colorado Association of Secondary School Principals has selected Mr. Kevin Jones as the 2015 Colorado High School Principal of the Year.

Mr. Jones earned this competitive award achieving many successes despite the challenges of a rural and bilingual institution. Six out of the last seven years have seen the school earn the Colorado Department of Education's Center of Education Excellence while simultaneously earning the Colorado Education Initiative's Healthy Schools Champion Award for 4 consecutive years. Mr. Jones' leadership and personal attention to each student along with constructive assessment of teachers and the curriculum on a regular basis has enabled Center High School to rise considerably above academic standards in the state.

Mr. Speaker, it is truly a privilege to honor Mr. Jones for his enthusiasm and ability to inspire students and his staff. His dedication to teaching and his desire to excel as an educator and leader continue to benefit his community. I congratulate Mr. Jones on his selection for this prestigious award.

ROSIE TILLES OBITUARY

HON. MAXINE WATERS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Ms. MAXINE WATERS of California. Mr. Speaker, as night fell she entered, like a light: on October 17, 1910, Rosie (Willie) Thurmond was born on a small rural farm in Lexington, Mississippi. Alfred and Missouri (Polk) Thurmond were resilient and spiritually fulfilled parents who taught their daughter to love and always be faithful to God, church and family. Rosie was the eldest of four Thurmond children: Alfred, Jr. (departed), Joseph (departed), and an only sister, Juanita. In living out her parents' expectations of her, in a way, Rosie's own narrative is suggestive of other God fearing women pioneers' stories. No different than the likes of Harriet Tubman who escaped slavery to become an important abolitionist, Rosie possessed the same strength of character, which inevitably called her to migrate from one place to another, and then all at once return for others. Many times she traveled back to the Jim Crow South and northern states. Who

will never remember that Rosie went by Amtrak and Greyhound bus to liberate family and friends from various forms of oppression? Ultimately, she would selflessly welcome many of her people to the same sense of freedom she found in southern California. Los Angeles, was the warm and sunny place she fondly called her home. The length and quality of this blessed woman's life is to be examined by the use of nonlinear contexts, spaces, stories, memories, photographs and God-filled times that span the miraculous course of one hundred and four years. So long a journey. Hers was a supply of great love and great associations. Rosie lived just long enough to put some of the pieces of the great mysteries of this life together. Her sunrise was like her sunset—deepening in a Word and a Love that has always been. On March 3, 2015, as night fell she returned to the Light.

Because she was born in the early 1900's and lived in a segregated cotton county, Rosie's timely life was certainly full of social, political, economic, and educational hardships. Because of rigid anti-black laws, she faced insurmountable obstacles. Being a person of color and growing up in the South meant she had little if any genuine recourse in a racial caste system. Thus, Rosie would only travel a limited path toward academic achievement. As a girl child, with plaited hair, she was forced to leave the Sharp Rural School in the fourth grade to work alongside her parents in sweltering fields throughout Holmes County. She knew an early life of August heat and sweat, March rainfall, floods and manual labor, which can scarcely be understood by young people today. She often shared the details of her small farm life. Her recollections were of ''quiet songs,'' saving dimes, forgotten relics, and homemade remedies, like lard salves and Vicks vapor rubs, which she promised could cure everything from fevers to the flu.

Rosie told the old childhood stories about growing food, making soap, washing clothes by hand, hanging them on a line to dry, plucking birds, fetching water from wells, gathering firewood for potbelly stoves, picking cotton, and marching the long dusty miles to and from Zion Hill AME. But what child could bear such a trying life? A child who knew who her Heavenly Father was, a child who thought to pray in the Spirit at all times and on every occasion. According to Rosie, color did not matter. She didn't hate nobody. She loved everybody. So even though racism and poverty made it extremely difficult for girls of color to advance, the same systematic measures of disparity that created a strong sense of depression and rage in others, cultivated Rosie's individual desire for change, and her unwavering commitment to the embodiment of peace, and her quest for equal access to greater opportunities.

What was once, always shall be; and now imagine a life devoted to service and prayer. As a young door keeper in the house of the Lord, Rosie would rise afore the sun, boil a kettle, and travel to the little white church house altar, long before the other congregants gathered there. And far before Rosie left Lexington for Jackson, and Jackson for California, she carried ''God's will be done'' prayers, and cadences like ''If I Can Help Somebody'' along the old Tchula road. She served God by singing spirituals and hymns with His choirs. She went to Sunday school, prayer meetings and revivals. As a beginning usher, she distributed bulletins, service programs, and paper stickfans. She collected the tithes and offerings. Young Rosie was adept at it.

As a symbol of her friendship and deep love for a young man from her hometown, she courted and then married the late Abner Cross in 1929. They settled on the Roger plantation in the Rose Bank community. The Rose Bank Baptist Church soon became her new place of worship. In the midst of the Great Depression and attacks on Pearl Harbor, their union brought forth the lives of four children: Earlene, Lonnie (departed) James, (departed) and Gerlee (departed). As fate would have it, Gerlee died of pneumonia at age seven. And then Rosie faced the trials of a mother's deepest anguish. When asked how she endured the loss of a child, she often said her faith in God healed the wounds of that grief. When more seasons changed, and her marriage ended, she did not give up or sit down and grieve. Rosie continued to trust in God for comfort, peace, hope and direction. Alas: She left Lexington and her family in order to see if she could live differently in Jackson, Mississippi. Her new way of living developed in parallel. Rosie experienced the innovations of city life. She loved the modern amenities of a grander place of greater size and population. She liked the nuances of going to downtown Jackson or ''Little Harlem'' for Cotillions. But more relevantly, she was glad to be an usher for the Blair Street Baptist Church. However, there were still recollections of rural life and the family she left behind. Nonetheless, Rosie gladly worked at the Old Baptist Hospital on State Street. She was a nightshift cook for disabled children, doctors and nurses. While in Lexington she also worked and studied diligently to become a beautician. It seems only fitting that Rosie's ordered steps would start her out on a new journey.

In the summer of 1951, Rosie decided that she would move to Los Angeles, California. She boarded a westbound Amtrak train, with a small suitcase, and a letter of recommendation from a White employer who praised her exceptional domestic work and cooking skills. Although she was leaving the only state that she had ever known, she traveled with a great sense of optimism. Further assured by her unwavering faith in GOD, and a belief that the outcome of this westward journey would welcome her into a land ripe with the new possibilities, she eagerly moved in with her close friends George and Frankie Sims. She stayed with them until she was able to secure a day job and save enough money to rent her own housing. During this time, she also began attending various worship services around Los Angeles. She was in search of a new church home. Eventually her diligence led her to First African Methodist Episcopal Church at 8th and Town Avenue. This church would later become the foundation for FAME. During her membership at FAME, Rosie served in various capacities. She was a Sunday school teacher, and a member of both Usher Board No. 1 and the Sarah Allen Women's Missionary Society.

As Rosie continued to settle into the blessings of her new California life, the Sims introduced her to their good friend Clarence Tilles (departed). Clarence was a kind and gentle man of great integrity. They would marry in 1952 and remain together and in-love until his death in 1990. While Rosie embraced newlywed life, she began to encounter some of the familiar racial inequalities that were rampant in the South. Although the city of Los Angeles did not practice some of the more overt segregation policies found in southern states, there was extreme discrimination in housing, which prevented many minorities from renting apartments or purchasing homes in specific areas of the city. Despite these constant obstacles, Rosie and Clarence were finally able to rent a modest two bedroom apartment near downtown Los Angeles. They moved into the William Meade Housing Project, which is located near historic landmarks like The San Antonio Winery, Olvera Street and Union Station. Because of the loud barking that came from the neighboring Ann Street Animal Shelter, the William Meade Housing Project was also known as ''Dog Town.''

Nevertheless, Rosie and Clarence's new home provided a deep sense of belonging and community, which would later be enhanced by the arrival of deeply missed members of Rosie's Mississippi family. The new settlers included her daughter (Earlene), her granddaughter (Mary) her mother (Missouri), her Aunt (Lee), her brother (Alfred Jr.), her Sister (Juanita), her nieces (Debra, Denise, Shelia and Rochelle) and nephews (Dyke and the late Bernard Redmond). Rosie and Clarence would also host numerous friends and family as they vacationed or relocated to California. She called the old red brick, William Meade Housing Project home for over 40 years. She not only helped raise her grandchildren and great-grandchildren there, she was also able to establish close knit ties and bonds with generations of families in her community. She also participated and volunteered to fill bags in a community based outreach program that fed disadvantaged families in the project. This is yet another example of how Rosie devoted her life to family and to the service and care of others. When Clarence went home to be with God, Rosie moved across the street from her second home: The First African Methodist Episcopal Church of Los Angeles.

Before becoming physically unable to do so, Rosie attended three services every Sunday for over twenty years. She also attended prayer meetings every Wednesday at Noon. Yet even as her memory faded, and her eyesight weakened and her gait became more unsteady, she persevered. She told anyone who asked her how she was doing that I'm slow but sure. Again, Rosie's was a steady upright walk with the Lord. As she did in childhood, Rosie faithfully began each day of her older life in prayer. She was often overheard calling out the names of family and friends in her evening petitions to God. When she felt like she could not go any further, she took to her easy chair and received the spiritual nourishment she required by watching The Church Channel from sun up until sundown.

It has been said that the things you do for yourself are gone when you are gone, but the things you do for others remain as your legacy. Rosie leaves an incredible legacy for her family and friends to value. Since Rosie lived such a rich yet unembellished life, not a soul has to worry about how to divide the love she left behind. During the last several years, Rosie lived at the St. John of God Retirement and Care Center in Los Angeles. She was blessed to have many visitors. Although sometimes when her memory failed her, she would lean over to see who she thought you might have been. When guessing failed and she could not recall, Rosie would often shake her

head and say that she had so many relatives and loved ones that she could not remember them all by name. She would simply look you in your eyes and say, "You know your name." Those beloved names include her devoted Daughter Earlene Dye, her loving sister Juanita Redmond, 11 grandchildren, 21 great-grandchildren, and 15 great-great-grandchildren, a great number of relatives and friends and members of her extended church family.

The end is in the beginning and lies far ahead.—Ralph Ellison.

HONORING MS. BARBARA WAGNER

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. HIGGINS. Mr. Speaker, I stand before you today to honor Ms. Barbara Wagner. Ms. Wagner is being honored by the Buffalo Gay Men's Chorus with the prestigious title of 'Artistic Director Emeritus'.

Ms. Wagner was the founding artistic director of the Buffalo Gay Men's Chorus. She helped found the group in 2001 and conducted their first meeting on September 11th. Although this day was tragic to all Americans, this group was able to find solace during their first rehearsal. Ms. Wagner bound the newly formed choir with the song "How Can I Keep From Singing," which would then go on to be performed at every concert and rehearsal for her 10 year tenure and beyond.

While the choir was under Ms. Wagner's leadership, the Buffalo Gay Men's Choir received numerous awards, and performed on some of the grandest stages in Buffalo. With Ms. Wagner's direction the BGMC received multiple "Best in Buffalo" Awards from the local Artvoice newspaper, and was recognized by the Empire State Pride Agenda in 2005 for excellence in music and dedication to the community. Ms. Wagner led the choir to receive the prestigious Buffalo and Erie County Arts Council Award for exceptional contributions to the arts and cultural community in Western New York. Under Ms. Wagner's leadership the choir performed at the historic Kleinhans Music Hall in Buffalo, and alongside the renowned Buffalo Philharmonic Orchestra.

Ms. Barbara Wagner's commitment to The Buffalo Gay Men's Chorus is to be recognized with the distinguished title of 'Artistic Director Emeritus', during a special ceremony in their upcoming concert. I ask today, Mr. Speaker, that we honor her dedication to the arts and successes as choir director.

HONORING THE LIFE AND LEGACY OF NORTHWEST FLORIDA'S BELOVED RODNEY ROLLO

HON. JEFF MILLER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. MILLER of Florida. Mr. Speaker, I rise to recognize the life and legacy of Northwest Florida's beloved Rodney Rollo. Rodney was a true patriot, and he will be greatly missed.

Rodney was born in Pensacola, Florida and raised in neighboring Santa Rosa County, Florida. After graduating from Milton High School, Rodney answered the call of duty, enlisting in the United States Navy in 1947. After serving 20 years with honor and distinction, Rodney retired from the Navy in 1967 as a Chief Hospital Corpsman and moved to Washington D.C., where he worked as Chief of Administrative Services for the American Psychiatric Association. However, as with so many others born and raised along the Gulf Coast, Rodney returned to his hometown in 1975, and he and his wife, Ann settled in Milton.

Rodney was a proud lifelong Republican, and after moving back to Northwest Florida, he quickly immersed himself in local politics, becoming a leader in civil society. Rodney and Ann joined the Santa Rosa County Republican Executive Committee, and, with an unwavering commitment to advancing the conservative principles upon which our country was founded, they worked tirelessly to register Republicans across Santa Rosa County. In just over a decade, Rodney and Ann's efforts helped triple the number of registered Republicans in the county, and soon thereafter, every county elective office was held by a Republican. Rodney's leadership was recognized on many occasions, as he served multiple terms as Chairman of the Santa Rosa County Republican Executive Committee.

Mr. Speaker, on behalf of the United States Congress, I am honored to recognize the life and service of Rodney Rollo. He was a loving husband, patriot, and defender of freedom, and his immense contributions to Northwest Florida will be felt for years to come. My wife Vicki and I extend our deepest condolences and prayers to his sister, Betty Rollo Wolfe; nieces and nephews: Janet (Larry) Chambers, Tom (Sue) Palmer, Jeannie Cotton, Sam (Nancy) Palmer, John Palmer, Rebecca (Doug) Griener, and Sandra Clark, and the entire Rollo family.

THE ENGAGEMENT OF THE U.S. BISHOPS IN MORAL QUESTIONS REGARDING NUCLEAR WEAPONS

HON. CHRISTOPHER H. SMITH

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. SMITH of New Jersey. Mr. Speaker, I recently hosted a briefing entitled Catholic Engagement on Nuclear Disarmament: What are the moral questions? and one of the speakers, Dr. Stephen M. Colecchi, presented the following statement:

At the time of Senate ratification of the New START Treaty in 2010, Cardinal Francis George, OMI, then President of the U.S. Conference of Catholic Bishops, whose death we recently mourned, declared: ''The horribly destructive capacity of nuclear arms makes them disproportionate and indiscriminate weapons that endanger human life and dignity like no other armaments. Their use as a weapon of war is rejected in Church teaching based on just war norms.''

The Cardinal was standing on a firm foundation of longstanding teaching when he made that assertion. The 1983 pastoral letter, ''The Challenge of Peace,'' established the U.S. Catholic bishops as a moral voice on nuclear disarmament. The bishops argued that ''each proposed addition to our strategic system or change in strategic doctrine must be assessed precisely in light of whether it will render steps toward 'progressive disarmament' more or less likely.''

Ten years later in the ''Harvest of Justice is Sown in Peace,'' the bishops declared: ''The eventual elimination of nuclear weapons is more than a moral ideal; it should be a policy goal.'' This vision continues to shape their public engagement.

At the time of the drafting of the 1983 pastoral, I worked as a religious educator and was active in efforts to engage Catholics in discussions of the various drafts of the peace pastoral. The process of producing this document was significant. The bishops actively solicited feedback from both experts and people in the pew on each of three drafts. The bishops remained the teachers, but they acknowledged that prudential judgments were also involved and this required dialogue.

Consultations were held at the national and local levels, and in many settings, at universities, parishes and think tanks. These dialogues helped shape the final pastoral letter, but perhaps more importantly they also raised awareness of the fundamental issues related to nuclear weapons among many Americans. Today the Conference of Bishops is working with others to revitalize Catholic thinking and engagement on issues involving nuclear weapons today as decades have passed since they first became involved with this issue in a major way.

Over the years, in light of Church moral teaching, the bishops have also exercised leadership regarding specific elements of U.S. nuclear policy. In the late 80s they raised moral questions regarding missile defense initiatives. The bishops supported the Strategic Arms Reduction treaties (Start I and II) in the early 1990s. And in the late 90s they supported the Comprehensive Test Ban Treaty, lamenting its defeat in the Senate. The bishops welcomed the 2002 Moscow Treaty as a positive step, but called on the United States, and by implication other nations, to do much more.

During the past decade, the Conference of Bishops has opposed federal funding for research on the Robust Nuclear Earth Penetrator, the Reliable Replacement Warhead and new nuclear weapons. They weighed in on the Nuclear Posture Review, asking President Obama to narrow the purpose of the nuclear arsenal solely to deterring nuclear attack. They made a major effort to offer vigorous support for Senate ratification of the New START Treaty in 2010, and have supported and welcomed the P5+1 dialogue with Iran over their nuclear program, as has the Holy Father and the Holy See.

At its Deterrence Symposium in July 2009, the U.S. Strategic Command turned to the Conference of Bishops to offer moral reflections. Cardinal Edwin O'Brien, then an Archbishop and a member of the bishops' International Committee, gave a major address on ''Nuclear Weapons and Moral Questions: The Path to Zero.'' He urged the nuclear powers to ''move beyond'' deterrence. Subsequently, he joined Global Zero and addressed their February 2010 summit in Paris.

In his speech at the 2009 Deterrence Symposium, Cardinal O'Brien reiterated the longstanding position of the U.S. bishops: ''The moral end is clear: a world free of the threat of nuclear weapons. This goal should guide our efforts. Every nuclear weapons system and every nuclear weapons policy should be judged by the ultimate goal of protecting human life and dignity and the related goal of ridding the world of these weapons in mutually verifiable ways.''

U.S. Church leaders are not naive about the challenges that lie along the path to a world without nuclear weapons. Cardinal Francis George wrote a letter to President

Obama in 2010 in which he ". . . acknowledged that the path to a world free of nuclear weapons will be long and difficult. It will involve many steps:

Verifiably reducing nuclear arsenals as the new START Treaty continues to do;

Ratifying and bringing into force the Comprehensive Test Ban Treaty;

Reducing our nation's reliance on nuclear weapons for security as the 2010 Nuclear Posture Review began to do;

Securing nuclear materials from terrorists;

Adopting a Fissile Material Cut-Off Treaty to prohibit production of weapons-grade material;

Strengthening the International Atomic Energy Agency to monitor nonproliferation efforts and ensure access to peaceful uses of nuclear power; and

Other actions that take humanity in the direction of a nuclear-weapons-free world."

The Cardinal went on to say, "We are pastors and teachers, not technical experts. We cannot map out the precise route to the goal of eliminating nuclear weapons, but we can offer moral direction and encouragement. Although we cannot anticipate every step on the path humanity must walk, we can point with moral clarity to a destination that moves beyond deterrence to a world free of the nuclear threat."

Given these longstanding concerns of the U.S. Bishops to reduce nuclear weapons and secure nuclear materials, in April 2015, Bishop Oscar Cantú, Chairman of the Committee on International Justice and Peace, spoke on a panel on "Nuclear Weapons and the Moral Compass" sponsored by The Permanent Observer Mission of the Holy See and The Global Security Institute at the UN Headquarters in New York, and in November 2014, Bishop Richard Pates, a member of the Committee, spoke at a seminar on "Less Nuclear Stockpiles and More Development" sponsored by the Pontifical Academy of Sciences in Rome.

The bishops of the United States are deeply engaged in the moral enterprise of working for a world without nuclear weapons. As Bishop Cantú said in his April UN talk: "To achieve this goal, we must, in the words of Pope Francis, acknowledge that 'now is the time to counter the logic of fear with the ethic of responsibility, and so foster a climate of trust and sincere dialogue.'"

RECOGNIZING THE VETERANS OF VETERANS OF FOREIGN WARS POST 5327 FOR THEIR PARTICIPATION IN THE 2015 RUN FOR THE WALL

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to recognize the veterans of Veterans of Foreign Wars Post 5327 in Wentzville, Missouri for their participation in the 2015 Run for the Wall.

Since 1989, Run for the Wall has united veterans across the country through a 10-day motorcycle ride spanning from Ontario, California to the steps of the Lincoln Memorial in Washington, DC. Participants of this ride are not limited to just veterans; each year a number of current service members, families and supporters of our nation's armed services join veterans in this nationwide journey to find healing and remember those we have lost in battle.

As they make their way across the United States, Run for the Wall riders visit memorials, veterans' hospitals, and schools to discuss and pay tribute to the men and women who have served this country with honor and distinction. Additionally, this event serves as a time of reflection for all participants, building awareness for those who are still missing and emphasizing the motto that no soldier should be left behind.

This year, participants will depart on three different routes beginning on May 13, 2015. The central route will arrive in Wentzville, Missouri on the evening of May 18, 2015, wherein VFW Post 5327 will provide dinner and lodging for riders. I would like to take this opportunity to thank all participants of the ride and the veterans of VFW Post 5327 for their contribution to the cause.

Throughout my time in Congress, I have had the great privilege of meeting many of our nation's veterans, and I am always humbled by their selflessness. They have made remarkable sacrifices to protect the liberty we enjoy in this great country. Without our nation's veterans, we would not have the rights and privileges that we take for granted as Americans each and every day.

In closing, I ask all my colleagues to join me in honoring the Run for the Wall mission and its participants.

STOP WARRANTLESS SEARCHES ON AMERICANS

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. POE of Texas. Mr. Speaker, nearly two years have passed since a then-unknown 29-year-old nerd-turned-international fugitive aired the NSA's dirty secrets to the world. Edward Snowden is no patriot. However, the alarming information about the NSA's abuse of power he revealed cannot be ignored. Until Snowden, most Americans were unaware that their own government was trampling on their Fourth Amendment rights. Most people did not know their every move could be tracked by Big Brother. They trusted that this agency acted purely in the interest of national security to keep us safe. Not only were Americans in the dark on this, but so were many Members of Congress (including myself) who voted for legislation that NSA then used and abused to conduct its rogue activities.

Post 9/11 and with two ongoing wars, many believed that government surveillance—including warrantless searches and seizures—was limited to foreign nationals, not American citizens.

That would be consistent with federal law and the Constitution. But this did not happen. For example, NSA uses Section 215 of the Patriot Act. The Patriot Act permits targeted surveillance when that surveillance is justified by a court. Instead, NSA collects bulk meta data—such as surveillance of phone numbers in whole zip codes or phone carriers. These Soviet Style dragnet tactics went far beyond the scope of what Congress authorized in Section 215 of the Patriot Act. Government simply cannot disregard the law just because it is inconvenient.

We also now realized that the agency has misused and expanded the intent of Section 702 of the Foreign Intelligence Surveillance Act (FISA). NSA uses Section 702 as a means to gather not only data but content and to allow law enforcement to later search this data for information about American citizens without a warrant. Because it gathers and searches content of individual communications, Section 702 is more intrusive than Section 215. FISA permits the collection of such data of a suspected agent of a foreign power, but the federal government is also storing and later searching the content of emails, text messages and phone calls of American citizens—all without a warrant. In the course of this collection, the data of American citizens, many of which have done nothing wrong or illegal, gets collected.

That kind of reverse targeting of American citizens is not what Congress intended, is inconsistent with the Constitution and must stop.

The NSA has claimed it has no interest in monitoring the activity of "ordinary" Americans. My response to that is simple: then don't do it. But, most Americans have a hard time accepting that line. They question that for the simple fact that had Edward Snowden not revealed what was really going on within NSA in the first place, this snooping and spying would still be going on in the dark shadows of government operations. And, equally important, they know that this snooping and spying is still going on today.

It's time for Congress to rein in this blatant violation of the Fourth Amendment and stop the warrantless searches of Americans. This issue—protecting the Fourth Amendment—has unified liberals and conservatives. This week, Congresswoman Rep. ZOE LOFGREN (D–CA), Congressman Rep. THOMAS MASSIE (R–KY), and I introduced the End Warrantless Surveillance of Americans Act. The bill would prohibit warrantless searches of government databases for information that pertains to U.S. citizens. It would also forbid government agencies from mandating or requesting "back doors" into commercial products that can be used for surveillance.

The legislation mirrors an amendment we offered to the USA Freedom Act, which was backed by a broad bipartisan coalition including Members of Congress and outside groups across the political spectrum.

The USA Freedom Act that passed out of the Judiciary Committee last week is an improvement over current law and a step in the right direction. But we can do more to protect the Fourth Amendment. In addition to stopping bulk data collection, Congress should also act now to fix the other loophole and stop warrantless searches under Section 702 of the Foreign Intelligence Surveillance Act (FISA). Failure to address this gaping loophole in FISA leaves the constitutional rights of millions of Americans vulnerable and unprotected. This bill also ensures that the federal government does not force companies to enable its spying activities. The NSA has and will continue to violate the constitutional protections guaranteed to every American unless Congress intervenes. Until we fix this and make the law clear, citizens can never be sure that their private conversations are safe from the eyes of the government.

Last year the House of Representatives overwhelmingly passed similar legislation as an amendment to DOD Appropriations.

Congress should do all that it can to reform our national intelligence agencies and to protect the constitutional rights of all Americans, including passing this legislation to close the loophole and ensure that the NSA abides by the letter and spirit of the law. It is our duty to make this right and ensure that the Fourth Amendment rights of the people we represent will no longer be trampled on by the NSA.

And that's just the way it is.

RECOGNIZING THE 50TH ANNIVERSARY OF THE NORTHWEST FLORIDA MILITARY OFFICERS ASSOCIATION

HON. JEFF MILLER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. MILLER of Florida. Mr. Speaker, I rise to recognize the 50th Anniversary of the Northwest Florida Military Officers Association (NWFMOA).

Chartered in 1965 in Fort Walton Beach, Florida, initially as a social network for retired officers, the Northwest Florida Military Officers Association has transformed into a sizeable advocacy effort on behalf of our Nation's military members and dependents and adheres to the selfless values of the Military Officers Association of America founded in 1929.

Throughout the last five decades, the members of NWFMOA have worked hand-in-hand with our forces stationed at Eglin Air Force Base, Hurlburt Field, and Duke Field, and their tireless efforts have helped ensure our brave men and women in uniform receive the training and equipment needed to successfully accomplish their assigned missions and safely return home. In addition, NWFMOA has been a stalwart presence educating decision makers on how best to make certain our veterans reintegrate into the civilian sector and to safeguard the benefits they have earned through service.

With membership open to all commissioned and warrant officers of all branches of the U.S. Armed Forces, as well as the United States Public Health Service (USPHS) and the National Oceanographic and Atmospheric Administration (NOAA), the work of the NWFMOA cannot be overstated.

Mr. Speaker, Northwest Florida is proud of its rich military heritage and the members of our Armed Forces who call it home. I want to thank the members of the Northwest Florida Military Officers Association for a half century of steadfast dedication to the Gulf Coast military and veterans' community and for their lifelong example of service for the cause of Freedom.

CELEBRATING THE ACCOMPLISHMENTS OF MR. NGUYEN NGOC HANH

HON. ZOE LOFGREN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Ms. LOFGREN. Mr. Speaker, today I recognize the life of Mr. Nguyen Ngoc Hanh for his outstanding achievements as a soldier, photographer, and teacher. His contributions to documenting the Vietnam War over forty years ago continue to inform us about this conflict.

Mr. Hanh was recognized among the Top Ten Photographers of the Photographic Society of America in 1968 for his coverage of the Tet Offensive. His stunning portraits of soldiers and Viet Cong detainees capture the emotion and humanity of the war. He began photographing the conflict in 1956, while serving in a paratrooper battalion. By 1961, at the age of thirty-four, the South Vietnam Armed Forces assigned Mr. Hanh as its official war photographer. Perhaps his most well known photograph is a portrait of a tearful young woman in Hue recently widowed and holding her husband's tags.

After the fall of Saigon in 1975, Mr. Hanh declined to use his personal pass for a helicopter transport and instead chose to remain with his fellow soldiers. This led to Mr. Hanh's imprisonment by the North Vietnam Army. For the first year and four months of his confinement, Mr. Hanh's lived in a metal container too small for him to stand and too narrow for him to lie down. He remained detained until 1983, and on his fourth attempt was able to flee from Vietnam to Thailand in 1985.

Four years later, at the age of sixty-two, Mr. Hanh immigrated to San Jose. He soon established the Vietnam Photographic Association while also working at a Fremont technology company delivering mail. Since 1989, Mr. Hanh has trained hundreds of photography students in San Jose. He also exhibited his photos at the annual Vietnamese New Year Tet Festival in San Jose, as well as at several nonprofit fund raising events to raise money for the disabled vets of the South Vietnam Armed Forces. His work has contributed immensely not only to San Jose, but also to our country. I thank him for his contributions, and I recognize him as an outstanding member of the Vietnamese-American community.

RECOGNIZING THE 130TH ANNIVERSARY OF SECOND BAPTIST CHURCH OF LOS ANGELES

HON. LUCILLE ROYBAL-ALLARD

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise today to congratulate Second Baptist Church of Los Angeles on the celebration of its 130th anniversary.

In 1885, Second Baptist Church was organized as Southern California's first African-American Baptist church. It quickly developed into one of South Los Angeles' most esteemed and effective institutions, offering vital support throughout the community. Over the years, a wide and diverse population of Angelenos have benefited from the church's child care and educational services, its scholarship programs, and its involvement in creating housing for families and shelter space for homeless women and children.

Second Baptist Church has also played an active role in our nation's long and ongoing dialogue about civil rights. In 1954, Second Baptist members raised $1,500 for the NAACP Legal Defense Fund to pay for printing the legal briefs for the Brown vs. Board of Education case, which desegregated America's schools. The church also hosted the NAACP's national conventions in 1928, 1942, and 1949.

Second Baptist Church's unflagging commitment to social justice and helping the least among us is also reflected in its long and distinguished list of speakers—a list including ministers, advocates, officials, and scholars. The Rev. Dr. Martin Luther King, Jr., was a frequent speaker throughout his career. Malcolm X, W.E.B. Du Bois, Ralph Bunche, and the Rev. Adam Clayton Powell, Sr. are just a few of the other orators to have spoken within the walls of Second Baptist.

Because of the church's substantial involvement in some of the most important social fights of our age, it was listed as a Los Angeles Historic-Cultural Monument in 1978, and was placed on the National Register of Historic Places in 2009. Both are well-deserved honors for this church and for the beautiful Lombardy Romanesque Revival building in which it is housed.

It is my great privilege to represent Second Baptist Church and its congregation in Congress. In times of trial and in times of joy, this church has been a source of strength and unity for all who have been touched by its mission. On its 130th anniversary, Second Baptist Church is both a marker of how society has progressed in its lifetime, and a guiding light continuing to point us towards a brighter future of brotherhood, peace, and justice for all. I ask my colleagues to join me in celebrating all that Second Baptist Church has done to move the hearts and minds of Angelenos and all Americans, and to wish the church and its congregation a very happy 130th anniversary.

RECOGNITION OF FORMER U.S. SPEAKER OF THE HOUSE JAMES ''JIM'' WRIGHT, JR.

HON. EDDIE BERNICE JOHNSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, I rise today with great pleasure to pay tribute to the life and legacy of Former Speaker of the House James ''Jim'' Wright, who passed away on Wednesday, May 6th at the age of 92. Speaker Wright served in Congress for more than three decades and left an indelible legacy as chairman of the House Public Works Committee. He was elected by his peers as Speaker in 1987.

Jim Wright was born in Fort Worth, Texas, the son of a traveling salesman. He was educated at Weatherford College and the University of Texas at Austin. Jim Wright dedicated his life to serving the public. He bravely served in the United States Army Air Forces during World War II and was awarded the Distinguished Flying Cross for flying combat missions in the South Pacific. Subsequently, he was elected to the Texas House of Representatives in 1946. He served as mayor of Weatherford, Texas from 1950 to 1954. He was elected to the U.S. House of Representatives in 1954 and was reelected 16 times.

Speaker Wright was a visionary who served the people of Fort Worth and this nation well. He is deserving of this tribute. Because of his leadership, the House experienced one of its most prolific periods. Speaker Wright demonstrated his skill as a political leader and

master legislator by shepherding extraordinarily complex legislation through the House. He understood that the business of legislating and good politics required great skill in the art of compromise.

Speaker Wright never backed down from a challenge, and even after leaving office, he continued to serve the public diligently. I was always able to consult with Speaker Wright regarding difficult legislation, and he never failed to provide thoughtful and principled insight.

Our country has lost one of its finest statesmen, and I have lost a close personal friend whose wisdom, dignity and knowledge of the legislative process was unquestionably enviable. He is among the most influential Speakers in the history of the House of Representatives.

Mr. Speaker, Jim Wright is an unforgettable public servant and leader. A man fueled by passion and concern for others, he set the bar high for his successors. He is survived by his wife, Betty and four children. I stand today to honor Former Speaker of the House, Jim Wright, and to thank him for his work in service to the people of Texas and throughout this great nation. He left a powerful legacy that will live for generations.

THE ENGAGEMENT OF THE U.S. BISHOPS IN MORAL QUESTIONS REGARDING NUCLEAR WEAPONS

HON. CHRISTOPHER H. SMITH

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. SMITH of New Jersey. Mr. Speaker, I recently hosted a briefing entitled Catholic Engagement on Nuclear Disarmament: What are the moral questions? and one of the speakers, His Excellency Archbishop Bernardito Auza, Permanent Representative of the Holy See to the United Nations, presented the following statement:

The Holy See has always been morally against nuclear weapons and has always called for their abolition. It has worked and continues to work for a world without nuclear weapons.

In February 1943, two years and a half before the Trinity test, Pope Pius XII had already voiced deep concern regarding the violent use of atomic energy. In an address to a meeting of Western military scientists in 1953, Pope Pius XII said that the possession of ''ABC'' (Atomic-Biological-Chemical) weapons made legitimate self-defense against an aggressor a less likely prospect, because ''if the damage resulting from war is not comparable with that of the 'injustice tolerated,' one may be obliged 'to submit to the injustice.''' Devoting his entire 1954 Easter Message to the question of nuclear weapons, he spoke of the effects of a nuclear war by evoking ''the vision of vast territories rendered uninhabitable and useless to mankind . . . transmissible diseases . . . and monstrous deformities.'' Given such totally uncontrollable and indiscriminate consequences, the Pope demanded ''the effective proscription and banishment of atomic warfare,'' calling the arms race a ''costly relationship of mutual terror.'' This was the first clear papal condemnation of the nuclear arms race, sixteen years before the Treaty on the Non-Proliferation of Nuclear Weapons (NPT).

Already well within the Cold War era and right after the Cuban missile crisis, Pope Saint John XXIII, in his 1963 Encyclical Pacem in Terris, called for the abolition of nuclear weapons and for the establishment of an adequate disarmament program to achieve that end. He spoke very clearly about the theory or doctrine of deterrence as the principal cause of the arms race and of arms proliferation and about the tremendous economic burdens the arms race provoked. He argued quite extensively that ''justice, right reason, and the recognition of man's dignity cry out insistently for a cessation to the arms race. The stockpiles of armaments that have been built up in various countries must be reduced reciprocally and simultaneously by the parties concerned. Nuclear weapons must be banned. A general agreement must be reached on a suitable disarmament program, with an effective system of mutual control. Unless this process of disarmament be thoroughgoing and complete, and reaches men's very souls, it is impossible to stop the arms race, or to reduce armaments, or—and this is the main thing—ultimately to abolish them entirely. Everyone must sincerely co-operate in the effort to banish fear and the anxious expectation of war from men's minds. But this requires that the fundamental principles upon which peace is based in today's world be replaced by an altogether different one, namely, the realization that true and lasting peace among nations cannot consist in the possession of an equal supply of armaments but only in mutual trust. And we are confident that this can be achieved, for it is a thing that not only is dictated by common sense, but is in itself most desirable and most fruitful of good.''

In his address to the UN General Assembly on 4 October 1965, Pope Paul VI characterized nuclear weapons as ''nightmares'' and ''dark designs.'' He also stressed that the weapons themselves ''lead astray the mentality of peoples.'' His plea of ''jamais plus la guerre,'' of ''war never again,'' reverberated in the General Assembly Hall. But his appeal to let weapons fall from our hands, ''especially the terrible weapons that modern science has given us,'' in clear reference to nuclear arms, still remains unheeded. Pope Paul's call to end the nuclear arms race reached its culmination in his 1977 World Day of Peace message, in which he demonstrated that nuclear arms offered a false sense of security. He reiterated this in his message to the U.N. General Assembly on Disarmament in 1978, calling the peace of nuclear deterrence ''a tragic illusion.'' He also reiterated an assertion made earlier in his papacy, that the nuclear arms race retarded the development of peoples, citing the ''crying disproportion between the resources in money and intelligence devoted to the service of death and the resources devoted to the service of life.''

In 1982, Pope Saint John Paul II addressed a message to the United Nations General Assembly on its second conference devoted to Disarmament. The Pope said that in the ''current conditions of the Cold War, 'deterrence,' considered not as an end in itself but as a step toward a progressive disarmament, may still be judged morally acceptable. Nonetheless, in order to ensure peace, it is indispensable not to be satisfied with this minimum, which is always susceptible to the real danger of explosion.'' The Holy Father, therefore, did not countenance deterrence as a permanent measure.

As time progressed and the central promise of the NPT remained unfulfilled, the Holy See stepped up its efforts to argue for the abolition of nuclear weapons. In his 2006 World Day of Peace Message, Pope Benedict XVI criticized the argument of nuclear arms for security as ''completely fallacious'' and affirmed that ''peace requires that all strive for progressive and concerted nuclear disarmament.''

Since the 2010 Review Conference of the Parties to the NPT, there has been an increased attention to the humanitarian dimension of and the risks associated with nuclear weapons. This heightened interest was manifested by cross-regional humanitarian statements in the UN and other regional and international fora and, in particular, by the organization of three Conferences on the Humanitarian Impact of Nuclear Weapons in Oslo (March 2013), Nayarit (February 2014), and Vienna (December 2014). These Conferences have seen increased participation of States, of non-governmental organizations and of the greater civil society.

During the Vienna Conference, the Holy See presented three documents: first, the official Statement delivered by the Delegation of the Holy See; second, the message that Pope Francis sent to His Excellency Mr. Sebastian Kurz, President of the Vienna Conference on the Humanitarian Impact of Nuclear Weapons in December 2014; and, third, a paper entitled ''Nuclear Disarmament: Time for Abolition.''

On April 9, 2015, the Permanent Observer Mission of the Holy See to the United Nations in New York organized a conference entitled ''Nuclear Weapons and the Moral Compass.'' The Speakers were neither nuclear scientists nor political authorities, but rather religious leaders: an Anglican Bishop, a Rabbi, an Evangelical Minister, an Imam, and a Catholic Bishop in the person of Bishop Oscar Cantú, Bishop of Las Cruces and Chairman of the USCCB Committee on International Justice and Peace.

The objective of the Conference was to insist on and strengthen the moral argument against not only the use but also the possession of nuclear weapons. Arguing against the policy of deterrence, the Conference served to echo and further disseminate the Paper that the Holy See presented in Vienna and Pope Francis's strong stand for the abolition of nuclear weapons The timing of the Conference was in anticipation of the then imminent Ninth Review Conference on the Treaty on the Non Proliferation of Nuclear Weapons, which opened yesterday at the UN in New York and will continue until May 22.

The NPT is one of the best known and most adhered to Treaties, with Palestine being the 191st Party to it. The Holy See has been a Party to the NPT since the very beginning, not because it has nuclear weapons or has to be constrained from developing nuclear weapons capabilities, but to encourage nuclear possessing States to abolish their nuclear weapons, to dissuade non-nuclear possessing States from acquiring or developing nuclear capabilities, and to encourage international cooperation on the peaceful uses of nuclear energy.

The documents that the Holy See presented in Vienna advanced anew the moral argument against both the possession and the use of nuclear weapons, and aimed to sustain and advance the discussion along this line.

The Holy See considers it a moral and humanitarian imperative to advance the efforts towards the final objective of the total elimination of nuclear weapons. It argues that disarmament treaties are not just legal obligations; they are also moral commitments based on trust between States, rooted in the trust that citizens place in their governments. If commitments to nuclear disarmament are not made in good faith and consequently result in breaches of trust, the proliferation of such weapons would be the logical corollary.

Despite some progress and much effort on the part of many, nuclear disarmament is currently in crisis. The institutions that are

supposed to move this process forward have been blocked for years. The central promise of the NPT has remained a dream. In fact, while the pre-NPT nuclear power countries not only have not disarmed but are also modernizing their nuclear arsenals, some pre-NPT non-nuclear countries have acquired or are in the process of acquiring nuclear arms capabilities. What is even more terrifying is the possibility that non-state actors, like terrorist and extremist organizations, could acquire nuclear weapons.

The possession of nuclear weapons and the reliance on nuclear deterrence have had a very negative impact on relations between and among States. National security often comes up in discussions on nuclear weapons. All States have the right to national security, but this principle must not be applied in a partial and discriminatory manner, for example, when one State affirms that it needs nuclear weapons for its national security, while at the same time affirming that another State cannot have them. It is urgent to revisit in a transparent and honest manner the definition made by States, especially the nuclear weapons states, of their national security.

Nuclear weapons cannot create for us a stable and secure world. Peace and international stability cannot be founded on mutually-assured destruction or on the threat of total destruction. The Holy See believes that peace cannot be reduced solely to maintaining a balance of power between enemies. On the contrary, as Pope Francis affirms in his letter to the President of the Vienna Conference, ''Peace must be built on justice, socio-economic development, freedom, respect for human rights, the participation of all in public affairs and the building of trust between peoples.''

In its argument against the possession and use of nuclear weapons, the Holy See also focuses attention on (1) the costs of the nuclear stalemate to the global common good; (2) the ''illusions of security'' inherent in the possession of nuclear arms; (3) the inequality at the root of the non-proliferation regime according to the NPT; and (4) the enormous toll that current nuclear policies take on the poor and on the world's priorities.

The United Nations will soon adopt the Post-2015 Sustainable Development Agenda. The Sustainable Development Goals contained therein are daunting and require enormous means to implement. It would be naïve and myopic if we seek to assure world peace and security through nuclear weapons rather than through the eradication of extreme poverty, making healthcare and education accessible to all, and promoting peaceful institutions and societies through dialogue and solidarity.

For our own good and that of future generations, we have no reasonable and moral option other than the abolition of nuclear weapons. Nuclear weapons are a global problem and they impact all countries and all peoples, including future generations. Moreover, ever-growing interdependence and globalization demand that whatever response we may have against the threat of nuclear weapons must be collective and concerted, based on reciprocal trust.

Arguing for nuclear abolition from the moral perspective, the Holy See appeals to human consciences. As Paul VI affirmed in his 1965 Address to the United Nations General Assembly, ''Today, as never before, in an era marked by such human progress, there is need for an appeal to the moral conscience of man. For the danger comes, not from progress, nor from science. The real danger comes from man himself, who has at his disposal ever more powerful instruments, which can be used for destruction as for the loftiest conquests.''

No one could ever say that a world without nuclear weapons is easily achievable. It is not; it is extremely arduous; it is even a utopia for some. But there is no alternative than to work unceasingly towards its achievement. As President John F. Kennedy said in his Commencement Address at the American University on 10 June 1963, ''The pursuit of peace is not as dramatic as the pursuit of war—and frequently the words of the pursuers fall on deaf ears. But we have no more urgent task.''

Let me conclude by reaffirming the conviction that Pope Francis expressed in his December 2014 message to the President of the Vienna Conference on the Humanitarian Impact of Nuclear Weapons: ''I am convinced that the desire for peace and fraternity planted deep in the human heart will bear fruit in concrete ways to ensure that nuclear weapons are banned once and for all, to the benefit of our common home.''

RECOGNIZING THE CENTENNIAL ANNIVERSARY OF THE UNITED STATES NAVY RESERVE

HON. JEFF MILLER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 12, 2015

Mr. MILLER of Florida. Mr. Speaker, I am honored to rise and recognize the Centennial Anniversary of the United States Navy Reserve.

Following the outbreak of World War I in 1914, Secretary of the Navy Josephus Daniels and Assistant Secretary and future President Franklin D. Roosevelt initiated plans to formally launch a world-class naval reserve force necessary to protect the United States. On March 3, 1915, Congress passed legislation establishing the United States Naval Reserve, which is known today as the United States Navy Reserve.

The creation of the Navy Reserve harkens back to our Nation's tradition of Citizen Sailors protecting and defending the shores of the United States, when residents of seaside towns along the New England coast engaged British warships in the Atlantic before the Continental Congress officially established the Continental Navy. The Navy Reserve has built on this proud tradition, and during the years following its original inception, the Navy Reserve grew tremendously.

The successful growth of the Navy Reserve proved to be crucial during World War II. Ten out of eleven sailors in the Navy during World War II were reservists, and, according to former Secretary of the Navy John L. Sullivan, who served as the first Secretary of the Navy following the creation of the Department of Defense, the three and a half million Naval Reservists that served during World War II made possible the rapid expansion of our naval service into the largest the world has ever known. Navy Reservists were there from the very beginning of the war. In fact, Navy Reserve Sailors from Minnesota aboard the USS Ward fired the first shots by the United States against Japanese forces on the day of Pearl Harbor, destroying a Japanese mini-submarine. With the outbreak of the war, the reserves grew further, and in 1942, the Naval Aviation Cadet Program was created, African-American males were accepted for enlistment, and the Women Accepted for Voluntary Emergency Service (WAVES) program was created, which allowed women to volunteer for service within the Navy Reserves. By the end of World War II, 91,000 women were actively serving, and over its century of service, five Presidents—John F. Kennedy, Lyndon B. Johnson, Richard Nixon, Gerald Ford and George H. W. Bush—have served in the Navy Reserves.

The Navy Reserves continued to support the United States Navy through the Korean War, Cold War, the Berlin Crisis, Vietnam, Operations Desert Shield and Desert Storm, and our continued fight against terrorism. Since September 11, 2001, the Navy Reserve has completed more than 70,000 mobilizations in support of contingency operations around the world and continues to be a vital component of the United States Navy.

Mr. Speaker, throughout our Nation's history, Citizen Sailors and then Navy Reservists have protected the United States with honor, courage, and commitment. The millions of Americans who have served and the thousands who serve today are testaments to the patriotism and professionalism of the best Navy Reserve force the world has ever seen, and I am honored to recognize its Centennial Anniversary and thank the men and women of the Navy Reserve for their steadfast service and dedication to the cause of Freedom.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S2767–S2814

Measures Introduced: Twenty-six bills and one resolution were introduced, as follows: S. 1287–1312, and S. Res. 178. **Pages S2793–94**

Measures Reported:

Report to accompany S. 995, to establish congressional trade negotiating objectives and enhanced consultation requirements for trade negotiations, to provide for consideration of trade agreements. (S. Rept. No. 114–42)

Report to accompany S. 1267, to extend the African Growth and Opportunity Act, the Generalized System of Preferences, the preferential duty treatment program for Haiti. (S. Rept. No. 114–43)

Report to accompany S. 1268, to extend the trade adjustment assistance program. (S. Rept. No. 114–44) **Page S2793**

Measures Passed:

Raul Hector Castro Port of Entry: Committee on Environment and Public Works was discharged from further consideration of H.R. 1075, to designate the United States Customs and Border Protection Port of Entry located at First Street and Pan American Avenue in Douglas, Arizona, as the ''Raul Hector Castro Port of Entry'', and the bill was then passed. **Page S2814**

Measures Considered:

Ensuring Tax Exempt Organizations the Right to Appeal Act—Agreement: Senate resumed consideration of the motion to proceed to consideration of H.R. 1314, to amend the Internal Revenue Code of 1986 to provide for a right to an administrative appeal relating to adverse determinations of tax-exempt status of certain organizations. **Pages S2785–92**

During consideration of this measure today, Senate also took the following action:

By 52 yeas to 45 nays (Vote No. 176), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to close further debate on the motion to proceed to consideration of the bill. **Pages S2785–87**

Senator McConnell entered a motion to reconsider the vote by which cloture was not invoked on the motion to proceed to consideration of the bill. **Page S2787**

A unanimous-consent agreement was reached providing for further consideration of the motion to proceed to consideration of the bill at approximately 10:30 a.m., on Wednesday, May 13, 2015. **Page S2814**

Additional Cosponsors: **Pages S2794–96**

Statements on Introduced Bills/Resolutions: **Pages S2796–99**

Additional Statements: **Page S2793**

Amendments Submitted: **Pages S2799–2813**

Authorities for Committees to Meet: **Pages S2813–14**

Record Votes: One record vote was taken today. (Total—176) **Pages S2786–87**

Adjournment: Senate convened at 10 a.m. and adjourned at 5:44 p.m., until 9:30 a.m. on Wednesday, May 13, 2015. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S2814.)

Committee Meetings

(Committees not listed did not meet)

APPROPRIATIONS: FEDERAL COMMUNICATIONS COMMISSION

Committee on Appropriations: Subcommittee on Financial Services and General Government concluded a hearing to examine proposed budget estimates and justification for fiscal year 2016 for the Federal Communications Commission, after receiving testimony from Tom Wheeler, Chairman, and Ajit Pai, Commissioner, both of the Federal Communications Commission.

AUTHORIZATION—DEFENSE

Committee on Armed Services: Subcommittee on SeaPower met in closed session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the

proposed National Defense Authorization Act for fiscal year 2016.

AUTHORIZATION—DEFENSE

Committee on Armed Services: Subcommittee on Strategic Forces met in closed session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2016.

AUTHORIZATION—DEFENSE

Committee on Armed Services: Subcommittee on Readiness and Management Support met in open session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2016.

AUTHORIZATION—DEFENSE

Committee on Armed Services: Subcommittee on Emerging Threats and Capabilities met in open session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2016.

AUTHORIZATION—DEFENSE

Committee on Armed Services: Subcommittee on Personnel met in open session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2016.

AMERICAN MINERAL SECURITY ACT OF 2015

Committee on Energy and Natural Resources: Committee concluded a hearing to examine S. 883, to facilitate the reestablishment of domestic, critical mineral designation, assessment, production, manufacturing, recycling, analysis, forecasting, workforce, education, and research capabilities in the United States, after receiving testimony from Suzette Kimball, Acting Director, Geological Survey, Department of the Interior; Ed Fogels, Alaska Department of Natural Resources Deputy Commissioner, Anchorage, on behalf of The Interstate Mining Compact Commission; Red Conger, Freeport-McMoRan Americas, Washington, D.C., on behalf of National Mining Association; and Kevin J. Cosgriff, National Electrical Manufacturers Association, and Richard Silberglitt, The RAND Corporation, both of Arlington, Virginia.

CIVIL NUCLEAR AGREEMENT WITH CHINA

Committee on Foreign Relations: Committee concluded a hearing to examine the civil nuclear agreement with China, focusing on balancing potential risks and rewards, after receiving testimony from Thomas M. Countryman, Assistant Secretary of State, Bureau of International Security and Nonproliferation; and Lieutenant General Frank G. Klotz, USAF (Ret.), Under Secretary of Energy for Nuclear Security and Administrator, National Nuclear Safety Administration.

VETERANS CHOICE PROGRAM

Committee on Veterans' Affairs: Committee concluded a hearing to examine the implementation and future of the Veterans Choice Program, after receiving testimony from Sloan Gibson, Deputy Secretary of Veterans Affairs; and David J. McIntyre, Jr., TriWest Healthcare Alliance, Donna Hoffmeier, Health Net Federal Services, Roscoe G. Butler, The American Legion, Darin Selnick, Concerned Veterans for America, Joseph A. Violante, Disabled American Veterans, Bill Rausch, Iraq and Afghanistan Veterans of America, and Carlos Fuentes, Veterans of Foreign Wars of the United States, all of Washington, D.C.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 38 public bills, H.R. 2247–2284; and 6 resolutions, H.J. Res. 50; and H. Res. 254, 256–259, were introduced. **Pages H2876–77**

Additional Cosponsors: **Pages H2879–80**

Reports Filed: Reports were filed today as follows:

H.R. 2250, making appropriations for the Legislative Branch for the fiscal year ending September 30, 2016, and for other purposes (H. Rept. 114–110); Supplemental report on H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense and for military

construction, to prescribe military personnel strengths for such fiscal year, and for other purposes (H. Rept. 114–102, Part 2); and

H. Res. 255, providing for consideration of the bill (H.R. 1735) to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense and for military construction, to prescribe military personnel strengths for such fiscal year, and for other purposes; providing for consideration of the bill (H.R. 36) to amend title 18, United States Code, to protect pain-capable unborn children, and for other purposes; providing for consideration of the bill (H.R. 2048) to reform the authorities of the Federal Government to require the production of certain business records, conduct electronic surveillance, use pen registers and trap and trace devices, and use other forms of information gathering for foreign intelligence, counterterrorism, and criminal purposes, and for other purposes; and providing for consideration of motions to suspend the rules (H. Rept. 114–111). **Pages H2875–76**

Speaker: Read a letter from the Speaker wherein he appointed Representative Womack to act as Speaker pro tempore for today. **Page H2823**

Recess: The House recessed at 12:16 p.m. and reconvened at 2 p.m. **Page H2825**

Guest Chaplain: The prayer was offered by the Guest Chaplain, Reverend Andrew Walton, Capitol Hill Presbyterian Church, Washington, DC. **Page H2825**

Recess: The House recessed at 2:13 p.m. and reconvened at 4:01 p.m. **Page H2826**

Regulatory Integrity Protection Act of 2015: The House passed H.R. 1732, to preserve existing rights and responsibilities with respect to waters of the United States, by a recorded vote of 261 ayes to 155 noes, Roll No. 219. **Pages H2827–40, H2851–54**

Rejected the Aguilar motion to recommit the bill to the Committee on Transportation and Infrastructure with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 175 yeas to 241 nays, Roll No. 218. **Pages H2852–53**

Pursuant to the Rule, in lieu of the amendment in the nature of a substitute recommended by the Committee on Transportation and Infrastructure now printed in the bill, the amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–13, modified by the amendment printed in part A of H. Rept. 114–98, shall be considered as read. **Pages H2836–37**

Agreed to:

Kildee amendment (No. 2 printed in part B of H. Rept. 114–98) that gives a state two years to become compliant with the new 'waters of the U.S.' rule in order to protect a state from automatically losing their state permitting programs through the Clean Water Act because of the new rule. **Pages H2839–40**

Rejected:

Edwards amendment (No. 1 printed in part B of H. Rept. 114–98) that sought to provide policy provisions that the Secretary and Administrator are prohibited from including in a final rule (by a recorded vote of 167 ayes to 248 noes, Roll No. 217). **Pages H2837–39**

H. Res. 231, the rule providing for consideration of the bill (H.R. 1732), the conference report to accompany the concurrent resolution (S. Con. Res. 11), and the joint resolution (H. J. Res. 43) was agreed to on April 30th.

Recess: The House recessed at 6:21 p.m. and reconvened at 6:31 p.m. **Page H2850**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Rafael Ramos and Wenjian Liu National Blue Alert Act of 2015: S. 665, to encourage, enhance, and integrate Blue Alert plans throughout the United States in order to disseminate information when a law enforcement officer is seriously injured or killed in the line of duty, is missing in connection with the officer's official duties, or an imminent and credible threat that an individual intends to cause the serious injury or death of a law enforcement officer is received; **Pages H2840–46**

Don't Tax Our Fallen Public Safety Heroes Act: H.R. 606, to amend the Internal Revenue Code of 1986 to exclude certain compensation received by public safety officers and their dependents from gross income, by a 2/3 yea-and-nay vote of 413 yeas with none voting "nay", Roll No. 216; **Pages H2846–48**

Defending Public Safety Employees' Retirement Act: H.R. 2146, amended, to amend the Internal Revenue Code of 1986 to allow Federal law enforcement officers, firefighters, and air traffic controllers to make penalty-free withdrawals from governmental plans after age 50, by a 2/3 yea-and-nay vote of 407 yeas to 5 nays, Roll No. 220; and **Pages H2848–50, H2854–55**

Fallen Heroes Flag Act of 2015: H.R. 723, to provide Capitol-flown flags to the immediate family of fire fighters, law enforcement officers, members of rescue squads or ambulance crews, and public safety officers who are killed in the line of duty. **Pages H2856–57**

Oath of Office—Eleventh Congressional District of New York: Representative-elect Daniel M. Donovan, Jr. presented himself in the well of the

House and was administered the Oath of Office by the Speaker. Earlier, the Clerk of the House transmitted a scanned copy of a letter received from Mr. Robert A. Brehm and Mr. Todd D. Valentine, Co-Executive Directors of the New York State Board of Elections, indicating that, according to the preliminary results of the Special Election held May 5, 2015, the Honorable Daniel M. Donovan, Jr. was elected Representative to Congress for the Eleventh Congressional District, State of New York.

Pages H2850–51

Whole Number of the House: The Speaker announced to the House that, in light of the administration of the oath to the gentleman from New York, the whole number of the House is 433.

Page H2851

Supplemental Report: Agreed that the Committee on Armed Services be authorized to file a supplemental report on H.R. 1735, National Defense Authorization Act for Fiscal Year 2016. **Page H2855**

WIOA Technical Amendments Act: The House agreed to discharge from committee and pass S. 1124, to amend the Workforce Innovation and Opportunity Act to improve the Act. **Page H2855**

Expressing the condolences of the House of Representatives on the death of the Honorable James Claude Wright, Jr.: The House agreed to H. Res. 254, expressing the condolences of the House of Representatives on the death of the Honorable James Claude Wright, Jr., a Representative from the State of Texas. **Page H2855**

Recess: The House recessed at 9:11 p.m. and reconvened at 10:15 p.m. **Page H2865**

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on pages H2826, H2850–51.

Senate Referrals: S. 179, S. 136, and S. 994 were referred to the Committee on Oversight and Government Reform. S. Con. Res. 16 was referred to the Committee on Foreign Affairs. **Page H2866**

Quorum Calls—Votes: Three yea-and-nay votes and two recorded votes developed during the proceedings of today and appear on pages H2850, H2851–52, H2853, H2853–54, and H2854–55. There were no quorum calls.

Adjournment: The House met at 12 noon and at 10:16 p.m., pursuant to H. Res. 254, the House stands adjourned until 10 a.m. on May 13, 2015 out of respect for the late Honorable James Claude Wright, Jr.

Committee Meetings

PAIN-CAPABLE UNBORN CHILD PROTECTION ACT; NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2016; USA FREEDOM ACT OF 2015

Committee on Rules: Full Committee held a hearing on H.R. 36, the "Pain-Capable Unborn Child Protection Act"; H.R. 1735, the "National Defense Authorization Act for Fiscal Year 2016" (General Debate); and H.R. 2048, the "USA FREEDOM Act of 2015". The committee granted, by record vote of 8–3, a general debate rule for H.R. 1735. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Armed Services. The rule waives all points of order against consideration of the bill. The rule provides that no further consideration of the bill shall be in order except pursuant to a subsequent order of the House. Additionally, the rule grants a closed rule for H.R. 36. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary or their respective designees. The rule waives all points of order against consideration of the bill. The rule provides that the amendment in the nature of a substitute printed in part A of the Rules Committee report shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions. The rule also grants a closed rule for H.R. 2048. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary. The rule waives all points of order against consideration of the bill. The rule provides that the amendment printed in part B of the Rules Committee report shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions. Lastly, the rule provides that it shall be in order at any time on the legislative day of May 14, 2015, or May 15, 2015, for the Speaker to entertain motions that the House suspend the rules, as though under clause 1 of rule XV and that the Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section. Testimony was heard from Chairman Thornberry, Chairman Goodlatte, and Representatives Smith of Washington, Courtney, Nadler, Issa, Polis, Yoder, Amash, Massie, Franks of Arizona, and Cohen.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, MAY 13, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Department of the Interior, Environment, and Related Agencies, to hold hearings to examine proposed budget estimates for fiscal year 2016 for the Bureau of Land Management, 10 a.m., SD–124.

Committee on Armed Services: closed business meeting to markup the proposed National Defense Authorization Act for fiscal year 2016, 9:30 a.m., SR–222.

Committee on Foreign Relations: to hold hearings to examine safeguarding American interests in the East and South China Seas, 2:15 p.m., SD–419.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine securing the border, focusing on fencing, infrastructure, and technology force multipliers, 2 p.m., SD–342.

Committee on Indian Affairs: business meeting to consider S. 986, to require the Secretary of the Interior to take into trust 4 parcels of Federal land for the benefit of certain Indian Pueblos in the State of New Mexico; to be immediately followed by an oversight hearing to examine the Bureau of Indian Education, focusing on organizational challenges in transforming educational opportunities for Indian children, 2:15 p.m., SD–628.

Committee on the Judiciary: to hold hearings to examine protecting the constitutional right to counsel for indigents charged with misdemeanors, 10 a.m., SD–226.

Committee on Veterans' Affairs: to hold hearings to examine pending benefits legislation, 3 p.m., SR–418.

House

Committee on Agriculture, Subcommittee on Biotechnology, Horticulture, and Research, hearing to review the federal coordination and response regarding pollinator health, 1:30 p.m., 1300 Longworth.

Committee on Appropriations, Full Committee, markup on Transportation, Housing and Urban Development, and Related Agencies Appropriations Bill for FY 2016, 10:15 a.m., 2359 Rayburn.

Committee on Energy and Commerce, Subcommittee on Energy and Power, hearing entitled ''Discussion Drafts Addressing Hydropower Regulatory Modernization and FERC Process Coordination under the Natural Gas Act'', 10 a.m., 2123 Rayburn.

Subcommittee on Communications and Technology, hearing entitled ''Stakeholder Perspectives on the IANA Transition'', 2 p.m., 2322 Rayburn.

Committee on Financial Services, Subcommittee on Oversight and Investigations, hearing entitled ''The Dodd-Frank Act and Regulatory Overreach'', 9:30 a.m., HVC–210.

Subcommittee on Capital Markets and Government Sponsored Enterprises, hearing entitled ''Legislative Proposals to Enhance Capital Formation and Reduce Regulatory Burdens, Part II'', 2 p.m., HVC–210.

Committee on Foreign Affairs, Full Committee, hearing entitled ''Ancient Communities Under Attack: ISIS's War on Religious Minorities'', 10 a.m., 2172 Rayburn.

Committee on Homeland Security, Subcommittee on Oversight and Management Efficiency, markup on H.R. 1615, the ''DHS FOIA Efficiency Act of 2015''; H.R. 1626, the ''DHS IT Duplication Reduction Act of 2015''; H.R. 1633, the ''DHS Paid Administrative Leave Accountability Act of 2015''; H.R. 1640, the ''Department of Homeland Security Headquarters Consolidation Accountability Act of 2015''; and H.R. 1646, the ''Homeland Security Drone Assessment and Analysis Act'', 10 a.m., 311 Cannon.

Committee on the Judiciary, Subcommittee on Courts, Intellectual Property, and the Internet, hearing entitled ''Stakeholder Perspectives on ICANN: The .Sucks Domain and Essential Steps to Guarantee Trust and Accountability in the Internet's Operation'', 10 a.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, hearing entitled ''The Obama Administration's CEQ Recently Revised Draft Guidance for GHG Emissions and the Effects of Climate Change'', 10 a.m., 1324 Longworth.

Committee on Oversight and Government Reform, Full Committee, markup on a bill to clarify the effective date of the Border Patrol Agent Pay Reform Act of 2014; and hearing entitled ''Transportation Security: Are Our Airports Safe?'', 10 a.m., 2154 Rayburn.

Subcommittee on National Security; and Subcommittee on the Interior, joint hearing entitled ''The EMP Threat: The State of Preparedness Against the Threat of an Electromagnetic Pulse (EMP) Event'', 2 p.m., 2154 Rayburn.

Committee on Rules, Full Committee, hearing on H.R. 1735, the ''National Defense Authorization Act for Fiscal Year 2016'' (Amendment Consideration); and H.R. 1806, the ''America COMPETES Reauthorization Act of 2015'', 3 p.m., H–313 Capitol.

Committee on Science, Space, and Technology, Subcommittee on Energy, hearing entitled ''Nuclear Energy Innovation and the National Labs'', 10 a.m., 2318 Rayburn.

Full Committee, markup on the ''Spurring Private Aerospace Competitiveness and Entrepreneurship Act of 2015''; H.R. 1508, the ''Space Resource Exploration and Utilization Act of 2015''; the ''Commercial Remote Sensing Act of 2015''; and the ''Office of Space Commerce Act'', 2 p.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled ''Bridging the Small Business Capital Gap: Peer-to-Peer Lending'', 11 a.m., 2360 Rayburn.

Committee on Transportation and Infrastructure, Subcommittee on Railroads, Pipelines, and Hazardous Materials, hearing entitled ''The 35th Anniversary of the Staggers Rail Act: Railroad Deregulation Past, Present, and Future'', 10 a.m., 2167 Rayburn.

Committee on Veterans' Affairs, Full Committee, hearing entitled ''Assessing the Promise and Progress of the Choice Program'', 10 a.m., 334 Cannon.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, May 13

Senate Chamber

Program for Wednesday: After the transaction of any morning business (not to extend beyond one hour), Senate will continue consideration of the motion to proceed to consideration of H.R. 1314, Ensuring Tax Exempt Organizations the Right to Appeal Act.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, May 13

House Chamber

Program for Wednesday: Consideration of H.R. 36—Pain-Capable Unborn Child Protection Act (Subject to a Rule), H.R. 2048—USA Freedom Act of 2015 (Subject to a Rule), and H.R. 1735—National Defense Authorization Act for Fiscal Year 2016 (Subject to a Rule).

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